SOCIETY

The Commonwealth of Oceana

Harrington, James

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OCEANA

By James Harrington

INTRODUCTION TO OCEANA

JAMES HARRINGTON, eldest son of Sir Sapcotes Harrington of Exton, in Rutlandshire, was born in the reign of James I, in January, 1611, five years before the death of Shakespeare. He was two or three years younger than John Milton. His great-grandfather was Sir James Harrington, who married Lucy, daughter of Sir William Sidney, lived with her to their golden wedding-day, and had eighteen children, through whom he counted himself, before his death, patriarch in a family that in his own time produced eight dukes, three marquises, seventy earls, twenty-seven viscounts, and thirty-six barons, sixteen of them all being Knights of the Garter. James Harrington's ideal of a commonwealth was the design, therefore, of a man in many ways connected with the chief nobility of England.

Sir Sapcotes Harrington married twice, and had by each of his wives two sons and two daughters. James Harrington was eldest son by the first marriage, which was to Jane, daughter of Sir William Samuel of Upton, in Northamptonshire. James Harrington's brother became a merchant; of his half-brothers, one went to sea, the other became a captain in the army.

As a child, James Harrington was studious, and so sedate that it was said playfully of him he rather kept his parents and teachers in awe than needed correction; but in after-life his quick wit made him full of playfulness in conversation. In 1629 he entered Trinity College, Oxford, as a gentleman commoner. There he had for tutor William Chillingworth, a Fellow of the college, who after conversion to the Church of Rome had reasoned his way back into Protestant opinions. Chillingworth became a famous champion of Protestantism in the question between the Churches, although many Protestants attacked him as unsound because he would not accept the Athanasian Creed and had some other reservations.

Harrington prepared himself for foreign travel by study of modern languages, but before he went abroad, and while he was still under age, his father died and he succeeded to his patrimony. The socage tenure of his estate gave him free choice of his own guardian, and he chose his mother's mother, Lady Samuel.

He then began the season of travel which usually followed studies at the university, a part of his training to which he had looked forward with especial interest. He went first to Holland, which had been in Queen Elizabeth's time the battle-ground of civil and religious liberty. Before he left England he used to say he knew of monarchy, anarchy, aristocracy, democracy, oligarchy, only as hard words to be looked for in a dictionary. But his interest in problems of government began to be awakened while he was among the Dutch. He served in the regiment of Lord Craven, and afterward in that of Sir Robert Stone; was much at The Hague; became familiar with the Court of the Prince of Orange, and with King James's daughter, the Queen of Bohemia, who, with her husband the Prince Elector, was then a fugitive to Holland.

Lord Harrington, who had once acted as governor to the princess, and won her affection, was James Harrington's uncle, and she now cordially welcomed the young student of life for his uncle's sake, and for his own pleasantness of outward wit and inward gravity of thought. Harrington was taken with him by the exiled and plundered Prince Elector, when he paid a visit to the Court of Denmark, and he was intrusted afterward with the chief care of the prince's affairs in England.

From Holland, James Harrington passed through Flanders into France, and thence to Italy. When he came back to England, some courtiers who were with him in Rome told Charles I that Harrington had been too squeamish at the Pope's consecration of wax lights, in refusing to obtain a light, as others did, by kissing his Holiness's toe. The King told Harrington that he might have complied with a custom which only signified respect to a temporal prince. But his Majesty was satisfied with the reply, that having had the honor to kiss his Majesty's hand, he thought it beneath him to kiss any other prince's foot.

Of all places in Italy, Venice pleased Harrington best. He was deeply interested in the Venetian form of government, and his observations bore fruit in many suggestions for the administration of the Commonwealth of Oceana.

After his return to England, being of age, James Harrington cared actively for the interests of his younger brothers and sisters. It was he who made his brother William a merchant. William Harrington throve, and for his ingenuity in matters of construction he was afterward made one of the Fellows of the newly formed Royal Society. He took pains over the training of his sisters, making no difference between sisters and half-sisters, and treating his step-mother as a mother. He filled his home with loving-kindness, and was most liberal in giving help to friends. When he was told that he often threw away his bounty on ungrateful persons, he playfully told his advisers they were mercenary and that he saw they sold their gifts, since they expected so great a return as gratitude.

James Harrington's bent was for the study of life, and he made no active suit for court employment. But he went to court, where Charles I liked him, and admitted him as one of his privy chamber extraordinary, in which character he went with the King in his first expedition against the Scots.

Because Charles I knew him and liked him, and because he had shown himself no partisan of either side in the civil war, though he was known to be inclined, in the way of abstract opinion, toward a form of government that was not monarchy, the commissioners appointed in 1646 to bring Charles from Newcastle named Harrington as one of the King's attendants. The King was pleased, and Harrington was appointed a groom of the bedchamber at Holmby. He followed faithfully the fortunes of the fallen King, never saying even to the King himself a word in contradiction of his own principles of liberty, and finding nothing in his principles or in his temper that should prevent him from paying honor to his sovereign, and seeking to secure for him a happy issue out of his afflictions. Antony à Wood says that, "His Majesty loved Harrington's company, and, finding him to be an ingenious man, chose rather to converse with him than with others of his chamber: they had often discourses

concerning government; but when they happened to talk of a commonwealth the King seemed not to endure it."

Harrington used all the influence he had with those in whose power the King was, to prevent the urging of avoidable questions that would stand in the way of such a treaty as they professed to seek during the King's imprisonment at Carisbrooke. Harrington's friendly interventions on the King's behalf before the Parliament commissioners at Newport caused him, indeed, to be suspected; and when the King was removed from Carisbrooke to Hurst Castle, Harrington was not allowed to remain in his service. But afterward, when King Charles was being taken to Windsor, Harrington got leave to bid him farewell at the door of his carriage. As he was about to kneel, the King took him by the hand and pulled him in. For a few days he was left with the King, but an oath was required of him that he would not assist in, or conceal knowledge of any attempt to procure, the King's escape. He would not take the oath; and was this time not only dismissed from the King's service but himself imprisoned, until Ireton obtained his release. Before the King's death, Harrington found his way to him again, and he was among those who were with Charles I upon the scaffold.

After the King's execution, Harrington was for some time secluded in his study. Monarchy was gone; some form of commonwealth was to be established; and he set to work upon the writing of "Oceana," calmly to show what form of government, since men were free to choose, to him seemed best.

He based his work on an opinion he had formed that the troubles of the time were not due wholly to the intemperance of faction, the misgovernment of a king, or the stubbornness of a people, but to change in the balance of property; and he laid the foundations of his commonwealth in the opinion that empire follows the balance of property. Then he showed the commonwealth of Oceana in action, with safeguards against future shiftings of that balance, and with a popular government in which all offices were filled by men chosen by ballot, who should hold office for a limited term. Thus there was to be a constant flow of new blood through the political system, and the representative was to be kept true as a reflection of the public mind.

The Commonwealth of Oceana was England. Harrington called Scotland Marpesia; and Ireland, Panopea. London he called Emporium; the Thames, Halcionia; Westminster, Hiera; Westminster Hall, Pantheon. The Palace of St. James was Alma; Hampton Court, Convallium; Windsor, Mount Celia. By Hemisna, Harrington meant the river Trent. Past sovereigns of England he renamed for Oceana: William the Conqueror became Turbo; King John, Adoxus; Richard II, Dicotome; Henry VII, Panurgus; Henry VIII, Coraunus; Elizabeth, Parthenia; James I, Morpheus. He referred to Hobbes as Leviathan; and to Francis Bacon, as Verulamius. Oliver Cromwell he renamed Olphaus Megaletor.

Harrington's book was seized while printing, and carried to Whitehall. Harrington went to Cromwell's daughter, Lady Claypole, played with her three-year-old child while waiting for her, and said to her, when she came and found him with her little girl upon his lap, "Madam, you have come in the nick of time, for I was just about to steal this pretty lady." "Why should you?" "Why shouldn't I, unless you cause your

father to restore a child of mine that he has stolen?" It was only, he said, a kind of political romance; so far from any treason against her father that he hoped she would let him know it was to be dedicated to him. So the book was restored; and it was published in the time of Cromwell's Commonwealth, in the year 1656.

This treatise, which had its origin in the most direct pressure of the problem of government upon the minds of men continues the course of thought on which Machiavelli's "Prince" had formed one famous station, and Hobbes's "Leviathan," another.

"Oceana," when published, was widely read and actively attacked. One opponent of its doctrines was Dr. Henry Ferne, afterward Bishop of Chester. Another was Matthew Wren, eldest son to the Bishop of Ely. He was one of those who met for scientific research at the house of Dr. Wilkins, and had, said Harrington, "an excellent faculty of magnifying a louse and diminishing a commonwealth."

In 1659, Harrington published an abridgment of his Oceana as "The Art of Lawgiving," in three books. Other pieces followed, in which he defended or developed his opinions. He again urged them when Cromwell's Commonwealth was in its death-throes. Then he fell back upon argument at nightly meetings of a Rota Club which met in the New Palace Yard, Westminster. Milton's old pupil, Cyriac Skinner, was one of its members; and its elections were by ballot, with rotation in the tenure of all offices. The club was put an end to at the Restoration, when Harrington retired to his study and amused himself by putting his "System of Politics" into the form of "Aphorisms."

On December 28, 1661, James Harrington, then fifty years old, was arrested and carried to the Tower as a traitor. His Aphorisms were on his desk, and as they also were to be carried off, he asked only that they might first be stitched together in their proper order. Why he was arrested, he was not told. One of his sisters pleaded in vain to the King. He was falsely accused of complicity in an imaginary plot, of which nothing could be made by its investigators. No heed was paid to the frank denials of a man of the sincerest nature, who never had concealed his thoughts or actions. "Why," he was asked, at his first examination by Lord Lauderdale, who was one of his kinsmen, "why did he, as a private man, meddle with politics? What had a private man to do with government?" His answer was: "My lord, there is not any public person, nor any magistrate, that has written on politics, worth a button. All they that have been excellent in this way have been private men, as private men, my lord, as myself. There is Plato, there is Aristotle, there is Livy, there is Machiavel. My lord, I can sum up Aristotle's 'Politics' in a very few words: he says, there is the Barbarous Monarchy--such a one where the people have no votes in making the laws; he says, there is the Heroic Monarchy--such a one where the people have their votes in making the laws; and then, he says, there is Democracy, and affirms that a man cannot be said to have liberty but in a democracy only." Lord Lauderdale here showing impatience, Harrington added: "I say Aristotle says so. I have not said so much. And under what prince was it? Was it not under Alexander, the greatest prince then in the world? I beseech you, my lord, did Alexander hang up Aristotle? did he molest him? Livy, for a commonwealth, is one of the fullest authors; did not he write

under Augustus Caesar? Did Caesar hang up Livy? did he molest him? Machiavel, what a commonwealthsman was he! but he wrote under the Medici when they were princes in Florence: did they hang up Machiavel, or did they molest him? I have done no otherwise than as the greatest politicians: the King will do no otherwise than as the greatest princes."

That was too much to hope, even in a dream, of the low-minded Charles II. Harrington could not obtain even the show of justice in a public trial. He was kept five months an untried prisoner in the Tower, only sheltered from daily brutalities by bribe to the lieutenant. When his habeas corpus had been moved for, it was at first flatly refused; and when it had been granted, Harrington was smuggled away from the Tower between one and two o'clock in the morning, and carried on board a ship that took him to closer imprisonment on St. Nicholas Island, opposite Plymouth. There his health suffered seriously, and his family obtained his removal to imprisonment in Plymouth by giving a bond of £5,000 as sureties against his escape. In Plymouth, Harrington suffered from scurvy, and at last he became insane.

When he had been made a complete wreck in body and in mind, his gracious Majesty restored Harrington to his family. He never recovered health, but still occupied himself much with his pen, writing, among other things, a serious argument to prove that they were themselves mad who thought him so.

In those last days of his shattered life James Harrington married an old friend of the family, a witty lady, daughter of Sir Marmaduke Dorrell, of Buckinghamshire. Gout was added to his troubles; then he was palsied; and he died at Westminster, at the age of sixty-six, on September 11, 1677. He was buried in St. Margaret's Church, by the grave of Sir Walter Raleigh, on the south side of the altar.

H. M.

OCEANA

PART I. THE PRELIMINARIES

Showing the Principles of Government

JANOTTI, the most excellent describer of the Commonwealth of Venice, divides the whole series of government into two times or periods: the one ending with the liberty of Rome, which was the course or empire, as I may call it, of ancient prudence, first discovered to mankind by God himself in the fabric of the commonwealth of Israel, and afterward picked out of his footsteps in nature, and unanimously followed by the Greeks and Romans; the other beginning with the arms of Caesar, which, extinguishing liberty, were the transition of ancient into modern prudence, introduced by those inundations of Huns, Goths, Vandals, Lombards, Saxons, which, breaking the Roman Empire, deformed the whole face of the world with those ill-features of government, which at this time are become far worse in these western parts, except Venice, which, escaping the hands of the barbarians by virtue of its impregnable situation, has had its eye fixed upon ancient prudence, and is attained to

a perfection even beyond the copy.

Relation being had to these two times, government (to define it de jure, or according to ancient prudence) is an art whereby a civil society of men is instituted and preserved upon the foundation of common right or interest; or, to follow Aristotle and Livy, it is the empire of laws, and not of men.

And government (to define it de facto, or according to modern prudence) is an art whereby some man, or some few men, subject a city or a nation, and rule it according to his or their private interest; which, because the laws in such cases are made according to the interest of a man, or of some few families, may be said to be the empire of men, and not of laws.

The former kind is that which Machiavel (whose books are neglected) is the only politician that has gone about to retrieve; and that Leviathan (who would have his book imposed upon the universities) goes about to destroy. For “it is,” says he, “another error of Aristotle’s politics that in a well-ordered commonwealth, not men should govern, but the laws. What man that has his natural senses, though he can neither write nor read, does not find himself governed by them he fears, and believes can kill or hurt him when he obeys not? or, who believes that the law can hurt him, which is but words and paper, without the hands and swords of men?” I confess that the magistrate upon his bench is that to the law which a gunner upon his platform is to his cannon. Nevertheless, I should not dare to argue with a man of any ingenuity after this manner. A whole army, though they can neither write nor read, are not afraid of a platform, which they know is but earth or stone; nor of a cannon, which, without a hand to give fire to it, is but cold iron; therefore a whole army is afraid of one man. But of this kind is the ratiocination of Leviathan, as I shall show in divers places that come in my way, throughout his whole politics, or worse; as where he says, “of Aristotle and of Cicero, of the Greeks, and of the Romans, who lived under popular States, that they derived those rights, not from the principles of nature, but transcribed them into their books out of the practice of their own commonwealths, as grammarians describe the rules of language out of poets.” Which is as if a man should tell famous Harvey that he transcribed his circulation of the blood, not out of the principles of nature, but out of the anatomy of this or that body.

To go on therefore with his preliminary discourse, I shall divide it, according to the two definitions of government relating to Janotti’s two times, in two parts: the first, treating of the principles of government in general, and according to the ancients; the second, treating of the late governments of Oceana in particular, and in that of modern prudence.

Government, according to the ancients, and their learned disciple Machiavel, the only politician of later ages, is of three kinds: the government of one man, or of the better sort, or of the whole people; which, by their more learned names, are called monarchy, aristocracy, and democracy. These they hold, through their proneness to degenerate, to be all evil. For whereas they that govern should govern according to reason, if they govern according to passion they do that which they should not do. Wherefore, as reason and passion are two things, so government by reason is one

thing, and the corruption of government by passion is another thing, but not always another government: as a body that is alive is one thing, and a body that is dead is another thing, but not always another creature, though the corruption of one comes at length to be the generation of another. The corruption then of monarchy is called tyranny; that of aristocracy, oligarchy and that of democracy, anarchy. But legislators, having found these three governments at the best to be naught, have invented another, consisting of a mixture of them all, which only is good. This is the doctrine of the ancients.

But Leviathan is positive that they are all deceived, and that there is no other government in nature than one of the three; as also that the flesh of them cannot stink, the names of their corruptions being but the names of men's fancies, which will be understood when we are shown which of them was Senatus Populusque Romanus.

To go my own way, and yet to follow the ancients, the principles of government are twofold: internal, or the goods of the mind; and external, or the goods of fortune. The goods of the mind are natural or acquired virtues, as wisdom, prudence, and courage, etc. The goods of fortune are riches. There be goods also of the body, as health, beauty, strength; but these are not to be brought into account upon this score, because if a man or an army acquires victory or empire, it is more from their discipline, arms, and courage than from their natural health, beauty, or strength, in regard that a people conquered may have more of natural strength, beauty, and health, and yet find little remedy. The principles of government then are in the goods of the mind, or in the goods of fortune. To the goods of the mind answers authority; to the goods of fortune, power or empire. Wherefore Leviathan, though he be right where he says that "riches are power," is mistaken where he says that "prudence, or the reputation of prudence, is power;" for the learning or prudence of a man is no more power than the learning or prudence of a book or author, which is properly authority. A learned writer may have authority though he has no power; and a foolish magistrate may have power, though he has otherwise no esteem or authority. The difference of these two is observed by Livy in Evander, of whom he says that he governed rather by the authority of others than by his own power.

To begin with riches, in regard that men are hung upon these, not of choice as upon the other, but of necessity and by the teeth; forasmuch as he who wants bread is his servant that will feed him, if a man thus feeds a whole people, they are under his empire.

Empire is of two kinds, domestic and national, or foreign and provincial.

Domestic empire is founded upon dominion. Dominion is property, real or personal; that is to say, in lands, or in money and goods.

Lands, or the parts and parcels of a territory, are held by the proprietor or proprietors, lord or lords of it, in some proportion; and such (except it be in a city that has little or no land, and whose revenue is in trade) as is the proportion or balance of dominion or property in land, such is the nature of the empire.

If one man be sole landlord of a territory, or overbalance the people, for example, three parts in four, he is grand seignior; for so the Turk is called from his property,

and his empire is absolute monarchy.

If the few or a nobility, or a nobility with the clergy, be landlords, or overbalance the people to the like proportion, it makes the Gothic balance (to be shown at large in the second part of this discourse), and the empire is mixed monarchy, as that of Spain, Poland, and late of Oceana.

And if the whole people be landlords, or hold the lands so divided among them that no one man, or number of men, within the compass of the few or aristocracy, overbalance them, the empire (without the interposition of force) is a commonwealth.

If force be interposed in any of these three cases, it must either frame the government to the foundation, or the foundation to the government; or holding the government not according to the balance, it is not natural, but violent; and therefore if it be at the devotion of a prince, it is tyranny; if at the devotion of the few, oligarchy; or if in the power of the people, anarchy: Each of which confusions, the balance standing otherwise, is but of short continuance, because against the nature of the balance, which, not destroyed, destroys that which opposes it.

But there be certain other confusions, which, being rooted in the balance, are of longer continuance, and of worse consequence; as, first, where a nobility holds half the property, or about that proportion, and the people the other half; in which case, without altering the balance there is no remedy but the one must eat out the other, as the people did the nobility in Athens, and the nobility the people in Rome. Secondly, when a prince holds about half the dominion, and the people the other half (which was the case of the Roman emperors, planted partly upon their military colonies and partly upon the Senate and the people), the government becomes a very shambles, both of the princes and the people. Somewhat of this nature are certain governments at this day, which are said to subsist by confusion. In this case, to fix the balance is to entail misery; but in the three former, not to fix it is to lose the government. Wherefore it being unlawful in Turkey that any should possess land but the Grand Seignior, the balance is fixed by the law, and that empire firm. Nor, though the kings often sell was the throne of Oceana known to shake, until the statute of alienations broke the pillars, by giving way to the nobility to sell their estates. While Lacedaemon held to the division of land made by Lycurgus, it was immovable; but, breaking that, could stand no longer. This kind of law fixing the balance in lands is called agrarian, and was first introduced by God himself, who divided the land of Canaan to his people by lots, and is of such virtue that wherever it has held, that government has not altered, except by consent; as in that unparalleled example of the people of Israel, when being in liberty they would needs choose a king. But without an agrarian law, government, whether monarchical, aristocratical, or popular, has no long lease.

As for dominion, personal or in money, it may now and then stir up a Melius or a Manlius, which, if the Commonwealth be not provided with some kind of dictatorian power, may be dangerous, though it has been seldom or never successful; because to property producing empire, it is required that it should have some certain root or foothold, which, except in land, it cannot have, being otherwise as it were upon the wing.

Nevertheless, in such cities as subsist mostly by trade, and have little or no land, as Holland and Genoa, the balance of treasure may be equal to that of land in the cases mentioned.

But Leviathan, though he seems to skew at antiquity, following his furious master Carneades, has caught hold of the public sword, to which he reduces all manner and matter of government; as, where he affirms this opinion (that any monarch receives his power by covenant; that is to say, upon conditions) “to proceed from the not understanding this easy truth, that covenants being but words and breath, have no power to oblige, contain, constrain, or protect any man, but what they have from the public sword.” But as he said of the law, that without this sword it is but paper, so he might have thought of this sword, that without a hand it is but cold iron. The hand which holds this sword is the militia of a nation; and the militia of a nation is either an army in the field, or ready for the field upon occasion. But an army is a beast that has a great belly, and must be fed: wherefore this will come to what pastures you have, and what pastures you have will come to the balance of property, without which the public sword is but a name or mere spitfrog. Wherefore, to set that which Leviathan says of arms and of contracts a little straighter, he that can graze this beast with the great belly, as the Turk does his Timariots, may well deride him that imagines he received his power by covenant, or is obliged to any such toy. It being in this case only that covenants are but words and breath. But if the property of the nobility, stocked with their tenants and retainers, be the pasture of that beast, the ox knows his master’s crib; and it is impossible for a king in such a constitution to reign otherwise than by covenant; or if he break it, it is words that come to blows.

“But,” says he, “when an assembly of men is made sovereign, then no man imagines any such covenant to have part in the institution.” But what was that by Publicola of appeal to the people, or that whereby the people had their tribunes? “Fie,” says he, “nobody is so dull as to say that the people of Rome made a covenant with the Romans, to hold the sovereignty on such or such conditions, which, not performed, the Romans might depose the Roman people.” In which there be several remarkable things; for he holds the Commonwealth of Rome to have consisted of one assembly, whereas it consisted of the Senate and the people; that they were not upon covenant, whereas every law enacted by them was a covenant between them; that the one assembly was made sovereign, whereas the people, who only were sovereign, were such from the beginning, as appears by the ancient style of their covenants or laws--“The Senate has resolved, the people have decreed,” that a council being made sovereign, cannot be made such upon conditions, whereas the Decemvirs being a council that was made sovereign, was made such upon conditions; that all conditions or covenants making a sovereign being made, are void; whence it must follow that, the Decemviri being made, were ever after the lawful government of Rome, and that it was unlawful for the Commonwealth of Rome to depose the Decemvirs; as also that Cicero, if he wrote otherwise out of his commonwealth, did not write out of nature. But to come to others that see more of this balance.

You have Aristotle full of it in divers places, especially where he says, that “immoderate wealth, as where one man or the few have greater possessions than the

equality or the frame of the commonwealth will bear, is an occasion of sedition, which ends for the greater part in monarchy and that for this cause the ostracism has been received in divers places, as in Argos and Athens. But that it were better to prevent the growth in the beginning, than, when it has got head, to seek the remedy of such an evil."

Machiavel has missed it very narrowly and more dangerously for not fully perceiving that if a commonwealth be galled by the gentry it is by their overbalance, he speaks of the gentry as hostile to popular governments, and of popular governments as hostile to the gentry; and makes us believe that the people in such are so enraged against them, that where they meet a gentleman they kill him: which can never be proved by any one example, unless in civil war, seeing that even in Switzerland the gentry are not only safe, but in honor. But the balance, as I have laid it down, though unseen by Machiavel, is that which interprets him, and that which he confirms by his judgment in many others as well as in this place, where he concludes, "That he who will go about to make a commonwealth where there be many gentlemen, unless he first destroys them, undertakes an impossibility. And that he who goes about to introduce monarchy where the condition of the people is equal, shall never bring it to pass, unless he cull out such of them as are the most turbulent and ambitious, and make them gentlemen or noblemen, not in name but in effect; that is, by enriching them with lands, castles, and treasures, that may gain them power among the rest, and bring in the rest to dependence upon themselves, to the end that, they maintaining their ambition by the prince, the prince may maintain his power by them."

Wherefore, as in this place I agree with Machiavel, that a nobility or gentry, overbalancing a popular government, is the utter bane and destruction of it; so I shall show in another, that a nobility or gentry, in a popular government, not overbalancing it, is the very life and soul of it.

By what has been said, it should seem that we may lay aside further disputes of the public sword, or of the right of the militia; which, be the government what it will, or let it change how it can, is inseparable from the overbalance in dominion: nor, if otherwise stated by the law or custom (as in the Commonwealth of Rome, where the people having the sword, the nobility came to have the overbalance), avails it to any other end than destruction. For as a building swaying from the foundation must fall, so it fares with the law swaying from reason, and the militia from the balance of dominion. And thus much for the balance of national or domestic empire, which is in dominion.

The balance of foreign or provincial empire is of a contrary nature. A man may as well say that it is unlawful for him who has made a fair and honest purchase to have tenants, as for a government that has made a just progress and enlargement of itself to have provinces. But how a province may be justly acquired appertains to another place. In this I am to show no more than how or upon what kind of balance it is to be held; in order whereto I shall first show upon what kind of balance it is not to be held. It has been said, that national or independent empire, of what kind soever, is to be exercised by them that have the proper balance of dominion in the nation; wherefore

provincial or dependent empire is not to be exercised by them that have the balance of dominion in the province, because that would bring the government from provincial and dependent, to national and independent. Absolute monarchy, as that of the Turks, neither plants its people at home nor abroad, otherwise than as tenants for life or at will; wherefore its national and provincial government is all one. But in governments that admit the citizen or subject to dominion in lands, the richest are they that share most of the power at home; whereas the richest among the provincials, though native subjects, or citizens that have been transplanted, are least admitted to the government abroad; for men, like flowers or roots being transplanted, take after the soil wherein they grow. Wherefore the Commonwealth of Rome, by planting colonies of its citizens within the bounds of Italy, took the best way of propagating itself, and naturalizing the country; whereas if it had planted such colonies without the bounds of Italy it would have alienated the citizens, and given a root to liberty abroad, that might have sprung up foreign or savage, and hostile to her: wherefore it never made any such dispersion of itself and its strength, till it was under the yoke of the Emperors, who, disburdening themselves of the people, as having less apprehension of what they could do abroad than at home, took a contrary course.

The Mamelukes (which, till any man show me the contrary, I shall presume to have been a commonwealth consisting of an army, whereof the common soldier was the people, the commissioned officer the Senate, and the general the prince) were foreigners, and by nation Circassians, that governed Egypt; wherefore these never durst plant themselves upon dominion, which growing naturally up into the national interest, must have dissolved the foreign yoke in that province.

The like in some sort may be said of Venice, the government whereof is usually mistaken; for Venice, though it does not take in the people, never excluded them. This commonwealth, the orders whereof are the most democratical or popular of all others, in regard of the exquisite rotation of the Senate, at the first institution took in the whole people; they that now live under the government without participation of it, are such as have since either voluntarily chosen so to do, or were subdued by arms. Wherefore the subject of Venice is governed by provinces, and the balance of dominion not standing, as has been said, with provincial government; as the Mamelukes durst not cast their government upon this balance in their provinces, lest the national interest should have rooted out the foreign, so neither dare the Venetians take in their subjects upon this balance, lest the foreign interest should root out the national (which is that of the 3,000 now governing), and by diffusing the commonwealth throughout her territories, lose the advantage of her situation, by which in great part it subsists. And such also is the government of the Spaniard in the Indies, to which he deputes natives of his own country, not admitting the creoles to the government of those provinces, though descended from Spaniards.

But if a prince or a commonwealth may hold a territory that is foreign in this, it may be asked why he may not hold one that is native in the like manner? To which I answer, because he can hold a foreign by a native territory, but not a native by a foreign; and as hitherto I have shown what is not the provincial balance, so by this

answer it may appear what it is, namely, the overbalance of a native territory to a foreign; for as one country balances itself by the distribution of property according to the proportion of the same, so one country overbalances another by advantage of divers kinds. For example, the Commonwealth of Rome overbalanced her provinces by the vigor of a more excellent government opposed to a crazier. Or by a more exquisite militia opposed to one inferior in courage or discipline. The like was that of the Mamelukes, being a hardy people, to the Egyptians, that were a soft one. And the balance of situation is in this kind of wonderful effect; seeing the King of Denmark, being none of the most potent princes, is able at the Sound to take toll of the greatest; and as this King, by the advantage of the land, can make the sea tributary, so Venice, by the advantage of the sea, in whose arms she is impregnable, can make the land to feed her gulf. For the colonies in the Indies, they are yet babes that cannot live without sucking the breasts of their mother cities, but such as I mistake if when they come of age they do not wean themselves; which causes me to wonder at princes that delight to be exhausted in that way. And so much for the principles of power, whether national or provincial, domestic or foreign; being such as are external, and founded in the goods of fortune.

I come to the principles of authority, which are internal, and founded upon the goods of the mind. These the legislator that can unite in his government with those of fortune, comes nearest to the work of God, whose government consists of heaven and earth; which was said by Plato, though in different words, as, when princes should be philosophers, or philosophers princes, the world would be happy. And says Solomon: “There is an evil which I have seen under the sun, which proceeds from the ruler (enimvero neque nobilem, neque ingenuum, nec libertinum quidem armis praeponere, regia utilitas est). Folly is set in great dignity, and the rich (either in virtue and wisdom, in the goods of the mind, or those of fortune upon that balance which gives them a sense of the national interest) sit in low places. I have seen servants upon horses, and princes walking as servants upon the earth.” Sad complaints, that the principles of power and of authority, the goods of the mind and of fortune, do not meet and twine in the wreath or crown of empire! Wherefore, if we have anything of piety or of prudence, let us raise ourselves out of the mire of private interest to the contemplation of virtue, and put a hand to the removal of “this evil from under the sun;” this evil against which no government that is not secured can be good; this evil from which the government that is secure must be perfect. Solomon tells us that the cause of it is from the ruler, from those principles of power, which, balanced upon earthly trash, exclude the heavenly treasures of virtue, and that influence of it upon government which is authority. We have wandered the earth to find out the balance of power; but to find out that of authority we must ascend, as I said, nearer heaven, or to the image of God, which is the soul of man.

The soul of man (whose life or motion is perpetual contemplation or thought) is the mistress of two potent rivals, the one reason, the other passion, that are in continual suit; and, according as she gives up her will to these or either of them, is the felicity or misery which man partakes in this mortal life.

For, as whatever was passion in the contemplation of a man, being brought forth by his will into action, is vice and the bondage of sin; so whatever was reason in the contemplation of a man, being brought forth by his will into action, is virtue and the freedom of soul.

Again, as those actions of a man that were sin acquire to himself repentance or shame, and affect others with scorn or pity, so those actions of a man that are virtue acquire to himself honor, and upon others authority.

Now government is no other than the soul of a nation or city: wherefore that which was reason in the debate of a commonwealth being brought forth by the result, must be virtue; and forasmuch as the soul of a city or nation is the sovereign power, her virtue must be law. But the government whose law is virtue, and whose virtue is law, is the same whose empire is authority, and whose authority is empire.

Again, if the liberty of a man consists in the empire of his reason, the absence whereof would betray him to the bondage of his passions, then the liberty of a commonwealth consists in the empire of her laws, the absence whereof would betray her to the lust of tyrants. And these I conceive to be the principles upon which Aristotle and Livy (injuriously accused by Leviathan for not writing out of nature) have grounded their assertion, “that a commonwealth is an empire of laws and not of men.” But they must not carry it so. “For,” says he, “the liberty whereof there is so frequent and honorable mention in the histories and philosophy of the ancient Greeks and Romans, and the writings and discourses of those that from them have received all their learning in the politics, is not the liberty of particular men, but the liberty of the commonwealth.” He might as well have said that the estates of particular men in a commonwealth are not the riches of particular men, but the riches of the commonwealth; for equality of estates causes equality of power, and equality of power is the liberty, not only of the commonwealth, but of every man.

But sure a man would never be thus irreverent with the greatest authors, and positive against all antiquity without some certain demonstration of truth--and what is it? Why, “there is written on the turrets of the city of Lucca in great characters at this day the word LIBERTAS; yet no man can thence infer that a particular man has more liberty or immunity from the service of the commonwealth there than in Constantinople. Whether a commonwealth be monarchical or popular the freedom is the same.” The mountain has brought forth, and we have a little equivocation! For to say that a Lucchese has no more liberty or immunity from the laws of Lucca than a Turk has from those of Constantinople; and to say that a Lucchese has no more liberty or immunity by the laws of Lucca, than a Turk has by those of Constantinople, are pretty different speeches. The first may be said of all governments alike; the second scarce of any two; much less of these, seeing it is known that, whereas the greatest Bashaw is a tenant, as well of his head as of his estate, at the will of his lord, the meanest Lucchese that has land is a freeholder of both, and not to be controlled but by the law, and that framed by every private man to no other end (or they may thank themselves) than to protect the liberty of every private man, which by that means comes to be the liberty of the commonwealth.

But seeing they that make the laws in commonwealths are but men, the main question seems to be, how a commonwealth comes to be an empire of laws, and not of men? or how the debate or result of a commonwealth is so sure to be according to reason; seeing they who debate, and they who resolve, be but men? “And as often as reason is against a man, so often will a man be against reason.”

This is thought to be a shrewd saying, but will do no harm; for be it so that reason is nothing but interest, there be divers interests, and so divers reasons.

As first, there is private reason, which is the interest of a private man.

Secondly, there is reason of state, which is the interest (or error, as was said by Solomon) of the ruler or rulers, that is to say, of the prince, of the nobility, or of the people.

Thirdly there is that reason, which is the interest of mankind, or of the whole. “Now if we see even in those natural agents that want sense, that as in themselves they have a law which directs them in the means whereby they tend to their own perfection, so likewise that another law there is, which touches them as they are sociable parts united into one body, a law which binds them each to serve to others’ good, and all to prefer the good of the whole, before whatsoever their own particular; as when stones, or heavy things, forsake their ordinary wont or centre, and fly upward, as if they heard themselves commanded to let go the good they privately wish, and to relieve the present distress of nature in common.” There is a common right, law of nature, or interest of the whole, which is more excellent, and so acknowledged to be by the agents themselves, than the right or interest of the parts only. “Wherefore, though it may be truly said that the creatures are naturally carried forth to their proper utility or profit, that ought not to be taken in too general a sense; seeing divers of them abstain from their own profit, either in regard of those of the same kind, or at least of their young.”

Mankind then must either be less just than the creature, or acknowledge also his common interest to be common right. And if reason be nothing else but interest, and the interest of mankind be the right interest, then the reason of mankind must be right reason. Now compute well; for if the interest of popular government come the nearest to the interest of mankind, then the reason of popular government must come the nearest to right reason.

But it may be said that the difficulty remains yet; for be the interest of popular government right reason, a man does not look upon reason as it is right or wrong in itself, but as it makes for him or against him. Wherefore, unless you can show such orders of a government as, like those of God in nature, shall be able to constrain this or that creature to shake off that inclination which is more peculiar to it, and take up that which regards the common good or interest, all this is to no more end than to persuade every man in a popular government not to carve himself of that which he desires most, but to be mannerly at the public table, and give the best from himself to decency and the common interest. But that such orders may be established as may, nay must, give the upper hand in all cases to common right or interest, notwithstanding the nearness of that which sticks to every man in private, and this in

a way of equal certainty and facility, is known even to girls, being no other than those that are of common practice with them in divers cases. For example, two of them have a cake yet undivided, which was given between them: that each of them therefore might have that which is due, “Divide,” says one to the other, “and I will choose; or let me divide, and you shall choose.” If this be but once agreed upon, it is enough; for the divident, dividing unequally, loses, in regard that the other takes the better half. Wherefore she divides equally, and so both have right. “Oh, the depth of the wisdom of God.” And yet “by the mouths of babes and sucklings has He set forth His strength;” that which great philosophers are disputing upon in vain is brought to light by two harmless girls, even the whole mystery of a commonwealth, which lies only in dividing and choosing. Nor has God (if his works in nature be understood) left so much to mankind to dispute upon as who shall divide and who choose, but distributed them forever into two orders, whereof the one has the natural right of dividing, and the other of choosing.

For example: A commonwealth is but a civil society of men: let us take any number of men (as twenty) and immediately make a commonwealth. Twenty men (if they be not all idiots, perhaps if they be) can never come so together but there will be such a difference in them that about a third will be wiser, or at least less foolish than all the rest; these upon acquaintance, though it be but small, will be discovered, and, as stags that have the largest heads, lead the herd; for while the six, discoursing and arguing one with another, show the eminence of their parts, the fourteen discover things that they never thought on; or are cleared in divers truths which had formerly perplexed them. Wherefore, in matter of common concernment, difficulty, or danger, they hang upon their lips, as children upon their fathers; and the influence thus acquired by the six, the eminence of whose parts are found to be a stay and comfort to the fourteen, is the authority of the fathers. Wherefore this can be no other than a natural aristocracy diffused by God throughout the whole body of mankind to this end and purpose; and therefore such as the people have not only a natural but a positive obligation to make use of as their guides; as where the people of Israel are commanded to “take wise men, and understanding, and known among their tribes, to be made rulers over them.” The six then approved of, as in the present case, are the senate, not by hereditary right, or in regard of the greatness of their estates only, which would tend to such power as might force or draw the people, but by election for their excellent parts, which tends to the advancement of the influence of their virtue or authority that leads the people. Wherefore the office of the senate is not to be commanders, but counsellors, of the people; and that which is proper to counsellors is first to debate, and afterward to give advice in the business whereupon they have debated, whence the decrees of the senate are never laws, nor so called; and these being maturely framed, it is their duty to propose in the case to the people. Wherefore the senate is no more than the debate of the commonwealth. But to debate is to discern or put a difference between things that, being alike, are not the same; or it is separating and weighing this reason against that, and that reason against this, which is dividing.

The senate then having divided, who shall choose? Ask the girls: for if she that divided must have chosen also, it had been little worse for the other in case she had

not divided at all, but kept the whole cake to herself, in regard that being to choose, too, she divided accordingly. Wherefore if the senate have any further power than to divide, the commonwealth can never be equal. But in a commonwealth consisting of a single council, there is no other to choose than that which divided; whence it is, that such a council fails not to scramble--that is, to be factious, there being no other dividing of the cake in that case but among themselves.

Nor is there any remedy but to have another council to choose. The wisdom of the few may be the light of mankind; but the interest of the few is not the profit of mankind nor of a commonwealth. Wherefore, seeing we have granted interest to be reason, they must not choose lest it put out their light. But as the council dividing consists of the wisdom of the commonwealth, so the assembly or council choosing should consist of the interest of the commonwealth: as the wisdom of the commonwealth is in the aristocracy, so the interest of the commonwealth is in the whole body of the people. And whereas this, in case the commonwealth consist of a whole nation, is too unwieldy a body to be assembled, this council is to consist of such a representative as may be equal, and so constituted, as can never contract any other interest than that of the whole people; the manner whereof, being such as is best shown by exemplification, I remit to the model. But in the present case, the six dividing, and the fourteen choosing, must of necessity take in the whole interest of the twenty.

Dividing and choosing, in the language of a commonwealth, is debating and resolving; and whatsoever, upon debate of the senate, is proposed to the people, and resolved by them, is enacted by the authority of the fathers, and by the power of the people, which concurring, make a law.

But the law being made, says Leviathan, “is but words and paper without the hands and swords of men;” wherefore as these two orders of a commonwealth, namely, the senate and the people, are legislative, so of necessity there must be a third to be executive of the laws made, and this is the magistracy. In which order, with the rest being wrought up by art, the commonwealth consists of “the senate proposing, the people resolving, and the magistracy executing,” whereby partaking of the aristocracy as in the senate, of the democracy as in the people, and of monarchy as in the magistracy, it is complete. Now there being no other commonwealth but this in art or nature, it is no wonder if Machiavel has shown us that the ancients held this only to be good; but it seems strange to me that they should hold that there could be any other, for if there be such a thing as pure monarchy, yet that there should be such a one as pure aristocracy or pure democracy is not in my understanding. But the magistracy, both in number and function, is different in different commonwealths. Nevertheless there is one condition of it that must be the same in every one, or it dissolves the commonwealth where it is wanting. And this is no less than that, as the hand of the magistrate is the executive power of the law, so the head of the magistrate is answerable to the people, that his execution be according to the law; by which Leviathan may see that the hand or sword that executes the law is in it and not above it.

Now whether I have rightly transcribed these principles of a commonwealth out of nature, I shall appeal to God and to the world--to God in the fabric of the Commonwealth of Israel, and to the world in the universal series of ancient prudence. But in regard the same commonwealths will be opened at large in the Council of legislators, I shall touch them for the present but slightly, beginning with that of Israel.

The Commonwealth of Israel consisted of the Senate, the people, and the magistracy.

The people by their first division, which was genealogical, were contained under their thirteen tribes, houses, or families; whereof the first-born in each was prince of his tribe, and had the leading of it: the tribe of Levi only, being set apart to serve at the altar, had no other prince but the high-priest. In their second division they were divided locally by their agrarian, or the distribution of the land of Canaan to them by lot, the tithe of all remaining to Levi; whence, according to their local division, the tribes are reckoned but twelve.

The assemblies of the people thus divided were methodically gathered by trumpets to the congregation: which was, it should seem, of two sorts. For if it were called with one trumpet only, the princes of the tribes and the elders only assembled; but if it were called with two, the whole people gathered themselves to the congregation, for so it is rendered by the English; but in the Greek it is called Ecclesia, or the Church of God, and by the Talmudist the great “Synagogue.” The word Ecclesia was also anciently and properly used for the civil congregations, or assemblies of the people in Athens, Lacedaemon, and Ephesus, where it is so called in Scripture, though it be otherwise rendered by the translators, not much as I conceive to their commendation, seeing by that means they have lost us a good lesson, the apostles borrowing that name for their spiritual congregations, to the end that we might see they intended the government of the church to be democratical or popular, as is also plain in the rest of their constitutions.

The church or congregation of the people of Israel assembled in a military manner, and had the result of the commonwealth, or the power of confirming all their laws, though proposed even by God himself; as where they make him king, and where they reject or depose him as civil magistrate, and elect Saul. It is manifest that he gives no such example to a legislator in a popular government as to deny or evade the power of the people, which were a contradiction; but though he deservedly blames the ingratitude of the people in that action, he commands Samuel, being next under himself supreme magistrate, “to hearken to their voice” (for where the suffrage of the people goes for nothing, it is no commonwealth), and comforts him, saying, “They have not rejected thee, but they have rejected me that I should not reign over them.” But to reject him that he should not reign over them, was as civil magistrate to depose him. The power therefore which the people had to depose even God himself as he was civil magistrate, leaves little doubt but that they had power to have rejected any of those laws confirmed by them throughout the Scripture, which, to omit the several parcels, are generally contained under two heads: those that were made by covenant with the people in the land of Moab, and those which were made by

covenant with the people in Horeb; which two, I think, amount to the whole body of the Israelitish laws.

But if all and every one of the laws of Israel being proposed by God, were no otherwise enacted than by covenant with the people, then that only which was resolved by the people of Israel was their law; and so the result of that commonwealth was in the people. Nor had the people the result only in matter of law, but the power in some cases of judicature; as also the right of levying war, cognizance in matter of religion, and the election of their magistrates, as the judge or dictator, the king, the prince: which functions were exercised by the Synagoga magna, or Congregation of Israel, not always in one manner, for sometimes they were performed by the suffrage of the people, viva voce, sometimes by the lot only, and at others by the ballot, or by a mixture of the lot with the suffrage, as in the case of Eldad and Medad, which I shall open with the Senate.

The Senate of Israel, called in the old Testament the Seventy Elders, and in the New the Sanhedrim (which word is usually translated “the Council”), was appointed by God, and consisted of seventy elders besides Moses, which were at first elected by the people, but in what manner is rather intimated than shown. Nevertheless, because I cannot otherwise understand the passage concerning Eldad and Medad, of whom it is said “that they were of them that were written, but went not up to the tabernacle,” then with the Talmudists I conceive that Eldad and Medad had the suffrage of the tribes, and so were written as competitors for magistracy; but coming afterward to the lot, failed of it, and therefore went not up to the tabernacle, or place of confirmation by God, or to the session-house of the Senate, with the Seventy upon whom the lot fell to be senators; for the session-house of the Sanhedrim was first in the court of the tabernacle, and afterward in that of the Temple, where it came to be called the stone chamber or pavement. If this were the ballot of Israel, that of Venice is the same transposed; for in Venice the competitor is chosen as it were by the lot, in regard that the electors are so made, and the magistrate is chosen by the “suffrage of the great Council or assembly of the people.” But the Sanhedrim of Israel being thus constituted, Moses, for his time, and after him his successor sat in the midst of it as prince or archon, and at his left hand the orator or father of the Senate; the rest, or the bench, coming round with either horn like a crescent, had a scribe attending upon the tip of it.

This Senate, in regard the legislator of Israel was infallible, and the laws given by God such as were not fit to be altered by men, is much different in the exercise of their power from all other senates, except that of the Areopagus in Athens, which also was little more than a supreme judicatory, for it will hardly, as I conceive, be found that the Sanhedrim proposed to the people till the return of the children of Israel out of captivity under Esdras, at which time there was a new law made--namely, for a kind of excommunication, or rather banishment, which had never been before in Israel. Nevertheless it is not to be thought that the Sanhedrim had not always that right, which from the time of Esdras is more frequently exercised, of proposing to the people, but that they forebore it in regard of the fulness and infallibility of the law already made, whereby it was needless. Wherefore the function of this Council, which

is very rare in a senate, was executive, and consisted in the administration of the law made; and whereas the Council itself is often understood in Scripture by the priest and the Levite, there is no more in that save only that the priests and the Levites, who otherwise had no power at all, being in the younger years of this commonwealth, those that were best studied in the laws were the most frequently elected into the Sanhedrim. For the courts, consisting of three-and-twenty elders sitting in the gates of every city, and the triumvirates of judges constituted almost in every village, which were parts of the executive magistracy subordinate to the Sanhedrim, I shall take them at better leisure, and in the larger discourse; but these being that part of this commonwealth which was instituted by Moses upon the advice of Jethro the priest of Midian (as I conceive a heathen), are to me a sufficient warrant even from God himself, who confirmed them, to make further use of human prudence, wherever I find it bearing a testimony to itself, whether in heathen commonwealths or others; and the rather, because so it is, that we who have the holy Scriptures, and in them the original of a commonwealth, made by the same hand that made the world, are either altogether blind or negligent of it; while the heathens have all written theirs, as if they had had no other copy; as, to be more brief in the present account of that which you shall have more at large hereafter:

Athens consisted of the Senate of the Bean proposing, of the Church or Assembly of the people resolving, and too often debating, which was the ruin of it; as also of the Senate of the Areopagus, the nine archons, with divers other magistrates, executing.

Lacedaemon consisted of the Senate proposing, of the Church or congregation of the people resolving only, and never debating, which was the long life of it; and of the two kings, the court of the ephors, with divers other magistrates, executing.

Carthage consisted of the Senate proposing and sometimes resolving too, of the people resolving and sometimes debating too, for which fault she was reprehended by Aristotle; and she had her suffetes, and her hundred men, with other magistrates, executing.

Rome consisted of the Senate proposing, the concio or people resolving, and too often debating, which caused her storms; as also of the consuls, censors, aediles, tribunes, praetors, quaestors, and other magistrates, executing.

Venice consists of the Senate, or pregati, proposing, and sometimes resolving too, of the great Council or Assembly of the people, in whom the result is constitutively; as also of the doge, the signory, the censors, the dieci, the quazancies, and other magistrates, executing.

The proceeding of the Commonwealths of Switzerland and Holland is of a like nature, though after a more obscure manner; for the sovereignties, whether cantons, provinces, or cities, which are the people, send their deputies, commissioned and instructed by themselves (wherein they reserve the result in their own power), to the provincial or general convention, or Senate, where the deputies debate, but have no other power of result than what was conferred upon them by the people, or is further conferred by the same upon further occasion. And for the executive part they have magistrates or judges in every canton, province, or city, besides those which are

more public, and relate to the league, as for adjusting controversies between one canton, province, or city and another, or the like between such persons as are not of the same canton, province, or city.

But that we may observe a little further how the heathen politicians have written, not only out of nature, but as it were out of Scripture: as in the Commonwealth of Israel, God is said to have been king, so the commonwealth where the law is king, is said by Aristotle to be “the kingdom of God.” And where by the lusts or passions of men a power is set above that of the law deriving from reason, which is the dictate of God, God in that sense is rejected or deposed that he should not reign over them, as he was in Israel. And yet Leviathan will have it that “by reading of these Greek and Latin [he might as well in this sense have said Hebrew] authors, young men, and all others that are unprovided of the antidote of solid reason, receiving a strong and delightful impression of the great exploits of war achieved by the conductors of their armies, receive withal a pleasing idea of all they have done besides, and imagine their great prosperity not to have proceeded from the emulation of particular men, but from the virtue of their popular form of government, not considering the frequent seditions and civil wars produced by the imperfection of their polity.” Where, first, the blame he lays to the heathen authors, is in his sense laid to the Scripture; and whereas he holds them to be young men, or men of no antidote that are of like opinions, it should seem that Machiavel, the sole retriever of this ancient prudence, is to his solid reason a beardless boy that has newly read Livy. And how solid his reason is, may appear where he grants the great prosperity of ancient commonwealths, which is to give up the controversy. For such an effect must have some adequate cause, which to evade he insinuates that it was nothing else but the emulation of particular men, as if so great an emulation could have been generated without as great virtue, so great virtue without the best education, and best education without the best law, or the best laws any otherwise than by the excellency of their polity.

But if some of these commonwealths, as being less perfect in their polity than others, have been more seditious, it is not more an argument of the infirmity of this or that commonwealth in particular, than of the excellency of that kind of polity in general, which if they, that have not altogether reached, have nevertheless had greater prosperity, what would befall them that should reach?

In answer to which question let me invite Leviathan, who of all other governments gives the advantage to monarchy for perfection, to a better disquisition of it by these three assertions.

The first, that the perfection of government lies upon such a libration in the frame of it, that no man or men in or under it can have the interest, or, having the interest, can have the power to disturb it with sedition.

The second, that monarchy, reaching the perfection of the kind, reaches not to the perfection of government, but must have some dangerous flaw in it.

The third, that popular government, reaching the perfection of the kind, reaches the perfection of government, and has no flaw in it.

The first assertion requires no proof.

For the proof of the second, monarchy, as has been shown, is of two kinds: the one by arms, the other by a nobility and there is no other kind in art or nature; for if there have ‘been anciently some governments called kingdoms, as one of the Goths in Spain, and another of the Vandals in Africa, where the King ruled without a nobility and by a council of the people only it is expressly said by the authors that mention them that the, kings were but the captains, and that the people not only gave them laws, but deposed them as often as they pleased. Nor is it possible in reason that it should be otherwise in like cases; wherefore these were either no monarchies, or had greater flaws in them than any other.

But for a monarchy by arms, as that of the Turk (which, of all models that ever were, comes up to the perfection of the kind), it is not in the wit or power of man to cure it of this dangerous flaw, that the Janizaries have frequent interest and perpetual power to raise sedition, and to tear the magistrate, even the prince himself, in pieces. Therefore the monarchy of Turkey is no perfect government.

And for a monarchy by nobility, as of late in Oceana (which of all other models, before the declination of it, came up to the perfection in that kind), it was not in the power or wit of man to cure it of that dangerous flaw; that the nobility had frequent interest and perpetual power by their retainers and tenants to raise sedition; and (whereas the Janizaries occasion this kind of calamity no sooner than they make an end of it) to levy a lasting war, to the vast effusion of blood, and that even upon occasions wherein the people, but for their dependence upon their lords, had no concernment, as in the feud of the Red and White. The like has been frequent in Spain, France, Germany, and other monarchies of this kind; wherefore monarchy by a nobility is no perfect government.

For the proof of the third assertion: Leviathan yields it to me, that there is no other commonwealth but monarchical or popular; wherefore if no monarchy be a perfect government, then either there is no perfect government, or it must be popular, for which kind of constitution I have something more to say than Leviathan has said or ever will be able to say for monarchy. As,

First, that it is the government that was never conquered by any monarch, from the beginning of the world to this day, for if the commonwealths of Greece came under the yoke of the Kings of Macedon, they were first broken by themselves.

Secondly, that it is the government that has frequently led mighty monarchs in triumph.

Thirdly, that it is the government, which, if it has been seditious, it has not been so from any imperfection in the kind, but in the particular constitution; which, wherever the like has happened, must have been unequal.

Fourthly, that it is the government, which, if it has been anything near equal, was never seditious; or let him show me what sedition has happened in Lacedaemon or Venice.

Fifthly, that it is the government, which, attaining to perfect equality, has such a libration in the frame of it, that no man living can show which way any man or men, in

or under it, can contract any such interest or power as should be able to disturb the commonwealth with sedition, wherefore an equal commonwealth is that only which is without flaw and contains in it the full perfection of government. But to return.

By what has been shown in reason and experience, it may appear, that though commonwealths in general be governments of the senate proposing, the people resolving, and the magistracy executing, yet some are not so good at these orders as others, through some impediment or defect in the frame, balance, or capacity of them, according to which they are of divers kinds.

The first division of them is into such as are single, as Israel, Athens, Lacedaemon, etc.; and such as are by leagues, as those of the Achaeans, AEtolians, Lycians, Switz, and Hollanders.

The second (being Machiavel's) is into such as are for preservation, as Lacedaemon and Venice, and such as are for increase, as Athens and Rome; in which I can see no more than that the former takes in no more citizens than are necessary for defence, and the latter so many as are capable of increase.

The third division (unseen hitherto) is into equal and Unequal, and this is the main point, especially as to domestic peace and tranquillity; for to make a commonwealth unequal, is to divide it into parties, which sets them at perpetual variance, the one party endeavoring to preserve their eminence and inequality and the other to attain to equality; whence the people of Rome derived their perpetual strife with the nobility and Senate. But in an equal commonwealth there can be no more strife than there can be overbalance in equal weights; wherefore the Commonwealth of Venice, being that which of all others is the most equal in the constitution, is that wherein there never happened any strife between the Senate and the people.

An equal commonwealth is such a one as is equal both in the balance or foundation, and in the superstructure; that is to say, in her agrarian law and in her rotation.

An equal agrarian is a perpetual law, establishing and preserving the balance of dominion by such a distribution, that no one man or number of men, within the compass of the few or aristocracy, can come to overpower the whole people by their possessions in lands.

As the agrarian answers to the foundation, so does rotation to the superstructures.

Equal rotation is equal vicissitude in government, or succession to magistracy conferred for such convenient terms, enjoying equal vacations, as take in the whole body by parts, succeeding others, through the free election or suffrage of the people.

The contrary, whereunto is prolongation of magistracy, which, trashing the wheel of rotation, destroys the life or natural motion of a commonwealth.

The election or suffrage of the people is most free, where it is made or given in such a manner that it can neither oblige nor disoblige another, nor through fear of an enemy, or bashfulness toward a friend, impair a man's liberty.

Wherefore, says Cicero, the tablet or ballot of the people of Rome (who gave their votes by throwing tablets or little pieces of wood secretly into urns marked for the negative or affirmative) was a welcome constitution to the people, as that which, not impairing the assurance of their brows, increased the freedom of their judgment. I have not stood upon a more particular description of this ballot, because that of Venice exemplified in the model is of all others the most perfect.

An equal commonwealth (by that which has been said) is a government established upon an equal agrarian, arising into the superstructures or three orders, the Senate debating and proposing, the people resolving, and the magistracy executing, by an equal rotation through the suffrage of the people given by the ballot. For though rotation may be without the ballot, and the ballot without rotation, yet the ballot not only as to the ensuing model includes both, but is by far the most equal way; for which cause under the name of the ballot I shall hereafter understand both that and rotation too.

Now having reasoned the principles of an equal commonwealth, I should come to give an instance of such a one in experience, if I could find it; but if this work be of any value, it lies in that it is the first example of a commonwealth that is perfectly equal. For Venice, though it comes the nearest, yet is a commonwealth for preservation; and such a one, considering the paucity of citizens taken in, and the number not taken in, is externally unequal; and though every commonwealth that holds provinces must in that regard be such, yet not to that degree. Nevertheless, Venice internally, and for her capacity, is by far the most equal, though it has not, in my judgment, arrived at the full perfection of equality; both because her laws supplying the defect of an agrarian are not so clear nor effectual at the foundation, nor her superstructures, by the virtue of her ballot or rotation, exactly librated; in regard that through the paucity of her citizens her greater magistracies are continually wheeled through a few hands, as is confessed by Janotti, where he says, that if a gentleman comes once to be Savio di terra ferma, it seldom happens that he fails from thenceforward to be adorned with some one of the greater magistracies, as Savi di mare, Savi di terra ferma, Savi Grandi, counsellors, those of the decemvirate or dictatorian council, the aurogatori, or censors, which require no vacation or interval. Wherefore if this in Venice, or that in Lacedaemon, where the kings were hereditary, and the Senators (though elected by the people) for life, cause no inequality (which is hard to be conceived) in a commonwealth for preservation, or such a one as consists of a few citizens; yet is it manifest that it would cause a very great one in a commonwealth for increase, or consisting of the many, which, by engrossing the magistracies in a few hands, would be obstructed in their rotation.

But there be who say (and think it a strong objection) that, let a commonwealth be as equal as you can imagine, two or three men when all is done will govern it; and there is that in it which, notwithstanding the pretended sufficiency of a popular State, amounts to a plain confession of the imbecility of that policy, and of the prerogative of monarchy; forasmuch as popular governments in difficult cases have had recourse to dictatorian power, as in Rome.

To which I answer, that as truth is a spark to which objections are like bellows, so in this respect our commonwealth shines; for the eminence acquired by suffrage of the people in a commonwealth, especially if it be popular and equal, can be ascended by no other steps than the universal acknowledgment of virtue: and where men excel in virtue, the commonwealth is stupid and unjust, if accordingly they do not excel in authority. Wherefore this is both the advantage of virtue, which has her due encouragement, and of the commonwealth, which has her due services. These are the philosophers which Plato would have to be princes, the princes which Solomon would have to be mounted, and their steeds are those of authority, not empire; or, if they be buckled to the chariot of empire, as that of the dictatorian power, like the chariot of the sun, it is glorious for terms and vacations or intervals. And as a commonwealth is a government of laws and not of men, so is this the principality of virtue, and not of man; if that fail or set in one, it rises in another who is created his immediate successor. And this takes away that vanity from under the sun, which is an error proceeding more or less from all other rulers under heaven but an equal commonwealth.

These things considered, it will be convenient in this place to speak a word to such as go about to insinuate to the nobility or gentry a fear of the people, or to the people a fear of the nobility or gentry; as if their interests were destructive to each other. When indeed an army may as well consist of soldiers without officers, or of officers without soldiers, as a commonwealth, especially such a one as is capable of greatness, of a people without a gentry, or of a gentry without a people. Wherefore this, though not always so intended, as may appear by Machiavel, who else would be guilty, is a pernicious error. There is something first in the making of a commonwealth, then in the governing of it, and last of all in the leading of its armies, which, though there be great divines, great lawyers, great men in all professions, seems to be peculiar only to the genius of a gentleman.

For so it is in the universal series of story, that if any man has founded a commonwealth, he was first a gentleman. Moses had his education by the daughter of Pharaoh; Theseus and Solon, of noble birth, were held by the Athenians worthy to be kings; Lycurgus was of the royal blood; Romulus and Numa princes; Brutus and Publicola patricians; the Gracchi, that lost their lives for the people of Rome and the restitution of that commonwealth, were the sons of a father adored with two triumphs, and of Cornelia the daughter of Scipio, who being demanded in marriage by King Ptolemy, disdained to become the Queen of Egypt. And the most renowned Olphaus Megaletor, sole legislator, as you will see anon, of the Commonwealth of Oceana, was derived from a noble family; nor will it be any occasion of scruple in this case, that Leviathan affirms the politics to be no ancienter than his book “De Cive.” Such also as have got any fame in the civil government of a commonwealth, or by the leading of its armies, have been gentlemen; for so in all other respects were those plebeian magistrates elected by the people of Rome, being of known descents and of equal virtues, except only that they were excluded from the name by the usurpation of the patricians. Holland, through this defect at home, has borrowed princes for generals, and gentlemen of divers nations for commanders: and the Switzers, if they have any defect in this kind, rather lend their people to the colors of other princes,

than make that noble use of them at home which should assert the liberty of mankind. For where there is not a nobility to hearten the people, they are slothful, regardless of the world, and of the public interest of liberty, as even those of Rome had been without their gentry: wherefore let the people embrace the gentry in peace, as the light of their eyes; and in war, as the trophy of their arms; and if Cornelia disdained to be Queen of Egypt, if a Roman consul looked down from his tribunal upon the greatest king, let the nobility love and cherish the people that afford them a throne so much higher in a commonwealth, in the acknowledgment of their virtue, than the crowns of monarchs.

But if the equality of a commonwealth consist in the equality first of the agrarian, and next of the rotation, then the inequality of a commonwealth must consist in the absence or inequality of the agrarian, or of the rotation, or of both.

Israel and Lacedaemon, which commonwealths (as the people of this, in Josephus, claims kindred of that) have great resemblance, were each of them equal in their agrarian, and unequal in their rotation, especially Israel, where the Sanhedrim, or Senate, first elected by the people, as appears by the words of Moses, took upon them ever after, without any precept of God, to substitute their successors by ordination; which having been there of civil use, as excommunication, community of goods, and other customs of the Essenes, who were many of them converted, came afterward to be introduced into the Christian Church. And the election of the judge, suffes, or dictator, was irregular, both for the occasion, the term, and the vacation of that magistracy. As you find in the book of Judges, where it is often repeated, that in those days there was no king in Israel--that is, no judge; and in the first of Samuel, where Eli judged Israel forty years, and Samuel, all his life. In Lacedaemon the election of the Senate being by suffrage of the people, though for life, was not altogether so unequal, yet the hereditary right of kings, were it not for the agrarian, had ruined her.

Athens and Rome were unequal as to their agrarian, that of Athens being infirm, and this of Rome none at all; for if it were more anciently carried it was never observed. Whence, by the time of Tiberius Gracchus, the nobility had almost eaten the people quite out of their lands, which they held in the occupation of tenants and servants, whereupon the remedy being too late, and too vehemently applied, that commonwealth was ruined.

These also were unequal in their rotation, but in a contrary manner. Athens, in regard that the Senate (chosen at once by lot, not by suffrage, and changed every year, not in part, but in the whole) consisted not of the natural aristocracy, nor sitting long enough to understand or to be perfect in their office, had no sufficient authority to restrain the people from that perpetual turbulence in the end, which was their ruin, notwithstanding the efforts of Nicias, who did all a man could do to help it. But as Athens, by the headiness of the people, so Rome fell by the ambition of the nobility, through the want of an equal rotation; which, if the people had got into the Senate, and timely into the magistracies (whereof the former was always usurped by the patricians, and the latter for the most part) they had both carried and held their agrarian, and that had rendered that commonwealth immovable.

But let a commonwealth be equal or unequal, it must consist, as has been shown by reason and all experience, of the three general orders; that is to say, of the Senate debating and proposing, of the people resolving, and of the magistracy executing. Wherefore I can never wonder enough at Leviathan, who, without any reason or example, will have it that a commonwealth consists of a single person, or of a single assembly; nor can I sufficiently pity those “thousand gentlemen, whose minds, which otherwise would have wavered, he has framed (as is affirmed by himself) in to a conscientious obedience (for so he is pleased to call it) of such a government.”

But to finish this part of the discourse, which I intend for as complete an epitome of ancient prudence, and in that of the whole art of politics, as I am able to frame in so short a time:

The two first orders, that is to say, the Senate and the people, are legislative, whereunto answers that part of this science which by politicians is entitled “of laws;” and the third order is executive, to which answers that part of the same science which is styled “of the frame and course of courts or judicatories.” A word to each of these will be necessary.

And first for laws: they are either ecclesiastical or civil, such as concern religion or government.

Laws, ecclesiastical, or such as concern religion, according to the universal course of ancient prudence, are in the power of the magistrate; but, according to the common practice of modern prudence, since the papacy, torn out of his hands.

But, as a government pretending to liberty, and yet suppressing liberty of conscience (which, because religion not according to a man’s conscience can to him be none at all, is the main) must be a contradiction, so a man that, pleading for the liberty of private conscience, refuses liberty to the national conscience, must be absurd.

A commonwealth is nothing else but the national conscience. And if the conviction of a man’s private conscience produces his private religion, the conviction of the national conscience must produce a national religion. Whether this be well reasoned, as also whether these two may stand together, will best be shown by the examples of the ancient commonwealths taken in their order.

In that of Israel the government of the national religion appertained not to the priests and Levites, otherwise than as they happened to be of the Sanhedrim, or Senate, to which they had no right at all but by election. It is in this capacity therefore that the people are commanded, under pain of death, “to hearken to them, and to do according to the sentence of the law which they should teach;” but in Israel the law ecclesiastical and civil was the same, therefore the Sanhedrim, having the power of one, had the power of both. But as the national religion appertained to the jurisdiction of the Sanhedrim, so the liberty of conscience appertained, from the same date, and by the same right, to the prophets and their disciples; as where it is said, “I will raise up a prophet; and whoever will not hearken to my words which he shall speak in my name, I will require it of him.” The words relate to prophetic right, which was above all the orders of this commonwealth; whence Elijah not only refused to

obey the King, but destroyed his messengers with fire. And whereas it was not lawful by the national religion to sacrifice in any other place than the Temple, a prophet was his own temple, and might sacrifice where he would, as Elijah did in Mount Carmel. By this right John the Baptist and our Saviour, to whom it more particularly related, had their disciples, and taught the people, whence is derived our present right of gathered congregations; wherefore the Christian religion grew up according to the orders of the Commonwealth of Israel, and not against them. Nor was liberty of conscience infringed by this government, till the civil liberty of the same was lost, as under Herod, Pilate, and Tiberius, a three-piled tyranny.

To proceed, Athens preserved her religion, by the testimony of Paul, with great superstition: if Alcibiades, that atheistical fellow had not showed them a pair of heels, they had shaven off his head for shaving their Mercuries, and making their gods look ridiculously upon them without beards. Nevertheless, if Paul reasoned with them, they loved news, for which he was the more welcome; and if he converted Dionysius the Areopagite, that is, one of the senators, there followed neither any hurt to him, nor loss of honor to Dionysius. And for Rome, if Cicero, in his most excellent book “De Natura Deorum,” overthrew the national religion of that commonwealth, he was never the further from being consul. But there is a meanness and poorness in modern prudence, not only to the damage of civil government, but of religion itself; for to make a man in matter of religion, which admits not of sensible demonstration (jurare in verba magistri), engage to believe no otherwise than is believed by my lord bishop, or Goodman Presbyter is a pedantism that has made the sword to be a rod in the hands of schoolmasters; by which means, whereas the Christian religion is the furthest of any from countenancing war, there never was a war of religion but since Christianity, for which we are beholden to the Pope; for the Pope not giving liberty of conscience to princes and commonwealths, they cannot give that to their subjects which they have not themselves, whence both princes and subjects, either through his instigation or their own disputes, have introduced that execrable custom, never known in the world before, of fighting for religion, and denying the magistrate to have any jurisdiction concerning it, whereas the magistrate’s losing the power of religion loses the liberty of conscience, which in that case has nothing to protect it. But if the people be otherwise taught, it concerns them to look about them, and to distinguish between the shrieking of the lapwing and the voice of the turtle.

To come to civil laws. If they stand one way and the balance another, it is the case of a government which of necessity must be new modelled; wherefore your lawyers, advising you upon the like occasions to fit your government to their laws, are no more to be regarded than your tailor if he should desire you to fit your body to his doublet. There is also danger in the plausible pretence of reforming the law, except the government be first good, in which case it is a good tree, and (trouble not yourselves overmuch) brings not forth evil fruit; otherwise, if the tree be evil, you can never reform the fruit, or if a root that is naught bring forth fruit of this kind that seems to be good, take the more heed, for it is the ranker poison. It was nowise probable, if Augustus had not made excellent laws, that the bowels of Rome could have come to be so miserably eaten out by the tyranny of Tiberius and his successors. The best rule as to your laws in general is that they be few. Rome, by the testimony of Cicero, Was

best governed under those of the twelve tables; and by that of Tacitus, Plurimoe leges, corruptissima respublica. You will be told that where the laws be few they leave much to arbitrary power; but where they be many, they leave more, the laws in this case, according to Justinian and the best lawyers, being as litigious as the suitors. Solon made few, Lycurgus fewer, laws; and commonwealths have the fewest at this day of all other governments.

Now to conclude this part with a word de judiciis, or of the constitution or course of courts; it is a discourse not otherwise capable of being well managed but by particular examples, both the constitution and course of courts being divers in different governments, but best beyond compare in Venice, where they regard not so much the arbitrary power of their courts as the constitution of them, whereby that arbitrary power being altogether unable to retard or do hurt to business, produces and must produce the quickest despatch, and the most righteous dictates of justice that are perhaps in human nature. The manner I shall not stand in this place to describe, because it is exemplified at large in the judicature of the people of Oceana. And thus much of ancient prudence, and the first branch of this preliminary discourse.

THE SECOND PART OF THE PRELIMINARIES

In the second part I shall endeavor to show the rise, progress, and declination of modern prudence.

The date of this kind of policy is to be computed, as was shown, from those inundations of Goths, Vandals, Huns, and Lombards that overwhelmed the Roman Empire. But as there is no appearance in the bulk or constitution of modern prudence, that it should ever have been able to come up and grapple with the ancient, so something of necessity must have interposed whereby this came to be enervated, and that to receive strength and encouragement. And this was the execrable reign of the Roman emperors taking rise from (that felix scelus) the arms of Caesar, in which storm the ship of the Roman Commonwealth was forced to disburden itself of that precious freight, which never since could emerge or raise its head but in the Gulf of Venice.

It is said in Scripture, “Thy evil is of thyself, O Israel!” to which answers that of the moralists, “None is hurt but by himself,” as also the whole matter of the politics; at present this example of the Romans, who, through a negligence committed in their agrarian laws, let in the sink of luxury, and forfeited the inestimable treasure of liberty for themselves and their posterity.

Their agrarian laws were such whereby their lands ought to have been divided among the people, either without mention of a colony, in which case they were not obliged to change their abode; or with mention and upon condition of a colony, in which case they were to change their abode, and leaving the city, to plant themselves upon the lands so assigned. The lands assigned, or that ought to have been assigned, in either of these ways, were of three kinds: such as were taken from the enemy and distributed to the people; or such as were taken from the enemy, and, under color of

being reserved to the public use, were through stealth possessed by the nobility; or such as were bought with the public money to be distributed. Of the laws offered in these cases, those which divided the lands taken from the enemy, or purchased with the public money, never occasioned any dispute; but such as drove at dispossessing the nobility of their usurpations, and dividing the common purchase of the sword among the people, were never touched but they caused earthquakes, nor could they ever be obtained by the people; or being obtained, be observed by the nobility, who not only preserved their prey, but growing vastly rich upon it, bought the people by degrees quite out of those shares that had been conferred upon them. This the Gracchi coming too late to perceive found the balance of the commonwealth to be lost; but putting the people (when they had least force) by forcible means upon the recovery of it, did ill, seeing it neither could nor did tend to any more than to show them by worse effects that what the wisdom of their leaders had discovered was true. For quite contrary to what has happened in Oceana, where, the balance falling to the people, they have overthrown the nobility, that nobility of Rome, under the conduct of Sylla, overthrew the people and the commonwealth; seeing Sylla first introduced that new balance which was the foundation of the succeeding monarchy, in the plantation of military colonies, instituted by his distribution of the conquered lands, not now of enemies, but of citizens, to forty-seven legions of his soldiers; so that how he came to be perpetual dictator, or other magistrates to succeed him in like power, is no miracle.

These military colonies (in which manner succeeding emperors continued, as Augustus by the distribution of the veterans, whereby he had overcome Brutus and Cassius to plant their soldiery) consisted of such as I conceive were they that are called milites beneficiarii; in regard that the tenure of their lands was by way of benefices, that is, for life, and upon condition of duty or service in the war upon their own charge. These benefices Alexander Severus granted to the heirs of the incumbents, but upon the same conditions. And such was the dominion by which the Roman emperors gave their balance. But to the beneficiaries, as was no less than necessary for the safety of the prince, a matter of 8,000 by the example of Augustus were added, which departed not from his sides, but were his perpetual guard, called Pretorian bands; though these, according to the incurable flaw already observed in this kind of government, became the most frequent butchers of their lords that are to be found in story. Thus far the Roman monarchy is much the same with that at this day in Turkey, consisting of a camp and a horse-quarter; a camp in regard of the Spahis and Janizaries, the perpetual guard of the prince, except they also chance to be liquorish after his blood; and a horse-quarter in regard of the distribution of his whole land to tenants for life, upon condition of continual service, or as often as they shall be commanded at their own charge by timars, being a word which they say signifies benefices, that it shall save me a labor of opening the government.

But the fame of Mahomet and his prudence is especially founded in this, that whereas the Roman monarchy, except that of Israel, was the most imperfect, the Turkish is the most perfect that ever was. Which happened in that the Roman (as the Israelitish of the Sanhedrim and the congregation) had a mixture of the Senate and the people; and the Turkish is pure. And that this was pure, and the other mixed,

happened not through the wisdom of the legislators, but the different genius of the nations; the people of the Eastern parts, except the Israelites, which is to be attributed to their agrarian, having been such as scarce ever knew any other condition than that of slavery; and these of the Wester having ever had such a relish of liberty, as through what despair soever could never be brought to stand still while the yoke was putting on their necks, but by being fed with some hopes of reserving to themselves some part of their freedom.

Wherefore Julius Caesar (saith Suetonius) contented himself in naming half the magistrates, to leave the rest to the suffrage of the people. And Maecenas, though he would not have Augustus to give the people their liberty, would not have him take it quite away. Whence this empire, being neither hawk nor buzzard, made a flight accordingly; and the prince being perpetually tossed (having the avarice of the soldiery on this hand to satisfy upon the people, and the Senate and the people on the other to be defended from the soldiery), seldom died any other death than by one horn of this dilemma, as is noted more at large by Machiavel.

But the Pretorian bands, those bestial executioners of their captain’s tyranny upon others, and of their own upon him, having continued from the time of Augustus, were by Constantine the Great (incensed against them for taking part with his adversary Maxentius) removed from their strong garrison which they held in Rome, and distributed into divers provinces. The benefices of the soldiers that were hitherto held for life and upon duty, were by this prince made hereditary, so that the whole foundation whereupon this empire was first built being now removed, shows plainly that the emperors must long before this have found out some other way of support; and this was by stipendiating the Goths, a people that, deriving their roots from the northern parts of Germany, or out of Sweden, had, through their victories obtained against Domitian, long since spread their branches to so near a neighborhood with the Roman territories that they began to overshadow them. For the emperors making use of them in their armies, as the French do at this day of the Switz, gave them that under the notion of a stipend, which they received as tribute, coming, if there were any default in the payment, so often to distrain for it, that in the time of Honorius they sacked Rome, and possessed themselves of Italy. And such was the transition of ancient into modern prudence, or that breach, which being followed in every part of the Roman Empire with inundations of Vandals, Huns, Lombards, Franks, Saxons, overwhelmed ancient languages, learning, prudence, manners, cities, changing the names of rivers, countries, seas, mountains, and men; Camillus, Caesar, and Pompey, being come to Edmund, Richard, and Geoffrey.

To open the groundwork or balance of these new politicians: “Feudum,” says Calvin the lawyer, “is a Gothic word of divers significations; for it is taken either for war, or for a possession of conquered lands, distributed by the victor to such of his captains and soldiers as had merited in his wars, upon condition to acknowledge him to be their perpetual lord, and themselves to be his subjects.”

Of these there were three kinds or orders: the first of nobility distinguished by the titles of dukes, marquises, earls, and these being gratified with the cities, castles, and villages of the conquered Italians, their feuds participated of royal dignity, and were

called regalia, by which they had right to coin money, create magistrates, take toll, customs, confiscations, and the like.

Feuds of the second order were such as, with the consent of the King, were bestowed by these feudatory princes upon men of inferior quality, called their barons, on condition that next to the King they should defend the dignities and fortunes of their lords in arms.

The lowest order of feuds were such, as being conferred by those of the second order upon private men, whether noble not noble, obliged them in the like duty to their superiors; the were called vavasors. And this is the Gothic balance, by which all the kingdoms this day in Christendom were at first erected; for which cause, if I had time, I should open in this place the Empire of Germany, and the Kingdoms of France, Spain, and Poland; but so much as has been said being sufficient for the discovery of the principles of modern prudence in general, I shall divide the remainder of my discourse, which is more particular, into three parts:

The first, showing the constitution of the late monarchy of Oceana;

The second, the dissolution of the same; and

The third, the generation of the present commonwealth.

The constitution of the late monarchy of Oceana is to be considered in relation to the different nations by whom it has been successively subdued and governed. The first of these were the Romans, the second the Teutons, the third the Scandians, and the fourth the Neustrians.

The government of the Romans, who held it as a province, I shall omit, because I am to speak of their provincial government in another place, only it is to be remembered here, that if we have given over running up and down naked, and with dappled hides, learned to write and read, and to be instructed with good arts, for all these we are beholden to the Romans, either immediately or mediately by the Teutons; for that the Teutons had the arts from no other hand is plain enough by their language, which has yet no word to signify either writing or reading, but what is derived from the Latin. Furthermore, by the help of these arts so learned, we have been capable of that religion which we have long since received; wherefore it seems to me that we ought not to detract from the memory of the Romans, by whose means we are, as it were, of beasts become men, and by whose means we might yet of obscure and ignorant men (if we thought not too well of ourselves) become a wise and a great people.

The Romans having governed Oceana provincially, the Teutons were the first that introduced the form of the late monarchy. To these succeeded the Scandians, of whom (because their reign was short, as also because they made little alteration in the government as to the form) I shall take no notice. But the Teutons going to work upon the Gothic balance, divided the whole nation into three sorts of feuds, that of ealdorman, that of king’s thane, and that of middle thane.

When the kingdom was first divided into precincts will be as hard to show as when it began first to be governed. It being impossible that there should be any

government without some division. The division that was in use with the Teutons was by counties, and every county had either its ealdorman or high reeve. The title of ealdorman came in time to eorl, or erl, and that of high reeve to high sheriff.

Earl of the shire or county denoted the king's thane, or tenant by grand sergeantry or knight's service, in chief or in capite; his possessions were sometimes the whole territory from whence he had his denomination, that is, the whole county; sometimes more than one county, and sometimes less, the remaining part being in the crown. He had also sometimes a third, or some other customary part of the profits of certain cities, boroughs, or other places within his earldom. For an example of the possessions of earls in ancient times, Ethelred had to him and his heirs the whole Kingdom of Mercia, containing three or four counties; and there were others that had little less.

King's thane was also an honorary title, to which he was qualified that had five hides of land held immediately of the King by service of personal attendance; insomuch that if a churl or countryman had thriven to this proportion, having a church, a kitchen, a bell-house (that is, a hall with a bell in it to call his family to dinner), a borough-gate with a seat (that is, a porch) of his own, and any distinct office in the King's court, then was he the King's thane. But the proportion of a hide-land, otherwise called caruca, or a plough-land, is difficult to be understood, because it was not certain; nevertheless it is generally conceived to be so much as may be managed with one plough, and would yield the maintenance of the same, with the appurtenances in all kinds.

The middle thane was feudal, but not honorary; he was also called a vavasor, and his lands a vavasory, which held of some mesne lord, and not immediately of the King.

Possessions and their tenures, being of this nature, show the balance of the Teuton monarchy, wherein the riches of earls were so vast that to arise from the balance of their dominion to their power, they were not only called reguli, or little kings, but were such indeed; their jurisdiction being of two sorts, either that which was exercised by them in the court of their countries, or in the high court of the kingdom.

In the territory denominating an earl, if it were all his own, the courts held, and the profits of that jurisdiction were to his own use and benefit. But if he had but some part of his county, then his jurisdiction and courts, saving perhaps in those possessions that were his own, were held by him to the King's use and benefit; that is, he commonly supplied the office which the sheriffs regularly executed in counties that had no earls, and whence they came to be called viscounts. The court of the county that had an earl was held by the earl and the bishop of the diocese, after the manner of the sheriffs' turns to this day; by which means both the ecclesiastical and temporal laws were given in charge together to the country. The causes of vavasors or vavasories appertained to the cognizance of this court, where wills were proved, judgment and execution given, cases criminal and civil determined.

The King's thanes had the like jurisdiction in their thane lands as lords in their manors, where they also kept courts.

Besides these in particular, both the earls and King’s thanes, together with the bishops, abbots, and vavasors, or middle thanes, had in the high court or parliament in the kingdom a more public jurisdiction, consisting first of deliberative power for advising upon and assenting to new laws; secondly, giving counsel in matters of state and thirdly, of judicature upon suits and complaints. I shall not omit to enlighten the obscurity of these times, in which there is little to be found of a methodical constitution of this high court, by the addition of an argument, which I conceive to bear a strong testimony to itself, though taken out of a late writing that conceals the author. “It is well known,” says he, “that in every quarter of the realm a great many boroughs do yet send burgesses to the parliament which nevertheless be so anciently and so long since decayed and gone to naught, that they cannot be showed to have been of any reputation since the Conquest, much less to have obtained any such privilege by the grant of any succeeding king: wherefore these must have had this right by more ancient usage, and before the Conquest, they being unable now to show whence they derived it.”

This argument, though there be more, I shall pitch upon as sufficient to prove: First, that the lower sort of the people had right to session in Parliament during the time of the Teutons. Secondly, that they were qualified to the same by election in their boroughs, and if knights of the shire, as no doubt they are, be as ancient in the counties. Thirdly if it be a good argument to say that the commons during the reign of the Teutons were elected into Parliament because they are so now, and no man can show when this custom began, I see not which way it should be an ill one to say that the commons during the reign of the Teutons constituted also a distinct house because they do so now, unless any man can show that they did ever sit in the same house with the lords. Wherefore to conclude this part, I conceive for these, and other reasons to be mentioned hereafter, that the Parliament of the Teutons consisted of the King, the lords spiritual and temporal, and the commons of the nation, notwithstanding the style of divers acts of Parliament, which runs, as that of Magna Charta, in the King’s name only, seeing the same was nevertheless enacted by the King, peers, and commons of the land, as is testified in those words by a subsequent act.

The monarchy of the Teutons had stood in this posture about 220 years; when Turbo, Duke of Neustria, making his claim to the crown of one of their kings that died childless, followed it with successful arms, and, being possessed of the kingdom, used it as conquered, distributing the earldoms, thane-lands, bishoprics, and prelacies of the whole realm among his Neustrians. From this time the earl came to be called comes, consul, and dux, though consul and dux grew afterward out of use; the King’s thanes came to be called barons, and their lands baronies; the middle thane holding still of a mesne lord, retained the name of vavasor.

The earl or comes continued to have the third part of the pleas of the county paid to him by the sheriff or vice--comes, now a distinct officer in every county depending upon the King; saving that such earls as had their counties to their own use were now counts-palatine, and had under the King regal jurisdiction; insomuch that they constituted their own sheriffs, granted pardons, and issued writs in their own names;

nor did the King’s writ of ordinary justice run in their dominions till a late statute, whereby much of this privilege was taken away.

For barons they came from henceforth to be in different times of three kinds: barons by their estates and tenures, barons by writ, and barons created by letters-patent. From Turbo the first to Adoxus the seventh king from the Conquest, barons had their denomination from their possessions and tenures. And these were either spiritual or temporal; for not only the thanelands, but the possessions of bishops, as also of some twenty six abbots, and two priors, were now erected into baronies, whence the lords spiritual that had suffrage in the Teuton Parliament as spiritual lords came to have it in the Neustrian Parliament as barons, and were made subject, which they had not formerly been, to knights’ service in chief. Barony coming henceforth to signify all honorary possessions as well of earls as barons, and baronage to denote all kinds of lords as well spiritual as temporal having right to sit in Parliament, the baronies in this sense were sometimes more, and sometimes fewer, but commonly about 200 or 250, containing in them a matter of 60,000 feuda militum, or knights’ fees, whereof some 28,000 were in the clergy.

It is ill-luck that no man can tell what the land of a knight’s fee, reckoned in some writs at £40 a year, and in others at £10, was certainly worth, for by such a help we might have exactly demonstrated the balance of this government. But, says Coke, it contained twelve plough-lands, and that was thought to be the most certain account. But this again is extremely uncertain; for one plough out of some land that was fruitful might work more than ten out of some other that was barren. Nevertheless, seeing it appears by Bracton, that of earldoms and baronies it was wont to be said that the whole kingdom was composed, as also that these, consisting of 60,000 knights’ fees, furnished 60,000 men for the King’s service, being the whole militia of this monarchy, it cannot be imagined that the vavasories or freeholds in the people amounted to any considerable proportion. Wherefore the balance and foundation of this government were in the 60,000 knights’ fees, and these being possessed by the 250 lords, it was a government of the few, or of the nobility, wherein the people might also assemble, but could have no more than a mere name. And the clergy, holding a third of the whole nation, as is plain by the Parliament-roll, it is an absurdity (seeing the clergy of France came first through their riches to be a state of that kingdom) to acknowledge the people to have been a state of this realm, and not to allow it to the clergy, who were so much more weighty in the balance, which is that of all other whence a state or order in a government is denominated. Wherefore this monarchy consisted of the King, and of the three ordines regni, or estates, the lords spiritual and temporal, and the commons; it consisted of these, I say, as to the balance, though, during the reign of some of these kings, not as to the administration.

For the ambition of Turbo, and some of those that more immediately succeeded him, to be absolute princes, strove against the nature of their foundation, and, inasmuch as he had divided almost the whole realm among his Neustrians, with some encouragement for a while. But the Neustrians, while they were but foreign plants, having no security against the natives, but in growing up by their princes’ sides, were no sooner well rooted in their vast dominions than they came up according to the

infallible consequence of the balance domestic, and, contracting the national interest of the baronage, grew as fierce in the vindication of the ancient rights and liberties of the same, as if they had been always natives: whence, the kings being as obstinate on the one side for their absolute power, as these on the other for their immunities, grew certain wars, which took their denomination from the barons.

This fire about the middle of the reign of Adoxus began to break out. And whereas the predecessors of this King had divers times been forced to summon councils resembling those of the Teutons, to which the lords only that were barons by dominion and tenure had hitherto repaired, Adoxus, seeing the effects of such dominion, began first not to call such as were barons by writ (for that was according to the practice of ancient times), but to call such by writs as were otherwise no barons; by which means, striving to avoid the consequence of the balance, in coming unwillingly to set the government straight, he was the first that set it awry. For the barons in his reign, and his successors, having vindicated their ancient authority, restored the Parliament with all the rights and privileges of the same, saving that from thenceforth the kings had found out a way whereby to help themselves against the mighty by creatures of their own, and such as had no other support but by their favor.. By which means this government, being indeed the masterpiece of modern prudence, has been cried up to the skies, as the only invention whereby at once to maintain the sovereignty of a prince and the liberty of the people. Whereas, indeed, it has been no other than a wrestling-match, wherein the nobility, as they have been stronger, have thrown the King, or the King, if he has been stronger, has thrown the nobility; or the King, where he has had a nobility, and could bring them to his party has thrown the people, as in France and Spain; or the people, where they have had no nobility, or could get them to be of their party, have thrown the King, as in Holland, and of later times in Oceana.

But they came not to this strength, but by such approaches and degrees as remain to be further opened. For whereas the barons by writ, as the sixty-four abbots and thirty-six priors that were so called, were but pro temp ore, Dicotome, being the twelfth king from the Conquest, began to make barons by letters-patent, with the addition of honorary pensions for the maintenance of their dignities to them and their heirs; so that they were hands in the King’s purse and had no shoulders for his throne. Of these, when the house of peers came once to be full, as will be seen hereafter, there was nothing more empty. But for the present, the throne having other supports, they did not hurt that so much as they did the King; for the old barons, taking Dicotome’s prodigality to such creatures so ill that they deposed him, got the trick of it, and never gave over setting up and pulling down their kings according to their various interests, and that faction of the White and Red, into which they have been thenceforth divided, till Panurgus, the eighteenth king from the Conquest, was more by their favor than his right advanced to the crown. This King, through his natural subtlety, reflecting at once upon the greatness of their power, and the inconstancy of their favor, began to find another flaw in this kind of government, which is also noted by Machiavel namely, that a throne supported by a nobility is not so hard to be ascended as kept warm. Wherefore his secret jealousy, lest the dissension of the nobility, as it brought him in might throw him out, made him

travel in ways undiscovered by them, to ends as little foreseen by himself, while to establish his own safety, he, by mixing water with their wine, first began to open those sluices that have since overwhelmed not the King only, but the throne. For whereas a nobility strikes not at the throne, without which they cannot subsist, but at some king that they do not like, popular power strikes through the King at the throne, as that which is incompatible with it. Now that Panurgus, in abating the power of the nobility, was the cause whence it came to fall into the hands of the people, appears by those several statutes that were made in his reign, as that for population, those against retainers, and that for alienations.

By the statute of population, all houses of husbandry that were used with twenty acres of ground and upward, were to be maintained and kept up forever with a competent proportion of land laid to them, and in no wise, as appears by a subsequent statute, to be severed. By which means the houses being kept up, did of necessity enforce dwellers; and the proportion of land to be tilled being kept up, did of necessity enforce the dweller not to be a beggar or cottager, but a man of some substance, that might keep hinds and servants and set the plough a-going. This did mightily concern, says the historian of that prince, the might and manhood of the kingdom, and in effect amortize a great part of the lands to the hold and possession of the yeomanry or middle people, who living not in a servile or indigent fashion, were much unlinked from dependence upon their lords, and living in a free and plentiful manner, became a more excellent infantry, but such a one upon which the lords had so little power, that from henceforth they may be computed to have been disarmed.

And as they had lost their infantry after this manner, so their cavalry and commanders were cut off by the statute of retainers; for whereas it was the custom of the nobility to have younger brothers of good houses, mettled fellows, and such as were knowing in the feats of arms about them, they who were longer followed with so dangerous a train, escaped not such punishments as made them take up.

Henceforth the country lives and great tables of the nobility, which no longer nourished veins that would bleed for them, were fruitless and loathsome till they changed the air, and of princes became courtiers; where their revenues, never to have been exhausted by beef and mutton, were found narrow, whence followed racking of rents, and at length sale of lands, the riddance through the statute of alienations being rendered far more quick and facile than formerly it had been through the new invention of entails.

To this it happened that Coraunus, the successor of that King, dissolving the abbeys, brought, with the declining state of the nobility, so vast a prey to the industry of the people, that the balance of the commonwealth was too apparently in the popular party to be unseen by the wise Council of Queen Parthenia, who, converting her reign through the perpetual love tricks that passed between her and her people into a kind of romance, wholly neglected the nobility. And by these degrees came the House of Commons to raise that head, which since has been so high and formidable to their princes that they have looked pale upon those assemblies. Nor was there anything now wanting to the destruction of the throne, but that the people, not apt to see their own strength, should be put to feel it; when a prince, as stiff in disputes as

the nerve of monarchy was grown slack, received that unhappy encouragement from his clergy which became his utter ruin, while trusting more to their logic than the rough philosophy of his Parliament, it came to an irreparable breach; for the house of peers, which alone had stood in this gap, now sinking down between the King and the commons, showed that Crassus was dead and the isthmus broken. But a monarchy, divested of its nobility, has no refuge under heaven but an army. Wherefore the dissolution of this government caused the war, not the war the dissolution of this government.

Of the King’s success with his arms it is not necessary to give any further account than that they proved as ineffectual as his nobility; but without a nobility or an army (as has been shown) there can be no monarchy. Wherefore what is there in nature that can arise out of these ashes but a popular government, or a new monarchy to be erected by the victorious army?

To erect a monarchy, be it never so new, unless like Leviathan you can hang it, as the country-fellow speaks, by geometry (for what else is it to say, that every other man must give up his will to the will of this one man without any other foundation?), it must stand upon old principles--that is, upon a nobility or an army planted on a due balance of dominion. Aut viam inveniam aut faciam, was an adage of Caesar, and there is no standing for a monarchy unless it finds this balance, or makes it. If it finds it, the work is done to its hand; for, where there is inequality of estates, there must be inequality of power; and where there is inequality of power, there can be no commonwealth. To make it, the sword must extirpate out of dominion all other roots of power, and plant an army upon that ground. An army may be planted nationally or provincially. To plant it nationally, it must be in one of the four ways mentioned, that is, either monarchically in part, as the Roman beneficiarii; or monarchically, in the whole, as the Turkish Timariots; aristocratically that is, by earls and barons, as the Neustrians were planted by Turbo; or democratically, that is, by equal lots, as the Israelitish army in the land of Canaan by Joshua. In every one of these ways there must not only be confiscations, but confiscations to such a proportion as may answer to the work intended.

Confiscation of a people that never fought against you, but whose arms you have borne, and in which you have been victorious, and this upon premeditation and in cold blood, I should have thought to be against any example in human nature, but for those alleged by Machiavel of Agathocles, and Oliveretto di Fermo, the former whereof being captain-general of the Syracusans, upon a day assembled the Senate and the people, as if he had something to communicate with them, when at a sign given he cut the senators in pieces to a man, and all the richest of the people, by which means he came to be king. The proceedings of Oliveretto, in making himself Prince of Fermo, were somewhat different in circumstances, but of the same nature. Nevertheless Catiline, who had a spirit equal to any of these in his intended mischief, could never bring the like to pass in Rome. The head of a small commonwealth, such a one as was that of Syracuse or Fermo, is easily brought to the block; but that a populous nation, such as Rome, had not such a one, was the grief of Nero. If Sylvia or Caesar attained to be princes, it was by civil war, and such civil war as yielded rich

spoils, there being a vast nobility to be confiscated; which also was the case in Oceana, when it yielded earth by earldoms, and baronies to the Neustrian for the plantation of his new potentates. Where a conqueror finds the riches of a land in the hands of the few, the forfeitures are easy, and amount to vast advantage; but where the people have equal shares, the confiscation of many comes to little, and is not only dangerous but fruitless.

The Romans, in one of their defeats of the Volsci, found among the captives certain Tusculans, who, upon examination, confessed that the arms they bore were by command of their State; whereupon information being given to the Senate by the general Camillus, he was forthwith commanded to march against Tusculum which doing accordingly, he found the Tusculan fields full of husbandmen, that stirred not otherwise from the plough than to furnish his army with all kinds of accommodations and victuals. Drawing near to the city, he saw the gates wide open, the magistrates coming out in their gowns to salute and bid him welcome; entering, the shops were all at work, and open, the streets sounded with the noise of schoolboys at their books; there was no face of war. Whereupon Camillus, causing the Senate to assemble, told them, that though the art was understood, yet had they at length found out the true arms whereby the Romans were most undoubtedly to be conquered, for which cause he would not anticipate the Senate, to which he desired them forthwith to send, which they did accordingly; and their dictator with the rest of their ambassadors being found by the Roman senators as they went into the house standing sadly at the door were sent for in as friends, and not as enemies; where the dictator having said, “If we have offended, the fault was not so great as is our penitence and your virtue,” the Senate gave them peace forthwith, and soon after made the Tusculans citizens of Rome.

But putting the case, of which the world is not able to show an example, that the forfeiture of a populous nation, not conquered, but friends, and in cool blood, might be taken, your army must be planted in one of the ways mentioned. To plant it in the way of absolute monarchy, that is, upon feuds for life, such as the Timars, a country as large and fruitful as that of Greece, would afford you but 16,000 Timariots, for that is the most the Turk (being the best husband that ever was of this kind) makes of it at this day: and if Oceana, which is less in fruitfulness by one-half, and in extent by three parts, should have no greater a force, whoever breaks her in one battle, may be sure she shall never rise; for such (as was noted by Machiavel) is the nature of the Turkish monarchy, if you break it in two battles, you have destroyed its whole militia, and the rest being all slaves, you hold it without any further resistance. Wherefore the erection of an absolute monarchy in Oceana, or in any other country that is no larger, without making it a certain prey to the first invader is altogether impossible.

To plant by halves, as the Roman emperors did their beneficiaries, or military colonies, it must be either for life; and this an army of Oceaners in their own country, especially having estates of inheritance, will never bear because such an army so planted is as well confiscated as the people; nor had the Mamelukes been contented with such usage in Egypt, but that they were foreigners, and daring not to mix with the natives, it was of absolute necessity to their being.

Or planting them upon inheritance, whether aristocratically as the Neustrians, or democratically as the Israelites, they grow up by certain consequences into the national interest, and this, if they be planted popularly, comes to a commonwealth; if by way of nobility, to a mixed monarchy, which of all other will be found to be the only kind of monarchy whereof this nation, or any other that is of no greater extent, has been or can be capable; for if the Israelites, though their democratical balance, being fixed by their agrarian, stood firm, be yet found to have elected kings, it was because, their territory lying open, they were perpetually invaded, and being perpetually invaded, turned themselves to anything which, through the want of experience, they thought might be a remedy; whence their mistake in election of their kings, under whom they gained nothing, but, on the contrary, lost all they had acquired by their commonwealth, both estates and liberties, is not only apparent, but without parallel. And if there have been, as was shown, a kingdom of the Goths in Spain, and of the Vandals in Asia, consisting of a single person and a Parliament (taking a parliament to be a council of the people only, without a nobility), it is expressly said of those councils that they deposed their kings as often as they pleased; nor can there be any other consequence of such a government, seeing where there is a council of the people they do never receive laws, but give them; and a council giving laws to a single person, he has no means in the world whereby to be any more than a subordinate magistrate but force: in which case he is not a single person and a parliament, but a single person and an army, which army again must be planted as has been shown, or can be of no long continuance.

It is true, that the provincial balance bring in nature quite contrary to the national, you are no way to plant a provincial army upon dominion. But then you must have a native territory in strength, situation, or government, able to overbalance the foreign, or you can never hold it. That an army should in any other case be long supported by a mere tax, is a mere fancy as void of all reason and experience as if a man should think to maintain such a one by robbing of orchards; for a mere tax is but pulling of plum-trees, the roots whereof are in other men’s grounds, who, suffering perpetual violence, come to hate the author of it; and it is a maxim, that no prince that is hated by his people can be safe. Arms planted upon dominion extirpate enemies and make friends; but maintained by a mere tax, have enemies that have roots, and friends that have none.

To conclude, Oceana, or any other nation of no greater extent, must have a competent nobility, or is altogether incapable of monarchy; for where there is equality of estates, there must be equality of power, and where there is equality of power, there can be no monarchy.

To come then to the generation of the commonwealth. It has been shown how, through the ways and means used by Panurgus to abase the nobility, and so to mend that flaw which we have asserted to be incurable in this kind of constitution, he suffered the balance to fall into the power of the people, and so broke the government; but the balance being in the people, the commonwealth (though they do not see it) is already in the nature of them. There wants nothing else but time, which is slow and dangerous, or art, which would be more quick and secure, for the

bringing those native arms, wherewithal they are found already, to resist, they know not how, everything that opposes them, to such maturity as may fix them upon their own strength and bottom.

But whereas this art is prudence, and that part of prudence which regards the present work is nothing else but the skill of raising such superstructures of government as are natural to the known foundations, they never mind the foundation, but through certain animosities, wherewith by striving one against another they are infected, or through freaks, by which, not regarding the course of things, nor how they conduce to their purpose, they are given to building in the air, come to be divided and subdivided into endless parties and factions, both civil and ecclesiastical, which, briefly to open, I shall first speak of the people in general, and then of their divisions.

A people, says Machiavel, that is corrupt, is not capable of a commonwealth. But in showing what a corrupt people is, he has either involved himself, or me; nor can I otherwise come out of the labyrinth, than by saying, the balance altering a people, as to the foregoing government, must of necessity be corrupt; but corruption in this sense signifies no more than that the corruption of one government, as in natural bodies, is the generation of another. Wherefore if the balance alters from monarchy, the corruption of the people in this case is that which makes them capable of a commonwealth. But whereas I am not ignorant that the corruption which he means is in manners, this also is from the balance. For the balance leading from monarchical into popular abates the luxury of the nobility, and, enriching the people, brings the government from a more private to a more public interest which coming nearer, as has been shown, to justice and right reason, the people upon a like alteration is so far from such a corruption of manners as should render them incapable of a commonwealth, that of necessity they must thereby contract such a reformation of manners as will bear no other kind of government. On the other side, where the balance changes from popular to oligarchical or monarchical, the public interest, with the reason and justice included in the sane, becomes more private; luxury is introduced in the room of temperance, and servitude in that of freedom, which causes such a corruption of manners both in the nobility and people, as, by the example of Rome in the time of the Triumvirs, is more at large discovered by the author to have been altogether incapable of a commonwealth.

But the balance of Oceana changing quite contrary to that of Rome, the manners of the people were not thereby corrupted, but, on the contrary, adapted to a commonwealth. For differences of opinion in a people not rightly informed of their balance, or a division into parties (while there is not any common ligament of power sufficient to reconcile or hold them) is no sufficient proof of corruption. Nevertheless, seeing this must needs be matter of scandal and danger, it will not be amiss, in showing what were the parties, to show what were their errors.

The parties into which this nation was divided, were temporal or spiritual; and the temporal parties were especially two, the one royalists, the other republicans, each of which asserted their different causes, either out of prudence or ignorance, out of interest or conscience.

For prudence, either that of the ancients is inferior to the modern, which we have hitherto been setting face to face, that anyone may judge, or that of the royalist must be inferior to that of the commonwealths man. And for interest, taking the commonwealths man to have really intended the public, for otherwise he is a hypocrite and the worst of men, that of the royalist must of necessity have been more private. Wherefore, the whole dispute will come upon matter of conscience, and this, whether it be urged by the right of kings, the obligation of former laws, or of the oath of allegiance, is absolved by the balance.

For if the right of kings were as immediately derived from the breath of God as the life of man, yet this excludes not death and dissolution. But, that the dissolution of the late monarchy was as natural as the death of man, has been already shown. Wherefore it remains with the royalists to discover by what reason or experience it is possible for a monarchy to stand upon a popular balance; or, the balance being popular, as well the oath of allegiance, as all other monarchical laws, imply an impossibility, and are therefore void.

To the commonwealths man I have no more to say, but that if he excludes any party, he is not truly such, nor shall ever found a commonwealth upon the natural principle of the same, which is justice. And the royalist for having not opposed a commonwealth in Oceana, where the laws were so ambiguous that they might be eternally disputed and never reconciled, can neither be justly for that cause excluded from his full and equal share in the government; nor prudently for this reason, that a commonwealth consisting of a party will be in perpetual labor for her own destruction: whence it was that the Romans, having conquered the Albans, incorporated them with equal right into the commonwealth. And if the royalists be “flesh of your flesh,” and nearer of blood than were the Albans to the Romans, you being also both Christians, the argument is the stronger. Nevertheless there is no reason that a commonwealth should any more favor a party remaining in fixed opposition against it, than Brutus did his own sons. But if it fixes them upon that opposition, it is its own fault, not theirs; and this is done by excluding them. Men that have equal possessions and the same security for their estates and their liberties that you have, have the same cause with you to defend both; but if you will liberty, though for monarchy; and be trampling, they fight for you for tyranny, though under the name of a commonwealth: the nature of orders in a government rightly instituted being void of all jealousy, because, let the parties which it embraces be what they will, its orders are such as they neither would resist if they could, nor could if they would, as has been partly already shown, and will appear more at large by the following model.

The parties that are spiritual are of more kinds than I need mention; some for a national religion, and others for liberty of conscience, with such animosity on both sides, as if these two could not consist together, and of which I have already sufficiently spoken, to show that indeed the one cannot well subsist without the other But they of all the rest are the most dangerous, who, holding that the saints must govern, go about to reduce the commonwealth to a party, as well for the reasons already shown, as that their pretences are against Scripture, where the saints are

commanded to submit to the higher powers, and to be subject to the ordinance of man. And that men, pretending under the notion of saints or religion to civil power, have hitherto never failed to dishonor that profession, the world is full of examples, whereof I shall confine myself at present only to a couple, the one of old, the other of new Rome.

In old Rome, the patricians or nobility pretending to be the godly party, were questioned by the people for engrossing all the magistracies of that commonwealth, and had nothing to say why they did so, but that magistracy required a kind of holiness which was not in the people; at which the people were filled with such indignation as had come to cutting of throats, if the nobility had not immediately laid by the insolency of that plea; which nevertheless when they had done, the people for a long time after continued to elect no other but patrician magistrates.

The example of new Rome in the rise and practice of the hierarchy (too well known to require any further illustration) is far more immodest.

This has been the course of nature; and when it has pleased or shall please God to introduce anything that is above the course of nature, he will, as he has always done, confirm it by miracle; for so in his prophecy of the reign of Christ upon earth he expressly promises, seeing that “the souls of them that were beheaded for Jesus, shall be seen to live and reign with him;” which will be an object of sense, the rather, because the rest of the dead are not to live again till the thousand years be finished. And it is not lawful for men to persuade us that a thing already is, though there be no such object of our sense, which God has told us shall not be till it be an object of our sense.

The saintship of a people as to government, consists in the election of magistrates fearing God, and hating covetousness, and not in their confining themselves, or being confined, to men of this or that party or profession. It consists in making the most prudent and religious choice they can; yet not in trusting to men, but, next God, to their own orders. “Give us good men, and they will make us good laws,” is the maxim of a demagogue, and is (through the alteration which is commonly perceivable in men, when they have power to work their own wills) exceeding fallible. But “give us good orders, and they will make us good men,” is the maxim of a legislator, and the most infallible in the politics.

But these divisions (however there be some good men that look sadly on them) are trivial things; first as to the civil concern, because the government, whereof this nation is capable, being once seen, takes in all interests. And, secondly, as to the spiritual; because as the pretence of religion has always been turbulent in broken governments, so where the government has been sound and steady, religion has never shown itself with any other face than that of its natural sweetness and tranquillity, nor is there any reason why it should, wherefore the errors of the people are occasioned by their governors. If they be doubtful of the way, or wander from it, it is because their guides misled them; and the guides of the people are never so well qualified for leading by any virtue of their own, as by that of the government.

The government of Oceana (as it stood at the time whereof we discourse, consisting of one single Council of the people, exclusively of the King and the Lords) was called a Parliament: nevertheless the parliaments of the Teutons and of the Neustrians consisted, as has been shown, of the King, lords, and commons; wherefore this, under an old name, was a new thing a parliament consisting of a single assembly elected by the people, and invested with the whole power of the government, without any covenants, conditions, or orders whatsoever. So new a thing, that neither ancient nor modern prudence can show any avowed example of the like. And there is scarce anything that seems to me so strange as that (whereas there was nothing more familiar with these councillors than to bring the Scripture to the house) there should not be a man of them that so much as offered to bring the house to the Scripture, wherein, as has been shown, is contained that original, whereof all the rest of the commonwealths seem to be copies. Certainly if Leviathan (who is surer of nothing than that a popular commonwealth consists but of one council) transcribed his doctrine out of this assembly, for him to except against Aristotle and Cicero for writing out of their own commonwealths was not so fair play; or if the Parliament transcribed out of him, it had been an honor better due to Moses. But where one of them should have an example but from the other, I cannot imagine, there being nothing of this kind that I can find in story, but the oligarchy of Athens, the Thirty Tyrants of the same, and the Roman Decemvirs.

For the oligarchy, Thucydides tells us, that it was a Senate or council of 400, pretending to a balancing council of the people consisting of 5,000, but not producing them; wherein you have the definition of an oligarchy, which is a single council both debating and resolving, dividing and choosing, and what that must come to was shown by the example of the girls, and is apparent by the experience of all times; wherefore the thirty set up by the Lacedaemonians (when they had conquered Athens) are called tyrants by all authors, Leviathan only excepted, who will have them against all the world to have been an aristocracy, but for what reason I cannot imagine; these also, as void of any balance, having been void of that which is essential to every commonwealth, whether aristocratical or popular, except he be pleased with them, because that, according to the testimony of Xenophon, they killed more men in eight months than the Lacedaemonians had done in ten years; “oppressing the people (to use Sir Walter Raleigh’s words) with all base and intolerable slavery.”

The usurped government of the Decemvirs in Rome was of the same kind. Wherefore in the fear of God let Christian legislators (setting the pattern given in the Mount on the one side, and these execrable examples on the other) know the right hand from the left; and so much the rather, because those things which do not conduce to the good of the governed are fallacious, if they appear to be good for the governors. God, in chastising a people, is accustomed to burn his rod. The empire of these oligarchies was not so violent as short, nor did they fall upon the people, but in their own immediate ruin. A council without a balance is not a commonwealth, but an oligarchy; and every oligarchy, except it be put to the defence of its wickedness or power against some outward danger, is factious. Wherefore the errors of the people being from their governors (which maxim in the politics bearing a sufficient testimony to itself, is also proved by Machiavel), if the people of Oceana have been

factious, the cause is apparent, but what remedy?

In answer to this question, I come now to the army, of which the most victorious captain and incomparable patriot, Olphaus Megaletor, was now general, who being a much greater master of that art whereof I have made a rough draught in these preliminaries, had such sad reflections upon the ways and proceedings of the Parliament as cast him upon books and all other means of diversion, among which he happened on this place of Machiavel: “Thrice happy is that people which chances to have a man able to give them such a government at once, as without alteration may secure them of their liberties; seeing it was certain that Lacedaemon, in observing the laws of Lycurgus, continued about 800 years without any dangerous tumult or corruption.” My lord general (as it is said of Themistocles, that he could not sleep for the glory obtained by Miltiades at the battle of Marathon) took so new and deep an impression at these words of the much greater glory of Lycurgus, that, being on this side assaulted with the emulation of his illustrious object, and on the other with the misery of the nation, which seemed (as it were ruined by his victory) to cast itself at his feet, he was almost wholly deprived of his natural rest, till the debate he had within himself came to a firm resolution, that the greatest advantages of a commonwealth are, first, that the legislator should be one man; and, secondly, that the government should be made all together, or at once. For the first, it is certain, says Machiavel, that a commonwealth is seldom or never well turned or constituted, except it has been the work of one man; for which cause a wise legislator, and one whose mind is firmly set, not upon private but the public interest, not upon his posterity but upon his country, may justly endeavor to get the sovereign power into his own hands, nor shall any man that is master of reason blame such extraordinary means as in that case will be necessary, the end proving no other than the constitution of a well-ordered commonwealth.

The reason of this is demonstrable; for the ordinary means not failing, the commonwealth has no need of a legislator, but the ordinary means failing, there is no recourse to be had but to such as are extraordinary. And, whereas a book or a building has not been known to attain to its perfection if it has not had a sole author or architect, a commonwealth, as to the fabric of it, is of the like nature. And thus it may be made at once; in which there be great advantages; for a commonwealth made at once, takes security at the same time it lends money; and trusts not itself to the faith of men, but launches immediately forth into the empire of laws, and, being set straight, brings the manners of its citizens to its rule, whence followed that uprightness which was in Lacedaemon. But manners that are rooted in men, bow the tenderness of a commonwealth coming up by twigs to their bent, whence followed the obliquity that was in Rome, and those perpetual repairs by the consuls’ axes, and tribunes’ hammers, which could never finish that commonwealth but in destruction.

My lord general being clear in these points, and of the necessity of some other course than would be thought upon by the Parliament, appointed a meeting of the army, where he spoke his sense agreeable to these preliminaries with such success to the soldiery, that the Parliament was soon after deposed; had he himself, in the great hall of the Pantheon or palace of justice, situated in Emporium, the capital city, was

created by the universal suffrage of the army, Lord Archon, or sole legislator of Oceana, upon which theatre you have, to conclude this piece, a person introduced, whose fame shall never draw its curtain.

The Lord Archon being created, fifty select persons to assist him, by laboring in the mines of ancient prudence, and bringing its hidden treasures to new light, were added, with the style also of legislators, and sat as a council, whereof he was the sole director and president.

PART II. THE COUNCIL OF LEGISLATORS

OF this piece, being the greater half of the whole work, I shall be able at this time to give no further account, than very briefly to show at what it aims.

My Lord Archon, in opening the Council of legislators, made it appear how unsafe a thing it is to follow fancy in the fabric of a commonwealth; and how necessary that the archives of ancient prudence should be ransacked before any councillor should presume to offer any other matter in order to the work in hand, or toward the consideration to be had by the Council upon a model of government. Wherefore he caused an urn to be brought, and every one of the councillors to draw a lot. By the lots as they were drawn,

The Commonwealth of Fell to

Israel..... Phosphorus de Auge Athens..... Navarchus de Paralo Lacedaemon..... Laco de Scytale Carthage.. Mago de Syrtibus The Achaeans, AEtolians, and Lycians....Aratus de Isthmo The Switz Alpester de Fulmine Holland and the United Provinces Glaucus de Ulna Rome..... Dolabella de Enyo Venice..... Lynceus de Stella

These contained in them all those excellencies whereof a commonwealth is capable; so that to have added more had been to no purpose. Upon time given to the councillors, by their own studies and those of their friends, to prepare themselves, they were opened in the order, and by the persons mentioned at the Council of legislators, and afterward by order of the same were repeated at the council of the prytans to the people; for in drawing of the lots, there were about a dozen of them inscribed with the letter P, whereby the councillors that drew them became prytans.

The prytans were a committee or council sitting in the great hall of Pantheon, to whom it was lawful for any man to offer anything in order to the fabric of the commonwealth; for which cause, that they might not be oppressed by the throng, there was a rail about the table where they sat, and on each side of the same a pulpit; that on the right hand for any man that would propose anything, and that on the left for any other that would oppose him. And all parties (being indemnified by proclamation of the Archon) were invited to dispute their own interests, or propose whatever they thought fit (in order to the future government) to the council of the prytans, who, having a guard of about two or three hundred men, lest the heat of dispute might break the peace, had the right of moderators, and were to report from time to time such propositions or occurrences as they thought fit, to the Council of legislators sitting more privately in the palace called Alma.

This was that which made the people (who were neither safely to be admitted, nor conveniently to be excluded in the framing of the commonwealth) verily believe, when it came forth, that it was no other than that whereof they themselves had been the makers.

Moreover, this Council sat divers months after the publishing and during the promulgation of the model to the people; by which means there is scarce anything was said or written for or against the said model but you shall have it with the next impression of this work, by way of oration addressed to and moderated by the prytans.

By this means the Council of legislators had their necessary solitude and due aim in their greater work, as being acquainted from time to time with the pulse of the people, and yet without any manner of interruption or disturbance.

Wherefore every commonwealth in its place having been opened by due method--that is, first, by the people; secondly, by the Senate; and, thirdly, by the magistracy-the Council upon mature debate took such results or orders out of each, and out of every part of each of them, as upon opening the same they thought fit; which being put from time to time in writing by the clerk or secretary, there remained no more in the conclusion, than putting the orders so taken together, to view and examine them with a diligent eye, that it might be clearly discovered whether they did interfere, or could anywise come to interfere or jostle one with the other. For as such orders jostling or coming to jostle one another are the certain dissolution of the commonwealth, so, taken upon the proof of like experience, and neither jostling nor showing which way they can possibly come to jostle one another, they make a perfect and (for aught that in human prudence can be foreseen) an immortal commonwealth.

And such was the art whereby my Lord Archon (taking council of the Commonwealth of Israel, as of Moses; and of the rest of the commonwealths, as of Jethro) framed the model of the Commonwealth of Oceana.

PART III. THE MODEL OF THE COMMONWEALTH OF OCEANA

WHEREAS my Lord Archon, being from Moses and Lycurgus the first legislator that hitherto is found in history to have introduced or erected an entire commonwealth at once, happened, like them also, to be more intent upon putting the same into execution or action, than into writing; by which means the model came to be promulgated or published with more brevity and less illustration than are necessary for their understanding who have not been acquainted with the whole proceedings of the Council of legislators, and of the prytans, where it was asserted and cleared from all objections and doubts: to the end that I may supply what was wanting in the promulgated epitome to a more full and perfect narrative of the whole, I shall rather take the commonwealth practically; and as it has now given an account of itself in some years’ revolutions (as Dicearchus is said to have done that of Lacedaemon, first transcribed by his hand some three or four hundred years after the institution), yet

not omitting to add for proof to every order such debates and speeches of the legislators in their Council, or at least such parts of them as may best discover the reason of the government; nor such ways and means as were used in the institution or rise of the building, not to be so well conceived, without some knowledge given of the engines wherewithal the mighty weight was moved. But through the entire omission of the Council of legislators or workmen that squared every stone to this structure in the quarries of ancient prudence, the proof of the first part of this discourse will be lame, except I insert, as well for illustration as to avoid frequent repetition, three remarkable testimonies in this place.

The first is taken out of the Commonwealth of Israel: “So Moses hearkened to the voice of Jethro, his father-in-law, and did all that he had said. And Moses chose able men out of all Israel, and made them heads over the people;” tribunes, as it is in the vulgar Latin; or phylarchs, that is, princes of the tribes, sitting upon twelve thrones, and judging the twelve tribes of Israel; and next to these he chose rulers of thousands, rulers of hundreds, rulers of fifties, and rulers of tens, which were the steps and rise of this commonwealth from its foundation or root to its proper elevation or accomplishment in the Sanhedrim, and the congregation, already opened in the preliminaries.

The second is taken out of Lacedaemon, as Lycurgus (for the greater impression of his institutions upon the minds of his citizens) pretended to have received the model of that commonwealth from the oracle of Apollo at Delphos, the words whereof are thus recorded by Plutarch in the life of that famous legislator: “When thou shalt have divided the people into tribes (which were six) and oboe (which were five in every tribe), thou shalt constitute the Senate, consisting, with the two Kings, of thirty councillors, who, according as occasion requires, shall cause the congregation to be assembled between the bridge and the river Gnacion, where the Senate shall propose to the people, and dismiss them without suffering them to debate.” The oboe were lineages into which every tribe was divided, and in each tribe there was another division containing all those of the same that were of military age, which being called the mora, was subdivided into troops and companies that were kept in perpetual discipline under the command of a magistrate called the polemarch.

The third is taken out of the Commonwealth of Rome, or those parts of it which are comprised in the first and second books of Livy, where the people, according to the institution by Romulus, are first divided into thirty curias or parishes, whereof he elected, by three out of each curia, the Senate, which, from his reign to that or Servius Tullius, proposed to the parishes or parochial congregations; and these being called the Comitia curiata, had the election of the kings, the confirmation of their laws, and the last appeal in matters of judicature, as appears in the case of Horatius that killed his sister; till, in the reign of Servius (for the other kings kept not to the institution of Romulus), the people being grown somewhat, the power of the Curiata was for the greater part translated to the Centuriata comitia instituted by this King, which distributed the people, according to the sense of valuation of their estates, into six classes, every one containing about forty centuries, divided into youth and elders; the youth for field-service, the elders for the defence of their territory, all armed and

under continual discipline, in which they assembled both upon military and civil occasions. But when the Senate proposed to the people, the horse only, whereof there were twelve centuries, consisting of the richest sort over and above those of the foot enumerated, were called with the first classes of the foot to the suffrage; or if these accorded not, then the second classes were called to them, but seldom or never any of the rest. Wherefore the people, after the expulsion of the kings, growing impatient of this inequality, rested not till they had reduced the suffrage as it had been in the Comitia curiato to the whole people again; but in another way, that is to say, by the Comitia tributa, which thereupon were instituted, being a council where the people in exigencies made laws without the Senate, which laws were called plebiscita. This Council is that in regard whereof Cicero and other great wits so frequently inveigh against the people, and sometimes even Livy as at the first institution of it. To say the truth, it was a kind of anarchy, whereof the people could not be excusable, if there had not, through the courses taken by the Senate, been otherwise a necessity that they must have seen the commonwealth run into oligarchy.

The manner how the Comitia curiata, centuriata or tributa were called, during the time of the commonwealth, to the suffrage, was by lot: the curia, century, or tribe, whereon the first lot fell, being styled principium, or the prerogative; and the other curioe, centuries or tribes, whereon the second, third, and fourth lots, etc., fell, the jure vocatoe. From henceforth not the first classes, as in the times of Servius, but the prerogative, whether curia, century, or tribe, came first to the suffrage, whose vote was called omen proerogativum, and seldom failed to be leading to the rest of the tribes. The jure vocatoe, in the order of their lots, came next: the manner of giving suffrage was, by casting wooden tablets, marked for the affirmative or the negative, into certain urns standing upon a scaffold, as they marched over it in files, which for the resemblance it bore was called the bridge. The candidate, or competitor, who had most suffrages in a curia, century, or tribe, was said to have that curia, century, or tribe; and he who had most of the curioe, centuries, or tribes, carried the magistracy.

These three places being premised, as such upon which there will be frequent reflection, I come to the narrative, divided into two parts, the first containing the institution, the second the constitution of the commonwealth, in each whereof I shall distinguish the orders, as those which contain the whole model, from the rest of the discourse, which tends only to the explanation or proof of them.

In the institution or building of a commonwealth, the first work, as that of builders, can be no other than fitting and distributing the materials.

The materials of a commonwealth are the people, and the people of Oceana were distributed by casting them into certain divisions, regarding their quality, their age, their wealth, and the places of their residence or habitation, which was done by the ensuing orders.

The first order “distributes the people into freemen or citizens and servants, while such; for if they attain to liberty, that is, to live of themselves, they are freemen or citizens.”

This order needs no proof, in regard of the nature of servitude, which is inconsistent with freedom, or participation of government in a commonwealth.

The second order “distributes citizens into youth and elders (such as are from eighteen years of age to thirty, being accounted youth; and such as are of thirty and upward, elders), and establishes that the youth shall be the marching armies, and the elders the standing garrisons of this nation.”

A commonwealth, whose arms are in the hands of her servants, had need be situated, as is elegantly said of Venice by Contarini, out of the reach of their clutches; witness the danger run by that of Carthage in the rebellion of Spendius and Matho. But though a city, if one swallow makes a summer, may thus chance to be safe, yet shall it never be great; for if Carthage or Venice acquired any fame in their arms, it is known to have happened through the mere virtue of their captains, and not of their orders; wherefore Israel, Lacedaemon, and Rome entailed their arms upon the prime of their citizens, divided, at least in Lacedaemon and Rome, into youth and elders: the youth for the field, and the elders for defence of the territory.

The third order “distributes the citizens into horse and foot, by the sense or valuation of their estates; they who have above £100 a year in lands, goods, or moneys, being obliged to be of the horse, and they who have under that sum to be of the foot. But if a man has prodigally wasted and spent his patrimony, he is neither capable of magistracy, office, or suffrage in the commonwealth.”

Citizens are not only to defend the commonwealth, but according to their abilities, as the Romans under Servius Tullius (regard had to their estates), were some enrolled in the horse centuries, and others of the foot, with arms enjoined accordingly, nor could it be otherwise in the rest of the commonwealths, though out of historical remains, that are so much darker, it be not so clearly probable. And the necessary prerogative to be given by a commonwealth to estates, is in some measure in the nature of industry, and the use of it to the public. “The Roman people,” says Julius Exuperantius, “were divided into classes, and taxed according to the value of their estates. All that were worth the sums appointed were employed in the wars; for they most eagerly contend for the victory; who fight for liberty in defence of their country and possessions. But the poorer sort were polled only for their heads (which was all they had) and kept in garrison at home in time of war; for these might betray the armies for bread, by reason of their poverty, which is the reason that Marius, to whom the care of the government ought not to have been committed, was the first that led them into the field;” and his success was accordingly. There is a mean in things; as exorbitant riches overthrow the balance of a commonwealth, so extreme poverty cannot hold it, nor is by any means to be trusted with it. The clause in the order concerning the prodigal is Athenian, and a very laudable one; for he that could not live upon his patrimony, if he comes to touch the public money, makes a commonwealth bankrupt.

The fourth order “distributes the people according to the places of their habitation, into parishes, hundreds, and tribes.”

For except the people be methodically distributed, they cannot be methodically collected; but the being of a commonwealth consists in the methodical collection of the people: wherefore you have the Israelitish divisions into rulers of thousands, of hundreds, of fifties, and of tens; and of the whole commonwealth into tribes: the Laconic into oboe, moras, and tribes; the Roman into tribes, centuries, and classes; and something there must of necessity be in every government of the like nature, as that in the late monarchy--by counties. But this being the only institution in Oceana, except that of the agrarian, which required any charge or included any difficulty, engages me to a more particular description of the manner how it was performed, as follows:

A thousand surveyors, commissioned and instructed by the Lord Archon and the Council, being divided into two equal numbers, each under the inspection of two surveyors-general, were distributed into the northern and southern parts of the territory, divided by the river Hemisua, the whole whereof contains about 10,000 parishes, some ten of those being assigned to each surveyor; for as to this matter there needed no great exactness, it tending only by showing whither everyone was to, begin, to the more orderly carrying repair and whereabout to on of the work; the nature of their instructions otherwise regarding rather the number of the inhabitants than of the parishes. The surveyors, therefore, being every one furnished with a convenient proportion of urns, balls, and balloting-boxes--in the use whereof they had been formerly exercised--and now arriving each at his respective parish, being with the people by teaching them their first lesson, which was the ballot; and though they found them in the beginning somewhat froward, as at toys, with which, while they were in expectation of greater matters from a Council of legislators, they conceived themselves to be abused, they came within a little while to think them pretty sport, and at length such as might very soberly be used in good earnest; whereupon the surveyors began the institution included in--

The first order, requiring “That upon the first Monday next ensuing the last of December the bigger bell in every parish throughout the nation be rung at eight of the clock in the morning, and continue ringing for the space of one hour; and that all the elders of the parish respectively repair to the church before the bell has done ringing, where, dividing themselves into two equal numbers, or as near equal as may be, they shall take their places according to their dignities, if they be of divers qualities, and according to their seniority, if they be of the same, the one half on the one side, and the other half on the other, in the body of the church, which done, they shall make oath to the overseers of the parish for the time being (instead of these the surveyors were to officiate at the institution, or first assembly) by holding up their hands, to make a fair election according to the laws of the ballot, as they are hereafter explained, of such persons, amounting to a fifth part of their whole number, to be their deputies, and to exercise their power in manner hereafter explained, as they shall think in their consciences to be fittest for that trust, and will acquit themselves of it to the best advantage of the commonwealth. And oath being thus made, they shall proceed to election, if the elders of the parish amount to 1,000 by the ballot of the tribe, as it is in due place explained, and if the elders of the parish amount to fifty or upward, but within the number of 1,000, by the ballot of the

hundred, as it is in due place explained. But, if the elders amount not to fifty, then they shall proceed to the ballot of the parish, as it is in this place and after this manner explained.

“The two overseers for the time being shall seat themselves at the upper end of the middle alley, with a table before them, their faces being toward the congregation, and the constable for the time being shall set an urn before the table, into which he shall put so many balls as there be elders present, whereof there shall be one that is gilded, the rest being white; and when the constable has shaken the urn, sufficiently to mix the balls, the overseers shall call the elders to the urn, who from each side of the church shall come up the middle alley in two files, every man passing by the urn, and drawing out one ball; which, if it be silver, he shall cast into a bowl standing at the foot of the urn, and return by the outward alley on his side to his place. But he who draws the golden ball is the proposer, and shall be seated between the overseers, where he shall begin in what order he pleases, and name such as, upon his oath already taken, he conceives fittest to be chosen, one by one, to the elders; and the party named shall withdraw while the congregation is balloting his name by the double box or boxes appointed and marked on the outward part, to show which side is affirmative and which negative, being carried by a boy or boys appointed by the overseers, to every one of the elders, who shall hold up a pellet made of linen rags between his finger and his thumb, and put it after such a manner into the box, as though no man can see into which side he puts it, yet any man may see that he puts in but one pellet or suffrage. And the suffrage of the congregation being thus, given, shall be returned with the box or boxes to the overseers, who opening the same, shall pour the affirmative balls into a white bowl standing upon the table on the right hand, to be numbered by the first overseer; and the negative into a green bowl standing on the left hand, to be numbered by the second overseer; and the suffrages being numbered, he who has the major part in the affirmative is one of the deputies of the parish, and when so many deputies are chosen as amount to a full fifth part of the whole number of the elders, the ballot for that time shall cease. The deputies being chosen are to be listed by the overseers in order as they were chosen, except only that such as are horse must be listed in the first place with the rest, proportionable to the number of the congregation, after this manner.”

Anno Domini

THE LIST OF THE FIRST MOVER

A.A. Equestrian Order, First Deputy B.B. Second Deputy, C.C. Third Deputy, D.D. Fourth Deputy, E.E. Fifty Deputy,

Of the parish of in the hundred of and the tribe of, which parish at the present election contains twenty elders, whereof one is of the horse or equestrian order.

“The first and second in the list are overseers by consequence; the third is the constable, and the fourth and fifth are churchwardens; the persons so chosen are deputies of the parish for the space of one year from their election, and no longer, nor may they be elected two years together. This list, being the primum mobile, or first

mover of the commonwealth, is to be registered in a book diligently kept and preserved by the overseers, who are responsible in their places, for these and other duties to be hereafter mentioned, to the censors of the tribe; and the congregation is to observe the present order, as they will answer the contrary to the phylarch, or prerogative troop of the tribe, which, in case of failure in the whole or any part of it, have power to fine them or any of them at discretion, but under an appeal to the Parliament."

For proof of this order, first, in reason, it is with all politicians past dispute that paternal power is in the right of nature; and this is no other than the derivation of power from fathers of families as the natural root of a commonwealth. And for experience, if it be otherwise in that of Holland, I know no other example of the like kind. In Israel, the sovereign power came clearly from the natural root, the elders of the whole people; and Rome was born, Comitiis curiatis, in her parochial congregations, out of which Romulus first raised her Senate, then all the rest of the orders of that commonwealth, which rose so high: for the depth of a commonwealth is the just height of it--

"She raises up her head unto the skies, Near as her root unto the centre lies."

And if the Commonwealth of Rome was born of thirty parishes, this of Oceana was born of 10,000. But whereas mention in the birth of this is made of an equestrian order, it may startle such as know that the division of the people of Rome, at the institution of that commonwealth into orders, was the occasion of its ruin. The distinction of the patrician as a hereditary order from the very institution, engrossing all the magistracies, was indeed the destruction of Rome; but to a knight or one of the equestrian order, says Horace,

"Si quadringentis sex septem millia desunt, Plebs eris."

By which it should seem that this order was not otherwise hereditary than a man's estate, nor did it give any claim to magistracy; wherefore you shall never find that it disquieted the commonwealth, nor does the name denote any more in Oceana than the duty of such a man's estate to the public.

But the surveyors, both in this place and in others, forasmuch as they could not observe all the circumstances of this order, especially that of the time of election, did for the first as well as they could; and, the elections being made and registered, took each of them copies of those lists which were within their allotments, which done they produced--

The sixth order, directing "in case a parson or vicar of a parish comes to be removed by death or by the censors, that the congregation of the parish assemble and depute one or two elders by the ballot, who upon the charge of the parish shall repair to one of the universities of this nation with a certificate signed by the overseers, and addressed to the vice-chancellor, which certificate, giving notice of the death or removal of the parson or vicar, of the value of the parsonage or vicarage, and of the desire of the congregation to receive a probationer from that university, the vice-chancellor, upon the receipt thereof, shall call a convocation, and having made choice of a fit person, shall return him in due time to the parish, where the person so

returned shall return the full fruits of the benefice or vicarage, and do the duty of the parson or vicar, for the space of one year, as probationer; and that being expired, the congregation of the elders shall put their probationer to the ballot, and if he attains not to two parts in three of the suffrage affirmative, he shall take his leave of the parish, and they shall send in like manner as before for another probationer; but if their probationer obtains two parts in three of the suffrage affirmative, he is then pastor of that parish. And the pastor of the parish shall pray with the congregation, preach the Word, and administer the sacraments to the same, according to the directory to be hereafter appointed by the Parliament. Nevertheless such as are of gathered congregations, or from time to time shall join with any of them, are in no wise obliged to this way of electing their teachers, or to give their votes in this case, but wholly left to the liberty of their own consciences, and to that way of worship which they shall choose, being not popish, Jewish, or idolatrous. And to the end they may be the better protected by the State in the exercise of the same, they are desired to make choice, and such manner as they best like, of certain magistrates in every one of their congregations, which we could wish might be four in each of them, to be auditors in cases of differences or distaste, if any through variety of opinions, that may be grievous or injurious to them, shall fall out. And such auditors or magistrates shall have power to examine the matter, and inform themselves, to the end that if they think it of sufficient weight, they may acquaint the phylarch with it, or introduce it into the Council of Religion; where all such causes as those magistrates introduce shall from time to time be heard and determined according to such laws as are or shall hereafter be provided by the Parliament for the just defence of the liberty of conscience.”

This order consists of three parts, the first restoring the power of ordination to the people, which, that it originally belongs to them, is clear, though not in English yet in Scripture, where the apostles ordained elders by the holding up of hands in every congregation, that is, by the suffrage of the people, which was also given in some of those cities by the ballot. And though it may be shown that the apostles ordained some by the laying on of hands, it will not be shown that they did so in every congregation.

Excommunication, as not clearly provable out of the Scripture, being omitted, the second part of the order implies and establishes a national religion; for there be degrees of knowledge in divine things; true religion is not to be learned without searching the Scripture; the Scriptures cannot be searched by us unless we have them to search; and if we have nothing else, or (which is all one) understand nothing else but a translation, we may be (as in the place alleged we have been) beguiled or misled by the translation, while we should be searching the true sense of the Scripture, which cannot be attained in a natural way (and a commonwealth is not to presume upon that which is supernatural) but by the knowledge of the original and of antiquity, acquired by our own studies, or those of some others, for even faith comes by hearing. Wherefore a commonwealth not making provision of men from time to time, knowing in the original languages wherein the Scriptures were written, and versed in those antiquities to which they so frequently relate, that the true sense of them depends in great part upon that knowledge, can never be secure that she shall

not lose the Scripture, and by consequence her religion; which to preserve she must institute some method of this knowledge, and some use of such as have acquired it, which amounts to a national religion.

The commonwealth having thus performed her duty toward God, as a rational creature, by the best application of her reason to Scripture, and for the preservation of religion in the purity of the same, yet pretends not to infallibility, but comes in the third part of the order, establishing liberty of conscience according to the instructions given to her Council of Religion, to raise up her hands to heaven for further light; in which proceeding she follows that (as was shown in the preliminaries) of Israel, who, though her national religion was always a part of her civil law, gave to her prophets the upper hand of all her orders.

But the surveyors having now done with the parishes, took their leave; so a parish is the first division of land occasioned by the first collection of the people of Oceana, whose function proper to that place is comprised in the six preceding orders.

The next step in the progress of the surveyors was to a meeting of the nearest of them, as their work lay, by twenties; where conferring their lists, and computing the deputies contained therein, as the number of them in parishes, being nearest neighbors, amounted to 100, or as even as might conveniently be brought with that account, they cast them and those parishes into the precinct which (be the deputies ever since more or fewer) is still called the hundred; and to every one of these precincts they appointed a certain place, being the most convenient town within the same, for the annual rendezvous; which done, each surveyor, returning to his hundred, and summoning the deputies contained in his lists to the rendezvous, they appeared and received--

The seventh order, requiring, “That upon the first Monday next ensuing the last of January, the deputies of every parish annually assemble in arms at the rendezvous of the hundred, and there elect out of their number one justice of the peace, one juryman, one captain, one ensign of their troop or century, each of these out of the horse; and one juryman, one coroner, one high constable, out of the foot. The election to be made by the ballot in this manner. The jurymen for the time being are to be overseers of the ballot (instead of these, the surveyors are to officiate at the first assembly), and to look to the performance of the same according to what was directed in the ballot of the parishes, saving that the high constable setting forth the urn shall have five several suits of gold balls, and one dozen of every suit; whereof the first shall be marked with the letter A, the second with the letter B, the third with C, the fourth with D, and the fifth with E: and of each of these suits he shall cast one ball into his hat, or into a little urn, and shaking the balls together, present them to the first overseer, who shall draw one, and the suit which is so drawn by the overseer shall be of use for that day, and no other; for example, if the overseer drew an A, the high constable shall put seven gold balls marked with the letter A into the urn, with so many silver ones as shall bring them even with the number of the deputies, who being sworn, as before, at the ballot of the parish to make a fair election, shall be called to the urn; and every man coming in manner as was there shown, shall draw one ball, which, if it be silver, he shall cast it into a bowl standing at the foot of the

urn, and return to his place: but the first that draws a gold ball (showing it to the overseers, who if it has not the letter of the present ballot, have power to apprehend and punish him) is the first elector, the second the second elector, and so to the seventh; which order they are to observe in their function. “The electors as they are drawn shall be placed upon the bench by the overseers, till the whole number be complete, and then be conducted, with the list of the officers to be chosen, into a place apart, where, being private, the first elector shall name a person to the first office in the list; and if the person so named, being balloted by the rest of the electors, attains not to the better half of the suffrages in the affirmative, the first elector shall continue nominating others, till one of them so nominated by him attains to the plurality of the suffrages in the affirmative, and be written first competitor to the first office. This done, the second elector shall observe in his turn the like order; and so the rest of the electors, naming competitors each to his respective office in the list, till one competitor be chosen to every office: and when one competitor is chosen to every office, the first elector shall begin again to name a second competitor to the first office, and the rest successively shall name to the rest of the offices till two competitors be chosen to every office; the like shall be repeated till three competitors be chosen to every office. And when three competitors are chosen to every office, the list shall be returned to the overseers, or such as the overseers, in case they or either of them happened to be electors, have substituted in his or their place or places; and the overseers or substitutes having caused the list to be read to the congregation, shall put the competitors, in order as they are written, to the ballot of the congregation; and the rest of the proceedings being carried on in the manner directed in the fifth order, that competitor, of the three written to each office, who has most of the suffrages above half in the affirmative, is the officer. The list being after this manner completed, shall be entered into a register, to be kept at the rendezvous of the hundred, under inspection of the magistrates of the same, after the manner following:

Anno Domini

THE LIST OF THE NEBULOSA

A.A. Equestrian Order, Justice of the Peace, B.B. Equestrian Order, First Juryman, C.C. Equestrian Order, Captain of the Hundred, D.D. Equestrian Order, Ensign, E.E. Second Juryman, F.F. High Constable, G.G. Coroner,

Of the hundred of in the tribe of, which hundred consists at this election of 105 deputies.

“The list being entered, the high constable shall take three copies of the same, whereof he shall presently return one to the lord high sheriff of the tribe, a second to the lord custos rotulorum, and a third to the censors; or these, through the want of such magistrates at the first muster, may be returned to the orator, to be appointed for that tribe. To the observation of all and every part of this order, the officers and deputies of the hundred are all and every of them obliged, as they will answer it to the phylarch, who has power, in case of failure in the whole or any part, to fine all or

any of them so failing at discretion, or according to such laws as shall hereafter be provided in that case, but under an appeal to the Parliament.” There is little in this order worthy of any further account, but that it answers to the rulers of hundreds in Israel, to the mora or military part of the tribe in Lacedaemon, and to the century in Rome. The jurymen, being two in a hundred, and so forty in a tribe, give the latitude allowed by the law for exceptions. And whereas the golden balls at this ballot begin to be marked with letters, whereof one is to be drawn immediately before it begins, this is to the end that the letter being unknown, men may be frustrated of tricks or foul play, whereas otherwise a man may bring a golden ball with him, and make as if he had drawn it out of the urn. The surveyors, when they had taken copies of these lists, had accomplished their work in the hundreds.

So a hundred is the second division of land occasioned by the second collection of the people, whose civil and military functions proper to this place are comprised in the foregoing order.

Having stated the hundreds, they met once again by twenties, where there was nothing more easy than to cast every twenty hundreds, as they lay most conveniently together, into one tribe; so the whole territory of Oceana, consisting of about 10,000 parishes, came to be cast into 1,000 hundreds, and into fifty tribes. In every tribe at the place appointed for the annual rendezvous of the same, were then, or soon after begun those buildings which are now called pavilions; each of them standing with one open side upon fair columns, like the porch of some ancient temple, and looking into a field capable of the muster of some 4,000 men; before each pavilion stand three pillars sustaining urns for the ballot, that on the right hand equal in height to the brow of a horseman, being called the horse urn, that on the left hand, with bridges on either side to bring it equal in height with the brow of a footman, being called the foot urn, and the middle urn, with a bridge on the side toward the foot urn, the other side, as left for the horse, being without one; and here ended the whole work of the surveyors, who returned to the Lord Archon with this--

ACCOUNT OF THE CHARGE

Imprimis: Urns, balls, and balloting-boxes for 10,000 parishes, the same being wooden-ware, £20,000 Item: Provision of the like kind for a thousand hundreds

3,000 Item: Urns and balls of metal, with balloting-boxes for fifty tribes,

2,000 Item: For erecting of fifty pavilions,

60,000 Item: Wages for four surveyors-general at £1,000 a man

4,000 Item: Wages for the rest of the surveyors, being 1,000 at £250 a man

250,000

Sum Total £339,000

This is no great matter of charge for the building of a commonwealth, in regard that it has cost (which was pleaded by the surveyors) as much to rig a few ships. Nevertheless that proves not them to be honest, nor their account to be just; but they

had their money for once, though their reckoning be plainly guilty of a crime, to cost him his neck that commits it another time, it being impossible for a commonwealth (without an exact provision that it be not abused in this kind) to subsist; for if no regard should be had of the charge (though that may go deep), yet the debauchery and corruption whereto, by negligence in accounts, it infallibly exposes its citizens, and thereby lessens the public faith, which is the nerve and ligament of government, ought to be prevented. But the surveyors being despatched, the Lord Archon was very curious in giving names to his tribes, which having caused to be written in scrolls cast into an urn, and presented to the councillors, each of them drew one, and was accordingly sent to the tribe in his lot, as orators of the same, a magistracy no otherwise instituted, than for once and pro tempore, to the end that the council upon so great an occasion might both congratulate with the tribes, and assist at the first muster in some things of necessity to be differently carried from the established administration and future course of the commonwealth.

The orators being arrived, every one as soon as might be, at the rendezvous of his tribe, gave notice to the hundreds, and summoned the muster which appeared for the most part upon good horses, and already indifferently well armed; as to instance in one for all, the tribe of Nubia, where Hermes de Caduceo, lord orator of the same, after a short salutation and a hearty welcome, applied himself to his business, which began with--

The eighth order requiring “That the lord high sheriff as commander-in-chief, and the lord custos rotulorum as muster-master of the tribe (or the orator for the first muster), upon reception of the lists of their hundreds, returned to them by the high constables of the same, presently cause them to be cast up, dividing the horse from the foot, and listing the horse by their names in troops, each troop containing about 100 in number, to be inscribed First, Second, or Third troop, etc., according to the order agreed upon by the said magistrates; which done, they shall list the foot in like manner, and inscribe the companies in like order. These lists upon the eve of the muster shall be delivered to certain trumpeters and drummers, whereof there shall be fifteen of each sort (as well for the present as otherwise to be hereafter mentioned) stipendiated by the tribe. And the trumpeters and drummers shall be in the field before the pavilion, upon the day of the muster, so soon as it is light, where they shall stand every one with his list in his hand, at a due distance, placed according to the order of the list, the trumpeters with the lists of the horse on the right hand, and the drummers with the lists of the foot on the left hand; where having sounded awhile, each of them shall begin to call and continue calling the names of the deputies, as they come into the field, till both the horse and foot be gathered by that means into their due order. The horse and foot being in order, the lord lieutenant of the tribe shall cast so many gold balls marked with the figures 1, 2, 3, 4, etc., as there be troops of horse in the field, together with so many silver balls as there be companies, marked in the same manner, into a little urn, to which he shall call the captains; and the captains drawing the gold balls shall command the horse, and those that draw the silver the foot, each in the order of his lot. The like shall be done by the conductor at the same time for the ensigns at another urn; and they that draw the gold balls shall be cornets, the left ensigns.”

This order may puzzle the reader, but tends to a wonderful speed of the muster, to which it would be a great matter to lose a day in ranging and marshalling, whereas by virtue of this the tribe is no sooner in the field than in battalia, nor sooner in battalia than called to the urns or the ballot by virtue of--

The ninth order, “Whereby the censors (or the orator for the first muster) upon reception of the lists of the hundreds from the high constables, according as is directed by the seventh order are to make their notes for the urns beforehand, with regard had to the lists of the magistrates, to be elected by the ensuing orders, that is to say, by the first list called the prime magnitude, six; and by the second called the galaxy, nine. Wherefore the censors are to put into the middle urn for the election of the first list twenty-four gold balls, with twenty-six blanks or silver balls, in all sixty; and into the side urns sixty gold balls, divided into each according to the different number of the horse and foot; that is to say, if the horse and the foot be equal, equally, and if the horse and the foot be unequal, unequally, by an arithmetical proportion. The like shall be done the second day of the muster for the second list, except that the censors shall put into the middle urn thirty-six gold balls with twenty-four blanks, in all sixty; and sixty gold balls into the side urns, divided respectively into the number of the horse and the foot; and the gold balls in the side urns at either ballot are by the addition of blanks to be brought even with the number of the ballotants at either urn respectively. The censors having prepared their notes, as has been shown, and being come at the day appointed into the field, shall present a little urn to the lord high sheriff, who is to draw twice for the letters to be used that day, the one at the side urns, and the other at the middle. And the censors having fitted the urns accordingly, shall place themselves in certain movable seats or pulpits (to be kept for that use in the pavilion) the first censor before the horse urn, the second before the foot urn, the lord lieutenant doing the office of censor pro tempore at the middle urn; where all and every one of them shall cause the laws of the ballot to be diligently observed, taking a special care that no man be suffered to come above once to the urn (whereof it more particularly concerns the sub-censors, that is to say, the overseers of every parish, to be careful, they being each in this regard responsible for their respective parishes) or to draw above one ball, which if it be gold, he is to present to the censor, who shall look upon the letter; and if it be not that of the day, and of the respective urn, apprehend the party, who for this or any other like disorder is obnoxious to the phylarch.”

This order being observed by the censors, it is not possible for the people, if they can but draw the balls, though they understand nothing at all of the ballot, to be out. To philosophize further upon this art, though there be nothing more rational, were not worth the while, because in writing it will be perplexed, and the first practice of it gives the demonstration; whence it came to pass that the orator, after some needless pains in the explanation of the two foregoing orders, betaking himself to exemplify the same, found the work done to his hand, for the tribe, as eager upon a business of this nature, had retained one of the surveyors, out of whom (before the orator arrived) they had got the whole mystery by a stolen muster, at which in order to the ballot they had made certain magistrates pro tempore. Wherefore he found not only the pavilion (for this time a tent) erected with three posts, supplying the place of

pillars to the urns, but the urns being prepared with a just number of balls for the first ballot, to become the field, and the occasion very gallantly with their covers made in the manner of helmets, open at either ear to give passage to the hands of the ballotants, and slanting with noble plumes to direct the march of the people.

Wherefore he proceeded to--

The tenth order, “Requiring of the deputies of the parishes, that upon every Monday next ensuing the last of February, they make their personal appearance, horse and foot in arms accordingly, at the rendezvous of the tribe, where, being in discipline, the horse upon the right, and the foot upon the left, before the pavilion, and having made oath by holding up their hands, upon the tender of it by the lord high sheriff, to make election without favor, and of such only as they shall judge fittest for the commonwealth, the conductor shill take three balls, the one inscribed with these words (outward files), another with these words (inward files), and the third with these (middle files), which balls he shall cast into a little urn, and present it to the lord high sheriff, who, drawing one, shall give the words of command, as they are thereupon inscribed, and the ballot shall begin accordingly. For example, if the ball be inscribed ‘Middle files,’ the ballot shall begin by the middle; that is, the two files that are middle to the horse shall draw out first to the horse urn, and the two files that are middle to the foot shall draw out first to the foot urn, and be followed by all the rest of the files as they are next to them in order. The like shall be done by the inward, or by the outward files in case they be first called. And the files, as every man has drawn his ball, if it be silver, shall behind at the urn to countermarch to their places, but he that has drawn a gold ball at a side urn shall proceed to the middle urn, where if the balls he draws be silver he shall also countermarch, but if it be gold he shall take his place upon a form set across the pavilion, with his face toward the lord high sheriff, who shall be seated in the middle of the pavilion, with certain clerks by him, one of which shall write down the names of every elector, that is, of every one that drew a gold ball at the middle urn, and in the order his ball was drawn, till the electors amount to six in number. And the first six electors, horse and foot promiscuously, are the first order of electors; the second six (still accounting them as they are drawn) the second order, the third six the third order, and the fourth six the fourth order of electors; every elector having place in his order, according to the order wherein he was drawn. But so soon as the first order of electors is complete, the lord high sheriff shall send them with a copy of the following list, and a clerk that understands the ballot, immediately to a little tent standing before the pavilion in his eye, to which no other person but themselves, during the election, shall approach. The list shall be written in this manner:”

Anno Domini

THE LIST OF THE PRIME MAGNITUDE, OR FIRST DAY’S ELECTION OF MAGISTRATES

1. The Lord High Sheriff, Commander-in-Chief, 2. Lord Lieutenant, 3. Lord Custos Rotulorum, Muster-Master-General, 4. The Conductor, being Quarter-master General, 5. The First Censor, 6. The Second Censor,

Of the tribe of Nubia, containing at the present muster 700 horse and 1,500 foot, in all 22,000 deputies.

“And the electors of the first band or order, being six, shall each of them name to his respective magistracy in the left such as are not already elected in the hundreds, till one competitor be chosen to every magistracy in the list by the ballot of the electors of the first order, which done, the list with the competitors thereunto annexed shall be returned to the lord high sheriff by the clerk attending that order, but the electors shall keep their places; for they have already given their suffrage, and may not enter into the ballot of the tribe. If there arises any dispute in an order of electors, one of the censors or sub-censors appointed by them in case they be electors, shall enter into the tent of that order, and that order shall stand to his judgment in the decision of the controversy. The like shall be done exactly by each other order of electors, being sent as they are drawn, each with another copy of the same list, into a distinct tent, till there be returned to the lord high sheriff four competitors to every magistracy in the list; that is to say, one competitor elected to every office in every one of the four orders, which competitors the lord high sheriff shall cause to be pronounced or read by a crier to the congregation, and the congregation having heard the whole lists repeated, the names shall be put by the lord high sheriff to the tribe, one by one, beginning with the first competitor in the first order, thence proceeding to the first competitor in the second order, and so to the first in the third and fourth orders. And the suffrages being taken in boxes by boys (as has been already shown) shall be poured into the bowls standing before the censors, who shall be seated at each end of the table in the pavilion, the one numbering the affirmatives and the other the negatives, and he of the four competitors to the first magistracy that has most above half the suffrages of the tribe in the affirmative, is the first magistrate. The like is to be done successively by the rest of the competitors in their order. But because soon after the boxes are sent out for the first name, there be others sent out for the second, and so for the third, etc., by which means divers names are successively at one and the same time in balloting; the boy that carries a box shall sing or repeat continually the name of the competitor for whom that box is carrying, with that also of the magistracy to which he is proposed. A magistrate of the tribe happening to be an elector, may substitute any one of his own order to execute his other function. The magistrates of the prime magnitude being thus elected, shall receive the present charge of the tribe.”

If it be objected against this order that the magistrates to be elected by it will be men of more inferior rank than those of the hundreds, in regard that those are chosen first, it may be remembered that so were the burgesses in the former government, nevertheless the knights of the shire were men of greater quality; and the election at the hundred is made by a council of electors, of whom less cannot be expected than the discretion of naming persons fittest for those capacities, with an eye upon these to be elected at the tribe. As for what may be objected in point of difficulty, it is demonstrable by the foregoing orders, that a man might bring 10,000 men, if there were occasion, with as much ease, and as suddenly to perform the ballot, as he can make 5,000 men, drawing them out by double files, to march a quarter of a mile. But because at this ballot, to go up and down the field, distributing the linen pellets to

every man, with which he is to ballot or give suffrage, would lose a great deal of time, therefore a man’s wife, his daughters, or others, make him his provision of pellets before the ballot, and he comes into the field with a matter of a score of them in his pocket. And now I have as good as done with the sport. The next is--

The eleventh order, “Explaining the duties and functions of the magistrates contained in the list of the prime magnitude, and those of the hundreds, beginning with the lord high sheriff, who, over and above his more ancient offices, and those added by the former order, is the first magistrate of the phylarch, or prerogative troop. The lord lieutenant, over and above his duty mentioned, is commander-in-chief of the musters of the youth, and second magistrate of the phylarch. The custos rotulorum is to return the yearly muster-rolls of the tribe, as well that of the youth as of the elders, to the rolls in emporium, and is the third magistrate of the phylarch. The censors by themselves and their sub-censors, that is, the overseers of the parishes, are to see that the respective laws of the ballot be observed in all the popular assemblies of the tribe. They have power also to put such national ministers, as in preaching shall intermeddle with matters of government, out of their livings, except the party appeals to the phylarch, or to the Council of Religion, where in that case the censors shall prosecute. All and every one of these magistrates, together with the justices of peace, and the jurymen of the hundreds, amounting in the whole number to threescore and six, are the prerogative troop or phylarch of the tribe.

“The function of the phylarch or prerogative troop is fivefold:

“First, they are the council of the tribe, and as such to govern the musters of the same according to the foregoing orders, having cognizance of what has passed in the congregation or elections made in the parishes or the hundreds, with power to punish any undue practices, or variation from their respective rules and orders, under an appeal to the Parliament. A marriage legitimately is to be pronounced by the parochial congregation, the muster of the hundred, or the phylarch. And if a tribe have a desire (which they are to express at the muster by their captains, every troop by his own) to petition the Parliament the phylarch, as the council, shall frame the petition in the pavilion, and propose it by clauses to the ballot of the whole tribe; and the clauses that shall be affirmed by the ballot of the tribe, and signed by the hands of the six magistrates of the prime magnitude, shall be received and esteemed by the Parliament as the petition of the tribe, and no other.

“Secondly, the phylarch has power to call to their assistance what other troops of the tribe they please (he they elders or youth, whose discipline will be hereafter directed), and with these to receive the judges itinerant in their circuits, whom the magistrates of the phylarch shall assist upon the bench, and the juries elsewhere in their proper functions according to the more ancient laws and customs of this nation.

“Thirdly, the phylarch shall hold the court called the quartersessions according to the ancient custom, and therein shall also hear causes in order to the protection of liberty of conscience, by such rules as are or shall hereafter be appointed by the Parliament.

“Fourthly, all commissions issued into the tribes by the Parliament, or by the chancery, are to be directed to the phylarch, or some of that troop, and executed by the same respectively.

“Fifthly, in the case of levies of money the Parliament shall tax the phylarchs, the phylarchs shall tax the hundreds, the hundreds the parishes, and the parishes shall levy it upon themselves. The parishes having levied the tax-money accordingly, shall return it to the officers of the hundreds, the hundred to the phylarchs, and the phylarchs to the Exchequer. But if a man has ten children living, he shall pay no taxes; if he has five living, he shall pay but half taxes; if he has been married three years, or be above twenty-five years of age, and has no child or children lawfully begotten, he shall pay double taxes. And if there happen to grow any dispute upon these or such other orders as shall or may hereto be added hereafter, the phylarchs shall judge the tribes, and the Parliament shall judge the phylarchs. For the rest, if any man shall go about to introduce the right or power of debate into any popular council or congregation of this nation, the phylarch or any magistrate of the hundred, or of the tribe, shall cause him presently to be sent in custody to the Council of War.”

The part of the order relating to the rolls in Emporium being of singular use, is not unworthy to be somewhat better opened. In what manner the lists of the parishes, hundreds, and tribes are made, has been shown in their respective orders, where, after the parties are elected, they give an account of the whole number of the elders or deputies in their respective assemblies or musters; the like for this part exactly is done by the youth in their discipline (to be hereafter shown) wherefore the lists of the parishes, youth and elders, being summed up, give the whole number of the people able to bear arms, and the lists of the tribes, youth and elders, being summed up, give the whole number of the people bearing arms. This account, being annually recorded by the master of the rolls, is called the “Pillar of Nilus,” because the people, being the riches of the commonwealth, as they are found to rise or fall by the degrees of this pillar, like that river, give an account of the public harvest.

Thus much for the description of the first day’s work at the muster, which happened (as has been shown) to be done as soon as said; for as in practice it is of small difficulty, so requires it not much time, seeing the great Council of Venice, consisting of a like number, begins at twelve of the clock, and elects nine magistrates in one afternoon. But the tribe being dismissed for this night, repaired to their quarters, under the conduct of their new magistrates. The next morning returning to the field very early, the orator proceeded to--

The twelfth order, “Directing the muster of the tribe in the second day’s election, being that of the list called the galaxy; in which the censors shall prepare the urns according to the directions given in the ninth order for the second ballot; that is to say, with thirty-six gold balls in the middle urn, making four orders, and nine electors in every order, according to the number of the magistrates in the list of the galaxy, which is as follows:

1. Knight 2. Knight

To be chosen out of the horse. 3. Deputy 4. Deputy 5. Deputy

To be chosen out of the horse. 6. Deputy 7. Deputy 8. Deputy 9. Deputy

To be chosen out of the foot.

“The rest of the ballot shall proceed exactly according to that of the first day. But, forasmuch as the commonwealth demands as well the fruits of a man’s body as of his mind, he that has not been married shall not be capable of these magistracies till he be married. If a deputy already chosen to be an officer in the parish, in the hundred, or in the tribe, be afterward chosen of the galaxy, it shall be lawful for him to delegate his office in the parish, in the hundred, or in the tribe, to any one of his own order being not already chosen into office. The knights and deputies being chosen, shall be brought to the head of the tribe by the lord high sheriff, who shall administer to them this oath: ‘Ye shall well and truly observe and keep the orders and customs of this commonwealth which the people have chosen.’ And if any of them shall refuse the oath, he shall be rejected, and that competitor which had the most voices next shall be called in his place, who, if he takes the oath, shall be entered in the list; but if he also refuses the oath, he who had most voices next shall be called, and so till the number of nine out of those competitors which had most voices be sworn knights and deputies of the galaxy. (This clause, in regard to the late divisions, and to the end that no violence be offered to any man’s conscience, to be of force but for the first three years only.) The knights of the galaxy being elected and sworn, are to repair, by the Monday next ensuing to the last of March, to the Pantheon or palace of justice, situated in the metropolis of this commonwealth (except the Parliament, by reason of a contagious sickness, or some other occasion, has adjourned to another part of the nation), where they are to take their places in the Senate, and continue in full power and commission as senators for the full term of three years next ensuing the date of their election. The deputies of the galaxy are to repair by the same day (except as before excepted) to the halo situated in Emporium, where they are to be listed of the prerogative tribe, or equal representative of the people; and to continue in full power and commission as their deputies for the full term of three years next ensuing their election. But, forasmuch as the term of every magistracy or office in this commonwealth requires an equal vacation, a knight or deputy of the galaxy, having fulfilled his term of three years, shall not be re-elected into the same galaxy or any other, till he has also fulfilled his three years’ vacation.”

Whoever shall rightly consider the foregoing orders, will be as little able to find how it is possible that a worshipful knight should declare himself in ale and beef worthy to serve his country, as how my lord high sheriff’s honor, in case he were protected from the law, could play the knave. But though the foregoing orders, so far as they regard the constitution of the Senate and the people, requiring no more as to an ordinary election than is therein explained, that is but one-third part of their knights and deputies, are perfect; yet must we in this place, and as to the institution, of necessity erect a scaffold. For the commonwealth to the first creation of her councils in full number, required thrice as many as are eligible by the foregoing orders. Wherefore the orator whose aid in this place was most necessary, rightly informing the people of the reason, stayed them two days longer at the muster, and took this course. One list, containing two knights and seven deputies, he caused to be

chosen upon the second day; which list being called the first galaxy, qualified the parties elected of it with power for the term of one year, and no longer: another list, containing two knights and seven deputies more, he caused to be chosen the third day, which list being called the second galaxy, qualified the parties elected of it with power for the term of two years, and no longer. And upon the fourth day he chose the third galaxy, according as it is directed by the order, empowered for three years; which lists successively falling (like the signs or constellations of one hemisphere, which setting, cause those of the other to rise) cast the great orbs of this commonwealth into an annual, triennial, and perpetual revolution.

The business of the muster being thus happily finished, Hermes de Caduceo, lord orator of the tribe of Nubia, being now put into her first rapture, caused one of the censor's pulpits to be planted in front of the squadron, and ascending into the same, spake after this manner:

"MY LORDS, THE MAGISTRATES AND THE PEOPLE OF THE TRIBE OF NUBIA:

"We have this day solemnized the happy nuptials of the two greatest princes that are upon the earth or in nature, arms and councils, in the mutual embraces whereof consists your whole commonwealth; whose councils upon their perpetual wheelings, marches, and countermarches, create her armies, and whose armies with the golden volleys of the ballot at once create and salute her councils. There be those (such is the world at present) that think it ridiculous to see a nation exercising its civil functions in military discipline; while they, committing their buff to their servants, come themselves to hold trenchards. For what avails it such as are unarmed, or (which is all one) whose education acquaints them not with the proper use of their swords, to be called citizens? What were 2,000 or 3,000 of you, though never so well affected to your country, but naked, to one troop of mercenary soldiers? If they should come upon the field and say, 'Gentlemen, it is thought fit that such and such men should be chosen by you,' where were your liberty? or, 'Gentlemen, parliaments are exceeding good, but you are to have a little patience; these times are not so fit for them,' where were your commonwealth? What causes the monarchy of the Turks but servants in arms? What was it that begot the glorious Commonwealth of Rome but the sword in the hands of her citizens? Wherefore my glad eyes salute the serenity and brightness of this day with a shower that shall not cloud it.

"Behold the army of Israel become a commonwealth, and the Commonwealth of Israel remaining an army, with her rulers of tens and of fifties, her rulers of hundreds and thousands, drawing near (as this day throughout our happy fields) to the lot by her tribes, increased above threefold, and led up by her phylarchs or princes, to sit upon fifty thrones, judging the fifty tribes of Oceana! Or, is it Athens, breaking from her iron sepulchre, where she has been so long trampled by hosts of Janizaries? For certainly that is the voice of Theseus, having gathered his scattered Athenians into one city. This freeborn nation lives not upon the dole or bounty of one man, but distributing her annual magistracies and honors with her own hand, is herself King People--(At which the orator was awhile interrupted with shouts, but at length

proceeded.) is it grave Lacedaemon in her armed tribe, divided by her oboe and her mora, which appears to chide me that I teach the people to talk, or conceive such language as is dressed like a woman, to be a fit usher of the joys of liberty into the hearts of men? is it Rome in her victorious arms (for so she held her concio or congregation) that congratulates with us, for finding out that which she could not hit on, and binding up her Comitia curiata, centuriata, and tributa, in one inviolable league of union? Or is it the great council of incomparable Venice, bowling forth by the selfsame ballot her immortal commonwealth? For, neither by reason nor by experience is it impossible that a commonwealth should be immortal; seeing the people being the materials, never die; and the form, which is motion, must, without opposition, be endless. The bowl which is thrown from your hand, if there be no rub, no impediment, shall never cease: for which cause the glorious luminaries that are the bowls of God, were once thrown forever; and next these, those of Venice. But certainly, my lords, whatever these great examples may have shown us, we are the first that have shown to the world a commonwealth established in her rise upon fifty such towers, and so garrisoned as are the tribes of Oceana, containing 100,000 elders upon the annual list, and yet but an outguard; besides her marching armies to be equal in the discipline, and in the number of her youth.

“And forasmuch as sovereign power is a necessary but a formidable creature, not unlike the powder which (as you are soldiers) is at once your safety and your danger, being subject to take fire against you as well as for you, how well and securely is she, by your galaxies so collected as to be in full force and vigor and yet so distributed that it is impossible you should be blown up by your own magazine? Let them who will have it, that power if it be confined cannot be sovereign, tell us, whether our rivers do not enjoy a more secure and fruitful reign within their proper banks, than if it were lawful for them, in ravaging our harvests, to spill themselves? whether souls, not confined to their peculiar bodies, do govern them any more than those of witches in their trances? whether power, not confined to the bounds of reason and virtue, has any other bounds than those of vice and passion? or if vice and passion be boundless, and reason and virtue have certain limits, on which of these thrones holy men should anoint their sovereign? But to blow away this dust, the sovereign power of a commonwealth is no more bounded, that is to say straitened, than that of a monarch; but is balanced. The eagle mounts not to her proper pitch, if she be bounded, nor is free if she be not balanced. And lest a monarch should think he can reach further with his sceptre, the Roman eagle upon such a balance spread her wings from the ocean to Euphrates. Receive the sovereign power; you have received it, hold it fast, embrace it forever in your shining arms. The virtue of the loadstone is not impaired or limited, but receives strength and nourishment, by being bound in iron. And so giving your lordships much joy, I take my leave of this tribe.”

The orator descending, had the period of his speech made with a vast applause and exultation of the whole tribe, attending him for that night to his quarter, as the phylarch with some commanded troops did the next day to the frontiers of the tribe, where leave was taken on both sides with more tears than grief.

So a tribe is the third division of land occasioned by the third collection of the people, whose functions proper to that place are contained in the five foregoing orders.

The institution of the commonwealth was such as needed those props and scaffolds which may have troubled the reader; but I shall here take them away, and come to the constitution which stands by itself, and yields a clearer prospect.

The motions, by what has been already shown, are spherical; and spherical motions have their proper centre, for which cause (ere I proceed further) it will be necessary, for the better understanding of the whole, that I discover the centre whereupon the motions of this commonwealth are formed.

The centre, or basis of every government, is no other than the fundamental laws of the same.

Fundamental laws are such as state what it is that a man, and what the means may call his own, that is to say, property; be whereby a man may enjoy his own, that is to say, protection. The first is also called dominion, and the second empire or sovereign power, whereof this (as has been shown) is the natural product of the former, for such as is the balance of dominion in a nation, such is the nature of its empire.

Wherefore the fundamental laws of Oceana, or the centre of this commonwealth, are the agrarian and the ballot: the agrarian by the balance of dominion preserving equality in the root; and the ballot by an equal rotation conveying it into the branch, or exercise of sovereign power, as, to begin with the former, appears by--

The thirteenth order, “Constituting the agrarian laws of Oceana, Marpesia, and Panopea, whereby it is ordained, first, for all such lands as are lying and being within the proper territories of Oceana, that every man who is at present possessed, or shall hereafter be possessed, of an estate in land exceeding the revenue of £2,000 a year, and having more than one son, shall leave his lands either equally divided among them, in case the lands amount to above £2,000 a year to each, or so near equally, in case they come under, that the greater part or portion of the same remaining to the eldest exceed not the value of £2,000 revenue. And no man, not in present possession of lands above the value of £2,000 by the year, shall receive, enjoy (except by lawful inheritance) acquire, or, purchase to himself lands within the said territories, amounting, with those already in his possession, above the said revenue. And if a man has a daughter or daughters, except she be an heiress or they be heiresses, he shall not leave or give to any. One of them in marriage, or otherwise, for her portion, above the value of £1,500 in lands, goods, and moneys. Nor shall any friend, kinsman, or kinswoman add to her or their portion or portions that are so provided for, to make any one of them greater. Nor shall any man demand or have more in marriage with any woman. Nevertheless an heiress shall enjoy her lawful inheritance, and a widow, whatsoever the bounty or affection of her husband shall bequeath to her, to be divided in the first generation, wherein it is divisible according as has been shown.

“Secondly, for lands lying and being within the territories of Marpesia, the agrarian shall hold in all parts as it is established in Oceana, except only in the standard or proportion of estates in land, which shall be set for Marpesia, at £500.

And,

“Thirdly, for Panopea, the agrarian shall hold in all parts, as in Oceana. And whosoever possessing above the proportion allowed by these laws, shall be lawfully convicted of the same, shall forfeit the overplus to the use of the State.”

Agrarian laws of all others have ever been the greatest bugbears, and so in the institution were these, at which time it was ridiculous to see how strange a fear appeared in everybody of that which, being good for all, could hurt nobody. But instead of the proof of this order, I shall out of those many debates that happened ere it could be passed, insert two speeches that were made at the Council of legislators, the first by the Right Honorable Philautus de Garbo, a young man, being heir-apparent to a very noble family, and one of the councillors, who expressed himself as follows:

“May it please your Highness, my Lord Archon of Oceana.

“If I did not, to my capacity, know from how profound a councillor I dissent, it would certainly be no hard task to make it as light as the day. First, that an agrarian is altogether unnecessary; secondly, that it is dangerous to a commonwealth; thirdly, that it is insufficient to keep out monarchy; fourthly, that it ruins families; fifthly, that it destroys industry; and last of all, that though it were indeed of any good use, it will be a matter of such difficulty to introduce in this nation, and so to settle that it may be lasting, as is altogether invincible.

“First, that an agrarian is unnecessary to a commonwealth, what clearer testimony can there be than that the commonwealths which are our contemporaries (Venice, to which your Highness gives the upper hand of all antiquity, being one) have no such thing? And there can be no reason why they have it not, seeing it is in the sovereign power at any time to establish such an order, but that they need it not; wherefore no wonder if Aristotle, who pretends to be a good commonwealths man, has long since derided Phaleas, to whom it was attributed by the Greeks, for his invention.

“Secondly, that an agrarian is dangerous to a commonwealth is affirmed upon no slight authority seeing Machiavel is positive that it was the dissension which happened about the agrarian that caused the destruction of Rome; nor do I think that it did much better in Lacedaemon, as I shall show anon.

“Thirdly, that it is insufficient to keep out monarchy cannot without impiety be denied, the holy Scriptures bearing witness that the Commonwealth of Israel, notwithstanding her agrarian, submitted her neck to the arbitrary yoke of her princes.

“Fourthly, therefore, to come to my next assertion, that it is destructive to families: this also is so apparent, that it needs pity rather than proof. Why alas, do you bind a nobility (which no generation shall deny to have been the first that freely sacrificed their blood to the ancient liberties of this people) on an unholy altar? Why are the people taught that their liberty, which, except our noble ancestors had been born, must have long since been buried, cannot now be born except we be buried? A commonwealth should have the innocence of the dove. Let us leave this purchase of

her birth to the serpent, which eats itself out of the womb of its mother.

“Fifthly but it may be said, perhaps, that we are fallen from our first love, become proud and idle. It is certain, my lords, that the hand of God is not upon us for nothing. But take heed how you admit of such assaults and sallies upon men’s estates, as may slacken the nerve of labor, and give others also reason to believe that their sweat is vain; or else, whatsoever be pretended, your agrarian (which is my fifth assertion) must indeed destroy industry. For, that so it did in Lacedaemon is most apparent, as also that it could do no otherwise, where every man having his forty quarters of barley, with wine proportionable, supplied him out of his own lot by his laborer or helot; and being confined in that to the scantling above which he might not live, there was not any such thing as a trade, or other art, except that of war, in exercise. Wherefore a Spartan, if he were not in arms, must sit and play with his Angers, whence ensued perpetual war, and, the estate of the city being as little capable of increase as that of the citizens, her inevitable ruin. Now what better ends you can propose to yourselves in the like ways, I do not so well see as I perceive that there may be worse; for Lacedaemon yet was free from civil war: but if you employ your citizens no better than she did, I cannot promise you that you shall fare so well, because they are still desirous of war that hope that it may be profitable to them; and the strongest security you can give of peace, is to make it gainful. Otherwise men will rather choose that whereby they may break your laws, than that whereby your laws may break them. Which I speak not so much in relation to the nobility or such as would be holding, as to the people or them that would be getting; the passion in these being so much the stronger, as a man’s felicity is weaker in the fruition of things, than in their prosecution and increase.

“Truly, my lords, it is my fear, that by taking of more hands, and the best from industry, you will farther endamage it, than can be repaired by laying on a few, and the worst; while the nobility must be forced to send their sons to the plough, and, as if this were not enough, to marry their daughters also to farmers.

“Sixthly, but I do not see (to come to the last point) how it is possible that this thing should be brought about, to your good I mean, though it may to the destruction of many. For that the agrarian of Israel, or that of Lacedaemon, might stand, is no such miracle; the lands, without any consideration of the former proprietor, being surveyed and cast into equal lots, which could neither be bought, nor sold, nor multiplied: so that they knew whereabout to have a man. But in this nation no such division can be introduced, the lands being already in the hands of proprietors, and such whose estates lie very rarely together, but mixed one with another being also of tenures in nature so different, that as there is no experience that an agrarian was ever introduced in such a case, so there is no appearance how or reason why it should: but that which is against reason and experience is impossible.”

The case of my Lord Philautus was the most concerned in the whole nation; for he had four younger brothers, his father being yet living, to whom he was heir of £10,000 a year. Wherefore being a man both of good parts and esteem, his words wrought both upon men’s reason and passions, and had borne a stroke at the head of the business, if my Lord Archon had not interposed the buckler in this oration:

“MY LORDS, THE LEGISLATORS OF OCEANA:

“My Lord Philautus has made a thing which is easy to seem hard; if the thanks were due to his eloquence, it would be worthy of less praise than that he owes it to his merit, and the love he has most deservedly purchased of all men: nor is it rationally to be feared that he who is so much beforehand in his private, should be in arrear in his public, capacity. Wherefore, my lord’s tenderness throughout his speech arising from no other principle than his solicitude lest the agrarian should be hurtful to his country, it is no less than my duty to give the best satisfaction I am able to so good a patriot, taking every one of his doubts in the order proposed. And,

“First, whereas my lord, upon observation of the modern commonwealths, is of opinion that an agrarian is not necessary: it must be confessed that at the first sight of them there is some appearance favoring his assertion, but upon accidents of no precedent to us. For the commonwealths of Switzerland and Holland, I mean of those leagues, being situated in countries not alluring the inhabitants to wantonness, but obliging them to universal industry, have an implicit agrarian in the nature of them: and being not obnoxious to a growing nobility (which, as long as their former monarchies had spread the wing over them, could either not at all be hatched, or was soon broken) are of no example to us, whose experience in this point has been to the contrary. But what if even in these governments there be indeed an explicit agrarian? For when the law commands an equal or near equal distribution of a man’s estate in land among his children, as it is done in those countries, a nobility cannot grow; and so there needs no agrarian, or rather there is one. And for the growth of the nobility in Venice (if so it be, for Machiavel observes in that republic, as a cause of it, a great mediocrity of estates) it is not a point that she is to fear, but might study, seeing she consists of nothing else but nobility, by which, whatever their estates suck from the people, especially if it comes equally, is digested into the better blood of that commonwealth, which is all, or the greatest, benefit they can have by accumulation. For how unequal soever you will have them to be in their incomes, they have officers of the pomp, to bring them equal in expenses, or at least in the ostentation or show of them. And so unless the advantage of an estate consists more in the measure than in the use of it, the authority of Venice does but enforce our agrarian; nor shall a man evade or elude the prudence of it, by the authority of any other commonwealth.

“For if a commonwealth has been introduced at once, as those of Israel and Lacedaemon, you are certain to find her underlaid with this as the main foundation; nor, if she is obliged more to fortune than prudence, has she raised her head without musing upon this matter, as appears by that of Athens, which through her defect in this point, says Aristotle, introduced her ostracism, as most of the democracies of Greece. But, not to restrain a fundamental of such latitude to any one kind of government, do we not yet see that if there be a sole landlord of a vast territory, he is the Turk? that if a few landlords overbalance a populous country, they have store of servants? that if a people be in an equal balance, they can have no lords? that no government can otherwise be erected, than upon some one of these foundations? that no one of these foundations (each being else apt to change into some other) can give any security to the government, unless it be fixed? that through the want of this

fixation, potent monarchy and commonwealths have fallen upon the heads of the people, and accompanied their own sad ruins with vast effusions of innocent blood? Let the fame, as was the merit of the ancient nobility of this nation, be equal to or above what has been already said, or can be spoken, yet have we seen not only their glory but that of a throne, the most indulgent to and least invasive for so many ages upon the liberty of a people that the world has known, through the mere want of fixing her foot by a proportionable agrarian upon her proper foundation, to have fallen with such horror as has been a spectacle of astonishment to the whole earth. And were it well argued from one calamity, that we ought not to prevent another? Nor is Aristotle so good a commonwealths man for deriding the invention of Phaleas as in recollecting himself, where he says that democracies, when a less part of their citizens overtop the rest in wealth, degenerate into oligarchies and principalities; and, which comes nearer to the present purpose, that the greater part of the nobility of Tarentum coming accidentally to be ruined, the government of the few came by consequence to be changed into that of the many.

“These things considered, I cannot see how an agrarian, as to the fixation or security of a government, can be less than necessary. And if a cure be necessary, it excuses not the patient, his disease being otherwise desperate, that it is dangerous; which was the case of Rome, not so stated by Machiavel, where he says, that the strife about the agrarian caused the destruction of that commonwealth. As if when a senator was not rich (as Crassus held) except he could pay an army, that commonwealth could expect nothing but ruin whether in strife about the agrarian, or without it. ‘Of late,’ says Livy, ‘riches have introduced avarice, and voluptuous pleasures abounding have through lust and luxury begot a desire of lasting and destroying all good orders.’ if the greatest security of a commonwealth consists in being provided with the proper antidote against this poison, her greatest danger, must be from the absence of an agrarian, which is the whole truth of the Roman example. For the Laconic, I shall reserve the further explication of it, as my lord also did, to another place; and first see whether an agrarian proportioned to a popular government be sufficient to keep out monarchy. My lord is for the negative, and fortified by the people of Israel electing a king. To which I say that the action of the people therein expressed is a full answer to the objection of that example; for the monarchy neither grew upon them, nor could; by reason of the agrarian, possibly have invaded them, if they had not pulled it upon themselves by the election of a king. Which being an accident, the like whereof is not to be found in any other people so planted, nor in this till, as it is manifest, they were given up by God to infatuation (for says he to Samuel, ‘They have not rejected thee, but they have rejected me, that I should not reign over them,), has something in it which is apparent, by what went before, to have been besides the course of nature, and by what followed.

“For the King having no other foundation than the calamities of the people, so often beaten by their enemies, that despairing of themselves they were contented with any change, if he had peace as in the days of Solomon, left but a slippery throne to his successor, as appeared by Rehoboam. And the agrarian, notwithstanding the monarchy thus introduced, so faithfully preserved the root of that commonwealth, that it shot forth oftener and by intervals continued longer than any other

government, as may be computed from the institution of the same by Joshua, 1,465 years before Christ, to the total dissolution of it, which happened in the reign of the emperor Adrian, 135 years after the incarnation. A people planted upon an equal agrarian, and holding to it, if they part with their liberty, must do it upon good-will, and make but a bad title of their bounty. As to instance yet further in that which is proposed by the present order to this nation, the standard whereof is at £2,000 a year; the whole territory of Oceana being divided by this proportion, amounts to 5,000 lots. So the lands of Oceana being thus distributed, and bound to this distribution, can never fall to fewer than 5,000 proprietors. But 5,000 proprietors so seized will not agree to break the agrarian, for that were to agree to rob one another; nor to bring in a king, because they must maintain him, and can have no benefit by him; nor to exclude the people, because they can have as little by that, and must spoil their militia. So the commonwealth continuing upon the balance proposed, though it should come into 5,000 hands, can never alter, and that it should ever come into 5,000 hands is as improbable as anything in the world that is not altogether impossible.

“My lord’s other considerations are more private, as that, this order destroys families; which is as if one should lay the ruin of some ancient castle to the herbs which usually grow out of them, the destruction of those families being that indeed which naturally produced this order. For we do not now argue for that which we would have, but for that which we are already possessed of, as would appear if a note were but taken of all such as have at this day above £2,000 a year in Oceana. If my lord should grant (and I will put it with the most) that they who are proprietors in land, exceeding this proportion, exceed not 300, with what brow can the interest of so few be balanced with that of the whole nation? or rather, what interest have they to put in such a balance? they would live as they had been accustomed to do; who hinders them? they would enjoy their estates; who touches them? they would dispose of what they have according to the interest of their families; it is that which we desire. A man has one son, let him be called; would he enjoy his father’s estate? it is his, his son’s, and his son’s son’s after him. A man has five sons, let them be called; would they enjoy their father’s estate? It is divided among them; for we have four votes for one in the same family, and therefore this must be the interest of the family, or the family knows not its own interest. If a man shall dispute otherwise, he must draw his arguments from custom and from greatness, which was the interest of the monarchy, not of the family; and we are now a commonwealth. If the monarchy could not bear with such divisions because they tendered to a commonwealth, neither can a commonwealth connive at such accumulations because they tend to a monarchy. If the monarchy might make bold with so many for the good of one, we may make bold with one for the good of so many, nay, for the good of all.

“My lords, it comes into my mind, that which upon occasion of the variety of parties enumerated in our late civil wars, was said by a friend of mine coming home from his travels, about the latter end of these troubles; that he admired how it came to pass, that younger brothers, especially being so many more in number than their elder did not unite as one man against a tyranny, the like whereof has not been exercised in any other nation. And truly, when I consider that our countrymen are

none of the worst-natured, I must confess I marvel much how it comes to pass that we should use our children as we do our puppies--take one, lay it in the lap, feed it with every good bit, and drown five; nay, yet worse, forasmuch as the puppies are once drowned, whereas the children are left perpetually drowning. Really, my lords, it is a flinty custom! and all this for his cruel ambition, that would raise himself a pillar a golden pillar for his monument, though he has children, his own reviving flesh, and a kind of immortality. And this is that interest of a family, for which we are to think ill of a government that will not endure it. But quiet ourselves; the land through which the river Nilus wanders in one stream, is barren; but where it parts into seven, it multiplies its fertile shores by distributing, yet keeping and improving, such a propriety and nutrition, as is a prudent agrarian to a well-ordered commonwealth.

“Nor (to come to the fifth assertion) is a political body rendered any fitter for industry by having one gouty and another withered leg, than a natural. It tends not to the improvement of merchandise that there be some who have no need of their trading, and others that are not able to follow it. If confinement discourages industry, an estate in money is not confined, and lest industry should want whereupon to work, land is not engrossed or entailed upon any man, but remains at its devotion. I wonder whence the computation can arise, that this should discourage industry. Two thousand pounds a year a man may enjoy in Oceana, as much in Panopea, £500 in Marpesia; there be other plantations, and the commonwealth will have more. Who knows how far the arms of our agrarian may extend themselves? and whether he that might have left a pillar, may not leave a temple of many pillars to his more pious memory? Where there is some measure in riches, a man may be rich, but if you will have them to be infinite, there will be no end of starving himself, and wanting what he has: and what pains does such a one take to be poor Furthermore, if a man shall think that there may be an industry less greasy or more noble, and so cast his thoughts upon the commonwealth, he will have leisure for her and she riches and honors for him; his sweat shall smell like Alexander’s. My Lord Philautus is a young man who, enjoying his £10,000 a year, may keep a noble house in the old way, and have homely guests; and having but two, by the means proposed, may take the upper hand of his great ancestors; with reverence to whom, I may say, there has not been one of them would have disputed his place with a Roman consul.

“My lord, do not break my heart; the nobility shall go to no other ploughs than those which we call our consuls. But, says he, it having been so with Lacedaemon, that neither the city nor the citizens were capable of increase, a blow was given by that agrarian, which ruined both. And what are we concerned with that agrarian, or that blow while our citizens and our city (and that by our agrarian) are both capable of increase? The Spartan, if he made a conquest, had no citizens to hold it; the Oceaner will have enow. The Spartan could have no trade; the Oceaner may have all. The agrarian in Laconia, that it might bind on knapsacks, forbidding all other arts but that of war, could not make an army of above 30,000 citizens. The agrarian in Oceana, without interruption of traffic, provides us in the fifth part of the youth an annual source or fresh spring of 100,000, besides our provincial auxiliaries, out of which to draw marching armies; and as many elders, not feeble, but men most of them in the flower of their age, and in arms for the defence of our territories. The

agrarian in Laconia banished money, this multiplies it; that allowed a matter of twenty or thirty acres to a man, this 2,000 or 3,000; there is no comparison between them. And yet I differ so much from my lord, or his opinion that the agrarian was the ruin of Lacedaemon, that I hold it no less than demonstrable to have been her main support. For if, banishing all other diversions, it could not make an army of above 30,000, then, letting in all other diversions, it must have broken that army. Wherefore Lysander, bringing in the golden spoils of Athens, irrevocably ruined that commonwealth; and is a warning to us, that in giving encouragement to industry, we also remember that covetousness is the root of all evil. And our agrarian can never be the cause of those seditions threatened by my lord, but is the proper cure of them, as Lucan notes well in the state of Rome before the civil wars, which happened through the want of such an antidote.

“Why then are we mistaken, as if we intended not equal advantages in our commonwealth to either sex, because we would not have women’s fortunes consist in that metal which exposes them to cutpurses? If a man cuts my purse I may have him by the heels or by the neck for it; whereas a man may cut a woman’s purse, and have her for his pains in fetters. How brutish, and much more than brutish, is that commonwealth which prefers the earth before the fruits of the womb? If the people be her treasure, the staff by which she is sustained and comforted, with what justice can she suffer them, by whom she is most enriched, to be for that cause the most impoverished? And yet we see the gifts of God, and the bounties of heaven in fruitful families, through this wretched custom of marrying for money, become their insupportable grief and poverty. Nor falls this so heavy upon the lower sort, being better able to shift for themselves, as upon the nobility or gentry. For what avails it in this case, from whence their veins have derived their blood; while they shall see the tallow of a chandler sooner converted into that beauty which is required in a bride? I appeal, whether my Lord Philautus or myself be the advocate of nobility; against which, in the case proposed by me, there would be nothing to hold the balance. And why is a woman, if she may have but £1,500, undone? If she be unmarried, what nobleman allows his daughter in that case a greater revenue than so much money may command? And if she marry, no nobleman can give his daughter a greater portion than she has. Who is hurt in this case?--nay, who is not benefited? If the agrarian gives us the sweat of our brows without diminution; if it prepares our table; if it makes our cup to overflow, and above all this, in providing for our children, anoints our heads with that oil which takes away the greatest of worldly cares; what man, that is not besotted with a covetousness as vain as endless, can imagine such a constitution to be his poverty? Seeing where no woman can be considerable for her portion, no portion will be considerable with a woman; and so his children will not only find better preferments without his brokage, but more freedom of their own affections. “We are wonderful severe in laws, that they shall not marry without our consent, as if it were care and tenderness over them; but is it not lest we should not have the other £1,000 with this son, or the other £100 a year more in jointure for that daughter? These, when we are crossed in them, are the sins for which we water our couch with tears, but not of penitence. Seeing whereas it is a mischief beyond any that we can do to our enemies, we persist to make nothing of breaking the affection

of our children. But there is in this agrarian a homage to pure and spotless love, the consequence whereof I will not give for all your romances. An alderman makes not his daughter a countess till he has given her £20,000, nor a romance a considerable mistress till she be a princess; these are characters of bastard love. But if our agrarian excludes ambition and covetousness, we shall at length have the care of our own breed, in which we have been curious as to our dogs and horses. The marriage-bed will be truly legitimate, and the race of the commonwealth not spurious. But (impar magnanimis ausis, imparque dolori) I am hurled from all my hopes by my lord's last assertion of impossibility, that the root from whence we imagine these fruits should be planted or thrive in this soil. And why? Because of the mixture of estates and variety of tenures. Nevertheless, there is yet extant in the Exchequer an old survey of the whole nation; wherefore such a thing is not impossible. Now if a new survey were taken at the present rates, and the law made that no man should hold hereafter above so much land as is valued therein at £2,000 a year, it would amount to a good and sufficient agrarian. It is true that there would remain some difficulty in the different kind of rents, and that it is a matter requiring not only more leisure than we have, but an authority which may be better able to bow men to a more general consent than is to be wrought out of them by such as are in our capacity. Wherefore as to the manner, it is necessary that we refer it to the Parliament; but as to the matter, they cannot otherwise fix their government upon the right balance.

"I shall conclude with a few words to some parts of the order, which my lord has omitted. As first to the consequences of the agrarian to be settled in Marpesia, which irreparably breaks the aristocracy of that nation; being of such a nature, as standing, it is not possible that you should govern. For while the people of that country are little better than the cattle of the nobility, you must not wonder if, according as these can make their markets with foreign princes, you find those to be driven upon your grounds. And if you be so tender, now you have it in your power, as not to hold a hand upon them that may prevent the slaughter which must otherwise ensue in like cases, the blood will lie at your door. But in holding such a hand upon them, you may settle the agrarian; and in settling the agrarian, you give that people not only liberty, but lands; which makes your protection necessary to their security; and their contribution due to your protection, as to their own safety.

"For the agrarian of Panopea, it allowing such proportions of so good land, men that conceive themselves straitened by this in Oceana, will begin there to let themselves forth, where every citizen will in time have his villa. And there is no question, but the improvement of that country by this means must be far greater than it has been in the best of former times. I have no more to say, but that in those ancient and heroic ages (when men thought that to be necessary which was virtuous) the nobility of Athens, having the people so much engaged in their debt that there remained no other question among these than which of those should be king, no sooner heard Solon speak than they quitted their debts, and restored the commonwealth; which ever after held a solemn and annual feast called the Sisacthia, or Recision, in memory of that action. Nor is this example the phoenix; for at the institution by Lycurgus, the nobility having estates (as ours here) in the lands of

Laconia, upon no other valuable consideration than the commonwealth proposed by him, threw them up to be parcelled by his agrarian. But now when no man is desired to throw up a farthing of his money, or a shovelful of his earth, and that all we can do is but to make a virtue of necessity, we are disputing whether we should have peace or war. For peace you cannot have without some government, nor any government without the proper balance. Wherefore if you will not fix this which you have, the rest is blood, for without blood you can bring in no other."

By these speeches made at the institution of the agrarian you may perceive what were the grounds of it. The next is--

The fourteenth order, "Constituting the ballot of Venice, as it is fitted by several alterations, and appointed to every assembly, to be the constant and only way of giving suffrage in this commonwealth, according to the following scheme."

I shall endeavor by the following figure to demonstrate the manner of the Venetian ballot (a thing as difficult in discourse or writing, as facile in practice) according to the use of it in Oceana. The whole figure represents the Senate, containing, as to the house or form of sitting, a square and a half; the tribunal at the upper end being ascended by four steps. On the uppermost of these sit the magistrates that constitute the signory of the commonwealth, that is to say, A the strategus; B the orator; C the three commissioners of the great seal; D the three commissioners of the Treasury, whereof one, E, exercises for the present the office of a censor at the middle urn, F To the two upper steps of the tribunal answer G, G-G, G, the two long benches next the wall on each side of the house; the outwardmost of which are equal in height to the uppermost step, and the innermost equal in height to the next. Of these four benches consists the first seal; as the second seat consists in like manner of those four benches H, H-H, H, which being next the floor, are equal in height to the two nethermost steps of the throne. So the whole house is distributed into two seats, each consisting of four benches.

This distribution causes not only the greater conveniency; as will be shown, to the senators in the exercise of their function at the ballot, but a greater grace to the aspect of the Senate. In the middle of the outward benches stand I, 12 the chairs of the censors, those being their ordinary places, though upon occasion of the ballot they descend, and sit where they are shown by K, K at each of the outward urns L, L. Those M, M that sit with their tables, and the bowls N, N before them, upon the halfspace or second step of the tribunal from the floor, are the clerks or secretaries of the house. Upon the short seats O, O on the floor (which should have been represented by woolsacks) sit: P, the two tribunes of the horse. Q, the two tribunes of the foot; and R, R-R, R the judges, all which magistrates are assistants, but have no suffrage. This posture of the Senate considered, the ballot is performed as follows:

First, whereas the gold balls are of several suits, and accordingly marked with several letters of the alphabet, a secretary presents a little urn (wherein there is one ball of every suit or mark) to the strategus and the orator; and look what letter the strategus draws, the same and no other is to be used for that time in the middle urn F; the like for the letter drawn by the orator is to be observed for the side urns L, L,

that is to say if the strategus drew a ball with an A, all the gold balls in the middle urn for that day are marked with the letter A; and if the orator drew a B, all the gold balls in the side urn for that day are marked with the letter B, which done immediately before the ballot, and so the letter unknown to the ballotants, they can use no fraud or juggling; otherwise a man might carry a gold ball in his hand, and seem to have drawn it out of an urn. He that draws a gold ball at any urn, delivers it to the censor or assessor of that urn, who views the character, and allows accordingly of his lot.

The strategus and the orator having drawn for the letters, the urns are prepared accordingly by one of the commissioners and the two censors. The preparation of the urns is After this manner. If the Senate be to elect, for example, the list called the tropic of magistrates, which is this:

1. The Lord Strategus;

2. The Lord Orator;

3. The Third Commissioner of the Great Seal;

4. The Third Commissioner of the Treasury;

5. The First Censor;

6. The Second Censor;

this list or schedule consists of six magistracies, and to every magistracy there are to be four competitors; that is, in all four-and-twenty competitors proposed to the house. They that are to propose the competitors are called electors, and no elector can propose above one competitor: wherefore for the proposing of four-and-twenty competitors you must have four-and-twenty electors; and whereas the ballot consists of a lot and of a suffrage, the lot is for no other use than for the designation of electors; and he that draws a gold ball at the middle urn is an elector. Now, as to have four-and-twenty competitors proposed, you must have four-and-twenty electors made, so to have four-and-twenty electors made by lot, you must have four-and-twenty gold balls in the middle urn; and these (because otherwise it would be no lot) mixed with a competent number of blanks, or silver balls. Wherefore to the four-and-twenty gold balls cast six-and-twenty silver ones, and those (reckoning the blanks with the prizes) make fifty balls in the middle urn. This done (because no man can come to the middle urn that has not first drawn a gold ball at one of the side urns) and to be sure that the prizes or gold balls in this urn be all drawn, there must come to it fifty persons; therefore there must be in each of the side urns five-and-twenty gold balls, which in both come to fifty; and to the end that every senator may have his lot, the gold balls in the side urns are to be made up with blanks equal to the number of the ballotants at either urn; for example, the house consisting of 300 senators, there must be in each of the side urns 125 blanks and twenty-five prizes, which come in both the side urns to 300 balls. This is the whole mystery of preparing the urns, which the censors having skill to do accordingly, the rest of the ballot, whether the parties balloting understand it or not must of necessary consequence come right; and they can neither be out, nor fall into any confusion in the exercise of this art.

But the ballot, as I said, is of two parts, lot and suffrage, or the proposition and result. The lot determines who shall propose the competitors; and the result of the Senate, which of the competitors shall be the magistrates. The whole, to begin with the lot, proceeds in this manner:

The first secretary with an audible voice reads first the list of the magistrates to be chosen for the day, then the oath for fair election, at which the senators hold up their hands; which done, another secretary presents a little urn to the strategus, in which are four balls, each of them having one of these four inscriptions: “First seat at the upper end,” “First seat at the lower end,” “Second seat at the upper end,” “Second seat at the lower end.” And look which of them the strategus draws, the secretary pronouncing the inscription with a loud voice, the seat so called comes accordingly to the urns: this in the figure is the second seat at the upper end. The manner of their coming to the side urns is in double files, that being two holes in the cover of each side urn, by which means two may draw at once. The senators therefore S, S-S, S are coming from the upper end of their seats H, H-H, H to the side urns L, L. The senators T T-T are drawing. The senator V has drawn a gold ball at his side urn, and is going to the middle urn F, where the senator W, having done the like at the other side urn, is already drawing. But the senators X, X-X, X having drawn blanks at their side urns, and thrown them into the bowls Y Y standing at the feet of the urns, are marching by the lower end into their seats again; the senator a having done the like at the middle urn, is also throwing his blank into the bowl b and marching to his seat again: for a man by a prize at a side urn gains no more than right to come to the middle urn, where, if he draws a blank, his fortune at the side urn comes to nothing at all; wherefore he also returns to his place. But the senator C has had a prize at the middle urn, where the commissioner, having viewed his ball, and found the mark to be right, he marches up the steps to the seat of the electors, which is the form d set across the tribunal, where he places himself, according as he was drawn, with the other electors e, e, e drawn before him. These are not to look back, but sit with their faces toward the signory or state, till their number amount to that of the magistrates to be that day chosen, which for the present, as was shown, are six: wherefore six electors being made, they are reckoned according as they were drawn: first, second, third, fourth, fifth, sixth, in their order, and the first six that are chosen are the first order of electors.

The first order of electors being made, are conducted by a secretary, with a copy of the list to be chosen, out of the Senate, and into a committee or council-chamber, being neither suffered by the way, nor in their room (till the ballot be ended), to have conference with any but themselves; wherefore the secretary, having given them their oath that they shall make election according to the law and their conscience, delivers them the list, and seats himself at the lower end of the table with his pen and paper, while another secretary keeps the door.

By such time as the first order of electors are thus seated, the second order of electors is drawn, who, with a second copy of the same list, are conducted into another committee-chamber, by other secretaries performing the same office with the former.

The like exactly is done by the third and by the fourth orders (or hands, as the Venetians call them) of electors, by which means you have the four-and-twenty electors divided according to the four copies of the same list, by six, into four hands or orders; and every one of these orders names one competitor to every magistracy in the list; that is to say, the first elector names to the first magistracy, the second elector to the second magistracy, and so forth. But though the electors, as has been shown, are chosen by mere lot, yet the competitors by them named are not chosen by any lot, but by the suffrage of the whole order for example, the first elector in the first order proposes a name to be strategus, which name is balloted by himself and the other five electors, and if the name so balloted attain not to above half the suffrages, it is laid aside, and the first elector names another to the same magistracy and so in case this also fails, another, till one he has named, whether it be himself, or some other, has attained to above half the suffrages in the affirmative; and the name so attaining to above half the suffrages in the affirmative is written to the first magistracy in the list by the secretary which being done, the second elector of the first order, names to ‘the second magistracy till one of his nomination be chosen to the same. The like is done by the rest of the electors of the first order, till one competitor be chosen, and written to every magistracy in their list. Now the second, third, and fourth orders of electors doing exactly after the same manner, it comes to pass that one competitor to every magistracy being chosen in each order, there be in all four competitors chosen to every magistracy.

If any controversy arises in an order of electors, one of the censors (these being at this game the groom-porters) is advertised by the secretary who brings him in, and the electors disputing are bound to acquiesce in his sentence. For which cause it is that the censors do not ballot at the urns; the signory also abstains, lest it should deform the house: wherefore the blanks in the side urns are by so many the fewer. And so much for the lot, which is of the greater art but less consequence, because it concerns proposition only: but all (except the tribunes and the judges, which being but assistants have no suffrage) are to ballot at the result, to which I now come.

The four orders of electors having perfected their lists, the face of the house is changed: for the urns are taken away, and every senator and magistrate is seated in his proper place, saving the electors, who, having given their suffrages already, may not stir out of their chambers till the house have given theirs, and the rest of the ballot be performed; which follows in this manner:

The four lists being presented by the secretaries of each council of electors to the signory, are first read, according to their order, to the house, with an audible voice; and then the competitors are put to the ballot or suffrage of the whole Senate in this manner: A, A named to be strategus in the first order, whereupon eight ballotins, or pages, such as are expressed by the figures f, f, take eight of the boxes represented, though rudely, by the figures g, g, and go four on the one and four on the other side of the house, that is, one to every bench, signifying “A, A named to be the strategus in the first order..” and every magistrate or senator (beginning by the strategus and the orator first) holds up a little pellet of linen, as the box passes, between his finger and his thumb, that men may see he has but one, and then puts it into the same. The box

consisting in the inner part of two boxes, being painted on the outside white and green, to distinguish the affirmative from the negative side, is so made that when your hand is in it, no man can see to which of the sides you put the suffrage, nor hear to which it falls, because the pellet being linen, makes no noise. The strategus and the orator having begun, all the rest do the like.

The ballotins having thus gathered the suffrages, bring them before the signory, in whose presence the outward boxes being opened, they take out the inner boxes, whereof the affirmative is white, and the negative green, and pour the white in the bowl N on the right hand, which is white also, and the green into the bowl N on the left, which is also green. These bowls or basins (better represented at the lower end of the figure by h, i) being upon this occasion set before the tables of the secretaries at the upper end N, N, the white on the right hand, and the green on the left, the secretaries on each side number the balls, by which, if they find that the affirmatives amount not to above one-half, they write not the name that was balloted, but if they amount to above one-half, they write it, adding the number of above half the suffrages to which it attained. The first name being written, or laid aside, the next that is put is BB named to be strategus in the second order; the third CC, named to be strategus in the third order; the fourth DD, named to be strategus in the fourth order and he of these four competitors that has most above half in the affirmative, is the magistrate; or if none of them attain to above half, the nomination for that magistracy is to be repeated by such new electors as shall be chosen at the next ballot. And so, as is exemplified in the first magistracy, proceeds the ballot of the rest; first in the first, then in the second, and so in the third and fourth orders.

Now whereas it may happen that AA, for example, being named strategus in the first order, may also be named to the same or some one or more other magistracies in one or more of the other orders; his name is first balloted where it is first written, that is to the more worthy magistracy, whereof if he misses, he is balloted as it comes in course for the next, and so for the rest, if he misses of that, as often as he is named.

And because to be named twice, or oftener, whether to the same or some other magistracy, is the stronger recommendation, the note must not fail to be given upon the name, at the proposition in this manner: AA named to be strategus in the first, and in the second order, or AA named to be strategus in the first and the third, in the first and the fourth, etc. But if he be named to the same magistracy in the first, second, third, and fourth orders, he can have no competitor; wherefore attaining to above half the suffrages, he is the magistrate. Or thus: AA named to be strategus in the first, to be censor in the second, to be orator in the third, and to be commissioner of the seal in the fourth order, or the like in more or fewer orders, in which cases if he misses of the first magistracy, he is balloted to the second; if he misses of the second, to the third; and if he misses of the third, to the fourth.

The ballot not finished before sunset, though the election of the magistrates already chosen be good, voids the election of such competitors as being chosen are not yet furnished with magistracies, as if they had never been named (for this is no juggling-box, but an art that must see the sun), and the ballot for the remaining

magistracies is to be repeated the next day by new orders of electors, and such competitors as by them shall be elected. And so in the like manner, if of all the names proposed to the same magistracy, no one of them attains to above half the suffrages in the affirmative.

The senatorian ballot of Oceana being thus described, those of the parish, of the hundred, and of the tribe, being so little different, that in this they are all contained, and by this may be easily understood, are yet fully described, and made plain enough before in the fifth, sixth, seventh, eighth, ninth, and tenth orders.

This, therefore, is the general order, whence those branches of the ballot, some whereof you have already seen, are derived; which, with those that follow, were all read and debated in this place at the institution. When my Lord Epimonus de Garrula, being one of the councillors, and having no further patience (though the rulers were composed by the agent of this commonwealth, residing for that purpose at Venice) than to hear the direction for the parishes, stood up and made way for himself in this manner:

“MAY IT PLEASE YOUR HIGHNESS, MY LORD ARCHON:

“Under correction of Mr. Peregrin, Spy, our very learned agent and intelligencer, I have seen the world a little, Venice, and (as gentlemen are permitted to do) the great Council balloting. And truly I must needs say, that it is for a dumb show the goodliest that I ever beheld with my eyes. You should have some would take it ill, as if the noble Venetians thought themselves too good to speak to strangers, but they observed them not so narrowly. The truth is, they have nothing to say to their acquaintance; or men that are in council sure would have tongues: for a council, and not a word spoken in it, is a contradiction. But there is such a pudder with their marching and countermarching, as, though never a one of them draw a sword, you would think they were training; which till I found that they did it only to entertain strangers, I came from among them as wise as I went thither But in the Parliament of Oceana you had no balls nor dancing, but sober conversation; a man might know and be known, show his parts, and improve them. And now if you take the advice of this same fellow, you will spoil all with his whimsies. Mr. Speaker--cry you mercy, my Lord Archon, I mean--set the wisest man of your house in the great Council of Venice, and you will not know him from a fool. Whereas nothing is more certain than that flat and dull fellows in the judgment of all such as used to keep company with them before, upon election into our house, have immediately chitted like barley in the vat, where it acquires a new spirit, and flowed forth into language, that I am as confident as I am here, if there were not such as delight to abuse us, is far better than Tully’s; or, let anybody but translate one of his orations, and speak it in the house, and see if everybody do not laugh at him.

“This is a great matter, Mr. Speaker; they do not cant it with your book-learning, your orbs, your centres, your prime magnitudes, and your nebulones, things I profess that would make a sober man run stark mad to hear them; while we, who should be considering the honor of our country and that it goes now or never upon our hand,

whether it shall be ridiculous to all the world, are going to nine-holes or trow madam for our business, like your dumb Venetian, whom this same Sir Politic your resident, that never saw him do anything but make faces, would insinuate to you, at this distance, to have the only knack of state. Whereas if you should take the pains, as I have done, to look a little nearer, you would find these same wonderful things to be nothing else but mere natural fopperies, or capriccios as they call them in Italian, even of the meanest, of that nation. For, put the case you be travelling in Italy, ask your contadino, that is, the next country-fellow you meet, some question, and presently he ballots you an answer with a nod, which is affirmative; or a shake with his head, which is the negative box; or a shrug with his shoulder, which is the bossolo di non sinceri. Good! You will admire Sandys for telling you, that grotta di cane is a miracle: and I shall be laughed at, for assuring you, that it is nothing else but such a damp (continued by the neighborhood of certain sulphur mines) as through accidental heat does sometimes happen in our coalpits. But ingratitude must not discourage an honest man from doing good. There is not, I say, such a tongue-tied generation under heaven as your Italian, that you should not wonder if he makes signs. But our people must have something in their diurnals; we must ever and anon be telling them our minds; or if we be at it when we raise taxes, like those gentlemen with the finger and the thumb, they will swear that we are cutpurses. Come, I know what I have heard them say, when some men had money that wrought hard enough for it; and do you conceive they will be better pleased when they shall be told that upon like occasions you are at mumchance or stool-ball?

“I do not speak for myself; for though I shall always acknowledge that I got more by one year’s sitting in the house than by my three years’ travels, it was not of that kind. But I hate that this same Spy, for pretending to have played at billiards with the most serene Commonwealth of Venice, should make such fools of us here, when I know that he must have had his intelligence from some corn-cutter upon the Rialto; for a noble Venetian would be hanged if he should keep such a fellow company. And yet if I do not think he has made you all dote, never trust me, my Lord Archon is sometimes in such strange raptures. Well, good my lord, let me be heard as well as your apple squire. Venice has fresh blood in her cheeks, I must confess, yet she is but an old lady. N or has he picked her cabinet; these he sends you are none of her receipts, I can assure you; he bought them for a Julio at St. Mark’s of a mountebank. She has no other wash, upon my knowledge, for that same envied complexion of hers but her marshes, being a little better scented, saving your presence, than a chamber-pot. My lords, I know what I say, but you will never have done with it, that neither the great Turk, nor any of those little Turks her neighbors, have been able to spoil her! Why you may as well wonder that weasels do not suck eggs in swans’ nests. Do you think that it has lain in the devotion of her beads; which you that have puked so much at popery, are now at length resolved shall consecrate M. Parson, and be dropped by every one of his congregation, while those same whimsical intelligences your surveyors (you will break my heart) give the turn to your primum mobile! And so I think they will; (for you will find that money is the primum mobile) and they will turn you thus out of some £300,000 or £400,000: a pretty sum for urns and balls, for boxes and pills, which these same quacksalvers are to administer to the parishes; and for

what disease I marvel! Or how does it work? Out comes a constable, an overseer, and a churchwarden! Mr. Speaker, I am amazed!”

Never was there goose so stuck with lard as my Lord Epimonus’s speech with laughter, the Archon having much ado to recover himself in such a manner as might enable him to return these thanks:

“In your whole lives, my lords, were you never entertained with so much ingenuity, my Lord Epimonus having at once mended all the faults of travellers. For, first, whereas they are abominable liars, he has not told you (except some malicious body has misinformed him concerning poor Spy) one syllable of falsehood. And, secondly, whereas they never fail to give the upper hand in all their discourses to foreign nations, still jostling their own into the kennel, he bears an honor to his country that will not dissolve in Cephalonia, nor be corrupted with figs and melons, which I can assure you is an ordinary obligation; and therefore hold it a matter of public concern that we be to no occasion of quenching my lord’s affections, nor is there any such great matter between us, but, in my opinion, might be easily reconciled, for though that which my lord gained by sitting in the house, I steadfastly believe, as he can affirm, was got fairly yet dare I not, nor do I think, that upon consideration he will promise for other gamesters, especially when they were at it so high, as he intimates not only to have been in use, but to be like enough to come about again. Wherefore say I, let them throw with boxes, for unless we will be below the politics of an ordinary, there is no such bar to cogging, it is known to his lordship that our game is most at a throw, and that every cast of our dice is in our suffrages, nor will he deny that partiality in a suffrage is downright cogging.

“If the Venetian boxes be the most sovereign of all remedies against this same cogging, is it not a strange thing that they should be thrown first into the fire by a fair gamester? Men are naturally subject to all kinds of passions; some you have that are not able to withstand the brow of an enemy, and others that make nothing of this, are less proof against that of a friend. So that if your suffrage be barefaced, I dare say you shall not have one fair cast in twenty. But whatever a man’s fortune be at the box, he neither knows whom to thank, nor whom to challenge. Wherefore (that my lord may have a charitable opinion of the choice affection which I confess to have, above all other beauties, for that of incomparable Venice) there is in this way of suffrage no less than a demonstration that it is the most pure, and the purity of the suffrage in a popular government is the health, if not the life of it, seeing the soul is not otherwise breathed into the sovereign power than by the suffrage of the people. Wherefore no wonder if Postellus be of opinion that this use of the ball is the very same with that of the bean in Athens, or that others, by the text concerning Eldad and Medad, derive it from the Commonwealth of Israel. There is another thing, though not so material to us, that my lord will excuse me if I be not willing to yield, which is, that Venice subsists only by her situation. It is true that a man in time of war may be more secure from his enemies by being in a citadel, but not from his diseases; wherefore the first cause, if he lives long, is his good constitution, without which his citadel were to little purpose, and it is not otherwise with Venice.”

With this speech of the Archon I conclude the proof of the agrarian and the ballot, being the fundamental laws of this commonwealth, and come now from the centre to the circumferences or orbs, whereof some have been already shown; as how the parishes annually pour themselves into the hundreds, the hundreds into the tribes, and the tribes into the galaxies; the annual galaxy of every tribe consisting of two knights and seven deputies, whereof the knights constitute the Senate; the deputies, the prerogative tribe, commonly called the people; and the Senate and people constitute the sovereign power or Parliament of Oceana. Whereof to show what the Parliament is, I must first open the Senate, and then the prerogative tribe.

To begin with the Senate, of which (as a man is differently represented by a picture drawer and by an anatomist) I shall first discover the face or aspect, and then the parts, with the use of them. Every Monday morning in the summer at seven, and in the winter at eight, the great bell in the clock-house at the Pantheon begins, and continues ringing for the space of one hour; in which time the magistrates of the Senate, being attended according to their quality, with a respective number of the ballotins, doorkeepers, and messengers, and having the ensigns of their magistracies borne before them, as the sword before the strategus, the mace before the orator, a mace with the seal before the commissioners of the chancery, the like with the purse before the commissioners of the treasury, and a silver wand, like those in use with the universities, before each of the censors, being chancellors of the same. These, with the knights, in all 300, assemble in the house or hall of the Senate.

The house or hall of the Senate being situated in the Pantheon or palace of justice, is a room consisting of a square and a half. In the middle of the lower end is the door, at the upper end hangs a rich state overshadowing the greater part of a large throne, or half-pace of two stages; the first ascended by two steps from the floor, and the second about the middle rising two steps higher. Upon this stand two chairs, in that on the right hand sits the strategus, in the other the orator adorned with scarlet robes, after the fashion that was used by the dukes in the aristocracy. At the right end of the upper stage stand three chairs, in which the three commissioners of the seal are placed; and at the other end sit the three commissioners of the treasury, every one in a robe or habit like that of the earls. Of these magistrates of this upper stage consists the signory. At either end of the lower stage stands a little table, to which the secretaries of the Senate are set with their tufted sleeves in the habit of civil lawyers. To the four steps, whereby the two stages of the throne are ascended, answer four long benches, which successively deriving from every one of the steps, continue their respective height, and extend themselves by the side walls toward the lower end of the house, every bench being divided by numeral characters into the thirty-seven parts or places. Upon the upper benches sit the censors in the robes of barons; the first in the middle of the right hand bench, and the second directly opposite to him on the other side. Upon the rest of the benches sit the knights, who, if they be called to the urns, distributing themselves by the figures, come in equal files, either by the first seat, which consists of the two upper benches on either side; or by the second seat, consisting of the two lower benches on either side, beginning also at the upper or at the lower ends of the same, according to the lot whereby they are called; for which end the benches are open, and ascended at either end with easy

stairs and large passages.

The rest of the ballot is conformable to that of the tribe; the censors of the house sitting at the side urn, and the youngest magistrate of the signory at the middle, the urns being placed before the throne, and prepared according to the number of the magistrates to be at that time chosen by the rules already given to the censors of the tribes. But before the benches of the knights on either side stands one being shorter, and at the upper end of this sit the two tribunes of the horse. At the upper end of the other the two tribunes of the foot in their arms, the rest of the benches being covered by the judges of the land in their robes. But these magistrates have no suffrage, nor the tribunes, though they derive their presence in the Senate from the Romans, nor the judges, though they derive theirs from the ancient Senate of Oceana. Every Monday this assembly sits of course; at other times, if there be occasion, any magistrate of the house, by giving order for the bell, or by his lictor or ensign-bearer, calls a senate. And every magistrate or knight during his session has the title, place, and honor of a duke, earl, baron, or knight respectively And every one that has borne the same magistracy by his third session, has his respective place and title during the term of his life, which is all the honor conferred by this commonwealth, except upon the master of the ceremonies, the master of the horse, and the king of the heralds, who are knights by their places. And thus you have the face of the Senate, in which there is scarce any feature that is not Roman or Venetian; nor do the horns of the crescent extend themselves much unlike those of the Sanhedrim, on either hand of the prince, and of the father of that Senate. But upon beauty, in which every man has his fancy, we will not otherwise philosophize than to remember that there is something more than decency in the robe of a judge, that would not be well spared from the bench; and that the gravest magistrate to whom you can commit the sword of justice, will find a quickness in the spurs of honor, which, if they be not laid to virtue, will lay themselves to that which may rout a commonwealth.

To come from the face of the Senate to the constitution and use of the parts: it is contained in the peculiar orders. And the orders which are peculiar to the Senate, are either of election or instruction.

Elections in the Senate are of three sorts: annual, biennial, and extraordinary.

Annual elections are performed by the schedule called the tropic; and the tropic consists of two parts: the one containing the magistrates, and the other the councils to be yearly elected. The schedule or tropic of the magistrates is as follows in--

The fifteenth order requiring, “That upon every Monday next ensuing the last of March, the knights of the annual galaxies taking their places in the Senate, be called the third region of the same; and that the house having dismissed the first region, and received the third, proceed to election of the magistrates contained in the first part of the tropic, by the ensuing schedule:

The lord strategus, The lord orator, the first censor, The second censor,

Annual magistrates,

The third commissioner of the seal, The third commissioner of the Treasury,

Triennal magistrates.

“The annual magistrates (provided that no one man bears above one of those honors during the term of one session) may be elected out of any region. But the triennial magistrates may not be elected out of any other than the third region only, lest the term of their session expire before that of their honor; and (it being unlawful for a man to bear magistracy any longer than he is thereto qualified by the election of the people) cause a fraction in the rotation of this commonwealth.

“The strategus is first president of the Senate, and general of the army, if it be commanded to march; in which case there shall be a second strategus elected to be first president of the Senate, and general of the second army, and if this also be commanded to march, a third strategus shill be chosen, and so on, as long as the commonwealth sends forth armies.

“The lord orator is the second and more peculiar president of the Senate to whom it appertains to keep the house to orders.

“The censors, whereof the first, by consequence of his election, is chancellor of the University of Clio, and the second of that of Calliope, are presidents of the Council for Religion and magistrates, to whom it belongs to keep the house to the order of the ballot. They are also inquisitors into the ways and means of acquiring magistracy, and have power to punish indirect proceedings in the same, by removing a knight or magistrate out of the house, under appeal to the Senate.

“The commissioners of the seal being three, whereof the third is annually chosen out of the third region, are judges in chancery.

“The commissioners of the Treasury being three, whereof the third is annually chosen out of the third region, are judges in the exchequer, and every magistrate of this schedule has right to propose to the Senate.

“But the strategus with the six commissioners is the signory of this commonwealth, having right of session and suffrage in every council of the Senate, and power either jointly or severally to propose in all or any of them.”

I have little in this order to observe and prove but that the strategus is the same honor both in name and thing that was borne, among others, by Philopemen and Aratus in the Commonwealth of the Achaeans; the like having been in use also with the AEtolians. The orator, called otherwise the speaker, is, with small alteration, the same that had been of former use in this nation. These two, if you will, may be compared to the consuls in Rome, or the suffetes in Carthage, for their magistracy is scarce different.

The censors derive their power of removing a senator from those of Rome, the government of the ballot from those of Venice, and that of animadversion upon the ambitious, or canvass for magistracy, from both.

The signory, with the whole right and use of that magistracy to be hereafter more fully explained, is almost purely Venetian.

The second part of the tropic is directed by--

The sixteenth order" Whereby the constitution of the councils being four; that is to say, the Council of State, the Council of War, the Council of Religion, and the Council of Trade, is rendered conformable in their revolutions to that of the Senate. As: First, by the annual election of five knights out of the first region of the Senate into the Council of State, consisting of fifteen knights, five in every region. Secondly, by the annual election of three knights out of the third region of the Council of State, to be proposed by the provosts, and elected by that council, into the Council of War, consisting of nine knights, three in every region, not excluded by this election from remaining members also of the Council of State. The four tribunes of the people have right of session and suffrage in the Council of War. Thirdly, by the annual election of four knights out of the third region of the Senate into the Council of Religion, consisting of twelve knights, four in every region; of this council the censors are presidents. Fourthly, by the annual election of four knights out of the third region of the Senate into the Council of Trade, consisting of twelve knights, four in every region. And each region, in every one of these councils thus constituted, shall weekly and interchangeably elect one provost whose magistracy shall continue for one week; nor shall he be re-elected into the same till every knight of that region in the same council has once borne the same magistracy. And the provosts being one in every region, three in every council, and twelve in all, beside their other capacities, shall assemble and be a council, or rather an Academy apart, to certain ends and purposes to be hereafter further explained with those of the rest of the councils."

This order is of no other use than the frame and turn of the councils, and yet of no small one; for in motion consists life, and the motion of a commonwealth will never be current unless it be circular. Men that, like my Lord Epimonus, not enduring the resemblance of this kind of government to orbs and spheres, fall on physicking and purging it, do no more than is necessary; for if it be not in rotation both as to persons and things, it will be very sick. The people of Rome, as to persons, if they had not been taken up by the wheel of magistracy, had overturned the chariot of the Senate. And those of Lacedaemon, as to things, had not been so quiet when the Senate trashed their business, by encroaching upon the result, if by the institution of the ephors they had not brought it about again. So that if you allow not a commonwealth her rotation, in which consists her equality, you reduce her to a party, and then it is necessary that you be physicians indeed, or rather farriers; for you will have strong patients, and such as must be haltered and cast, or yourselves may need bone-setters. Wherefore the councils of this commonwealth, both in regard of their elections, and, as will be shown, of their affairs, are uniform with the Senate in their revolutions; not as whirlpits to swallow, but to bite, and with the screws of their rotation to hold and turn a business (like the vice of a smith) to the hand of the workman. Without engines of which nature it is not possible for the Senate, much less for the people, to be perfect artificers in a political capacity. But I shall not hold you longer from--

The seventeenth order, "Directing biennial elections, or the constitution of the orb of ambassador-in-ordinary, consisting of four residences, the revolution whereof is performed in eight years, and preserved through the election of one ambassador in two years by the ballot of the Senate to repair to the Court of France, and reside there for the term of two years; and the term of two years being expired, to remove

from thence to the Court of Spain, there to continue for the space of two years, and thence to remove to the State of Venice, and after two years' residence in that city to conclude with his residence at Constantinople for a like term of time, and so to return. A knight of the Senate, or a deputy of the prerogative, may not be elected ambassador-in-ordinary, because a knight or deputy so chosen must either lose his session, which would cause an unevenness in the motion of this commonwealth, or accumulate magistracy, which agrees not with equality of the same. Nor may any man be elected into this capacity that is above five-and-thirty years of age, lest the commonwealth lose the charge of his education, by being deprived at his return of the fruit of it, or else enjoy it not long through the defects of nature."

This order is the perspective of the commonwealth, whereby she foresees danger; or the traffic, whereby she receives every two years the return of a statesman enriched with eight years' experience from the prime marts of negotiation in Europe. And so much for the elections in the Senate that are ordinary; such as are extraordinary follow in--

The eighteenth order, "Appointing all elections upon emergent occasions, except that of the dictator, to be made by the scrutiny, or that kind of election whereby a council comes to be a fifth order of electors. For example, if there be occasion of an ambassador-extraordinary, the provosts of the Council of State, or any two of them, shall propose to the same, till one competitor be chosen by that council; and the council having chosen a competitor, shall bring his name into the Senate, which in the usual way shall choose four more competitors to the same magistracy; and put them, with the competitor of the council, to the ballot of the house, by which he of the five that is chosen is said to be elected by the scrutiny of the Council of State. A vice-admiral, a polemarch, or field officer, shall be elected after the same manner, by the scrutiny of the Council of War. A judge or sergeant-at-law, by the scrutiny of the commissioners of the seal. A baron, or considerable officer of the Exchequer, by the scrutiny of the commissioners of the Treasury: Men in magistracy, or out of it, are equally capable of election by the scrutiny; but a magistrate or officer elected by the scrutiny to a military employment, if he be neither a knight of the Senate nor a deputy of the prerogative, ought to have his office confirmed by the prerogative, because the militia in a commonwealth, where the people are sovereign, is not lawful to be touched injussu populi.

The Romans were so curious that, though their consuls were elected in the centuriate assemblies, they might not touch the militia, except they were confirmed in the parochial assemblies; for a magistrate not receiving his power from the people, takes it from them, and to take away their power is to take away their liberty. As to the election by the scrutiny, it is easily perceived to be Venetian, there being no such way to take in the knowledge; which in all reason must be best in every council of such men as are most fit for their turns, and yet to keep them from the bias of particular affection or interest under that pretence; for the cause why the great Council in Venice scarce ever elects any other than the name that is brought in by the scrutiny, is very probable to be, that they may... This election is the last of those appertaining to the Senate. The councils being chosen by the orders already shown, it

remains that we come to those whereby they are instructed and the orders of instruction to the councils are two: the first for the matter whereupon they are to proceed, and the second for the manner of their proceeding. The matter of the councils is distributed to them by--

The nineteenth order “Distributing to every council such businesses as are properly to belong to their cognizance, whereof some they shall receive and determine, and others they shall receive, prepare, and introduce into the house: as, first,

“The Council of State is to receive all addresses, intelligences, and letters of negotiation; to give audience to ambassadors sent to, and to draw up instructions for such as shall be sent by, this commonwealth; to receive propositions from, and hold intelligence with, the provincial councils; to consider upon all laws to be enacted, amended, or repealed, and upon all levies of men or money, war or peace, leagues or associations to be made by this commonwealth, so far forth as is conducible to the orderly preparation of the same to be introduced by them into the Senate; provided, that all such affairs, as otherwise appertaining to the Council of State, are, for the good of the commonwealth, to be carried with greater secrecy, be managed by the Council of War, with power to receive and send forth agents, spies, emissaries, intelligencers, frigots, and to manage affairs of that nature, if it be necessary without communication to the Senate, till such time as it may be had without detriment to the business. But they shall have no power to engage the commonwealth in a war without the consent of the Senate and the people. It appertains also to this council to take charge of the fleet as admiral, and of all storehouses, armories, arsenals, and magazines appertaining to this commonwealth. They shall keep a diligent record of the military expeditions from time to time reported by him that was strategus or general, or one of the polemarchs in that action; or at least so far as the experience of such commanders may tend to the improvement of the military discipline, which they shall digest and introduce into the Senate; and if the Senate shall thereupon frame any article, they shall see that it be observed, in the musters or education of the youth. And whereas the Council of War is the sentinel or scout of this commonwealth, if any person or persons shall go about to introduce debate into any popular assembly of the same, or otherwise to alter the present government, or strike at the root of it, they shall apprehend, or cause to be apprehended, seized, imprisoned, and examine, arraign, acquit, or condemn, and cause to be executed any such person or persons, by their proper power and authority and without appeal.

“The Council of Religion, as the arbiter of this commonwealth in cases of conscience more peculiarly appertaining to religion, Christian charity, and a pious life, shall have the care of the national religion, and the protection of the liberty of conscience with the cognizance of all causes relating to either of them. And first as to the national religion: they shall cause all places or preferments of the best revenue in either of the universities to be conferred upon no other than such of the most learned and pious men as have dedicated themselves to the study of theology. They shall also take a special care that, by such augmentations as be or shall hereafter be appointed by the Senate, every benefice in this nation be improved at least to the value of £100

a year. And to the end that there be no interest at all, whereby the divines or teachers of the national religion may be corrupted, or corrupt religion, they shall be capable of no other kind of employment or preferment in this commonwealth. And whereas a directory for the administration of the national religion is to be prepared by this council, they shall in this and other debates of this nature proceed in manner following: a question arising in matter of religion shall be put and stated by the council in writing, which writing the censors shall send by their beadles (being proctors chosen to attend them) each to the university whereof he is chancellor, and the vice-chancellor of the same receiving the writing, shall call a convocation of all the divines of that university being above forty years of age. And the universities, upon a point so proposed, shall have no manner of intelligence or correspondence one with another, till their debates be ended, and they have made return of their answers to the Council of Religion by two or three of their own members, that they may clear their sense, if any doubt should arise, to the council, which done, they shall return, and the council, having received such information, shall proceed according to their own judgments, in the preparation of the whole matter for the Senate: that so the interest of the learned being removed, there may be a right application of reason to Scripture, which is the foundation of the national religion.

“Secondly, this council, as to the protection of the liberty of conscience, shall suffer no coercive power in the matter of religion to be exercised in this nation; the teachers of the natural religion being no other than such as voluntarily undertake that calling, and their auditors or hearers no other than are also voluntary. Nor shall any gathered congregation be molested or interrupted in their way of worship (being neither Jewish nor idolatrous), but vigilantly and vigorously protected and defended in the enjoyment, practice, and profession of the same. And if there be officers or auditors appointed by any such congregation for the introduction of causes into the Council of Religion, all such causes so introduced shall be received, heard, and determined by the same, with recourse had, if need be, to the Senate.

“Thirdly, every petition addressed to the Senate, except that of a tribe, shall be received, examined, and debated by this council; and such only as they, upon such examination and debate had, shall think fit, may be introduced into the Senate.

“The Council of Trade being the vena porta of this nation, shall hereafter receive instructions more at large. For the present, their experience, attaining to a right understanding of those trades and mysteries that feed the veins of this commonwealth, and a true distinction of them from those that suck or exhaust the same, they shall acquaint the Senate with the conveniences and inconveniences, to the end that encouragement may be applied to the one, and remedy to the other.

“The Academy of the provosts, being the affability of the commonwealth, shall assemble every day toward the evening in a fair room, having certain withdrawing-rooms thereto belonging; and all sorts of company that will repair thither for conversation or discourse, so it be upon matters of government, news, or intelligence, or to propose anything to the councils, shall be freely and affably received in the outer chamber, and heard in the way of civil conversation, which is to be managed without any other awe or ceremony than is thereto usually appertaining,

to the end that every man may be free, and that what is proposed by one, may be argued or discoursed by the rest, except the matter be of secrecy; in which case the provosts, or some of them, shall take such as desire audience into one of the withdrawing-rooms. And the provosts are to give their minds that this academy be so governed, adorned, and preserved, as may be most attractive to men of parts and good affections to the commonwealth, for the excellency of the conversation.

“Furthermore, if any man, not being able or willing to come in person, has any advice to give which he judges may be for the good of the commonwealth, he may write his mind to the Academy of the provosts, in a letter signed or not signed, which letter shall be left with the doorkeeper of the Academy. Nor shall any person delivering such a letter be seized, molested, or detained, though it should prove to be a libel. But the letters so delivered shall be presented to the provosts; and in case they be so many that they cannot well be perused by the provosts themselves, they shall distribute them as they please to be read by the gentlemen of the Academy, who, finding anything in them material, will find matter of discourse; or if they happen upon a business that requires privacy, return it with a note upon it to a provost. And the provosts by the secretaries attending shall cause such notes out of discourses or letters to be taken as they please, to the end that they may propose, as occasion serves, what any two of them shall think fit out of their notes so taken to their respective councils; to the end that not only the ear of the commonwealth be open to all, but that men of such education being in her eve, she may upon emergent elections or occasions be always provided of her choice of fit persons.

“Every council being adorned with a state for the signory, shall be attended by two secretaries, two doorkeepers, and two messengers-in-ordinary, and have power to command more upon emergencies, as occasion requires. And the Academy shall be attended with two secretaries, two messengers, and two doorkeepers; this with the other councils being provided with their further conveniences at the charge of the State.

“But whereas it is incident to commonwealths, upon emergencies requiring extraordinary speed or secrecy, either through their natural delays or unnatural haste, to incur equal danger, while holding to the slow pace of their orders, they come not in time to defend themselves from some sudden blow; or breaking them for the greater speed, they but haste to their own destruction; if the Senate shall at any time make election of nine knights-extraordinary, to be added to the Council of War, as a juncta for the term of three months, the Council of War with the juncta so added, is for the term of the same Dictator of Oceana, having power to levy men and money, to make war and peace, as also to enact laws, which shall be good for the space of one year (if they be not sooner repealed by the Senate and the people) and for no longer time, except they be confirmed by the Senate and the people. And the whole administration of the commonwealth for the term of the said three months shall be in the Dictator, provided that the Dictator shall have no power to do anything that tends not to his proper end and institution, but all to the preservation of the commonwealth as it is established, and for the sudden restitution of the same to the natural channel and common course of government. And all acts, orders, decrees, or laws of the

Council of War with the junota being thus created, shall be signed,

“DICTATOR OCEANAE.”

This order of instructions to the councils being (as in a matter of that nature is requisite) very large, I have used my best skill to abbreviate it in such manner as might show no more of it than is necessary to the understanding of the whole, though as to the parts, or further duties of the councils, I have omitted many things of singular use in a commonwealth. But it was discoursed at the council by the Archon in this manner:

“MY LORDS, THE LEGISLATORS:

“Your councils, except the Dictator only, are proper and native springs and sources, you see, which (hanging a few sticks and straws, that, as less considerable, would otherwise be more troublesome, upon the banks of their peculiar channels) derive the full stream of business into the Senate, so pure, and so far from the possibility of being troubled or stained (as will Undeniably appear by the course contained in the ensuing order) with any kind of private interest or partiality, that it shall never be possible for any assembly hearkening to the advice or information of this or that worthy member (either instructed upon his pillow, or while he was making himself ready, or by the petition or ticket which he received at the door) to have half the security in his faith, or advantage by his wisdom; such a Senate or council being, through the uncertainty of the winds, like a wave of the sea. Nor shall it otherwise mend the matter by flowing up into dry ditches, or referring businesses to be better examined by committees, than to go further about with it to less purpose; if it does not ebb back again with the more mud in it. For in a case referred to an occasional committee, of which any member that is desirous may get himself named, and to which nobody will come but either for the sake of his friend or his own interest; it fares little better as to the information of the Senate, than if it had been referred to the parties. Wherefore the Athenians being distributed into four tribes, out of which by equal numbers they annually chose 400 men, called the Senate of the Bean, because the ballot at their election was performed by the use of beans, divided them by fifties into eight parts. And every fifty in their turn, for one-eighth part of the year, was a council apart called the Prytans.

“The Prytans in their distinct council receiving all comers, and giving ear to every man that had anything to propose concerning the commonwealth, had power to debate and prepare all the businesses that were to be introduced into the Senate. The Achaeans had ten selected magistrates called the demiurgs, constituting a council apart called the synarchy, which, with the strategus, prepared all the business that was introduced into their Senate. But both the Senate of the Athenians, and that of the Achaeans, would have wondered if a man had told them that they were to receive all comers and discourses, to the end that they might refer them afterward to the Prytans or the synarchy, much less to an occasional committee, exposed to the catch that catch may of the parties interested. And yet Venice in this, as in most of her

orders, excels them all by the constitution of her councils, that of the College, and the other of the Dieci, or Council of Ten. The course of the College is exactly described in the ensuing order: and for that of the Dieci, it so little differs from what it has bestowed upon Our Dictator, that I need not make any particular description of it. But to dictatorian power in general, and the use of it (because it must needs be of difficult digestion to such as, puking still at ancient prudence, show themselves to be in the nursery of mother-wit); it is no less than necessary to say something. And, first, in a commonwealth that is not wrought up, or perfected, this power will be of very frequent, if not continual, use; wherefore it is said more than once, upon defects of the government, in the book of Judges, 'that in those days there was no king in Israel.' Nor has the translator, though for 'no king, he should have said 'no judge,' abused you so much; seeing that the Dictator (and such was the Judge of Israel) or the dictatorian power being in a single person, so little differs from monarchy, which followed in that, that from the same cause there has been no other effect in any commonwealth: as in Rome was manifest by Sylla and Caesar, who to make themselves absolute or sovereign, had no more to do than to prolong their magistracy, for the dictatorian power was reputed divine, and therefore irresistible.

"Nevertheless, so it is, that without this power, which is so dangerous, and subject to introduce monarchy, a commonwealth cannot be safe from falling into the like dissolution; unless you have an expedient in this case of your own, and bound up by your providence from recoiling. Expedients in some cases you must not only have, but be beholden for them to such whom you must trust at a pinch, when you have not leisure to stand with them for security; which will be a thousand times more dangerous. And there can never be a commonwealth otherwise than by the order in debate wrought up to that perfection; but this necessity must sometimes happen in regard of her natural slowness and openness, and the suddenness of assaults that may be made upon her, as also the secrecy which in some cases may be of absolute necessity to her affairs. Whence Machiavel concludes it positively, that a commonwealth unprovided of such a refuge, must fall to ruin; for her course is either broken by the blow in one of those cases, or by herself, while it startles her out of her orders. And indeed a commonwealth is like a greyhound, which, having once coasted, will never after run fair, but grow slothful; and when it comes to make a common practice of taking nearer ways than its orders, it is dissolved: for the being of a commonwealth consists in its orders. Wherefore at this list you will be exposed to danger, if you have not provided beforehand for the safety of your resort in the like cases: nor is it sufficient that your resort be safe, unless it be as secret and quick; for if it be slow or open, your former inconveniences are not remedied.

"Now for our imitation in this part, there is nothing in experience like that of the Council of Ten in Venice; the benefit whereof would be too long to be shown in the whole piece, and therefore I shall take but a pattern out of Janotti. In the war, says he, which the Venetians had with Florence in Casentin, the Florentines, finding a necessity in their affairs far from any other inclination in themselves to ask their peace, sent ambassadors about it to Venice, where they were no sooner heard, than the bargain was struck up by the Council of Ten: and everybody admiring (seeing this commonwealth stood upon the higher ground) what should be the reason of such

haste, the council upon the return of the ambassadors imparted letters to the Senate, whereby it appeared that the Turks had newly launched a formidable fleet against their State, which, had it been understood by the Florentines, it was well enough known they would have made no peace. Wherefore the service of the Ten was highly applauded by the Senate, and celebrated by the Venetians. Whereby may appear not only in part what use there is of dictatorian power in that government, but that it is assumed at the discretion of that Council; whereas in this of Oceana it is not otherwise intrusted than when the Senate, in the election of nine knights-extraordinary, gives at once the commission, and takes security in a balance, added to the Council of War, though securer before by the tribunes of the people than that of Venice, which yet never incurred jealousy; for if the younger nobility have been often girding at it, that happened not so much through the apprehension of danger in it to the commonwealth, as through the awe of it upon themselves. Wherefore the graver have doubtlessly shown their prudence in the law whereby the magistracy of these councillors being to last till' their successors be created, the council is established."

The instructions of the councils for their matter being shown, it remains that I show the instructions for the manner of their proceeding, as they follow in--

The twentieth order, "Containing the method of debates to be observed by the magistrates and the councils successively in order to a decree of the Senate.

"The magistrates of the signory, as councillors of this commonwealth, shall take into their consideration all matters of state or of government; and, having right to propose in any council, may, any one or more of them, propose what business he or they please in that council to which it most properly belongs. And, that the councils may be held to their duty, the said magistrates are superintendents and inspectors of the same, with right to propose to the Senate.

"The censors have equal power with these magistrates, but in relation to the Council of Religion only.

"Any two of the three provosts in every council may propose to, and are the more peculiar proposers of, the same council; to the end that there be not only an inspection and superintendency of business in general, but that every work be also committed to a peculiar hand.

"Any one or more of the magistrates, or any two of the provosts respectively having proposed, the council shall debate the business so proposed, to which they of the third region that are willing shall speak first in their order; they of the second, next; and they of the first, last; and the opinions of those that proposed or spoke, as they shall be thought the most considerable by the council, shall be taken by the secretary of the same in writing, and each of them signed with the name of the author.

"The opinions being thus prepared, any magistrate of the signory, the censors, or any two of the provosts of that council, upon this occasion may assemble the Senate.

“The Senate being assembled, the opinions (for example, if they be four) shall be read in their order, that is, according to the order or dignity of the magistrates or councillors by which they were signed. And being read, if any of the council introducing them will speak, they, as best acquainted with the business, shall have precedence; and after them the senators shall speak according to their regions, beginning by the third first, and so continuing till every man that will has spoken; and when the opinions have been sufficiently debated, they shall be put all together to the ballot after this manner:

“Four secretaries, carrying each of them one of the opinions in one hand, with a white box in the other, and each following the other, according to the order of the opinions, shall present his box, naming the author of his opinion to every senator; and one secretary or ballotin with a green box shall follow the four white ones; and one secretary or ballotin with a red box shall follow the green one; and every senator shall put one ball into some one of these six boxes. The suffrage being gathered and opened before the signory, if the red box or non-sincere had above half the suffrages, the opinions shall be all cast out, for the major part of the house is not clear in the business. If no one of the four opinions had above half the suffrages in the affirmative, that which had fewest shall be cast out, and the other three shall be balloted again. If no one of the three had above half, that which had fewest shall be cast out, and the other two shall ballot again. If neither of the two had above half, that which had fewest shall be cast out, and the remaining opinion shall be balloted again. And if the remaining opinion has not above half, it shall also be cast out. But the first of the opinions that arrives at most above half in the affirmative, is the decree of the Senate. The opinions being all of them cast out by the non-sincere, may be reviewed, if occasion permits, by the council, and brought in again. If they be cast out by the negative, the case being of advice only; the house approves not, and there is an end of it: the case being necessary, and admitting delay, the council is to think again upon the business, and to bring in new opinions; but the case being necessary, and not admitting delay, the Senate immediately electing the juncta shall create the Dictator. ‘And let the Dictator,’ as the Roman saying is, ‘take care that the commonwealth receives no harm.’”

This in case the debate concludes not in a decree. But if a decree be passed, it is either in matter of state or government according to law enacted already, and then it is good without going any further, or it is in matter of law to be enacted, repealed, or amended; and then the decree of the Senate, especially if it be for a war, or for a levy of men or money, is invalid, without the result of the commonwealth, which is in the prerogative tribe, or representative of the people.

“The Senate having prepared a decree to be proposed to the people, shall appoint their proposers; and no other may propose for the Senate to the people but the magistrates of the house; that is to say, the three commissioners of the seal, or any two of them; the three of the Treasury, or any two of them; or the two censors.

“The Senate having appointed their proposers, shall require of the tribunes a muster of the people at a set time and place: and the tribunes or any two of them having mustered the people accordingly, the proposers shall propose the sense or

decree of the Senate by clauses to the people. And that which is proposed by the authority of the Senate, and resolved by the command of the people, is the law of Oceana." To this order, implicitly containing the sum very near of the whole civil part of the commonwealth, my Lord Archon spoke thus in council:

"MY DEAR LORDS:

"There is a saying, that a man must cut his coat according to his cloth. When I consider what God has allowed or furnished to our present work, I am amazed. You would have a popular government; he has weighed it to you in the present balance, as I may say, to a drachm; you have no more to do but to fix it. For the superstructures of such a government they require a good aristocracy: and you have, or have had a nobility or gentry the best studied, and the best writers, at least next that of Italy, in the whole world; nor have they been inferior, when so exercised, in the leading of armies. But the people are the main body of a commonwealth; show me from the treasuries of the snow (as it is in Job) to the burning zone a people whose shoulder so universally and so exactly fits the corselet. Nevertheless, it were convenient to be well provided with auxiliaries. There is Marpesia, through her fruitfulness, inexhaustible of men, and men through her barrenness not only enured to hardship, but in your arms. It may be said that Venice, excepting only that she takes not in the people, is the most incomparable situation of a commonwealth. You are Venice, taking in your people and your auxiliaries too. My lords, the children of Israel were makers of brick before they were builders of a commonwealth; but our brick is made, our mortar tempered, the cedars of Lebanon are hewed and squared to our hands. Has this been the work of man? Or is it in man to withstand this work? 'Shall he that contends with the Almighty instruct him? He that reproves God, let him answer it.' For our parts, everything is so laid that when we come to have use of it, it is the next at hand; and unless we can conceive that God and nature do anything in vain, there is no more for us to do but to despatch. The piece which we have reached to us in the foregoing orders, is the aristocracy. Athens, as has been shown, was plainly lost through the want of a good aristocracy.

"But the sufficiency of an aristocracy goes demonstrably upon the hand of the nobility or gentry; for that the politics can be mastered without study, or that the people can have leisure to study, is a vain imagination; and what kind of aristocracy divines and lawyers would make, let their incurable running upon their own narrow bias and their perpetual invectives against Machiavel (though in some places justly reprovable, yet the only politician, and incomparable patron of the people) serve for instruction. I will stand no more to the judgment of lawyers and divines in this work, than to that of so many other tradesmen; but if this model chances to wander abroad, I recommend it to the Roman speculativi (the most complete gentlemen of this age) for their censure; or with my Lord Epimonus his leave, send 300 or 400 copies to your agent at Venice to be presented to the magistrates there; and when they have considered them, to be proposed to the debate of the Senate, the most competent judges under heaven, who, though they have great affairs, will not refuse to return you the oracle of their ballot. The councillors of princes I will not trust; they are but

journeymen. The wisdom of these later times in princes' affairs (says Verulamius) is rather fine deliveries and shiftings of dangers when they be near, than solid and grounded courses to keep them off. Their councillors do not derive their proceedings from any sound root of government that may contain the demonstration, and assure the success of them, but are expedient-mongers, givers of themselves to help a lame dog over a stile; else how comes it to pass that the fame of Cardinal Richelieu has been like thunder, whereof we hear the noise, but can make no demonstration of the reason? But to return: if neither the people, nor divines and lawyers, can be the aristocracy of a nation, there remains only the nobility; in which style, to avoid further repetition, I shall understand the gentry also, as the French do by the word noblesse.

"Now to treat of the nobility in such sort as may be less obnoxious to mistake, it will be convenient, and answerable to the present occasion, that I divide my discourse into four parts:

"The first, treating of nobility, and the kinds of it;

"The second, of their capacity of the Senate;

"The third, of the divers kinds of senates;

"The fourth, of the Senate, according to the foregoing orders.

"Nobility may be defined divers ways; for it is either ancient riches, or ancient virtue, or a title conferred by a prince or a commonwealth.

"Nobility of the first kind may be subdivided into two others, such as hold an overbalance in dominion or property to the whole people, or such as hold not an overbalance, in the former case, a nobility (such was the Gothic, of which sufficient has been spoken) is incompatible with popular government; for to popular government it is essential that power should be in the people, but the overbalance of a nobility in dominion draws the power to themselves. Wherefore in this sense it is that Machiavel is to be understood, where he says, that these are pernicious in a commonwealth; and of France, Spain, and Italy, that they are nations which for this cause are the corruption of the world: for otherwise nobility may, according to his definition (which is, 'that they are such as live upon their own revenues in plenty, without engagement either to the tilling of their lands, or other work for their livelihood '), hold an underbalance to the people; in which case they are not only safe, but necessary to the natural mixture of a well-ordered commonwealth.

"For how else can you have a commonwealth that is not altogether mechanic? or what comparison is there of such commonwealths as are, or come nearest to mechanic--for example, Athens, Switzerland, Holland, to Lacedaemon, Rome, and Venice, plumed with their aristocracies? Your mechanics, till they have first feathered their nests, like the fowls of the air whose whole employment is to seek their food, are so busied in their private concernments that they have neither leisure to study the public, nor are safely to be trusted with it, because a man is not faithfully embarked in this kind of ship, if he has no share in the freight. But if his share be such as gives him leisure by his private advantage to reflect upon that of the public, what other

name is there for this sort of men, being a leur aise, but (as Machiavel you see calls them) nobility? Especially when their families come to be such as are noted for their services done to the commonwealth, and so take into their ancient riches ancient virtue, which is the second definition of nobility, but such a one as is scarce possible in nature without the former. ‘For as the baggage,’ says Verulamius, ‘is to an army, so are riches to virtue; they cannot be spared nor left behind, though they be impediments, such as not only hinder the march, but sometimes through the care of them lose or disturb the victory.’ Of this latter sort is the nobility of Oceana; the best of all others because they, having no stamp whence to derive their price, can have it no otherwise than by their intrinsic value. The third definition of nobility, is a title, honor, or distinction from the people, conferred or allowed by the prince or the commonwealth. And this may be two ways, either without any stamp or privilege, as in Oceana; or with such privileges as are inconsiderable, as in Athens after the battle of Plataea, whence the nobility had no right, as such, but to religious offices, or inspection of the public games, to which they were also to be elected by the people; or with privileges, and those considerable ones, as the nobility in Athens before the battle of Plataea, and the patricians in Rome each of which had right, or claimed it, to the Senate and all the magistracies; wherein for some time they only by their stamp were current.

“But to begin higher, and to speak more at large of nobility in their several capacities of the Senate. The phylarchs, or princes of the tribes of Israel, were the most renowned, or, as the Latin, the most noble of the congregation, whereof by hereditary right they had the leading and judging. The patriarchs, or princes of families, according as they declared their pedigrees, had the like right as to their families; but neither in these nor the former was there any hereditary right to the Sanhedrim: though there be little question but the wise men and understanding, and known among their tribes, which the people took or elected into those or other magistracies, and whom Moses made rulers over them, must have been of these, seeing they could not choose but be the most known among the tribes, and were likeliest by the advantages of education to be the most wise and understanding.

“Solon having found the Athenians neither locally nor genealogically, but by their different ways of life, divided into four tribes--that is, into the soldiery, the tradesmen, the husbandmen, and the goatherds--instituted a new distribution of them, according to the sense or valuation of their estates, into four classes: the first, second, and third consisting of such as were proprietors in land, distinguished by the rate of their freeholds, with that stamp upon them, which making them capable of adding honor to their riches, that is to say, of the Senate, and all the magistracies, excluded the fourth, being the body of the people, and far greater in number than the former three, from all other right, as to those capacities, except the election of these, who by this means became an hereditary aristocracy or senatorian order of nobility. This was that course which came afterward to be the destruction of Rome, and had now ruined Athens. The nobility, according to the inevitable nature of such a one, having laid the plot how to divest the people of the result, and so to draw the whole power of the commonwealth to themselves; which in all likelihood they had done, if the people, coming by mere chance to be victorious in the battle of Plataea, and famous for

defending Greece against the Persians, had not returned with such courage as irresistibly broke the classes, to which of old they had borne a white tooth, brought the nobility to equal terms, and the Senate with the magistracies to be common to both; the magistracies by suffrage, and the Senate (which was the mischief of it, as I shall show anon in that constitution) by lot only." The Lacedaemonians were in the manner, and for the same cause with the Venetians at this day, no other than a nobility even according to the definition given of nobility by Machiavel; for they neither exercised any trade, nor labored their lands or lots, which was done by their helots: wherefore some nobility may be far from pernicious in a commonwealth by Machiavel's own testimony, who is an admirer of this, though the servants thereof were more in number than the citizens. To these servants I hold the answer of Lycurgus--when he bade him who asked why he did not admit the people to the government of his commonwealth, to go home and admit his servants to the government of his family-to relate: for neither were the Lacedaemonians servants, nor, further, capable of the government, unless, whereas the congregation had the result, he should have given them the debate also; every one of these that attained to sixty years of age, and the major vote of the congregation, being equally capable of the Senate.

"The nobility of Rome, and their capacity of the Senate, I have already described by that of Athens before the battle of Plataea, saving only that the Athenian was never eligible into the Senate without the suffrage of the people till the introduction of the lot, but the Roman nobility ever: for the patricians were elected into the Senate by the kings; by the consuls, or the censors, or if a plebeian happened to be conscribed, he and his posterity became patricians. Nor, though the people had many disputes with the nobility, did this ever come in controversy, which, if there had been nothing else, might in my judgment have been enough to overturn that commonwealth.

"The Venetian nobility, but that they are richer, and not military, resemble at all other points the Lacedaemonian, as I have already shown. These Machiavel excepts from his rule, by saying that their estates are rather personal than real, or of any great revenue in land, which comes to our account, and shows that a nobility or party of the nobility, not overbalancing in dominion, is not dangerous, but of necessary use in every commonwealth, provided it be rightly ordered; for if it be so ordered as was that of Rome, though they do not overbalance at the beginning, as they did not there, it will not be long ere they do, as is clear both in reason and experience toward the latter end. That the nobility only be capable of the Senate is there only not dangerous, where there be no other citizens, as in this government and that of Lacedaemon.

"The nobility of Holland and Switzerland, though but few, have privileges not only distinct from the people, but so great that in some sovereignties they have a negative voice; an example which I am far from commending, being such as (if those governments were not cantonized, divided, and subdivided into many petty sovereignties that balance one another, and in which the nobility, except they had a prince at the head of them, can never join to make work) would be the most

dangerous that ever was, but the Gothic, of which it favors. For in ancient commonwealths you shall never find a nobility to have had a negative but by the poll, which, the people being far more in number, came to nothing; whereas these have it, be they never so few by their stamp or order.

“Ours of Oceana have nothing else but their education and their leisure for the public, furnished by their ease and competent riches: and their intrinsic value, which, according as it comes to hold weight in the judgment or suffrage of the people, is their only way to honor and preferment. Wherefore I would have your lordships to look upon your children as such, who, if they come to shake off some part of their baggage, shall make the more quick and glorious march; for it was nothing else but the baggage, sordidly plundered by the nobility of Rome, that lost the victory of the whole world in the midst of her triumph.

“Having followed the nobility thus close, they bring us, according to their natural course and divers kinds, to the divers constitutions of the Senate.

“That of Israel (as was shown by my right noble Lord Phosphorus de Auge, in the opening of the commonwealth) consisted of seventy elders, elected at first by the people. But whereas they were for life, they ever after (though without any divine precept for it) substituted their successors by ordination, which ceremony was most usually performed by imposition of hands; and by this means a commonwealth of as popular institution as can be found became, as it is accounted by Josephus, aristocratical. From this ordination derives that which was introduced by the Apostles into the Christian Church; for which cause I think it is that the Presbyterians would have the government of the Church to be aristocratical, though the Apostles, to the end, as I conceive, that they might give no occasion to such a mistake, but show that they intended the government of the Church to be popular, ordained elders, as has been shown, by the holding up of hands (or free suffrage of the people) in every congregation or ecclesia: for that is the word in the original, being borrowed from the civil congregations of the people in Athens and Lacedaemon, which were so called; and the word for holding up of hands in the text is also the very same, which signified the suffrage of the people in Athens, chirotonante; for the suffrage of the Athenians was given per chirotonian, says Emmius.

“The Council of the Bean (as was shown by my Lord Navarchus de Paralo in his full discourse), being the proposing Senate of Athens (for that of the Areopagites was a judicatory), consisted of 400, some say 500 senators, elected annually, all at once, and by a mere lot without suffrage. Wherefore though the Senate, to correct the temerity of the lot, had power to cast out such as they should judge unworthy of that honor, this related to manners only, and was not sufficient to repair the commonwealth, which by such means became impotent; and forasmuch as her Senate consisted not of the natural aristocracy, which in a commonwealth is the only spur and rein of the people, it was cast headlong by the rashness of her demagogues or grandees into ruin; while her Senate, like the Roman tribunes (who almost always, instead of governing, were rather governed by the multitude), proposed not to the result only, but to the debate also of the people, who were therefore called to the pulpits, where some vomited, and others drank, poison.

“The Senate of Lacedaemon, most truly discovered by my Lord Laco de Scytale, consisted but of thirty for life, whereof the two kings, having but single votes, were hereditary, the rest elected by the free suffrage of the people, but out of such as were sixty years of age. These had the whole debate of the commonwealth in themselves, and proposed to the result only of the people. And now the riddle which I have heretofore found troublesome to unfold, is out; that is to say, why Athens and Lacedaemon, consisting each of the Senate and the people, the one should be held a democracy, and the other an aristocracy, or laudable oligarchy, as it is termed by Isocrates; for that word is not, wherever you meet it, to be branded, Seeing it is used also by Aristotle, Plutarch, and others, sometimes in a good sense. The main difference was that the people in this had the result only, and in that the debate and result, too. But for my part, where the people have the election of the Senate, not bound to a distinct order, and the result, which is the sovereign power, I hold them to have that share in the government (the Senate being not for life) whereof, with the safety of the commonwealth, they are capable in nature, and such a government, for that cause, to be democracy; though I do not deny but in Lacedaemon, the paucity of the senators considered, it might be called oligarchy, in comparison of Athens; or, if we look on their continuance for life, though they had been more, aristocracy.

“The Senate of Rome (whose fame has been heard to thunder in the eloquence of my Lord Dolabella d’Enyo) consisting of 300, was, in regard of the number, less oligarchical than that of Lacedaemon; but more in regard of the patricians, who, having an hereditary capacity of the same, were not elected to that honor by the people; but, being conscribed by the censors, enjoyed it for life. Wherefore these, if they had their wills, would have resolved as well as debated; which set the people at such variance with them as dissolved the commonwealth; whereas if the people had enjoyed the result, that about the agrarian, as well as all other strife, must of necessity have ceased.

“The Senates of Switzerland and Holland (as I have learnt of my Lords Alpester and Glaucus), being bound up (like the sheaf of arrows which the latter gives) by leagues, lie like those in their quivers; but arrows, when they come to be drawn, fly from this way and from that; and I am contented that these concerned us not.

“That of Venice (by the faithful testimony of my most excellent Lord Linceus de Stella) has obliged a world, sufficiently punished by its own blindness and ingratitude, to repent and be wiser: for whereas a commonwealth in which there is no senate, or where the senate is corrupt, cannot stand, the great Council of Venice, like the statue of Nilus, leans upon an urn or waterpot, which pours forth the Senate in so pure and perpetual a stream, as being unable to stagnate, is forever incapable of corruption. The fuller description of this Senate is contained in that of Oceana; and that of Oceana in the foregoing orders. To every one of which, because something has been already said, I shall not speak in particular. But in general, your Senate, and the other assembly, or the prerogative, as I shall show in due place, are perpetual, not as lakes or puddles, but as the rivers of Eden; and are beds made, as you have seen, to receive the whole people, by a due and faithful vicissitude, into their current. They are not, as in the late way, alternate. Alternate life in government is the alternate

death of it.

“This was the Gothic work, whereby the former government (which was not only a ship, but a gust, too) could never open her sails, but in danger to overset herself, neither could make any voyage nor lie safe in her own harbor. The wars of later ages, says Verulamius, seem to be made in the dark, in respect of the glory and honor which reflected on men from the wars in ancient times. Their shipping of this sort Was for voyages; ours dare not launch, nor lies it safe at home. Your Gothic politicians seem to me rather to have invented some new ammunition or gunpowder, in their King and Parliament, than government. For what is become of the princes (a kind of people) in Germany?--blown up. Where are the estates, or the power of the people in France?--blown up. Where is that of the people in Arragon, and the rest of the Spanish kingdoms?--blown up. On the other side, where is the King of Spain’s power in Holland?--blown up. Where is that of the Austrian princes in Switzerland?--blown up. This perpetual peevishness and jealousy, under the alternate empire of the prince and of the people, are obnoxious to every spark. Nor shall any man show a reason that will be holding in prudence, why the people of Oceana have blown up their King, but that their kings did not first blow up them. The rest is discourse for ladies. Wherefore your parliaments are not henceforth to come out of the bag of AEolus, but by your galaxies, to be the perpetual food of the fire of Vesta.

“Your galaxies, which divide the house into so many regions, are three; one of which constituting the third region is annually chosen, but for the term of three years; which causes the house (having at once blossoms, fruit half ripe, and others dropping off in full maturity) to resemble an orange tree, such as is at the same time an education or spring, and a harvest, too; for the people have made a very ill-choice in the man, who is not easily capable of the perfect knowledge in one year of the senatorian orders; which knowledge, allowing him for the first to have been a novice, brings him the second year to practise, and time enough. For at this rate you must always have 200 knowing men in the government. And thus the vicissitude of your senators is not perceivable in the steadiness and perpetuity of your Senate; which, like that of Venice, being always changing, is forever the same. And though other politicians have not so well imitated their patter, there is nothing more obvious in nature, seeing a man who wears the same flesh but a short time, is nevertheless the same man, and of the same genius; and whence is this but from the constancy of nature, in holding a man to her orders? Wherefore keep also to your orders. But this is a mean request; your orders will be worth little if they do not hold you to them, wherefore embark. They are like a ship, if you be once aboard, you do not carry them, but they you; and see how Venice stands to her tackling: you will no more forsake them than you will leap into the sea.

“But they are very many and difficult. O my Lords, what seaman casts away his card because it has four-and-twenty points of the compass? and yet those are very near as many and as difficult as the orders in the whole circumference of your commonwealth. Consider, how have we been tossed with every wind of doctrine, lost by the glib tongues of your demagogues and grandees in our own havens? A company of fiddlers that have disturbed your rest for your groat; £2,000 to one, £3,000 a year

to another, has been nothing. And for what? Is there one of them that yet knows what a commonwealth is? And are you yet afraid of such a government in which these shall not dare to scrape for fear of the statute? Themistocles could not fiddle, but could make of a small city a great commonwealth: these have fiddled, and for your money, till they have brought a great commonwealth to a small city.

“It grieves me, while I consider how, and from what causes, imaginary difficulties will be aggravated, that the foregoing orders are not capable of any greater clearness in discourse or writing; but if a man should make a book, describing every trick and passage, it would fare no otherwise with a game at cards; and this is no more, if a man plays upon the square. ‘There is a great difference,’ says Verulamius, ‘between a cunning man and a wise man (between a demagogue and a legislator), not only in point of honesty, but in point of ability as there be that can pack the cards, and yet cannot play well; so there be some that are good in canvasses and fractions, that are otherwise weak men.’ Allow me but these orders, and let them come with their cards in their sleeves, or pack if they can. ‘Again,’ says he, ‘it is one thing to understand persons, and another to understand matters; for many are perfect in men’s humors that are not greatly capable of the real part of business, which is the constitution of one that has studied men more than books. But there is nothing more hurtful in a State than that cunning men should pass for wise.’ His words are an oracle. As Dionysius, when he could no longer exercise his tyranny among men, turned schoolmaster, that he might exercise it among boys. Allow me but these orders, and your grandees, so well skilled in the baits and palates of men, shall turn rat-catchers.

“And whereas ‘councils (as is discreetly observed by the same author in his time) are at this day, in most places, but familiar meetings (somewhat like the Academy of our provosts), where matters are rather talked on than debated, and run too swift to order an act of council,’ give me my orders, and see if I have not puzzled your demagogues.

“It is not so much my desire to return upon haunts, as theirs that will not be satisfied; wherefore if, notwithstanding what was said of dividing and choosing in our preliminary discourses, men will yet be returning to the question, Why the Senate must be a council apart (though even in Athens, where it was of no other constitution than the popular assembly, the distinction of it from the other was never held less than necessary) this may be added to the former reasons, that if the aristocracy be not for the debate, it is for nothing; but if it be for debate, it must have convenience for it; and what convenience is there for debate in a crowd, where there is nothing but jostling, treading upon one another, and stirring of blood, than which in this case there is nothing more dangerous? Truly, it was not ill said of my Lord Epimonus, that Venice plays her game, as it were, at billiards or nine-holes; and so may your lordships, unless your ribs be so strong that you think better of football: for such sport is debate in a popular assembly as, notwithstanding the distinction of the Senate, was the destruction of Athens.”

This speech concluded the debate which happened at the institution of the Senate. The next assembly is that of the people or prerogative tribe.

The face, or mien, of the prerogative tribe for the arms, the horses, and the discipline, but more especially for the select men, is that of a very noble regiment, or rather of two; the one of horse, divided into three troops (besides that of the provinces, which will be shown hereafter), with their captains, cornets, and two tribunes of the horse at the head of them; the other of foot in three companies (beside that of the provinces), with their captains, ensigns, and two tribunes of the foot at the head of them. The first troop is called the Phoenix, the second the Pelican, and the third the Swallow. The first company the Cypress, the second the Myrtle, and the third the Spray. Of these again (not without a near resemblance of the Roman division of a tribe) the Phoenix and the Cypress constitute the first class, the Pelican and the Myrtle the second, and the Swallow with the Spray the third, renewed every spring by--

The one-and-twentieth order, “Directing, that upon every Monday next ensuing the last of March, the deputies of the annual galaxy arriving at the pavilion in the halo, and electing one captain and one cornet of the Swallow (triennial officers) by and out of the cavalry at the horse urn, according to the rules contained in the ballot of the hundred; and one captain with one ensign of the Spray (triennial officers) by and out of the infantry at the foot urn, after the same way of balloting, constitute and become the third classes of the prerogative tribe.”

Seven deputies are annually returned by every tribe, whereof three are horse and four are foot; and there be fifty tribes: so the Swallow must consist of 150 horse, the Spray of 200 foot. And the rest of the classes being two, each of them in number equal, the whole prerogative (beside the provinces, that is, the knights and deputies of Marpesia and Panopea) must consist of 1,050 deputies. And these troops and companies may as well be called centuries as those of the Romans; for the Romans related not, in so naming theirs, to the number. And whereas they were distributed according to the valuation of their estates, so are these; which, by virtue of the last order, are now accommodated with their triennial officers. But there be others appertaining to this tribe whose election, being of far greater importance, is annual, as follows in

The twenty-second order, “Whereby the first class having elected their triennial officers, and made oath to the old tribunes, that they will neither introduce, cause, nor to their power suffer debate to be introduced into any popular assembly of this government, but to their utmost be aiding and assisting to seize and deliver any person or persons in that way offending, and striking at the root of this commonwealth, to the Council of War, are to proceed with the other two classes of the prerogative tribe to election of the new tribunes, being four annual magistrates, whereof two are to be elected out of the cavalry at the horse urn, and two out of the infantry at the foot urn, according to the common ballot of the tribes. And they may be promiscuously chosen out of any classes, provided that the same person shall not be capable of bearing the tribunitian honor twice in the term of one galaxy. The tribunes thus chosen shall receive the tribe (in reference to the power of mustering and disciplining the same) as commanders-in-chief, and for the rest as magistrates, whose proper function is prescribed by the next order. The tribunes may give leave to

any number of the prerogative, not exceeding 100 at a time, to be absent, so they be not magistrates nor officers, and return within three months. If a magistrate or officer has a necessary occasion, he may also be absent for the space of one month, provided that there be not above three cornets or ensigns, two captains, or one tribune so absent at one time."

To this the Archon spoke at the institution after this manner:

"MY LORDS:

"It is affirmed by Cicero, in his oration for Flaccus, that the commonwealths of Greece were all shaken or ruined by the intemperance of their Comitia, or assemblies of the people. The truth is, if good heed in this point be not taken, a commonwealth will have bad legs. But all the world knows he should have excepted Lacedaemon, where the people, as has been shown by the oracle, had no power at all of debate, nor (till after Lysander, whose avarice opened a gulf that was not long ere it swallowed up his country) came it ever to be exercised by them. Whence that commonwealth stood longest and firmest of any other but this, in our days, of Venice; which, having underlaid herself with the like institution, owes a great, if not the greater, part of her steadiness to the same principle; the great Council, which is with her the people, by the authority of my Lord Epimonus, never speaking a word. Nor shall any commonwealth, where the people in their political capacity is talkative, ever see half the days of one of these, but, being carried away by vainglorious men (that, as Overbury says, void more than they drink), swim down the stream, as did Athens, the most prating of these dames, when that same ranting fellow Alcibiades fell a-demagoguing for the Silician War.

"But whereas debate, by the authority and experience of Lacedaemon and Venice, is not to be committed to the people in a well-ordered government, it may be said that the order specified is but a slight bar in a matter of like danger; for so much as an oath, if there be no recourse upon the breach of it, is a weak tie for such hands as have the sword in them, wherefore what should hinder the people of Oceana, if they happen not to regard an oath from assuming debate, and making themselves as much an anarchy as those of Athens? To which I answer, Take the common sort in a private capacity, and, except they be injured, you shall find them to have a bashfulness in the presence of the better sort, or wiser men, acknowledging their abilities by attention, and accounting it no mean honor to receive respect from them; but if they be injured by them, they hate them, and the more for being wise or great, because that makes it the greater injury. Nor refrain they in this case from any kind of intemperance of speech, if of action. It is no otherwise with a people in their political capacity; you shall never find that they have assumed debate for itself, but for something else. Wherefore in Lacedaemon where there was, and in Venice where there is, nothing else for which they should assume it, they have never shown so much as an inclination to it.

"Nor was there any appearance of such a desire in the people of Rome (who from the time of Romulus had been very well contented with the power of result either in

the parochial assemblies, as it was settled upon them by him, or in the meetings of the hundreds, as it was altered in their regard for the worse by Servius Tullius) till news was brought, some fifteen years after the exile of Tarquin, their late King (during which time the Senate had governed pretty well), that he was dead at the Court of Aristodemus the tyrant of Cumae. Whereupon the patricians, or nobility, began to let out the hitherto dissembled venom which is inherent in the root of oligarchy and fell immediately upon injuring the people beyond all moderation. For whereas the people had served both gallantly and contentedly in arms upon their own charges, and, though joint purchasers by their swords of the conquered lands, had not participated in the same to above two acres a man (the rest being secretly usurped by the patricians), they, through the meanness of their support and the greatness of their expense, being generally indebted, no sooner returned home with victory to lay down their arms, than they were snatched up by their creditors, the nobility, to cram jails. Whereupon, but with the greatest modesty that was ever known in the like case, they first fell upon debate, affirming 'That they were oppressed and captivated at home, while abroad they fought for liberty and empire, and that the freedom of the common people was safer in time of war than peace, among their enemies than their fellow-citizens.' It is true that when they could not get the Senate, through fear, as was pretended by the patricians, to assemble and take their grievances into consideration, they grew so much the warmer, that it was glad to meet; where Appius Claudius, a fierce spirit, was of opinion that recourse should be had to consular power, whereby some of the brands of sedition being taken off, the flame might be extinguished. Servilius, being of another temper, thought it better and safer to try if the people might be bowed than broken.

"But this debate was interrupted by tumultuous news of the near approach of the Volsci, a case in which the Senate had no recourse but to the people, who, contrary to their former custom upon the like occasions, would not stir a foot, but fell a-laughing, and saying, 'Let them fight that have something to fight for.' The Senate that had purses, and could not sing so well before the thief, being in a great perplexity, found no possible way out of it but to beseech Servilius, one of a genius well known to be popular, that he would accept of the consulship, and make some such use of it as might be helpful to the patrician interest. Servilius, accepting of the offer, and making use of his interest with the people, persuaded them to hope well of the good intention of the fathers, whom it would little beseem to be forced to those things which would lose their grace, and that in view of the enemy, if they came not freely; and withal published an edict, that no man should withhold a citizen of Rome by imprisonment from giving his name (for that was the way, as I shall have opportunity hereafter to show more at large, whereby they drew out their armies), nor to seize or sell any man's goods or children that were in the camp. Whereupon the people with a mighty concourse immediately took arms, marched forth, and (which to them was as easy as to be put into the humor, and that, as appears in this place, was not hard) totally defeated the Volsci first, then the Sabines (for the neighboring nations, hoping to have had a good bargain of the discord in Rome, were up in arms on all sides), and after the Sabines the Aurunci. Whence returning, victorious in three battles they expected no less than that the Senate would have made good their words, when

Appius Claudius, the other Consul, of his innate pride, and that he might frustrate the faith of his colleague, caused the soldiers (who being set at liberty, had behaved themselves with such valor) to be restored at their return to their creditors and their jails.

“Great resort upon this was made by the people to Servilius, showing him their wounds, calling him to witness how they had behaved themselves, and minding him of his promise. Poor Servilius was sorry, but so overawed with the headiness of his colleague, and the obstinacy of the whole faction of the nobility, that, not daring to do anything either way, he lost both parties, the fathers conceiving that he was ambitious, and the people that he was false; while the Consul Claudius, continuing to countenance such as daily seized and imprisoned some of the indebted people, had still new and dangerous controversies with them, insomuch that the commonwealth was torn with horrid division, and the people (because they found it not so safe or so effectual in public) minded nothing but laying their heads together in private conventicles. For this Aulus Virginius and Titus Vetusius, the new Consuls, were reproved by the Senate as slothful, and upbraided with the virtue of Appius Claudius. Whereupon the Consuls having desired the Senate that they might know their pleasure, showed afterward their readiness to obey it, by summoning the people according to command, and requiring names whereby to draw forth an army for diversion, but no man would answer. Report hereof being made to the Senate, the younger sort of the fathers grew so hot with the Consuls that they desired them to abdicate the magistracy, which they had not the courage to defend.

“The Consuls, though they conceived themselves to be roughly handled, made this soft answer. ‘Fathers conscript, that you may please to take notice it was foretold some horrid sedition is at hand, we shall only desire that they whose valor in this place is so great, may stand by us to see how we behave ourselves, and then be as resolute in your commands as you will; your fatherhoods may know if we be wanting in the performance.’

“At this some of the hot young noblemen returned with the Consuls to the tribunal, before which the people were yet standing; and the Consuls having generally required names in vain, to put it to something, required the name of one that was in their eye particularly; on whom, when he moved not, they commanded a lictor to lay hands, but the people, thronging about the party summoned, forbade the lictor, who durst not touch him; at which the hotspurs that came with the consuls, enraged by the affront, descended from the throne to the aid of the lictor; from whom in so doing they turned the indignation of the people upon themselves with such heat that the Consuls interposing, thought fit, by remitting the assembly, to appease the tumult; in which, nevertheless, there had been nothing but noise. Nor was there less in the Senate, being suddenly rallied upon this occasion, where they that received the repulse, with others whose heads were as addled as their own, fell upon the business as if it had been to be determined by clamor till the Consuls, upbraiding the Senate that it differed not from the market-place, reduced the house to orders.

“And the fathers, having been consulted accordingly, there were three opinions: Publius Virginius conceived that the consideration to be had upon the matter in

question, or aid of the indebted and imprisoned people, was not to be further extended than to such as had engaged upon the promise made by Servilius; Titus Largius, that it was no time to think it enough, if men's merits were acknowledged, while the whole people, sunk under the weight of their debts, could not emerge without some common aid, which to restrain, by putting some into a better condition than others, would rather more inflame the discord than extinguish it; Appius Claudius (still upon the old haunt) would have it that the people were rather wanton than fierce; it was not oppression that necessitated, but their power that invited them to these freaks; the empire of the Consuls since the appeal to the people (whereby a plebeian might ask his fellows if he were a thief) being but a mere scarecrow. 'Go to,' says he, 'let us create the dictator, from whom there is no appeal, and then let me see more of this work, or him that shall forbid my lictor.'

"The advice of Appius was abhorred by many; and to introduce a general recision of debts with Largius, was to violate all faith; that of Virginius, as the most moderate, would have passed best, but that there were private interests, that constant bane of the public, which withstood it. So they concluded with Appius, who also had been dictator, if the Consuls and some of the graver sort had not thought it altogether unseasonable, at a time when the Volsci and the Sabines were up again, to venture so far upon alienation of the people: for which cause Valerius, being descended from the Publicolas, the most popular family, as also in his own person of a mild nature, was rather trusted with so rigid a magistracy. Whence it happened that the people, though they knew well enough against whom the Dictator was created, feared nothing from Valerius; but upon a new promise made to the same effect with that of Servilius, hoped better another time, and throwing away all disputes, gave their names roundly, went out, and, to be brief, came home again as victorious as in the former action, the Dictator entering the city in triumph. Nevertheless, when he came to press the Senate to make good his promise, and do something for the ease of the people, they regarded him no more as to that point than they had done Servilius. Whereupon the Dictator, in disdain to be made a stale, abdicated his magistracy, and went home. Here, then, was a victorious army without a captain, and a Senate pulling it by the beard in their gowns. What is it (if you have read the story, for there is not such another) that must follow? Can any man imagine that such only should be the opportunity upon which this people could run away?

"Alas, poor men, the AEqui and the Volsci and the Sabines were nothing, but the fathers invincible! There they sat, some 300 of them armed all in robes, and thundering with their tongues, without any hopes in the earth to reduce them to any tolerable conditions. Wherefore, not thinking it convenient to abide long so near them, away marches the army, and encamps in the fields. This retreat of the people is called the secession of Mount Aventin, where they lodged, very sad at their condition, but not letting fall so much as a word of murmur against the fathers. The Senate by this time were great lords, had the whole city to themselves; but certain neighbors were upon the way that might come to speak with them, not asking leave of the porter. Wherefore their minds became troubled, and an orator was posted to the people to make as good conditions with them as he could; but, whatever the terms were, to bring them home, and with all speed. And here it was covenanted between

the Senate and the people, that these should have magistrates of their own election, called the tribunes, upon which they returned.

“To hold you no longer, the Senate having done this upon necessity, made frequent attempts to retract it again, while the tribunes, on the other side, to defend what they had got, instituted their Tributa Comitia, or council of the people; where they came in time, and, as disputes increased, to make laws without the authority of the Senate, called plebiscita. Now to conclude in the point at which I drive: such were the steps whereby the people of Rome came to assume debate, nor is it in art or nature to debar a people of the like effect, where there is the like cause. For Romulus, having in the election of his Senate squared out a nobility for the support of a throne, by making that of the patricians a distinct and hereditary order, planted the commonwealth upon two contrary interests or roots, which, shooting forth, in time produced two commonwealths, the one oligarchical in the nobility, the other a mere anarchy of the people, and ever after caused a perpetual feud and enmity between the Senate and the people, even to death.

“There is not a more noble or useful question in the politics than that which is started by Machiavel, whether means were to be found whereby the enmity that was between the Senate and the people of Rome could have been removed? Nor is there any other in which we, on the present occasion, are so much concerned, particularly in relation to this author; forasmuch as his judgment in the determination of the question standing, our commonwealth falls. And he that will erect a commonwealth against the judgment of Machiavel, is obliged to give such reasons for his enterprise as must not go a-begging. Wherefore to repeat the politician very honestly, but somewhat more briefly, he disputes thus:

“‘There be two sorts of commonwealths, the one for preservation, as Lacedaemon and Venice; the other for increase, as Rome.

“‘Lacedaemon, being governed by a King and a small Senate, could maintain itself a long time in that condition, because the inhabitants, being few, having put a bar upon the reception of strangers, and living in a strict observation of the laws of Lycurgus, which now had got reputation, and taken away all occasion of tumults, might well continue long in tranquillity. For the laws of Lycurgus introduced a greater equality in estates, and a less equality in honors, whence there was equal poverty; and the plebeians were less ambitious, because the honors or magistracies of the city could extend but to a few and were not communicable to the people, nor did the nobility by using them ill ever give them a desire to participate of the same. This proceeded from the kings, whose principality, being placed in the midst of the nobility, had no greater means whereby to support itself than to shield the people from all injury; whence the people, not fearing empire, desired it not; and so all occasion of enmity between the Senate and the people was taken away. But this union happened especially from two causes: the one that the inhabitants of Lacedaemon being few, could be governed by the few; the other, that, not receiving strangers into their commonwealth, they did not corrupt it, nor increase it to such a proportion as was not governable by the few.

“‘Venice has not divided with her plebeians, but all are called gentlemen that be in administration of the government; for which government she is more beholden to chance than the wisdom of her law-makers; for many retiring to those islands, where that city is now built, from the inundations of barbarians that overwhelmed the Roman Empire, when they were increased to such a number that to live together it was necessary to have laws, they ordained a form of government, whereby assembling often in council upon affairs, and finding their number sufficient for government, they put a bar upon all such as repairing afterward to their city should become inhabitants, excluding them from participation of power. Whence they that were included in the administration had right, and they that were excluded, coming afterward, and being received upon no other conditions to be inhabitants, had no wrong, and therefore had no occasion, nor (being never trusted with arms) any means to be tumultuous. Wherefore this commonwealth might very well maintain itself in tranquillity.

“‘These things considered, it is plain that the Roman legislators, to have introduced a quiet state, must have done one of these two things: either shut out strangers, as the Lacedemonians; or, as the Venetians, not allowed the people to bear arms. But they did neither. By which means the people, having power and increase, were in perpetual tumult. Nor is this to be helped in a commonwealth for increase, seeing if Rome had cut off the occasion of her tumults, she must have cut off the means of her increase, and by consequence of her greatness.

“‘Wherefore let a legislator consider with himself whether he would make his commonwealth for preservation, in which case she may be free from tumults; or for increase, in which case she must be infested with them.

“‘If he makes her for preservation, she may be quiet at home, but will be in danger abroad. First, because her foundation must be narrow, and therefore weak, as that of Lacedaemon, which lay but upon 30,000 citizens; or that of Venice, which lies but upon 3,000. Secondly, such a commonwealth must either be in peace, or war; if she be in peace, the few are soonest effeminated and corrupted and so obnoxious also to faction. If in war, succeeding ill, she is an easy prey; or succeeding well, ruined by increase: a weight which her foundation is not able to bear. For Lacedaemon, when she had made herself mistress upon the matter of all Greece, through a slight accident, the rebellion of Thebes, occasioned by the conspiracy of Pelopidas discovering this infirmity of her nature, the rest of her conquered cities immediately fell off, and in the turn as it were of a hand reduced her from the fullest tide to the lowest ebb of her fortune. And Venice having possessed herself of a great part of Italy by her purse, was no sooner in defence of it put to the trial of arms than she lost all in one battle.

“‘Whence I conclude that in the ordination of a commonwealth a legislator is to think upon that which is most honorable, and, laying aside models for preservation, to follow the example of Rome conniving at, and temporizing with, the enmity between the Senate and the people, as a necessary step to the Roman greatness. For that any man should find out a balance that may take in the conveniences and shut out the inconveniences of both, I do not think it possible.’ These are the words of the author,

though the method be somewhat altered, to the end that I may the better turn them to my purpose.

“My lords, I do not know how you hearken to this sound; but to hear the greatest artist in the modern world giving sentence against our commonwealth is that with which I am nearly concerned. Wherefore, with all honor due to the prince of politicians, let us examine his reasoning with the same liberty which he has asserted to be the right of a free people. But we shall never come up to him, except by taking the business a little lower, we descend from effects to their causes. The causes of commotion in a commonwealth are either external or internal. External are from enemies, from subjects, or from servants. To dispute then what was the cause why Rome was infested by the Italian, or by the servile wars; why the slaves took the capitol; why the Lacedaemonians were near as frequently troubled with their helots as Rome with all those; or why Venice, whose situation is not trusted to the faith of men, has as good or better quarter with them whom she governs, than Rome had with the Latins; were to dispute upon external causes. The question put by Machiavel is of internal causes; whether the enmity that Was between the Senate and the people of Rome might have been removed. And to determine otherwise of this question than he does, I must lay down other principles than he has done. To which end I affirm that a commonwealth, internally considered, is either equal or unequal. A commonwealth that is internally equal, has no internal cause of commotion, and therefore can have no such effect but from without. A commonwealth internally unequal has no internal cause of quiet, and therefore can have no such effect but by diversion.

“To prove my assertions, I shall at this time make use of no other than his examples. Lacedaemon was externally unquiet, because she was externally unequal, that is as to her helots; and she was internally at rest, because she was equal in herself, both in root and branch; in the root by her agrarian, and in branch by the Senate, inasmuch as no man was thereto qualified but by election of the people. Which institution of Lycurgus is mentioned by Aristotle, where he says that rendering his citizens emulous (not careless) of that honor, he assigned to the people the election of the Senate. Wherefore Machiavel in this, as in other places, having his eye upon the division of patrician and plebeian families as they were in Rome, has quite mistaken the orders of this commonwealth, where there was no such thing. Nor did the quiet of it derive from the power of the kings, who were so far from shielding the people from the injury of the nobility, of which there was none in his sense but the Senate, that one declared end of the Senate at the institution was to shield the people from the kings, who from that time had but single votes. Neither did it proceed from the straitness of the Senate, or their keeping the people excluded from the government, that they were quiet, but from the equality of their administration, seeing the Senate (as is plain by the oracle, their fundamental law) had no more than the debate, and the result of the commonwealth belonged to the people.

“Wherefore when Theopompus and Polydorus, Kings of Lacedaemon, would have kept the people excluded from the government by adding to the ancient law this clause, ‘If the determination of the people be faulty, it shall be lawful for the Senate to resume the debate,’ the people immediately became unquiet, and resumed that

debate, which ended not till they had set up their ephors, and caused that magistracy to be confirmed by their kings." For when Theopompus first ordained that the ephori or overseers should be created at Lacedaemon, to be such a restraint upon the kings there as the tribunes were upon the consuls at Rome, the Queen complained to him, that by this means he transmitted the royal authority greatly diminished to his children: "I leave indeed less," answered he, "but more lasting." And this was excellently said; for that power only is safe which is limited from doing hurt. Theopompus therefore, by confining the kingly power within the bounds of the laws, did recommend it by so much to the people's affection as he removed it from being arbitrary.' By which it may appear that a commonwealth for preservation, if she comes to be unequal, is as obnoxious to enmity between the Senate and the people as a commonwealth for increase; and that the tranquillity of Lacedaemon was derived from no other cause than her equality.

"For Venice, to say that she is quiet because she disarms her subjects, is to forget that Lacedaemon disarmed her helots, and yet could not in their regard be quiet; wherefore if Venice be defended from external causes of commotion, it is first through her situation, in which respect her subjects have no hope (and this indeed may be attributed to her fortune); and, secondly, through her exquisite justice, whence they have no will to invade her. But this can be attributed to no other cause than her prudence, which will appear to be greater, as we look nearer; for the effects that proceed from fortune, if there be any such thing, are like their cause, inconstant. But there never happened to any other commonwealth so undisturbed and constant a tranquillity and peace in herself as are in that of Venice; wherefore this must proceed from some other cause than chance. And we see that as she is of all others the most quiet, so the most equal commonwealth. Her body consists of one order, and her Senate is like a rolling stone, as was said, which never did, nor, while it continues upon that rotation, never shall gather the moss of a divided or ambitious interest, much less such a one as that which grasped the people of Rome in the talons of their own eagles. And if Machiavel, averse from doing this commonwealth right, had considered her orders, as his reader shall easily perceive he never did, he must have been so far from attributing the prudence of them to chance, that he would have touched up his admirable work to that perfection which, as to the civil part, has no pattern in the universal world but this of Venice.

"Rome, secure by her potent and victorious arms from all external causes of commotion, was either beholden for her peace at home to her enemies abroad, or could never rest her head. My lords, you that are parents of a commonwealth, and so freer agents than such as are merely natural, have a care. For, as no man shall show me a commonwealth born straight that ever became crooked, so no man shall show me a commonwealth born crooked that ever became straight. Rome was crooked in her birth, or rather prodigious. Her twins, the patrician and plebeian orders, came, as was shown by the foregoing story, into the world, one body but two heads, or rather two bellies; for, notwithstanding the fable out of AEsop, whereby Menenius Agrippa, the orator that was sent from the Senate to the people at Mount Aventin, showed the fathers to be the belly, and the people to be the arms and the legs (which except that, how slothful soever it might seem, they were nourished, not these only, but the whole

body must languish and be dissolved), it is plain that the fathers were a distinct belly, such a one as took the meat indeed out of the people’s mouths, but abhorring the agrarian, returned it not in the due and necessary nutrition of a commonwealth. Nevertheless, as the people that live about the cataracts of Nilus are said not to hear the noise, so neither the Roman writers, nor Machiavel the most conversant with them, seem among so many of the tribunitian storms to hear their natural voice; for though they could not miss of it so far as to attribute them to the strife of the people for participation in magistracy, or, in which Machiavel more particularly joins, to that about the agrarian, this was to take the business short, and the remedy for the disease.

“A people, when they are reduced to misery and despair, become their own politicians, as certain beasts, when they are sick, become their own physicians, and are carried by a natural instinct to the desire of such herbs as are their proper cure; but the people, for the greater part, are beneath the beasts in the use of them. Thus the people of Rome, though in their misery they had recourse by instinct, as it were, to the two main fundamentals of a commonwealth, participation of magistracy and the agrarian, did but taste and spit at them, not (which is necessary in physic) drink down the potion, and in that their healths. For when they had obtained participation of magistracy it was but lamely, not to a full and equal rotation in all elections; nor did they greatly regard it in what they had got. And when they had attained to the agrarian, they neglected it so far as to suffer the law to grow obsolete; but if you do not take the due dose of your medicines (as there be slight tastes which a man may have of philosophy that incline to atheism) it may chance to be poison, there being a like taste of the politics that inclines to confusion, as appears in the institution of the Roman tribunes, by which magistracy and no more the people were so far from attaining to peace, that they in getting but so much, got but heads for an eternal feud; whereas if they had attained in perfection either to the agrarian, they had introduced the equality and calm of Lacedaemon, or to rotation, and they had introduced that of Venice: and so there could have been no more enmity between the Senate and the people of Rome than there was between those orders in Lacedaemon, or is now in Venice. Wherefore Machiavel seems to me, in attributing the peace of Venice more to her luck than her prudence, of the whole stable to have saddled the wrong horse; for though Rome in her military part could beat it better, beyond all comparison, upon the sounding hoof, Venice for the civil part has plainly had the wings of Pegasus.

“The whole question then will come upon this point, whether the people of Rome could have obtained these orders? And first, to say that they could not have obtained them without altering the commonwealth, is no argument; seeing neither could they, without altering the commonwealth, have obtained their tribunes, which nevertheless were obtained. And if a man considers the posture that the people were in when they obtained their tribunes, they might as well, and with as great ease (forasmuch as the reason why the nobility yielded to the tribunes was no other than that there was no remedy) have obtained anything else. And for experience, it was in the like case that the Lacedaemonians did set up their ephors, and the Athenians, after the battle of Plataea, bowed the Senate (so hard a thing it is for a commonwealth that was born

crooked to become straight) as much the other way. Nor, if it be objected that this must have ruined the nobility (and in that deprived the commonwealth of the greatness which she acquired by them), is this opinion holding, but confuted by the sequel of the story, showing plainly that the nobility, through the defect of such orders (that is to say, of rotation and the agrarian), came to eat up the people; and battening themselves in luxury, to be, as Sallust speaks of them, ‘a most sluggish and lazy nobility, in whom, besides the name, there was no more than in a statue;’ and to bring so mighty a commonwealth, and of so huge a glory, to so deplorable an end. Wherefore means might have been found to remove the enmity that was between the Senate and the people of Rome.

“My lords, if I have argued well, I have given you the comfort and assurance that, notwithstanding the judgment of Machiavel, your commonwealth is both safe and sound; but if I have not argued well, then take the comfort and assurance which he gives you while he is firm, that a legislator is to lay aside all other examples, and follow that of Rome only, conniving and temporizing with the enmity between the Senate and the people as a necessary step to the Roman greatness. Whence it follows that your commonwealth, at the worst, is that which he has given you his word is the best.

“I have held your lordships long, but upon an account of no small importance, which I can now sum up in these few words: where there is a liquorishness in a popular assembly to debate, it proceeds not from the constitution of the people, but of the commonwealth. Now that your commonwealth is of such a constitution as is naturally free from this kind of intemperance, is that which, to make good, I must divide the remainder of my discourse into two parts:

“The first, showing the several constitutions of the assemblies of the people in other commonwealths;

“The second, comparing our assembly of the people with theirs; and showing how it excludes the inconveniences and embraces the conveniences of them all.

“In the beginning of the first part I must take notice, that among the popular errors of our days it is no small one that men imagine the ancient governments of this kind to have consisted for the most part of one city that is, of one town; whereas by what we have learned of my ‘lords that owned them, it appears that there was not any considerable one of such a Constitution but Carthage, till this in our days of Venice.

“For to begin with Israel, it consisted of the twelve tribes, locally spread or quartered throughout the whole territory, and these being called together by trumpets, constituted the Church or assembly of the people. The vastness of this weight, as also the slowness thence unavoidable, became a great cause (as has been shown at large by my Lord Phosphorus) of the breaking that commonwealth; notwithstanding that the Temple, and those religious ceremonies for which the people were at least annually obliged to repair thither, were no small ligament of the tribes, otherwise but slightly tacked together.

“Athens consisted of four tribes, taking in the whole people, both of the city and of the territory; not so gathered by Theseus into one town, as to exclude the country,

but to the end that there might be some capital of the commonwealth: though true it be, that the congregation, consisting of the inhabitants within the walls, was sufficient to all intents and purposes, without those of the country. These also being exceeding numerous, became burdensome to themselves and dangerous to the commonwealth; the more for their ill-education, as is observed by Xenophon and Polybius, who compare them to mariners that in a calm are perpetually disputing and swaggering one with another, and never lay their hands to the common tackling or safety till they be all endangered by some storm. Which caused Thucydides, when he saw this people through the purchase of their misery become so much wiser as to reduce their Comitia or assemblies to 5,000, to say in his eighth book: 'And now, at least in my time, the Athenians seem to have ordered their State aright, consisting of a moderate tempor both of the few (by which he means the Senate of the Bean) and of the many,' or the 5,000. And he does not only give you his judgment, but the best proof of it; for 'this,' says he, 'was the first thing that, after so many misfortunes past, made the city again to raise her head.' The place I would desire your lordships to note, as the first example that I find, or think is to be found, of a popular assembly by way of representative.

"Lacedaemon consisted of 30,000 citizens dispersed throughout Laconia, one of the greatest provinces in all Greece, and divided, as by some authors is probable, into six tribes. Of the whole body of these, being gathered, consisted the great Church or assembly, which had the legislative power; the little church, gathered sometimes for matters of concern within the city, consisted of the Spartans only. These happened, like that of Venice, to be good constitutions of a congregation, but from an ill-cause the infirmity of a commonwealth, which through her paucity was oligarchical.

"Wherefore, go which way you will, it should seem that without a representative of the people, your commonwealth, consisting of a whole nation, can never avoid falling either into oligarchy or confusion.

"This was seen by the Romans, whose rustic tribes, extending themselves from the river Arno to the Vulturnus, that is, from Fesulae or Florence to Capua, invented a way of representative by lots: the tribe upon which the first fell being the prerogative, and some two or three more that had the rest, the jure vocatoe. These gave the suffrage of the commonwealth in two meetings; the prerogative at the first assembly, and the jure vocatoe at a second.

"Now to make the parallel: all the inconveniences that you have observed in these assemblies are shut out, and all the conveniences taken into your prerogative. For first, it is that for which Athens, shaking off the blame of Xenophon and Polybius, came to deserve the praise of Thucydides, a representative. And, secondly, not, as I suspect in that of Athens, and is past suspicion in this of Rome, by lot, but by suffrage, as was also the late House of Commons, by which means in your prerogatives all the tribes of Oceana are jure vocatoe; and if a man shall except against the paucity of the standing number, it is a wheel, which in the revolution of a few years turns every hand that is fit, or fits every hand that it turns to the public work. Moreover, I am deceived if, upon due consideration, it does not fetch your tribes, with greater equality and ease to themselves and to the government, from the

frontiers of Marpesia, than Rome ever brought any one of hers out of her pomoeria, or the nearest parts of her adjoining territories. To this you may add, that whereas a commonwealth, which in regard of the people is not of facility in execution, were sure enough in this nation to be cast off through impatience; your musters and galaxies are given to the people, as milk to babes, whereby when they are brought up through four days' election in a whole year (one at the parish, one at the hundred, and two at the tribe) to their strongest meat, it is of no harder digestion than to give their negative or affirmative as they see cause. There be gallant men among us that laugh at such an appeal or umpire; but I refer it whether you be more inclining to pardon them or me, who I confess have been this day laughing at a sober man, but without meaning him any harm, and that is Petrus Cunaeus, where speaking of the nature of the people, he says, 'that taking them apart, they are very simple, but yet in their assemblies they see and know something, and so runs away without troubling himself with what that something is. Whereas the people, taken apart, are but so many private interests; but if you take them together, they are the public interest.

"The public interest of a commonwealth, as has been shown, is nearest that of mankind, and that of mankind is right reason; but with aristocracy (whose reason or interest, when they are all together, as appeared by the patricians, is but that of a party) it is quite contrary: for as, taken apart, they are far wiser than the people considered in that manner, so, being put together, they are such fools, who by deposing the people, as did those of Rome, will saw off the branch whereupon they sit, or rather destroy the root of their own greatness. Wherefore Machiavel, following Aristotle, and yet going before him, may well assert, 'that the people are wiser and more constant in their resolutions than a prince:' which is the prerogative of popular government for wisdom. And hence it is that the prerogative of your commonwealth, as for wisdom so for power, is in the people, which (though I am not ignorant that the Roman prerogative was so called a proerogando, because their suffrage was first asked) gives the denomination to your prerogative tribe."

The elections, whether annual or triennial, being shown by the twenty-second, that which comes in the next place to be considered is--

The twenty-third order, "Showing the power, function, and manner of proceeding of the prerogative tribe.

"The power or function of the prerogative is of two parts: the one of result, in which it is the legislative, power, the other of judicature, in which regard it is the highest court, and the last appeal in this commonwealth.

"For the former part (the people by this constitution being not obliged by any law that is not of their own making or confirmation, by the result of the prerogative, their equal representative) it shall not be lawful for the Senate to require obedience from the people, nor for the people to give obedience to the Senate in or by any law that has not been promulgated, or printed and published for the space of six weeks, and afterward proposed by the authority of the Senate to the prerogative tribe, and resolved by the major vote of the same in the affirmative. Nor shall the Senate have any power to levy war, men, or money, otherwise than by the consent of the people so

given, or by a law so enacted, except in cases of exigence, in which it is agreed that the power, both of the Senate and the people, shall be in the dictator so qualified, and for such a term of time, as is according to that constitution already prescribed. While a law is in promulgation, the censors shall animadvert upon the Senate, and the tribunes upon the people, that there be no laying of heads together, no conventicles or canvassing to carry on or oppose anything; but that all may be done in a free and open way.

“For the latter part of the power of the prerogative, or that whereby they are the supreme judicatory of this nation, and of the provinces of the same, the cognizances of crimes against the majesty of the people, such as high treason, as also of peculation, that is, robbery of the treasury, or defraudation of the commonwealth, appertains to this tribe. And if any person or persons, provincials or citizens, shall appeal to the people, it belongs to the prerogative to judge and determine the case; provided that if the appeal be from any court of justice in this nation or the provinces, the appellant shall first deposit £100 in the court from which he appeals, to be forfeited to the same if he be cast in his suit by the people. But the power of the Council of War being the expedition of this commonwealth, and the martial law of the strategus in the field, are those only from which there shall lie no appeal to the people.

“The proceeding of the prerogative in case of a proposition is to be thus ordered: The magistrates, proposing by authority of the Senate, shall rehearse the whole matter, and expound it to the people; which done, they shall put the whole together to the suffrage, with three boxes, the negative, the affirmative, and the non-sincere; and the suffrage being returned to the tribunes, and numbered in the presence of the proposers. If the major vote be in the non-sincere, the proposer shall desist, and the Senate shall resume the debate. If the major vote be in the negative, the proposers shall desist, and the Senate, too. But if the major vote be in the affirmative, then the tribe is clear and the proposers shall begin and put the whole matter, with the negative and the affirmative (leaving out the non-sincere) by clauses; and the suffrages being taken and numbered by the tribunes in the presence of the proposers, shall be written and reported by the tribunes of the Senate. And that which is proposed by the authority of the Senate, and confirmed by the command of the people, is the law of Oceana.

“The proceeding of the prerogative in a case of judicature is to be thus ordered: The tribunes being auditors of all causes appertaining to the cognizance of the people, shall have notice of the suit or trial, whether of appeal or otherwise, that is to be commenced; and if any one of them shall accept of the same, it appertains to him to introduce it. A cause being introduced, and the people mustered or assembled for the decision of the same, the tribunes are presidents of the court, having power to keep it to orders, and shall be seated upon a scaffold erected in the middle of the tribe. Upon the right hand shall stand a seat or large pulpit assigned to the plaintiff or the accuser; and, upon the left, another for the defendant, each if they please with his counsel. And the tribunes (being attended upon such occasions with so many ballotins, secretaries, doorkeepers, and messengers of the Senate as shall be

requisite) one of them shall turn up a glass of the nature of an hour-glass, but such a one as is to be of an hour and a half's running; which being turned up, the party or counsel on the right hand may begin to speak to the people. If there be papers to be read, or witnesses to be examined, the officer shall lay the glass sideways till the papers be read and the witnesses examined, and then turn it up again; and so long as the glass is running, the party on the right hand has liberty to speak, and no longer. The party on the right hand having had his time, the like shall be done in every respect for the party on the left. And the cause being thus heard, the tribunes shall put the question to the tribe with a white, a black, and a red box (or non-sincere), whether guilty or not guilty. And if the suffrage being taken, the major vote be in the non-sincere, the cause shall be reheard upon the next juridicial day following, and put to the question in the same manner. If the major vote comes the second time in the non-sincere, the cause shall be heard again upon the third day; but at the third hearing the question shall be put without the non-sincere. Upon the first of the three days in which the major vote comes in the white box, the party accused is absolved; and upon the first of them in which it comes in the black box, the party accused is condemned. The party accused being condemned, the tribunes (if the case be criminal) shall put with the white and the black box these questions, or such of them as, regard had to the case, they shall conceive most proper:

1. Whether he shall have a writ of ease; 2. Whether he shall be fined so much or so much; 3. Whether he shall be confiscated; 4. Whether he shall be rendered incapable of magistracy; 5. Whether he shall be banished; 6. Whether he shall be put to death.

"These, or any three of these questions, whether simple or such as shall be thought fitly mixed, being put by the tribunes, that which has most above half the votes in the black box is the sentence of the people, which the troop of the third class is to see executed accordingly.

"But whereas by the constitution of this commonwealth it may appear that neither the propositions of the Senate nor the judicature of the people will be so frequent as to hold the prerogative in continual employment, the Senate, a main part of whose office it is to teach and instruct the people, shall duly (if they have no greater affairs to divert them) cause an oration to be made to the prerogative by some knight or magistrate of the Senate, to be chosen out of the ablest men, and from time to time appointed by the orator of the house, in the great hall of the Pantheon, while the Parliament resides in the town, or in some grove or sweet place in the field, while the Parliament for the heat of the year shall reside in the country, upon every Tuesday, morning or afternoon.

"And the orator appointed for the time to this office shall first repeat the orders of the commonwealth with all possible brevity; and then, making choice of one or some part of it, discourse thereof to the people. An oration or discourse of this nature, being afterward perused by the Council of State, may as they see cause be printed and published."

The Archon's comment upon the order I find to have been of this sense:

“MY LORDS:

“To crave pardon for a word or two in further explanation of what was read, I shall briefly show how the constitution of this tribe or assembly answers to their function; and how their function, which is of two parts, the former in the result or legislative power, the latter in the supreme judicature of the commonwealth, answers to their constitution. Machiavel has a discourse, where he puts the question, ‘Whether the guard of liberty may with more security be committed to the nobility or to the people?’ Which doubt of his arises through the want of explaining his terms; for the guard of liberty can signify nothing else but the result of the commonwealth; so that to say that the guard of liberty may be committed to the nobility, is to say that the result may be committed to the Senate, in which case the people signify nothing.

“Now to show it was a mistake to affirm it to have been thus in Lacedaemon, sufficient has been spoken; and whereas he will have it to be so in Venice also: ‘They,’ says Contarini, ‘in whom resides the supreme power of the whole commonwealth, and of the laws, and upon whose orders depends the authority as well of the Senate as of all the other magistrates, is the Great Council.’ It is institutively in the Great Council, by the judgment of all that know that commonwealth; though, for the reasons shown, it be sometimes exercised by the Senate. Nor need I run over the commonwealths in this place for the proof of a thing so doubtless, and such as has been already made so apparent, as that the result of each was in the popular part of it. The popular part of yours, or the prerogative tribe, consists of seven deputies (whereof three are of the horse) annually elected out of every tribe of Oceana; which being fifty, amounts to 150 horse and 200 foot. And the prerogative consisting of three of these lists, consists of 450 horse and 600 foot, besides those of the provinces to be hereafter mentioned; by which means the overbalance in the suffrage remaining to the foot by 150 votes, you have to the support of a true and natural aristocracy the deepest root of a democracy that has been ever planted.

“Wherefore there is nothing in art or nature better qualified for the result than this assembly it is noted out of Cicero by Machiavel, ‘That the people, though they are not so prone to find out truth of themselves as to follow custom or run into error yet if they be shown truth, they not only acknowledge and embrace it very suddenly, but are the most constant and faithful guardians and conservators of it.’ it is your duty and office, whereto you are also qualified by the orders of this commonwealth, to have the people as you have your hawks and greyhounds, in leashes and slips, to range the fields and beat the bushes for them, for they are of a nature that is never good at this sport, but when you spring or start their proper quarry. Think not that they will stand to ask you what it is, or less know it than your hawks and greyhounds do theirs; but presently make such a flight or course, that a huntsman may as well undertake to run with his dogs, or a falconer to fly with his hawk, as an aristocracy at this game to compare with the people. The people of Rome were possessed of no less a prey than the empire of the world, when the nobility turned tails, and perched among daws upon the tower of monarchy. For though they did not all of them intend the thing, they would none of them endure the remedy, which was the agrarian.

“But the prerogative tribe has not only the result, but is the supreme judicature, and the ultimate appeal in this commonwealth. For the popular government that makes account to be of any standing, must make sure in the first place of the appeal to the people. As an estate in trust becomes a man’s own if he be not answerable for it, so the power of a magistracy not accountable to the people, from whom it was received, becoming of private use, the commonwealth loses her liberty Wherefore the right of supreme judicature in the people (Without which there can be no such thing as popular government) is confirmed by the constant practice of all commonwealths; as that of Israel in the cases of Achan, and of the tribe of Benjamin, adjudged by the congregation.

“The dicasterian, or court called the heliaia in Athens, which (the comitia of that commonwealth consisting of the whole people, and so being too numerous to be a judicatory) was constituted sometimes of 500, at others of 1,000, or, according to the greatness of the cause, of 1,500, elected by the lot out of the whole body of the people, had, with the nine Archons that were presidents, the cognizance of such causes as were of highest importance in that State. The five ephors in Lacedaemon, which were popular magistrates, might question their kings, as appears by the cases of Pausanias, and of Agis, who being upon his trial in this court, was cried to by his mother to appeal to the people, as Plutarch has it in his life. The tribunes of the people of Rome (like, in the nature of their magistracy, and for some time in number, to the ephors, as being, according to Halicarnassus and Plutarch, instituted in imitation of them) had power to summon any man, his magistracy at least being expired (for from the Dictator there lay no appeal) to answer for himself to the people. As in the case of Coriolanus, who was going about to force the people, by withholding corn from them in a famine, to relinquish the magistracy of the tribunes, in that of Spurius Cassius for affecting tyranny, of Marcus Sergius for running away at Veii, of Caius Lucretius for spoiling his province, of Junius Silanus for making war without a command from the people against the Cimbri, with divers others. And the crimes of this nature were called loesoe majestatis, or high treason. Examples of such as were arraigned or tried for peculation, or defraudation of the commonwealth, were Marcus Curius for intercepting the money of the Samnites, Salinator for the unequal division of spoils to his soldiers, Marcus Posthumius for cheating the commonwealth by a feigned shipwreck. Causes of these two kinds were of a more public nature; but the like power upon appeals was also exercised by the people in private matters, even during the time of the kings, as in the case of Horatius. Nor is it otherwise with Venice, where the Doge Loredano was sentenced by the great Council, and Antonio Grimani, afterward doge, questioned, for that he, being admiral, had suffered the Turk to take Lepanto in view of his fleet.

“Nevertheless, there lay no appeal from the Roman dictator to the people; which, if there had, might have cost the commonwealth dear, when Spurius Melius, affecting empire, circumvented and debauched the tribunes: whereupon Titus Quintus Cincinnatus was created Dictator, who having chosen Servilius Ahala to be his lieutenant, or magister equitum, sent him to apprehend Melius, whom, while he disputed the commands of the Dictator and implored the aid of the people, Ahala cut off upon the place. By which example you may see in what cases the dictator may

prevent the blow which is ready sometimes to fall ere the people be aware of the danger. Wherefore there lies no appeal from the Dieci, or the Council of Ten, in Venice, to the Great Council, nor from our Council of War to the people. For the way of proceeding of this tribe, or the ballot, it is, as was once said for all, Venetian.

“This discourse of judicatories whereupon we are fallen, brings us rather naturally than of design from the two general orders of every commonwealth, that is to say, from the debating part, or the Senate, and the resolving part, or the people, to the third, which is the executive part or the magistracy, whereupon I shall have no need to dwell, for the executive magistrates of this commonwealth are the strategus in arms; the signory in their several courts, as the chancery, the exchequer; as also the councils in divers cases within their instructions; the censors as well in their proper magistracy, as in the Council of Religion; the tribunes in the government of the prerogative, and that judicatory; and the judges with their courts; of all which so much is already said or known as may suffice.

“The Tuesday lectures or orations to the people will be of great benefit to the Senate, the prerogative, and the whole nation. To the Senate, because they will not only teach your Senators elocution, but keep the system of the government in their memories. Elocution is of great use to your Senators, for if they do not understand rhetoric (giving it at this time for granted that the art were not otherwise good) and come to treat with, or vindicate the cause of the commonwealth against some other nation that is good at it, the advantage will be subject to remain upon the merit of the art, and not upon the merit of the cause. Furthermore, the genius or soul of this government being in the whole and in every part, they will never be of ability in determination upon any particular, unless at the same time they have an idea of the whole. That this therefore must be, in that regard, of equal benefit to the prerogative, is plain; though these have a greater concernment in it. For this commonwealth is the estate of the people; and a man, you know, though he be virtuous, yet if he does not understand his estate, may run out or be cheated of it. Last of all, the treasures of the politics will by this means be so opened, rifled, and dispersed, that this nation will as soon dote, like the Indians, upon glass beads, as disturb your government with whimsies and freaks of mother-wit, or suffer themselves to be stuttered out of their liberties. There is not any reason why your grandees, your wise men of this age, that laugh out and openly at a commonwealth as the most ridiculous thing, do not appear to be, as in this regard they are, mere idiots, but that the people have not eyes.”

There remains no more relating to the Senate and the people than--

The twenty-fourth order, “Whereby it is lawful for the province of Marpesia to have thirty knights of their own election continually present in the Senate of Oceana, together with sixty deputies of horse, and 120 of foot in the prerogative tribe, endued with equal power (respect had to their quality and number) in the debate and result of this commonwealth, provided that they observe the course or rotation of the same by the annual return of ten knights, twenty deputies of the horse, and forty of the foot. The like in all respects is lawful for Panopea; and the horse of both the provinces amounting to one troop, and the foot to one company, one captain and one cornet of the horse shall be annually chosen by Marpesia, and one captain and one ensign of

the foot shall be annually chosen by Panopea.”

The orb of the prerogative being thus complete, is not unnaturally compared to that of the moon, either in consideration of the light borrowed from the Senate, as from the sun; or of the ebbs and floods of the people, which are marked by the negative or affirmative of this tribe. And the constitution of the Senate and the people being shown, you have that of the Parliament of Oceana, consisting of the Senate proposing, and of the people resolving, which amounts to an act of Parliament. So the Parliament is the heart, which, consisting of two ventricles, the one greater and replenished with a grosser matter, the other less and full of a purer, sucks in and spouts forth the vital blood of Oceana by a perpetual circulation. Wherefore the life of this government is no more unnatural or obnoxious upon this score to dissolution than that of a man; nor to giddiness than the world; seeing the earth, whether it be itself or the heavens that are in rotation, is so far from being giddy, that it could not subsist without motion. But why should not this government be much rather capable of duration and steadiness by motion? Than which God has ordained no other to the universal commonwealth of mankind: seeing one generation comes and another goes, but the earth remains firm forever, that is, in her proper situation or place, whether she be moved or not moved upon her proper centre. The Senate, the people, and the magistracy, or the Parliament so constituted, as you have seen, is the guardian of this commonwealth, and the husband of such a wife as is elegantly described by Solomon: “She is like the merchant’s ships; she brings her food from far. She considers a field, and buys it: with the fruit of her hands she plants a vineyard. She perceives that her merchandise is good. She stretches forth her hands to the poor. She is not afraid of the snow for her household; for all her household are clothed with scarlet. She makes herself coverings of tapestry, her clothing is silk and purple. Her husband is known (by his robes) in the gates, when he sits among the senators of the land.” The gates, or inferior courts, were branches, as it were, of the Sanhedrim, or Senate, of Israel. Nor is our commonwealth a worse housewife, nor has she less regard to her magistrates; as may pear by--

The twenty-fifth order, “That, whereas the public revenue is through the late civil wars dilapidated, the excise, being improved or improvable to the revenue of £1,000,000, be applied, for the space of eleven years to come, to the reparation of the same, and for the present maintenance of the magistrates, knights, deputies, and other officers, who, according to their several dignities and functions, shall annually receive toward the support of the same, as follows:

“The lord strategus marching, is, upon another account, to have field-pay as general.

Per Annum The lord strategus sitting..... £2,000 The lord orator..... 2,000 The three commissioners of the seal... 4,500 The three commissioners of the treasury... 4,500 The two censors.... 3,000 The 290 knights, at £500 a man..... 145,000 The four ambassadors-in-ordinary.... 12,000 The Council of War for intelligence.... 3,000 The master of the ceremonies..... 500 The master of the horse..... 500 His substitute..... 150 The twelve ballotins for their winter liveries 240

For summer liveries... 120

For their board-wages..... 480 For the keeping of three coaches of state,

twenty-four coach-horses, with coachmen

and postilions..... 1,500 For the grooms, and keeping of sixteen

great horses for the master of the

horse, and for the ballotins whom he

is to govern and instruct in the art

of riding..... 480 The twenty secretaries of the Parliament... 2,000 The twenty doorkeepers, who are to attend

with pole-axes,

For their coats..... 200

For their board-wages.... 1,000 The twenty messengers, which are trumpeters,

For their coats.... 200

For their board-wages..... 1,000 For ornament of the masters of the youth... 5,000

Sum £189,370

“Out of the personal estates of every man, who at his death bequeaths not above forty shillings to the muster of that hundred wherein it lies, shall be levied one per cent. till the solid revenue of the muster of the hundred amounts to £50 per annum for the prizes of the youth.

“The twelve ballotins are to be divided into three regions, according to the course of the Senate; the four of the first region to be elected at the tropic out of such children as the knights of the same shall offer, not being under eleven years of age, nor above thirteen. And their election shall be made by the lot at an urn set by the sergeant of the house for that purpose in the hall of the Pantheon. The livery of the commonwealth for the fashion or the color may be changed at the election of the strategus according to his fancy. But every knight during his session shall be bound to give to his footman, or some one of his footmen, the livery of the commonwealth.

“The prerogative tribe shall receive as follows:

By the week The two tribunes of the horse..... £14 0 The two tribunes of the foot..... 12 0 The three captains of the horse..... 15 0 The three cornets..... 9 0 The three captains of the foot.... 12 0 The three ensigns..... 7 0 The 442 horse, at £2 a man..... 884 0 The 592 foot, at £1 10s a man.... 888 0 The six trumpeters..... 7 10 The three drummers..... 2 5

Sum by the week..... £1,850 15

Sum by the year..... £96,239 0

The total of the Senate, the people,

and the magistracy..... £287,459 15

“The dignity of the commonwealth, and aids of the several magistracies and offices thereto belonging, bring provided for as aforesaid, the overplus of the excise, with the product of the sum rising, shall be carefully managed by the Senate and the people through the diligence of the officers of the Exchequer, till it amount to £8,000,000, or to the purchase of about £400,000 solid revenue. At which time, the term of eleven years being expired, the excise, except it be otherwise ordered by the Senate and the people, shall be totally remitted and abolished forever.”

At this institution the taxes, as will better appear in the Corollary, were abated about one-half, which made the order, when it came to be tasted, to be of good relish with the people in the very beginning; though the advantages then were no ways comparable to the consequences to be hereafter shown. Nevertheless, my Lord Epimonus, who with much ado had been held till now, found it midsummer moon, and broke out of bedlam in this manner.

“MY LORD ARCHON:

“I have a singing in my head like that of a cart-wheel, my brains are upon a rotation; and some are so merry, that a man cannot speak his griefs, but if your high-shod prerogative, and those same slouching fellows your tribunes, do not take my lord strategus’s and my lord orator’s heads, and jolt them together under the canopy, then let me be ridiculous to all posterity. For here is a commonwealth, to which if a man should take that of the ‘prentices in their ancient administration of justice at Shrovetide, it were an aristocracy. You have set the very rabble with truncheons in their hands, and the gentry of this nation, like cocks with scarlet gills, and the golden combs of their salaries to boot, lest they should not be thrown at.

“Not a night can I sleep for some horrid apparition or other; one while these myrmidons are measuring silks by their quarterstaves, another stuffing their greasy pouches with my lord high treasurer’s jacobuses. For they are above 1,000 in arms to 300, which, their gowns being pulled over their ears, are but in their doublets and hose. But what do I speak of 1,000? There be 2,000 in every tribe, that is, 100,000 in the whole nation, not only in the posture of an army, but in a civil capacity sufficient to give us what laws they please. Now everybody knows that the lower sort of people regard nothing but money; and you say it is the duty of a legislator to presume all men to be wicked: wherefore they must fall upon the richer, as they are an army; or, lest their minds should misgive them in such a villany, you have given them encouragement that they have a nearer way, seeing it may be done every whit as well as by the overbalancing power which they have in elections. There is a fair which is annually kept in the centre of these territories at Kiberton, a town famous for ale, and frequented by good fellows; where there is a solemnity of the pipers and fiddlers of this nation (I know not whether Lacedaemon, where the Senate kept account of the stops of the flutes and of the fiddle-strings of that commonwealth, bad any such custom) called the bull-running, and he that catches and holds the bull, is the annual and supreme magistrate of that comitia or congregation, called king piper, without

whose license it is not lawful for any of those citizens to enjoy the liberty of his calling; nor is he otherwise legitimately qualified (or civitate donatus) to lead apes or bears in any perambulation of the same. Mine host of the Bear, in Kiberton, the father of ale, and patron of good football and cudgel players, has any time since I can remember been grand-chancellor of this order.

“Now, say I, seeing great things arise from small beginnings, what should hinder the people, prone to their own advantage and loving money, from having intelligence conveyed to them by this same king piper and his chancellor, with their loyal subjects the minstrels and bear-wards, masters of ceremonies, to which there is great recourse in their respective perambulations, and which they will commission and instruct, with directions to all the tribes, willing and commanding them, that as they wish their own good, they choose no other into the next primum mobile but of the ablest cudgel and football players? Which done as soon as said, your primum mobile, consisting of no other stuff, must of necessity be drawn forth into your nebulones and your galimofries; and so the silken purses of your Senate and prerogative being made of sows’ ears, most of them blacksmiths, they will strike while the iron is hot, and beat your estates into hob-nails, mine host of the Bear being strategus, and king piper lord orator. Well, my lords, it might have been otherwise expressed, but this is well enough a-conscience. In your way, the wit of man shall not prevent this or the like inconvenience; but if this (for I have conferred with artists) be a mathematical demonstration, I could kneel to you, that ere it be too late we might return to some kind of sobriety. If we empty our purses with these pomps, salaries, coaches, lackeys, and pages, what can the people say less than that we have dressed a Senate and a prerogative for nothing but to go to the park with the ladies?”

My Lord Archon, whose meekness resembled that of Moses, vouchsafed this answer:

“My LORDS:

“For all this, I can see my Lord Epimonus every night in the park, and with ladies; nor do I blame this in a young man, or the respect which is and ought to be given to a sex that is one-half of the commonwealth of mankind, and without which the other would be none: but our magistrates, I doubt, may be somewhat of the oldest to perform this part with much acceptation; and, as the Italian proverb says, ‘Servire e non gradire e cosa da far morire.’ Wherefore we will lay no certain obligation upon them in this point, but leave them, if it please you, to their own fate or discretion. But this (for I know my Lord Epimonus loves me, though I can never get his esteem) I will say, if he had a mistress should use him so, he would find it a sad life; or I appeal to your lordships, how I can resent it from such a friend, that he puts king piper’s politics in the balance with mine. King piper, I deny not, may teach his bears to dance, but they have the worst ear of all creatures. Now how he should make them keep time in fifty several tribes, and that two years together, for else it will be to no purpose, may be a small matter with my lord to promise; but it seems to me of impossible performance. First, through the nature of the bean; and, secondly, through that of the ballot; or how what he has hitherto thought so hard, is now come to be easy; but he may think that for expedition they will eat up these balls like

apples.

“However, there is so much more in their way by the constitution of this, than is to be found in that of any other commonwealth, that I am reconciled, it now appearing plainly that the points of my lord’s arrows are directed at no other white than to show the excellency of our government above others; which, as he proceeds further, is yet plainer; while he makes it appear that there can be no other elected by the people but smiths:

“‘Brontesque Steropesque et nudus membra Pyracmon:’

“Othoniel, Aod, Gideon, Jephtha, Samson, as in Israel; Miltiades, Aristides, Themistocles, Cimon, Pericles, as in Athens; Papyrius, Cincinnatus, Camillus, Fabius Scipio, as in Rome: smiths of the fortune of the commonwealth; not such as forged hob-nails, but thunderbolts. Popular elections are of that kind, that all of the rest of the world is not able, either in number or glory, to equal those of these three commonwealths. These indeed were the ablest cudgel and football players; bright arms were their cudgels, and the world was the ball that lay at their feet. Wherefore we are not so to understand the maxim of legislators, which holds all men to be wicked, as if it related to mankind or a commonwealth, the interests whereof are the only straight lines they have whereby to reform the crooked; but as it relates to every man or party, under what color soever he or they pretend to be trusted apart, with or by the whole. Hence then it is derived, which is made good in all experience, that the aristocracy is ravenous, and not the people. Your highwaymen are not such as have trades, or have been brought up to industry; but such commonly whose education has pretended to that of gentlemen. My lord is so honest, he does not know the maxims that are of absolute necessity to the arts of wickedness; for it is most certain, if there be not more purses than thieves, that the thieves themselves must be forced to turn honest, because they cannot thrive by their trade; but now if the people should turn thieves, who sees not that there would be more thieves than purses? wherefore that a whole people should turn robbers or levellers, is as impossible in the end as in the means.

“But that I do not think your artist which you mentioned, whether astronomer or arithmetician, can tell me how many barley-corns would reach to the sun, I could be content he were called to the account, with which I shall conclude this point: when by the way I have chid my lords the legislators, who, as if they doubted my tackling could not hold, would leave me to flag in a perpetual calm, but for my Lord Epimonus, who breathes now and then into my sails and stirs the waters. A ship makes not her way so briskly as when she is handsomely brushed by the waves, and tumbles over those that seem to tumble against her; in which case I have perceived in the dark that light has been struck even out of the sea, as in this place, where my Lord Epimonus feigning to give us a demonstration of one thing, has given it of another, and of a better. For the people of this nation, if they amount in each tribe to 2,000 elders and 2,000 youths upon the annual roll, holding a fifth to the whole tribe, then the whole of a tribe, not accounting women and children, must amount to 20,000; and so the whole of all the tribes, being fifty, to 1,000,000.

“Now you have 10,000 parishes, and reckoning these one with another, each at £1,000 a year dry-rent, the rent or revenue of the nation, as it is or might be let to farm, amounts to £10,000,000; and £10,000,000 in revenue divided equally to 1,000,000 of men, comes but to £10 a year to each wherewith to maintain himself, his wife and children. But he that has a cow upon the common, and earns his shilling by the day at his labor, has twice as much already as this would come to for his share; because if the land were thus divided, there would be nobody to set him on work. So my Lord Epimonus’s footman, who costs him thrice as much as one of these could thus get, would certainly lose by his bargain. What should we speak of those innumerable trades whereupon men live, not only better than others upon good shares of lands, but become also purchasers of greater estates? Is not this the demonstration which my lord meant, that the revenue of industry in a nation, at least in this, is three or four-fold greater than that of the mere rent? If the people then obstruct industry, they obstruct their own livelihood; but if they make a war, they obstruct industry. Take the bread out of the people’s mouths, as did the Roman patricians, and you are sure enough of a war, in which case they may be levellers; but our agrarian causes their industry to flow with milk and honey. It will be owned that this is true, if the people were given to understand their own happiness; but where is it they do that? Let me reply with the like question, where do they not? They do not know their happiness it should seem in France, Spain, and Italy; but teach them what it is, and try whose sense is the truer.

“As to the late wars in Germany, it has been affirmed to me there, that the princes could never make the people to take arms while they had bread, and have therefore suffered countries now and then to be wasted that they might get soldiers. This you will find to be the certain pulse and temper of the people; and if they have been already proved to be the most wise and constant order of a government, why should we think (when no man can produce one example of the common soldiery in an army mutinying because they had not captains’ pay) that the prerogative should jolt the heads of the Senate together because these have the better salaries, when it must be as evident to the people in a nation, as to the soldiery in an army, that it is no more possible their emoluments of this kind should be afforded by any commonwealth in the world to be made equal with those of the Senate, than that the common soldiers should be equal with the captains? It is enough for the common soldier that his virtue may bring him to be a captain, and more to the prerogative, that each of them is nearer to be a senator.

“If my lord thinks our salaries too great, and that the commonwealth is not housewife enough, whether is it better housewifery that she should keep her family from the snow, or suffer them to burn her house that they may warm themselves? for one of these must be. Do you think that she came off at a cheaper rate when men had their rewards by £1,000 or £2,000 a year in land if inheritance? if you say that they will be more godly than they have been, it may be ill taken; and if you cannot promise that, it is time we find out some way of stinting at least, if not curing them of that same sacra fames. On the other side, if a poor man (as such a one may save a city) gives his sweat to the public, with what conscience can you suffer his family in the meantime to starve? but he that lays his hand to this plough shall not lose by taking it

off from his own, and a commonwealth that will mend this shall be penny-wise. The Sanhedrim of Israel, being the supreme, and a constant court of judicature, could not choose but be exceeding gainful. The Senate of the Bean in Athens, because it was but annual, was moderately salaried; but that of the Areopagites, being for life, bountifully; and what advantages the senators of Lacedaemon had, where there was little money or use of it, were in honors for life. The patricians having no profit, took all. Venice being a situation where a man goes but to the door for his employment, the honor is great and the reward very little; but in Holland a councillor of state has £1,500 Flemish a year, besides other accommodations. The States-General have more. And that commonwealth looks nearer her penny than ours needs to do.

“For the revenue of this nation, besides that of her industry, it--amounts, as has been shown, to £10,000,000; and the salaries in the whole come not to £300,000 a year. The beauty they will add to the commonwealth will be exceeding great, and the people will delight in this beauty of their commonwealth; the encouragement they will give to the study of the public being very progitable, the accommodation they will afford to your magistrates very honorable and easy. And the sum, when it or twice as much was spent in bunting and housekeeping, was never any grievance to the people. I am ashamed to stand huckling upon this point; it is sordid. Your magistrates are rather to be provided with further accommodations. For what if there should be sickness? whither will you have them to remove? And this city in the soundest times, for the heat of the year, is no wholesome abode: have a care of their healths to whom you commit your own. I would have the Senate and the people, except they see cause to the contrary, every first of June to remove into the country air for the space of three months. You are better fitted with summer-houses for them than if you had built them to that purpose.

“There is some twelve miles distant the convallium upon the river Halcionia, for the tribunes and the prerogative, a palace capable of 1,000 men; and twenty miles distant you have Mount Celia, reverend as well for the antiquity as state of a castle completely capable of the Senate, the proposers having lodgings in the convallium, and the tribunes in Celia, it holds the correspondency between the Senate and the people exactly And it is a small matter for the proposers, being attended with the coaches and officers of state, besides other conveniences of their own, to go a matter of five or ten miles (those seats are not much farther distant) to meet the people upon any heath or field that shall be appointed: where, having despatched their business, they may hunt their own venison (for I would have the great walled park upon the Halcionia to belong to the signory, and those about the convallium to the tribunes) and so go to supper. Pray, my lords, see that they do not pull down these houses to sell the lead of them; for when--you have considered on it, they cannot be spared. The founders of the school in Hiera provided that the boys should have a summer seat. You should have as much care of these magistrates. But there is such a selling, such a Jewish humor in our republicans, that I cannot tell what to say to it; only this, any man that knows what belongs to a commonwealth, or how diligent every nation in that case has been to preserve her ornaments, and shall see the waste lately made (the woods adjoining to this city, which served for the delight and health of it, being cut down to be sold for threepence), will you tell that they who did such things would

never have made a commonwealth. The like may be said of the ruin or damage done upon our cathedrals, ornaments in which this nation excels all others. Nor shall this ever be excused upon the score of religion; for though it be true that God dwells not in houses made with hands, yet you cannot hold your assemblies but in such houses, and these are of the best that have been made with hands. Nor is it well argued that they are pompous, and therefore profane, or less proper for divine service, seeing the Christians in the primitive Church chose to meet with one accord in the Temple, so far were they from any inclination to pull it down."

The orders of this commonwealth, so far, or near so far as they concern the elders, together with the several speeches at the institution, which may serve for the better understanding of them as so many commentaries, being shown, I should now come from the elders to the youth, or from the civil constitution of this government to the military, but that I judge this the fittest place whereinto, by the way, to insert the government of the city though for the present but perfunctorily.

"'The metropolis or capital city of Oceana is commonly called Emporium, though it consists of two cities distinct, as well in name as in government, whereof the other is called Hiera, for which cause I shall treat of each apart, beginning with Emporium.

"Emporium, with the liberties, is under a twofold division, the one regarding the national, and the other the urban or city government. It is divided, in regard of the national government, into three tribes, and in respect of the urban into twenty six, which for distinction's sake are called wards, being contained under three tribes but unequally; wherefore the first tribe containing ten wards is called scazon, the second containing eight metoche, and the third containing as many telicouta, the bearing of which names in mind concerns the better understanding of the government.

"Every ward has her wardmote, court, or inquest, consisting of all that are of the clothing or liveries of companies residing within the same.

"Such are of the livery or clothing as have attained to the dignity to wear gowns and parti-colored hoods or tippets, according to the rules and ancient customs of their respective companies.

"A company is a brotherhood of tradesmen professing the same art, governed according to their charter by a master and wardens. Of these there be about sixty, whereof twelve are of greater dignity than the rest, that is to say, the mercers, grocers, drapers, fishmongers, goldsmiths, skinners, merchant-tailors, haberdashers, salters, ironmongers, vintners, clothworkers, which, with most of the rest, have common halls, divers of them being of ancient and magnificent structure, wherein they have frequent meetings, at the summons of their master or wardens, for the managing and regulation of their respective trades and mysteries. These companies, as I shall show, are the roots of the whole government of the city. For the liveries that reside in the same ward, meeting at the wardmote inquest (to which it belongs to take cognizance of all sorts of nuisances and violations of the customs and orders of the city, and to present them to the court of aldermen), have also power to make election of two sorts of magistrates or officers; the first of elders or aldermen of the ward, the second of deputies of the same, otherwise called common councilmen.

“The wards in these elections, because they do not elect all at once, but some one year and some another, observe the distinction of the three tribes; for example, the scazon, consisting of ten wards, makes election the first year of ten aldermen, one in each ward, and of 150 deputies, fifteen in each ward, all which are triennial magistrates or officers, that is to say, are to bear their dignity for the space of three years.

“The second year the metoche, consisting of eight wards, elects eight aldermen, one in each ward, and 120 deputies, fifteen in each ward, being also triennial magistrates.

“The third year telicouta, consisting of a like number of wards, elects an equal number of like magistrates for a like term. So that the whole number of the aldermen, according to that of the wards, amounts to twenty-six; and the whole number of the deputies, to 390.

“The aldermen thus elected have divers capacities; for, first, they are justices of the peace for the term, and in consequence of their election. Secondly, they are presidents of the wardmote and governors each of that ward whereby he was elected. And last of all, these magistrates being assembled together, constitute the Senate of the city, otherwise called the court of aldermen; but no man is capable of this election that is not worth £10,000. This court upon every new election makes choice of nine censors out of their own number.

“The deputies in like manner being assembled together, constitute the prerogative tribe of the city, otherwise called the common council, by which means the Senate and the people of the city were comprehended, as it were, by the motion of the national government, into the same wheel of annual, triennial, and perpetual revolution.

“But the liveries, over and above the right of these elections by their divisions mentioned, being assembled all together at the guild of the city, constitute another assembly called the common hall.

“The common hall has the right of two other elections; the one of the lord mayor, and the other of the two sheriffs, being annual magistrates. The lord mayor can be elected out of no other than one of the twelve companies of the first ranks; and the common hall agrees by the plurality of suffrages upon two names, which, being presented to the lord mayor for the time being, and the court of the aldermen, they elect one by their scrutiny. For so they call it, though it differs from that of the commonwealth. The orator or assistant to the lord mayor in holding of his courts, is some able lawyer elected by the court of aldermen, and called the recorder of Emporium.

“The lord mayor being thus elected, has two capacities: one regarding the nation, and the other the city. In that which regards the city, he is president of the court of aldermen, having power to assemble the same, or any other council of the city, as the common council or common hall, at his will and pleasure; and in that which regards the nation, he is commander-in-chief of the three tribes whereinto the city is divided; one of which he is to bring up in person at the national muster to the ballot, as his

vice-comites, or high sheriffs, are to do by the other two, each at their distinct pavilion, where the nine aldermen, elected censors, are to officiate by three in each tribe, according to the rules and orders already given to the censors of the rustic tribes. And the tribes of the city have no other than one common phylarch, which is the court of aldermen and the common council, for which cause they elect not at their muster the first list called the prime magnitude.

“The conveniences of this alteration of the city government, besides the bent of it to a conformity with that of the nation, were many, whereof I shall mention but a few: as first, whereas men under the former administration, when the burden of some of these magistracies lay for life, were oftentimes chosen not for their fitness, but rather unfitness, or at least unwillingness to undergo such a weight, whereby they were put at great rates to fine for their ease; a man might now take his share in magistracy with that equity which is due to the public, and without any inconvenience to his private affairs. Secondly, whereas the city (inasmuch as the acts of the aristocracy, or court of aldermen, in their former way of proceeding, were rather impositions than propositions) was frequently disquieted with the inevitable consequence of disorder in the power of debate exercised by the popular part, or common council; the right of debate being henceforth established in the court of aldermen, and that of result in the common council, killed the branches of division in the root. Which for the present may suffice to have been said of the city of Emporium.

“That of Hiera consists as to the national government of two tribes, the first called agoroea, the second propola; but as to the peculiar policy of twelve manipuls, or wards divided into three cohorts, each cohort containing four wards, whereof the wards of the first cohort elect for the first year four burgesses, one in each ward, the wards of the second cohort for the second year four burgesses, one in each ward, and the wards of the third cohort for the third year four burgesses, one in each ward, all triennial magistrates; by which the twelve burgesses, making one court for the government of this city according to their instructions by act of Parliament, fall likewise into an annual, triennial, and perpetual revolution.

“This court being thus constituted, makes election of divers magistrates; as first, of a high steward, who is commonly some person of quality, and this magistracy is elected in the Senate by the scrutiny of this court; with him they choose some able lawyer to be his deputy, and to hold the court; and last of all they elect out of their own number six censors.

“The high steward is commander-in-chief of the two tribes, whereof he in person brings up the one at the national muster to the ballot, and his deputy the other at a distinct pavilion; the six censors chosen by the court officiating by three in each tribe at the urns; and these tribes have no other phylarch but this court.

“As for the manner of elections and suffrage, both in Emporium and Hiera, it may be said, once for all, that they are performed by ballot, and according to the respective rules already given.

“There be other cities and corporations throughout the territory, whose policy being much of this kind, would be tedious and not worth the labor to insert, nor dare I

stay. Juvenum manus emicat ardens.”

I return, according to the method of the commonwealth, to the remaining parts of her orbs, which are military and provincial; the military, except the strategus, and the polemarchs or field-officers, consisting of the youth only, and the provincial consisting of a mixture both of elders and of the youth.

To begin with the youth, or the military orbs, they are circles to which the commonwealth must have a care to keep close. A man is a spirit raised by the magic of nature; if she does not stand safe, and so that she may set him to some good and useful work, he spits fire, and blows up castles; for where there is life, there must be motion or work; and the work of idleness is mischief, but the work of industry is health. To set men to this, the commonwealth must begin betimes with them, or it will be too late; and the means whereby she sets them to it is education, the plastic art of government. But it is as frequent as sad in experience (whether through negligence, or, which in the consequence is all one or worse, over-fondness in the domestic performance of this duty) that innumerable children come to owe their utter perdition to their own parents, in each of which the commonwealth loses a citizen.

Wherefore the laws of a government, how wholesome soever in themselves, are such as, if men by a congruity in their education be not bred to find a relish in them, they will be sure to loathe and detest. The education therefore of a man’s own children is not wholly to be committed or trusted to himself. You find in Livy the children of Brutus, having been bred under monarchy, and used to a court life, making faces at the Commonwealth of Rome: “A king (say they) is a man with whom you may prevail when you have need there should be law, or when you have need there should be no law; he has favors in the right, and he frowns not in the wrong place; he knows his friends from his enemies. But laws are deaf, inexorable things, such as make no difference between a gentleman and an ordinary fellow; a man can never be merry for them, for to trust altogether to his own innocence is a sad life.” Unhappy wantons! Scipio, on the other side, when he was but a boy (about two or three and twenty), being informed that certain patricians of Roman gentlemen, through a qualm upon the defeat which Hannibal had given them at Cannae, were laying their heads together and contriving their flight with the transportation of their goods out of Rome, drew his sword, and setting himself at the door of the chamber where they were at council, protested “that who did not immediately swear not to desert the commonwealth, he would make his soul to desert his body.” Let men argue as they please for monarchy, or against a commonwealth, the world shall never see any man so sottish or wicked as in cool blood to prefer the education of the sons of Brutus before that of Scipio; and of this mould, except a Melius or a Manlius, was the whole youth of that commonwealth, though not ordinarily so well cast.

Now the health of a government and the education of the youth being of the same pulse, no wonder if it has been the constant practice of well-ordered commonwealths to commit the care and feeling of it to public magistrates. A duty that was performed in such a manner by the Areopagites, as is elegantly praised by Isocrates, “the Athenians (says he) write not their laws upon dead walls, nor content themselves with having ordained punishments for crimes, but provide in such a way, by the education

of their youth, that there be no crimes for punishment." He speaks of those laws which regarded manners, not of those orders which concerned the administration of the commonwealth, lest you should think he contradicts Xenophon and Polybius. The children of Lacedaemon, at the seventh year of their age, were delivered to the poedonomi, or schoolmasters, not mercenary, but magistrates of the commonwealth, to which they were accountable for their charge; and by these at the age of fourteen they were presented to other magistrates called the beidioei, having the inspection of the games and exercises, among which that of the platanista was famous, a kind of fight in squadrons, but somewhat too fierce. When they came to be of military age they were listed of the mora, and so continued in readiness for public service under the discipline of the polemarchs. But the Roman education and discipline by the centuries and classes is that to which the Commonwealth of Oceana has had a more particular regard in her three essays, being certain degrees by which the youth commence as it were in arms for magistracy, as appears by--

The twenty-sixth order, instituting, "That if a parent has but one son, the education of that one son shall be wholly at the disposition of that parent. But whereas there be free schools erected and endowed, or to be erected and endowed in every tribe of this nation, to a sufficient proportion for the education of the children of the same (which schools, to the end there be no detriment or hindrance to the scholars upon case of removing from one to another, are every of them to be governed by the strict inspection of the censors of the tribes, both upon the schoolmaster's manner of life and teaching, and the proficiency of the children, after the rules and method of that in Hiera) if a parent has more sons than one, the censors of the tribes shall animadvert upon and punish him that sends not his sons within the ninth year of their age to some one of the schools of a tribe, there to be kept and taught, if he be able, at his own charges; and if he be not able, gratis, till they arrive at the age of fifteen years. And a parent may expect of his sons at the fifteenth year of their age, according to his choice or ability, whether it be to service in the way of apprentices to some trade or otherwise, or to further study, as by sending them to the inns of court, of chancery, or to one of the universities of this nation. But he that takes not upon him one of the professions proper to some of those places, shall not continue longer in any of them than till he has attained to the age of eighteen years; and every man having not at the age of eighteen years taken upon him, or addicted himself to the profession of the law, theology, or physic, and being no servant, shall be capable of the essays of the youth, and no other person whatsoever, except a man, having taken upon him such a profession, happens to lay it by ere he arrives at three or four and twenty years of age, and be admitted to this capacity by the respective. Phylarchs being satisfied that he kept not out so long with any design to evade the service of the commonwealth; but, that being no sooner at his own disposal, it was no sooner in his choice to come in. And if any youth or other person of this nation have a desire to travel into foreign countries upon occasion of business, delight, or further improvement of his education, the same shall be lawful for him upon a pass obtained from the censors in Parliament, putting a convenient limit to the time, and recommending him to the ambassadors by whom he shall be assisted, and to whom he shall yield honor and obedience in their respective residences. Every youth at his

return from his travel is to present the censors with a paper of his own writing, containing the interest of state or form of government of the countries, or some one of the countries, where he has been; and if it be good, the censors shall cause it to be printed and published, prefixing a line in commendation of the author.

“Every Wednesday next ensuing the last of December, the whole youth of every parish, that is to say, every man (not excepted by the foregoing part of the order), being from eighteen years of age to thirty, shall repair at the sound of the bell to their respective church, and being there assembled in presence of the overseers, who are to govern the ballot, and the constable who is to officiate at the urn, shall, after the manner of the elders, elect every fifth man of their whole number (provided that they choose not above one of two brothers at one election, nor above half if they be four or upward) to be a stratiot or deputy of the youth; and the list of the stratiots so elected being taken by the overseers, shall be entered in the parish book, and diligently preserved as a record, called the first essay. They whose estates by the law are able, or whose friends are willing, to mount them, shall be of the horse, the rest are of the foot. And he who has been one year of this list, is not capable of being re-elected till after another year’s interval.

“Every Wednesday next ensuing the last of January, the stratiots being mustered at the rendezvous of their respective hundreds, shall, in the presence of the jurymen, who are overseers of that ballot, and of the high constable who is to officiate at the urn, elect out of the horse of their troop or company one captain, and one ensign or cornet, to the command of the same. And the jurymen having entered the list of the hundred into a record to be diligently kept at the rendezvous of the same, the first public game of this commonwealth shall begin and be performed in this manner. Whereas there is to be at every rendezvous of a hundred, one cannon, culverin, or saker, the prize arms being forged by sworn armorers of this commonwealth, and for their proof, besides their beauty, viewed and tried at the tower of Emporium, shall be exposed by the justice of peace appertaining to that hundred (the said justice with the jurymen being judges of the game), and the judges shall deliver to the horseman that gains the prize at the career, one suit of arms being of the value £20, to the pikeman that gains the prize at throwing the bullet, one suit of arms of the value of £10, to the musketeer that gains the prize at the mark with his musket, one suit of arms of the value of £10, and to the cannoneer that gains the prize at the mark with the cannon, culverin, or saker, a chain of silver being the value of £10, provided that no one man at the same muster plays above one of the prizes. Whosoever gains a prize is bound to wear it (if it be his lot) upon service; and no man shall sell or give away any armor thus won, except he has lawfully attained to two or more of them at the games.

“The games being ended, and the muster dismissed, the captain of the troop or company shall repair with a copy of the list to the lord lieutenant of the tribe, and the high constable with a duplicate of the same to the custos rotulorum, or muster-master general, to be also communicated to the censors; in each of which the jurymen, giving a note upon every name of an only son, shall certify the list is without subterfuge or evasion; or, if it be not, an account of those upon whom the evasion or subterfuge lies, to the end that the phylarch or the censors may animadvert accordingly.

“And every Wednesday next ensuing the last of February, the lord lieutenant, custos rotulorum, the censors, and the conductor, shall receive the whole muster of the youth of that tribe at the rendezvous of the same, distributing the horse and foot with their officers, according to the directions given in the like case for the distribution of the elders; and the whole squadron being put by that means in battalia, the second game of this commonwealth shall begin by the exercise of the youth in all the parts of their military discipline according to the orders of Parliament, or direction of the Council of War in that case. And the £100 allowed by the Parliament for the ornament of the muster in every tribe, shall be expended by the phylarch upon such artificial castles, citadels, or the like devices, as may make the best and most profitable sport for the youth and their spectators.

“Which being ended, the censors having prepared the urns by putting into the horse-urn 220 gold balls, whereof ten are to be marked with the letter M and other ten with the letter P; into the foot-urn 700 gold balls, whereof fifty are to be marked, with the letter M and fifty with the letter P; and after they have made the gold balls in each urn, by the addition of silver balls to the same, in number equal with the horse and foot of the stratiots, the lord lieutenant shall call the stratiots to the urns, where they that draw the silver balls shall return to their places, and they that draw the gold balls shall fall off to the pavilion, where, for the space of one hour, they may chop and change their balls according as one can agree with another, whose lot he likes better.

“But the hour being out, the conductor separating them whose gold balls have no letter from those whose balls are marked, shall cause the crier to call the alphabet, as first A; whereupon all they whose gold balls are not marked, and whose surnames begin with the letter A, shall repair to a clerk appertaining to the custos rotulorum, who shall first take the names of that letter; then those of B, and so on, till all the names be alphabetically enrolled. And the youth of this list being 600 foot in a tribe, that is, 30,000 foot in all the tribes; and 200 horse in a tribe, that is, 10,000 horse in all the tribes, are the second essay of the stratiots, and the standing army of this commonwealth to be always ready upon command to march. They whose balls are marked with M, amounting, by twenty horse and fifty foot in a tribe, to 2,500 foot and 500 horse in all the tribes, and they whose balls are marked with P, in every point correspondent, are parts of the third essay; they in M being straight to march for Marpesia, and they of P for Panopea, to the ends and according to the further directions following in the order for the provincial orbs.

“If the polemarchs or field officers be elected by the scrutiny of the Council of War, and the strategus commanded by the Parliament or the Dictator to march, the lord lieutenants (who have power to muster and discipline the youth so often as they receive orders for the same from the Council of War) are to deliver the second essay, or so many of them as shall be commanded, to the conductors, who shall present them to the lord strategus at the time and place appointed by his Excellency to be the general rendezvous of Oceana, where the Council of War shall have the accommodation of horses and arms for his men in readiness; and the lord strategus having armed, mounted, and distributed them, whether according to the recommendation of their prize arms, or otherwise, shall lead them away to his

shipping, being also ready and provided with victuals, ammunition, artillery, and all other necessaries; commanding them, and disposing of the whole conduct of the war by his sole power and authority. And this is the third essay of the stratiots, which being shipped, or marched out of their tribes, the lord lieutenants shall re-elect the second essay out of the remaining part of the first, and the Senate another strategus.

“If any veteran or veterans of this nation, the term of whose youth or militia is expired, having a desire to be entertained in the further service of the commonwealth, shall present him or themselves at the rendezvous of Oceana to the strategus, it is in his power to take on such and so many of them as shall be agreed by the polemarchs, and to send back an equal number of the stratiots.

“And for the better managing of the proper forces of this nation, the lord strategus, by appointment of the Council of War, and out of such levies as they shall have made in either or both of the provinces to that end, shall receive auxiliaries by sea or elsewhere at some certain place, not exceeding his proper arms in number.

“And whosoever shall refuse any one of his three essays, except upon cause shown, he be dispensed withal by the phylarch, or, if the phylarch be not assembled, by the censors of his tribe, shall be deemed a helot or public servant, shall pay a fifth part of his yearly revenue, besides all other taxes, to the commonwealth for his protection, and be incapable of bearing any magistracy except such as is proper to the law. Nevertheless if a man has but two sons, the lord lieutenant shall not suffer above one of them to come to the Urn at one election of the second essay, and though he has above two sons, there shall not come above half the brothers at one election; and if a man has but one son, he shall not come to the urn at all without the consent of his parents, or his guardians, nor shall it be any reproach to him or impediment to his bearing of magistracy.”

This order, with relation to foreign expeditions, will be proved and explained together with--

The twenty-seventh order, “Providing, in case of invasion apprehended, that the lords high sheriffs of the tribes, upon commands received from the Parliament or the Dictator, distribute the bands of the elders into divisions, after the nature of the essays of the youth; and that the second division or essay of the elders, being made and consisting of 30,000 foot and 10,000 horse, be ready to march with the second essay of the youth, and be brought also by the conductors to the strategus.

“The second essay of the elders and youth being marched out of their tribes, the lords high sheriffs and lieutenants shall have the remaining part of the annual bands both of elders and youth in readiness, which, if the beacons be fired, shall march to the rendezvous to be in that case appointed by the Parliament or the Dictator: And the beacons being fired, the curiata comitia, or parochial congregations, shall elect a fourth both of elders and youth to be immediately upon the guard of the tribes, and dividing themselves as aforesaid, to march also in their divisions according to orders, which method in case of extremity shall proceed to the election of a third, or the levy of a second, or of the last man in the nation, by the power of the lords high sheriffs, to the end that the commonwealth in her utmost pressure may show her trust that God

in his justice will remember mercy, by humbling herself, and yet preserving her courage, discipline, and constancy, even to the last drop of her blood and the utmost farthing.

“The services performed by the youth, or by the elders, in case of invasion, and according to this order, shall be at their proper cost and charges that are any ways able to endure it; but if there be such as are known in their parishes to be so indigent that they cannot march out of their tribes, nor undergo the burden in this case incumbent, then the congregations of their parishes shall furnish them with sufficient sums of money to be repaid upon the certificate of the same by the Parliament when the action shall be over. And of that which is respectively enjoined by this order, any tribe, parish, magistrate, or person that shall fail, is to answer for it, at the Council of War, as a deserter of his country.”

The Archon, being the greatest captain of his own, if not of any age, added much to the glory of this commonwealth, by interweaving the militia with more art and lustre than any legislator from or before the time of Servius Tullius, who constituted the Roman militia. But as the bones or skeleton of a man, though the greatest part of his beauty be contained in their proportion or symmetry, yet shown without flesh are a spectacle that is rather horrid than entertaining, so without discourses are the orders of a commonwealth; which, if she goes forth in that manner, may complain of her friends that they stand mute and staring upon her. Wherefore this order was thus fleshed by the Lord Archon:

“MY LORDS:

“Diogenes seeing a young fellow drunk, told him that his father was drunk when he begot him. For this, in natural generation, I must confess I see no reason; but in the political it is right. The vices of the people are from their governors; those of their governors from their laws or orders; and those of their laws or orders from their legislators. Whatever was in the womb imperfect, as to her proper work, comes very rarely or never at all to perfection afterward; and the formation of a citizen in the womb of the commonwealth is his education.

“Education by the first of the foregoing orders is of six kinds: at the school, in the mechanics, at the universities, at the inns of court or chancery, in travels, and in military discipline, some of which I shall but touch, and some I shall handle more at large.

“That which is proposed for the erecting and endowing of schools throughout the tribes, capable of all the children of the same, and able to give to the poor the education of theirs gratis, is only matter of direction in case of very great charity, as easing the needy of the charge of their children from the ninth to the fifteenth year of their age, during which time their work cannot be profitable; and restoring them when they may be of use, furnished with tools whereof there are advantages to be made in every work, seeing he that can read and use his pen has some convenience by it in the meanest vocation. And it cannot be conceived but that which comes, though in small parcels, to the advantage of every man in his vocation, must amount

to the advantage of every vocation, and so to that of the whole commonwealth. Wherefore this is commended to the charity of every wise-hearted and well-minded man, to be done in time, and as God shall stir him up or enable him; there being such provision already in the case as may give us leave to proceed without obstruction.

“Parents, under animadversion of the censors, are to dispose of their children at the fifteenth year of their age to something; but what, is left, according to their abilities or inclination, at their own choice. This, with the multitude, must be to the mechanics, that is to say to agriculture or husbandry, to manufactures, or to merchandise.

“Agriculture is the bread of the nation; we are hung upon it by the teeth; it is a mighty nursery of strength, the best army, and the most assured knapsack; it is managed with the least turbulent or ambitious, and the most innocent hands of all other arts. Wherefore I am of Aristotle’s opinion, that a commonwealth of husbandmen--and such is ours--must be the best of all others. Certainly my lords, you have no measure of what ought to be, but what can be, done for the encouragement of this profession. I could wish I were husband good enough to direct something to this end; but racking of rents is a vile thing in the richer sort, an uncharitable one to the poorer, a perfect mark of slavery, and nips your commonwealth in the fairest blossom. On the other side, if there should be too much ease given in this kind, it would occasion sloth, and so destroy industry, the principal nerve of a commonwealth. But if aught might be done to hold the balance even between these two, it would be a work in this nation equal to that for which Fabius was surnamed Maximus by the Romans.

“In manufactures and merchandise the Hollander has gotten the start of us; but at the long run it will be found that a people working upon a foreign commodity does but farm the manufacture, and that it is really entailed upon them only where the growth of it is native; as also that it is one thing to have the carriage of other men’s goods, and another for a man to bring his own to the best market. Wherefore (nature having provided encouragement for these arts in this nation above all others, where, the people growing, they of necessity must also increase) it cannot but establish them upon a far more sure and effectual foundation than that of the Hollanders. But these educations are in order to the first things or necessities of nature; as husbandry to the food, manufacture to the clothing, and merchandise to the purse of the commonwealth.

“There be other things in nature, which being second as to their order, for their dignity and value are first; and such to which the other are but accommodations; of this sort are especially these: religion, justice, courage, and wisdom.

“The education that answers to religion in our government is that of the universities. Moses, the divine legislator, was not only skilful in all the learning of the Egyptians, but took also into the fabric of his commonwealth the learning of the Midianites in the advice of Jethro; and his foundation of a university laid in the tabernacle, and finished in the Temple, became that pinnacle from whence (according to many Jewish and Christian authors) all the learning in the world has taken wing; as

the philosophy of the Stoics from the Pharisees; that of the Epicureans from the Sadducees; and from the learning of the Jews, so often quoted by our Saviour, and fulfilled in him, the Christian religion. Athens was the most famous university in her days; and her senators, that is to say, the Areopagites, were all philosophers. Lacedaemon, to speak truth, though she could write and read, was not very bookish. But he that disputes hence against universities, disputes by the same argument against agriculture, manufacture, and merchandise; every one of these having been equally forbid by Lycurgus, not for itself (for if he had not been learned in all the learning of Crete, and well travelled in the knowledge of other governments, he had never made his commonwealth), but for the diversion which they must have given his citizens from their arms, who, being but few, if they had minded anything else, must have deserted the commonwealth. For Rome, she had ingenium par ingenio, was as learned as great, and held our College of Augurs in much reverence. Venice has taken her religion upon trust. Holland cannot attend it to be very studious. Nor does Switzerland mind it much; yet are they all addicted to their universities. We cut down trees to build houses; but I would have somebody show me, by what reason or experience the cutting down of a university should tend to the setting up of a commonwealth. Of this I am sure, that the perfection of a commonwealth is not to be attained without the knowledge of ancient prudence, nor the knowledge of ancient prudence without learning, nor learning without schools of good literature, and these are such as we call universities.

“Now though mere university learning of itself be that which (to speak the words of Verulamius) ‘crafty men contemn, and simple men only admire, yet is it such as wise men have use of; for studies do not teach their own use, but that is a wisdom without and above them, won by observation. Expert men may execute, and perhaps judge, of particulars one by one; but the general councils and the plots, and the marshalling of affairs, come best from those that are learned.’ Wherefore if you would have your children to be statesmen, let them drink by all means of these fountains, where perhaps there were never any. But what though the water a man drinks be not nourishment, it is the vehicle without which he cannot be nourished.

“Nor is religion less concerned in this point than government: for take away your universities, and in a few years you lose it. “The holy Scriptures are written in Hebrew and Greek; they that have neither of these languages may think light of both; but find me a man that has one in perfection, the study of whose whole life it has not been. Again, this is apparent to us in daily conversation, that if four or five persons that have lived together be talking, another speaking the same language may come in, and yet understand very little of their discourse, in that it relates to circumstances, persons, things, times and places which he knows not. It is no otherwise with a man, having no insight of the times in which they were written, and the circumstances to which they relate, in the reading of ancient books, whether they be divine or human. For example, when we fall upon the discourse about baptism and regeneration that was between our Saviour and Nicodemus, where Christ reproaches him with his ignorance in this matter. ‘Art thou a doctor in Israel, and understandest not these things?’ What shall we think of it? or wherefore should a doctor in Israel have understood these things more than another, but that both baptism and

regeneration, as was showed at large by my Lord Phosphorus, were doctrines held in Israel? I instance in one place of a hundred, which he, that has not mastered the circumstances to which they relate, cannot understand. Wherefore to the understanding of the Scripture, it is necessary to have ancient languages, and the knowledge of ancient times, or the aid of them who have such knowledge; and to have such as may be always able and ready to give such aid (unless you would borrow it of another nation, which would not only be base, but deceitful) it is necessary to a commonwealth that she have schools of good literature, or universities of her own.

“We are commanded, as has been said more than once, to search the Scriptures; and which of them search the Scriptures, they that take this pains in ancient languages and learning, or they that will not, but trust to translations only, and to words as they sound to present circumstances? than which nothing is more fallible, or certain to lose the true sense of Scriptures, pretended to be above human understanding, for no other cause than that they are below it. But in searching the Scriptures by the proper use of our universities, we have been heretofore blest with greater victories and trophies against the purple hosts and golden standards of the Romish hierarchy than any nation; and therefore why we should relinquish this upon the presumption of some, that because there is a greater light which they have, I do not know. There is a greater light than the sun, but it does not extinguish the sun, nor does any light of God’s giving extinguish that of nature, but increase and sanctify it. Wherefore, neither the honor bore by the Israelitish, Roman, or any other commonwealth that I have shown, to their ecclesiastics, consisted in being governed by them, but in consulting them in matters of religion, upon whose responses or oracles they did afterward as they thought fit.

“Nor would I be here mistaken, as if, by affirming the universities to be, in order both to religion and government, of absolute necessity, I declared them or the ministry in any wise fit to be trusted, so far as to exercise any power not derived from the civil magistrate in the administration of either, if the Jewish religion were directed and established by Moses, it was directed and established by the civil magistrate; or if Moses exercised this administration as a prophet, the same prophet did invest with the same administration the Sanhedrim, and not the priests; and so does our commonwealth the Senate, and not the clergy. They who had the supreme administration or government of the national religion in Athens, were the first Archon, the rex sacrificulus, or high-priest, and a polemarch, which magistrates were ordained or elected by the holding up of hands in the church, congregation, or comitia of the people. The religion of Lacedaemon was governed by the kings, who were also high-priests, and officiated at the sacrifice; these had power to substitute their pythii, ambassadors, or nuncios, by which, not without concurrence of the Senate, they held intelligence with the oracle of Apollo at Delphos. And the ecclesiastical part of the Commonwealth of Rome was governed by the pontifex maximus, the rex sacrificulus, and the Flamens, all ordained or elected by the people, the pontifex by the tribes, the King by the centuries, and the Flamens by the parishes.

“I do not mind you of these things, as if, for the matter, there were any parallel to be drawn out of their superstitions to our religion, but to show that for the manner,

ancient prudence is as well a rule in divine as human things; nay, and such a one as the apostles themselves, ordaining elders by the holding up of hands in every congregation, have exactly followed; for some of the congregations where they thus ordained elders were those of Antioch, Iconium, Lystra, Derbe, the countries of Lycaona, Pisidia, Pamphilia, Perga, with Attalia. Now that these cities and countries, when the Romans propagated their empire into Asia, were found most of them commonwealths, and that many of the rest were endued with like power, so that the people living under the protection of the Roman emperors continued to elect their own magistrates, is so known a thing, that I wonder whence it is that men, quite contrary to the universal proof of these examples, will have ecclesiastical government to be necessarily distinct from civil power, when the right of the elders ordained by the holding up of hands in every congregation to teach the people, was plainly derived from the same civil power by which they ordained the rest of their magistrates. And it is not otherwise in our commonwealth, where the parochial congregation elects or ordains its pastor. To object the Commonwealth of Venice in this place, were to show us that it has been no otherwise but where the civil power has lost the liberty of her conscience by embracing popery; as also that to take away the liberty of conscience in this administration from the civil power, were a proceeding which has no other precedent than such as is popish.

“Wherefore your religion is settled after the following manner: the universities are the seminaries of that part which is national, by which means others with all safety may be permitted to follow the liberty of their own consciences, in regard that, however they behave themselves, the ignorance of the unlearned in this case cannot lose your religion nor disturb your government, which otherwise it would most certainly do; and the universities with their emoluments, as also the benefices of the whole nation, are to be improved by such augmentations as may make a very decent and comfortable subsistence for the ministry, which is neither to be allowed synods nor assemblies, except upon the occasion shown in the universities, when they are consulted by the Council of State, and suffered to meddle with affairs of religion, nor to be capable of any other public preferment whatsoever; by which means the interest of the learned can never come to corrupt your religion, nor disturb your government, which otherwise it would most certainly do. Venice, though she does not see, or cannot help the corruption of her religion, is yet so circumspect to avoid disturbance of her government in this kind, that her Council proceeds not to election of magistrates till it be proclaimed fora papalini, by which words such as have consanguinity with red hats, or relation to the Court of Rome, are warned to withdraw.

“If a minister in Holland meddles with matter of state, the magistrate sends him a pair of shoes; whereupon, if he does not go, he is driven away from his charge. I wonder why ministers, of all men, should be perpetually tampering with government; first because they, as well as others, have it in express charge to submit themselves to the ordinances of men; and secondly because these ordinances of men must go upon such political principles as they of all others, by anything that can be found in their writings or actions, least understand: whence you have the suffrage of all nations to this sense, that an ounce of wisdom is worth a pound of clergy. Your

greatest clerks are not your wisest men: and when some foul absurdity in state is committed, it is common with the French, and even the Italians, to call it ‘pas de clerc,’ or ‘governo de prete.’ They may bear with men that will be preaching without study, while they will be governing without prudence. My lords, if you know not how to rule your clergy, you will most certainly, like a man that cannot rule his wife, have neither quiet at home nor honor abroad. Their honest vocation is to teach your children at the schools and the universities, and the people in the parishes, and yours is concerned to see that they do not play the shrews, of which parts does consist the education of your commonwealth, so far as it regards religion.

“To justice, or that part of it which is commonly executive, answers the education of the inns of court and chancery. Upon which to philosophize, requires a public kind of learning that I have not. But they who take upon them any profession proper to the educations mentioned--that is, theology, physic, or law--are not at leisure for the essays. Wherefore the essays, being degrees whereby the youth commence for all magistracies, offices, and honors in the parish, hundred, tribe, Senate, or prerogative; divines, physicians, and lawyers not taking these degrees, exclude themselves from all such magistracies, offices, and honors. And whereas lawyers are likest to exact further reason for this, they (growing up from the most gainful art at the bar to those magistracies upon the bench which are continually appropriated to themselves, and not only endowed with the greatest revenues, but also held for life) have the least reason of all the rest to pretend to any other, especially in an equal commonwealth, where accumulation of magistracy or to take a person engaged by his profit to the laws, as they stand, into the power, which is legislative, and which should keep them to what they were, or ought to he, were a solecism in prudence. It is true that the legislative power may have need of advice and assistance from the executive magistracy, or such as are learned in the law; for which cause the judges are, as they have heretofore been, assistants in the Senate. Nor, however it came about, can I see any reason why a judge, being but an assistant or lawyer, should be member of a legislative council.

“I deny not that the Roman patricians were all patrons, and that the whole people were clients, some to one family and some to another, by which means they had their causes pleaded and defended in some appearance gratis; for the patron took no money, though if he had a daughter to marry, his clients were to pay her portion, nor was this so great a grievance. But if the client accused his patron, gave testimony or suffrage against him, it was a crime of such a nature that any man might lawfully kill him as a traitor; and this, as being the nerve of the optimacy, was a great cause of ruin to that commonwealth; for when the people would carry anything that pleased not the Senate, the senators were ill provided if they could not intercede-that is, oppose it by their clients; with whom, to vote otherwise than they pleased, was the highest crime. The observation of this bond till the time of the Gracchi--that is to say, till it was too late, or to no purpose to break it--was the cause why, in all the former heats and disputes that had happened between the Senate and the people, it never came to blows, which indeed was good; but withal, the people could have no remedy, which was certainly evil. Wherefore I am of opinion that a senator ought not to be a patron or advocate, nor a patron or advocate to be a senator; for if his practice be

gratis it debauches the people, and if it be mercenary it debauches himself: take it which way you will, when he should be making of laws, he will be knitting of nets.

“Lycurgus, as I said, by being a traveller became a legislator, but in times when prudence was another thing. Nevertheless we may not shut out this part of education in a commonwealth, which will be herself a traveller; for those of this make have seen the world, especially because this is certain (though it be not regarded in our times, when things being left to take their chance, it fares with us accordingly) that no man can be a politician except he be first a historian or a traveller; for except he can see what must be, or what may be, he is no politician. Now if he has no knowledge in history he cannot tell what has been, and if he has not been a traveller, he cannot tell what is; but he that neither knows what has been, nor what is, can never tell what must be, or what may be. Furthermore, the embassies-in-ordinary by our constitution are the prizes of young men, more especially such as have been travellers. Wherefore they of these inclinations, having leave of the censors, owe them an account of their time, and cannot choose but lay it out with some ambition of praise or reward, where both are open, whence you will have eyes abroad, and better choice of public ministers, your gallants showing themselves not more to the ladies at their balls than to your commonwealth at her Academy when they return from their travels.

“But this commonwealth being constituted more especially of two elements, arms and councils, drives by a natural instinct at courage and wisdom; which he who has attained is arrived at the perfection of human nature. It is true that these virtues must have some natural root in him that is capable of them; but this amounts not to so great a matter as some will have it. For if poverty makes an industrious, a moderate estate a temperate, and a lavish fortune a wanton man, and this be the common course of things, wisdom then is rather of necessity than inclination. And that an army which was meditating upon flight, has been brought by despair to win the field, is so far from being strange, that like causes will evermore produce like effects. Wherefore this commonwealth drives her citizens like wedges; there is no way with them but thorough, nor end but that glory whereof man is capable by art or nature. That the genius of the Roman families commonly preserved itself throughout the line (as to instance in some, the Manlii were still severe, the Publicolae lovers, and the Appii haters of the people) is attributed by Machiavel to their education; nor, if interest might add to the reason why the genius of a patrician was one thing, and that of a plebeian another, is the like so apparent between different nations, who, according to their different educations, have yet as different manners. It was anciently noted, and long confirmed by the actions of the French, that in their first assaults their courage was more than that of men, and for the rest less than that of women, which nevertheless, through the amendment of their discipline, we see now to be otherwise. I will not say but that some man or nation upon an equal improvement of this kind may be lighter than some other; but certainly education is the scale without which no man or nation can truly know his or her own weight or value. By our histories we can tell when one Marpesian would have beaten ten Oceaners, and when one Oceaner would have beaten ten Marpesians. Marc Antony was a Roman, but how did that appear in the embraces of Cleopatra? You must have some other education for your youth, or they, like that passage, will show better in

romance than true story.

“The custom of the Commonwealth of Rome in distributing her magistracies without respect of age, happened to do well in Corvinus and Scipio; for which cause Machiavel (with whom that which was done by Rome, and that which is well done, are for the most part all one) commends this course. Yet how much it did worse at other times, is obvious in Pompey and Caesar, examples by which Boccalini illustrates the prudence of Venice in her contrary practice, affirming it to have been no small step to the ruin of the Roman liberty, that these (having tasted in their youth of the supreme honors) had no greater in their age to hope for, but by perpetuating of the same in themselves; which came to blood and ended in tyranny. The opinion of Verulamius is safe: ‘The errors,’ says he, ‘of young men are the ruin of business; whereas the errors of old men amount but to this, that more might have been done, or sooner.’ But though their wisdom be little, their courage is great; wherefore (to come to the main education of this commonwealth) the militia of Oceana is the province of youth.

“The distribution of this province by the essays is so fully described in the order, that I need repeat nothing; the order itself being but a repetition or copy of that original, which in ancient prudence is of all others the fairest, as that from whence the Commonwealth of Rome more particularly derived the empire of the world. And there is much more reason in this age, when governments are universally broken, or swerved from their foundations, and the people groan under tyranny, that the same causes (which could not be withstood when the world was full of popular governments) should have the like effects.

“The causes in the Commonwealth of Rome, whereof the empire of the world was not any miraculous, but a natural (nay, I may safely say a necessary) consequence, are contained in that part of her discipline which was domestic, and in that which she exercises in her provinces or conquest. Of the latter I shall have better occasion to speak when we come to our provincial orbs; the former divided the whole people by tribes, amounting, as Livy and Cicero show, at their full growth to thirty-five, and every tribe by the sense or valuation of estates into five classes: for the sixth being proletary, that is the nursery, or such as through their poverty contributed nothing to the commonwealth but children, was not reckoned nor used in arms. And this is the first point of the militia, in which modern prudence is quite contrary to the ancient; for whereas we, excusing the rich and arming the poor, become the vassals of our servants, they, by excusing the poor and arming such as were rich enough to be freemen, became lords of the earth. The nobility and gentry of this nation, who understand so little what it is to be the lords of the earth that they have not been able to keep their own lands, will think it a strange education for their children to be common soldiers, and obliged to all the duties of arms; nevertheless it is not for four shillings a week, but to be capable of being the best man in the field or in the city the latter part of which consideration makes the common soldier herein a better man than the general of any monarchical army.

“And whereas it may be thought that this would drink deep of noble blood, I dare boldly say, take the Roman nobility in the heat of their fiercest wars, and you shall not find such a shambles of them as has been made of ours by mere luxury and

slothfulness; which, killing the body, kill the soul also: Animasque in vulnere ponunt. Whereas common right is that which he who stands in the vindication of, has used that sword of justice for which he receives the purple of magistracy. The glory of a man on earth can go no higher, and if he falls he rises again, and comes sooner to that reward which is so much higher as heaven is above the earth. To return to the Roman example: every class was divided, as has been more than once shown, into centuries, and every century was equally divided into youth and elders; the youth for foreign service, and the elders for the guard of the territory. In the first class were about eighteen centuries of horse, being those which, by the institution of Servius, were first called to the suffrage in the centurial assemblies. But the delectus, or levy of an army, which is the present business, proceeded, according to Polybius, in this manner:

"Upon a war decreed, the Consuls elected four-and-twenty military tribunes or colonels, whereof ten, being such as had merited their tenth stipend, were younger officers. The tribunes being chosen, the Consuls appointed a day to the tribes, when those in them of military age were to appear at the capitol. The day being come, and the youth assembled accordingly, the Consuls ascended their tribunal, and the younger tribunes were straight divided into four parts after this manner: four were assigned to the first legion (a legion at the most consisted of 6,000 foot and 300 horse), three to the second, four to the third, and three to the fourth. The younger tribunes being thus distributed, two of the elder were assigned to the first legion, three to the second, two to the third, and three to the fourth; and the officers of each legion thus assigned, having drawn the tribes by lot, and being seated according to their divisions at a convenient distance from each other, the tribe of the first lot was called, whereupon they that were of it knowing the business, and being prepared, presently bolted out four of their number, in the choice whereof such care was taken that they offered none that was not a citizen, no citizen that was not of the youth, no youth that was not of some one of the five classes, nor any one of the five classes that was not expert at his exercises. Moreover, they used such diligence in matching them for age and stature, that the officers of the legion, except they happened to be acquainted with the youth so bolted, were forced to put themselves upon fortune, while they of the first legion chose one, they of the second the next, they of the third another and the fourth youth fell to the last legion; and thus was the election (the legions and the tribes varying according to their lots) carried on till the foot were complete.

"The like course with little alteration was taken by the horse officers till the horse also were complete. This was called giving of names, which the children of Israel did also by lot; and if any man refused to give his name, he was sold for a slave, or his estate confiscated to the commonwealth. 'When Marcus Curius the Consul was forced to make a sudden levy, and none of the youth would give in their names, all the tribes being put to the lot, he commanded the first name drawn out of the urn of the Pollian tribe (which happened to come first) to be called; but the youth not answering, he ordered his goods to be sold; which was conformable to the law in Israel, according to which Saul took a yoke of oxen, and hewed them in pieces, and sent them throughout the tribes, saying, 'Whosoever comes not forth to battle after Saul and Samuel, so

shall it be done to his oxen.’ By which you may observe also that they who had no cattle were not of the militia in Israel. But the age of the Roman youth by the Tullian law determined at thirty; and by the law (though it should seem by Machiavel and others that this was not well observed) a man could not stand for magistracy till he was miles emeritus, or had fulfilled the full term of his militia, which was complete in his tenth stipend or service, nor was he afterward obliged under any penalty to give his name, except the commonwealth were invaded, in which case the elders were as well obliged as the youth. The Consul might also levy milites evocatos, or soldiers, commanded men out of such as had served their turn, and this at his discretion. The legions being thus complete, were divided by two to each consul, and in these no man had right to serve but a Roman citizen; now because two legions made but a small army, the Romans added to every one of their arms an equal number of foot, and a double number of horse levied among their Latin or Italian associates; so a consular army, with the legions and auxiliaries, amounted to about 30,000, and whereas they commonly levied two such armies together, these being joined made about 60,000.

“The steps whereby our militia follows the greatest captain, are the three essays; the first, elected by a fifth man in the parishes, and amounting in the whole to 100,000, choose their officers at the hundreds, where they fall also to their games or exercises, invited by handsome prizes, such as for themselves and the honor of them will be coveted, such as will render the hundred a place of sports, and exercise of arms all the year long, such as in the space of ten years will equip 30,000 men horse and foot, with such arms for their forge, proof, and beauty, as (notwithstanding the argyraspides, or silver shields of Alexander’s guards) were never worn by so many, such as will present marks of virtue and direction to your general or strategus in the distribution of his army, which doubles the value of them to the proprietors, who are bound to wear them, and eases the commonwealth of so much charge, so many being armed already.

“But here will be the objection now. How shall such a revenue be compassed? Fifty pounds a year in every hundred is a great deal, not so easily raised; men will not part with their money, nor would the sum, as it is proposed by the order of Pompey, rise in many years. These are difficulties that fit our genius exactly, and yet £1,000 in each hundred, once levied, establishes the revenue forever. Now the hundreds one with another are worth £10,000 a year dry-rent, over and above personal estates, which bring it to twice the value, so that a twentieth part of one year’s revenue of the hundred does it, if you cannot afford this while you pay taxes, though from henceforth they will be but small ones, do it when you pay none, if it be then too much for one year, do it in two; if it be too much for two years, do it in four. What husbands have we hitherto been? what is become of greater sums? My lords, if you should thus cast your bread upon the waters, after many days you shall find it; stand not huckling when you are offered corn and your money again in the mouth of the sack.

“But to proceed: the first essay being officered at the hundreds, and mustered at the tribes (where they are entertained with other sports, which will be very fine ones), proceeds to the election of the second essay, or standing army of this nation, consisting of 30,000 foot and 10,000 horse; and these, upon a war decreed, being

delivered at the rendezvous of Oceana to the strategus, are the third essay, which answers to the Roman legions. But you may observe, that whereas the consuls elected the military tribunes, and raised commanded men out of the veterans at their own discretion, our polemarchs, or field officers, are elected by the scrutiny of the Council of War, and our veterans not otherwise taken on than as volunteers, and with the consent of the polemarchs, which may serve for the removal of certain scruples which might otherwise be incident in this place, though without encouragement by the Roman way of proceeding, much less by that which is proposed. But whereas the Roman legions in all amounted not in one army to above 30,000 men, or little more, you have here 40,000; and whereas they added auxiliaries, it is in this regard that Marpesia will be a greater revenue to you than if you had the Indies; for whereas heretofore she has yielded you nothing but her native thistles, in ploughing out the rankness of her aristocracy by your agrarian, you will find her an inexhaustible magazine of men, and to her own advantage, who will make a far better account by the arms than by the pins of Poland. Wherefore as a consular army consisted of about an equal number of auxiliaries added to their legions by their Latin or Italian associates, you may add to a parliamentary army an equal number of Marpesians or Panopeans, as that colony shall hereafter be able to supply you, by which means the commonwealth will be able to go forth to battle with 80,000 men.

"To make wars with small forces is no husbandry, but a waste, a disease, a lingering and painful consumption of men and money the Romans making theirs thick, made them short, and had little regard to money, as that which they who have men enough can command where it is fittest that it should be levied. All the ancient monarchies by this means got on wing, and attained to vast riches. Whereas your modern princes being dear purchasers of small parcels, have but empty pockets. But it may be some will accuse the order of rashness, in that it commits the sole conduct of the war to the general; and the custom of Venice by her proveditori, or checks upon her commanders-in-chief, may seem to be of greater prudence; but in this part of our government neither Venice nor any nation that makes use of mercenary forces is for our instruction. A mercenary army, with a standing general, is like the fatal sister that spins; but proper forces, with an annual magistrate, are like her that cuts the thread. Their interests are quite contrary, and yet you have a better proveditor than the Venetian, another strategus sitting with an army standing by him; whereupon that which is marching, if there were any probability it should, would find as little possibility that it could recoil, as a foreign enemy to invade you. These things considered, a war will appear to be of a contrary nature to that of all other reckonings, inasmuch as of this you must never look to have a good account if you be strict in imposing checks. Let a council of huntsmen, assembled beforehand, tell you which way the stag shall run, where you shall cast about at the fault, and how you shall ride to be in at the chase all the day; but these may as well do that, as a council of war direct a general. The hours that have painted wings, and of different colors, are his council; he must be like the eye that makes not the scene, but has it so soon as it changes. That in many counsellors there is strength, is spoken of civil administrations; as to those that are military, there is nothing more certain than that in many counsellors there is weakness. Joint commissions in military affairs, are like

hunting your hounds in their couples. In the Attic War Cleomenes and Demaratus, Kings of Lacedaemon, being thus coupled, tugged one against another; and while they should have joined against the Persian, were the cause of the common calamity, whereupon that commonwealth took better counsel, and made a law whereby from henceforth there went at once but one of her kings to battle.

"'The Fidenati being in rebellion, and having slain the colony of the Romans, four tribunes with consular power were created by the people of Rome, whereof one being left for the guard of the city, the other three were sent against the Fidenati, who, through the division that happened among them, brought nothing home but dishonor, whereupon the Romans created the Dictator, and Livy gives his judgment in these words: "The three tribunes with consular power were a lesson how useless in war is the joint command of several generals; for each following his own counsels, while they all differed in their opinions, gave by this opportunity an advantage to the enemy." When the consuls Quintus and Agrippa were sent against the AEqui, Agrippa for this reason refused to go with his colleague, saying: "That in the administration of great actions it was most safe that the chief command should be lodged in one person." And if the ruin of modern armies were well considered, most of it would be found to have fallen upon this point, it being in this case far safer to trust to any one man of common prudence, than to any two or more together of the greatest parts.' The consuls indeed, being equal in power, while one was present with the Senate, and the other in the field with the army, made a good balance; and this with us is exactly followed by the election of a new strategus upon the march of the old one.

"The seven-and-twentieth order, whereby the elders in case of invasion are obliged to equal duty with the youth, and each upon their own charge, is suitable to reason (for every man defends his own estate) and to our copy, as in the war with the Samnites and Tuscans. 'The Senate ordered a vacation to be proclaimed, and a levy to be made of all sorts of persons, and not only the freemen and youths were listed, but cohorts of the old men were likewise formed.' This nation of all others is the least obnoxious to invasion. Oceana, says a French politician, is a beast that cannot be devoured but by herself. Nevertheless, that government is not perfect which is not provided at all points; and in this (ad triarios res rediit) the elders being such as in a martial state must be veterans, the commonwealth invaded gathers strength like Antaeus by her fall, while the whole number of the elders, consisting of 500,000, and the youth of as many, being brought up according to the order, give twelve successive battles, each battle consisting of 80,000 men, half elders and half youth. And the commonwealth, whose constitution can be no stranger to any of those virtues which are to be acquired in human life, grows familiar with death ere she dies. If the hand of God be upon her for her transgressions, she shall mourn for her sins, and lie in the dust for her iniquities, without losing her manhood.

"'Si fractus illabatur orbis, Impavidam ferient ruinoe.'"

The remaining part, being the constitution of the provincial orb, is partly civil, or consisting of the elders; and partly military, or consisting of the youth. The civil part of the provincial orb is directed by--

The twenty-eighth order, “Whereby the council of a province being constituted of twelve knights, divided by four into three regions (for their term and revolution conformable to the Parliament), is perpetuated by the annual election at the tropic of four knights (being triennial magistrates) out of the region of the Senate whose term expires; and of one knight out of the same region to be strategus or general of the province, which magistracy is annual. The strategus or magistrate thus chosen shall be as well president of the provincial council with power to propose to the same, as general of the army. The council for the rest shall elect weekly provosts, having any two of them also right to propose after the manner of the senatorian councils of Oceana. And whereas all provincial councils are members of the Council of State, they may and ought to keep diligent correspondence with the same, which is to be done after this manner: Any opinion or opinions legitimately proposed and debated at a provincial council, being thereupon signed by the strategus or any two of the provosts, may be transmitted to the Council of State in Oceana; and the Council of State proceeding upon the same in their natural course (whether by their own power, if it be a matter within their instructions; or by authority of the Senate thereupon consulted, if it be a matter of state which is not in their instructions; or by authority of the Senate and command of the people, if it be a matter of law, as for the levies of men or money upon common use and safety) shall return such answers, advice, or orders as in any of the ways mentioned shall be determined upon the case.

“The provincial councils of Marpesia and Panopea respectively shall take special care that the agrarian laws, as also all other laws that be or shall from time to time be enacted by the Parliament of Oceana, for either of them, be duly put in execution; they shall manage and receive the customs of either nation for the shipping of Oceana, being the common guard; they shall have a care that moderate and sufficient pay upon the respective province be duly raised for the support and maintenance of the officers and soldiers, or army of the same, in the most effectual, constant, and convenient way; they shall receive the regalia, or public revenues of those nations, out of which every councillor shall have for his term, and to his proper use, the sum of £500 per annum, and the strategus £500 as president, beside his pay as general, which shall be £1,000, the reminder to go to the use of the knights and deputies of the respective provinces, to be paid, if it will reach, according to the rates of Oceana; if not, by an equal distribution, respectively, or the overplus, if there be any, to be returned to the Treasury of Oceana. They shall manage the lands (if there be any such held in either of the provinces by the commonwealth of Oceana, in dominion) and return the rents into the Exchequer. If the commonwealth comes to be possessed of richer provinces, the pay of the general or strategus, and of the councils, may be respectively increased. The people for the rest shall elect their own magistrates, and be governed by their own laws, having power also to appeal from their native or provincial magistrates, if they please, to the people of Oceana. And whereas there may be such as receiving injury, are not able to prosecute their appeals at so great a distance, eight sergeants-at-law, being sworn by the commissioners of the seal, shall be sent by four into each province once in two years; who, dividing the same by circuits, shall hear such causes, and having gathered and introduced them, shall return to the several appellants, gratis, the determinations and decrees of the people

in their several cases.

“The term of a knight in a provincial orb, as to domestic magistracies, shall be esteemed a vacation, and no bar to present election to any other honor, his provincial magistracy being expired.

“The quorum of a provincial council, as also of every other council or assembly in Oceana, shall in time of health consist of two parts in three of the whole number proper to that council or assembly; and in a time of sickness, of one part in three; but of the Senate there can be no quorum without three of the signory, nor of a council without two of the provosts.”

The civil part of the provincial orb being declared by the foregoing order, the military part of the same is constituted by--

The twenty-ninth order, “Whereby the stratiots of the third essay having drawn the gold balls marked with the letter M, and being ten horse and fifty foot in a tribe, that is to say, 500 horse and 2,500 foot in all, the tribes shall be delivered by the respective conductors to the provincial strategus or general, at such a time and place, or rendezvous, as he shall appoint by order and certificate of his election, and the strategus having received the horse and foot mentioned, which are the third classes of his provincial guard or army, shall forthwith lead them away to Marpesia, where the army consists of three classes, each class containing 3,000 men, whereof 500 are horse; and receiving the new strategus with the third class, the old strategus with the first class shall be dismissed by the provincial council. The same method with the stratiots of the letter P, is to be observed for the provincial orb of Panopea; and the commonwealth coming to acquire new provinces, the Senate and the people may erect new orbs in like manner, consisting of greater or less numbers, according as is required by the respective occasion. If a stratiot has once served his term in a provincial orb, and happens afterward to draw the letter of a province at the election of the second essay, he may refuse his lot; and if he refuses it, the censor of that urn shall cause the files balloting at the same to make a halt; and if the stratiot produces the certificate of his strategus or general, that he has served his time accordingly, the censor throwing the ball that he drew into the urn again, and taking out a blank, shall dismiss the youth, and cause the ballot to proceed.”

To perfect the whole structure of this commonwealth, some directions are given to the third essay, or army marching, in--

The thirtieth order. “‘When thou goest to battle against thy enemies, and seest horses and chariots, and a people more than thou, be not afraid of them, for the Lord thy God is he that goes with thee to fight for thee against thy enemies. And when thou dividest the spoil, it shall be as a statute and an ordinance to thee, that as his part is that goes down to the battle, so shall his part be that tarries by the stuff; that is (as to the commonwealth of Oceana) the spoil takin of the enemy (except clothes, arms, horses, ammunition, and victuals, to be divided to the soldiery by the strategus and the polemarchs upon the place according to their discretion) shall be delivered to four commissaries of the spoils elected and sworn by the Council of War, which commissaries shall be allowed shipping by the State, and convoys according as

occasion shall require by the strategus, to the end that having a bill of lading signed by three or more of the polemarchs, they may ship and bring, or cause such spoils to be brought to the prize-office in Oceana, where they shall be sold, and the profit arising by such spoils shall be divided into three parts, whereof one shall go to the Treasury, another shall be paid to the soldiery of this nation, and a third to the auxiliaries at their return from their service, provided that the said auxiliaries be equal in number to the proper forces of this nation, otherwise their share shall be so much less as they themselves are fewer in number; the rest of the two-thirds to go to the officers and soldiers of the proper forces. And the spoils so divided to the proper forces, shall be subdivided into three equal parts, whereof one shall go to the officers, and two to the common soldiers, the like for the auxiliaries. And the share allotted the officers shall be divided into four equal parts, whereof one shall go to the strategus, another to the polemarchs, a third to the colonels, and a fourth to the captains, cornets, ensigns, and under-officers, receiving their share of the spoil as common soldiers, the like for the auxiliaries. And this upon pain, in the case of failure, of what the people of Oceana (to whom the cognizance of peculation or crimes of this nature is properly appertaining) shall adjudge or decree."

Upon these three last orders the Archon seemed to be haranguing at the head of his army in this manner:

"MY DEAR LORDS AND EXCELLENT PATRIOTS:

"A government of this make is a commonwealth for increase. Of those for preservation, the inconveniences and frailties have been shown: their roots are narrow, such as do not run, have no fibres; their tops weak and dangerously exposed to the weather, except you chance to find one, as Venice, planted in a flower-pot, and if she grows, she grows topheavy, and falls, too. But you cannot plant an oak in a flowerpot; she must have earth for her root, and heaven for her branches.

"'Imperium Oceano, famam quoe terminet astris.'

"Rome was said to be broken by her own weight, but poetically; for that weight by which she was pretended to be ruined was supported in her emperors by a far slighter foundation. And in the common experience of good architecture, there is nothing more known than that buildings stand the firmer and the longer for their own weight, nor ever swerve through any other internal cause than that their materials are corruptible; but the people never die, nor, as a political body, are subject to any other corruption than that which derives from their government. Unless a man will deny the chain of causes, in which he denies God, he must also acknowledge the chain of effects; wherefore there can be no effect in nature that is not from the first cause, and those successive links of the chain without which it could not have been. Now except a man can show the contrary in a commonwealth, if there be no cause of corruption in the first make of it, there can never be any such effect. Let no man's superstition impose profaneness upon this assertion; for as man is sinful, but yet the universe is perfect, so may the citizen be sinful, and yet the commonwealth be perfect. And as man, seeing the world is perfect, can never commit any such sin as

shall render it imperfect, or bring it to a natural dissolution, so the citizen, where the commonwealth is perfect, can never commit any such crime as will render it imperfect, or bring it to a natural dissolution.

“To come to experience: Venice, notwithstanding we have found some flaws in it, is the only commonwealth in the make whereof no man can find a cause of dissolution; for which reason we behold her (though she consists of men that are not without sin) at this day with 1,000 years upon her back, yet for any internal cause, as young, as fresh, and free from decay, or any appearance of it, as she was born; but whatever in nature is not sensible of decay by the course of 1,000 years, is capable of the whole age of nature; by which calculation, for any check that I am able to give myself, a commonwealth, rightly ordered, may for any internal causes be as immortal or long-lived as the world. But if this be true, those commonwealths that are naturally fallen, must have derived their ruin from the rise of them. Israel and Athens died, not natural, but violent deaths, in which manner the world itself is to die. We are speaking of those causes of dissolution which are natural to government; and they are but two, either contradiction or inequality. If a commonwealth be a contradiction, she must needs destroy herself; and if she be unequal, it tends to strife, and strife to ruin. By the former of these fell Lacedaemon, by the latter Rome. Lacedaemon being made altogether for war, and yet not for increase, her natural progress became her natural dissolution, and the building of her own victorious hand too heavy for her foundation, so that she fell, indeed, by her own weight. But Rome perished through her native inequality, which how it inveterated the bosoms of the Senate and the people each against other, and even to death, has been shown at large.

“Look well to it, my lords, for if there be a contradiction or inequality in your commonwealth, it must fall; but if it has neither of these, it has no principle of mortality. Do not think me impudent; if this be truth, I shall commit a gross indiscretion in concealing it. Sure I am that Machiavel is for the immortality of a commonwealth upon far weaker principles. ‘If a commonwealth,’ says he, ‘were so happy as to be provided often with men, that, when she is swerving from her principles, should reduce her to her institution, she would be immortal.’ But a commonwealth, as we have demonstrated, swerves not from her principles, but by and through her institution; if she brought no bias into the world with her, her course for any internal cause must be straightforward, as we see is that of Venice. She cannot turn to the right hand nor to the left, but by some rub, which is not an internal, but external, cause: against such she can be no way fortified but through her situation, as is Venice, or through her militia, as was Rome, by which examples a commonwealth may be secure of those also. Think me not vain, for I cannot conceal my opinion here; a commonwealth that is rightly instituted can never swerve, nor one that is not rightly instituted be secured from swerving by reduction to her first principles; wherefore it is no less apparent in this place that Machiavel understood not a commonwealth as to the whole piece, than where having told you that a tribune, or any other citizen of Rome, might propose a law to the people, and debate it with them, he adds, ‘this order was good while the people were good; but when the people became evil, it became most pernicious.’ As if this order (through which, with the like, the people most apparently became evil) could ever have been good, or that the

people or the commonwealth could ever have become good, by being reduced to such principles as were the original of their evil.

“The disease of Rome was, as has been shown, from the native inequality of her balance, and no otherwise from the empire of the world, than as, this falling into one scale, that of the nobility (an evil in such a fabric inevitable) kicked out the people. Wherefore a man that could have made her to throw away the empire of the world, might in that have reduced her to her principles, and yet have been so far from rendering her immortal that, going no further, he should never have cured her. But your commonwealth is founded upon an equal agrarian; and if the earth be given to the sons of men, this balance is the balance of justice, such a one as in having due regard to the different industry of different men, yet faithfully judges the poor’ And the king that faithfully judges the poor, his throne shall be established forever;, much more the commonwealth, seeing that equality, which is the necessary dissolution of monarchy, is the generation, the very life and soul, of a commonwealth. And now, if ever, I may be excusable, seeing my assertion, that the throne of a commonwealth may be established forever, is consonant to the holy Scriptures.

“The balance of a commonwealth that is equal is of such a nature that whatever falls into her empire must fall equally; and if the whole earth falls into your scales, it must fall equally, and so you may be a greater people and yet not swerve from your principles one hair. Nay, you will be so far from that that you must bring the world in such a case to your balance, even to the balance of justice. But hearken, my lords; are we on earth, do we see the sun, or are we visiting those shady places which are feigned by the poets?

“‘Continuo auditoe voces, vagitus et ingens.’

“These Gothic empires that are yet in the world, were at the first, though they had legs of their own, but a heavy and unwieldy burden; but their foundations being now broken, the iron of them enters even into the souls of the oppressed; and hear the voice of their comforters: ‘My father hath chastised you with whips, but I will chastise you with scorpions.’ Hearken, I say, if thy brother cries to thee in affliction, wilt thou not hear him? This is a commonwealth of the fabric that has an open ear and a public concern; she is not made for herself only, but given as a magistrate of God to mankind, for the vindication of common right and the law of nature. Wherefore says Cicero of the like, that of the Romans, ‘We have rather undertaken the patronage than the empire of the world.’ If you, not regarding this example, like some other nations that are upon the point to smart for it, shall, having attained to your own liberty, bear the sword of your common magistracy in vain, sit still and fold your arms, or, which is worse, let out the blood of your people to tyrants, to be shed in the defence of their yokes like water, and so not only turn the grace of God into wantonness, but his justice into wormwood: I say if you do thus, you are not now making a commonwealth, but heaping coals of fire upon your own heads. A commonwealth of this make is a minister of God upon earth, to the end that the world may be governed with righteousness. For which cause (that I may come at length to our present business) the orders last rehearsed are buds of empire, such as with the blessing of God may spread the arms of your commonwealth, like a holy asylum, to

the distressed world, and give the earth her sabbath of years, or rest from her labors, under the shadow of your wings. It is upon this point where the writings of Machiavel, having for the rest excelled all other authors, come as far to excel themselves.

“Commonwealths, says he, have had three ways of propagating themselves: One after the manner of monarchies, by imposing the yoke, which was the way of Athens, and, toward the latter times, of Lacedaemon; another by equal leagues, which is the way of Switzerland (I shall add of Holland, though since his time); a third by unequal leagues, which, to the shame of the world, was never practised, nay, nor so much as seen or minded, by any other commonwealth but that only of Rome. They will each of them, either for caution or imitation, be worthy to be well weighed, which is the proper work of this place. Athens and Lacedaemon have been the occasion of great scandal to the world, in two, or at least one of two regards: the first, their emulation, which involved Greece in perpetual wars; the second, their way of propagation, which by imposing yokes upon others, was plainly contradictory to their own principles.

“For the first: governments, be they of what kind soever, if they be planted too close, are like trees, that impatient in their growth to have it hindered, eat out one another. It was not unknown to these in speculation, or, if you read the story of Agesilaus, in action, that either of them with 30,000 men might have mastered the East; and certainly, if the one had not stood in the other’s light, Alexander had come too late to that end, which was the means (and would be if they were to live again) of ruin, at least to one of them; wherefore with any man that understands the nature of government this is excusable. So it was between Oceana and Marpesia; so it is between France and Spain, though less excusable; and so it ever will be in the like cases. But to come to the second occasion of scandal by them given, which was in the way of their propagation, it is not excusable; for they brought their confederates under bondage, by which means Athens gave occasion of the Peloponnesian War, the wound of which she died stinking, when Lacedaemon, taking the same infection from her carcass, soon followed.

“Wherefore, my lords, let these be warnings to you not to make that liberty which God has given you a snare to others in practising this kind of enlargement to yourselves.

“The second way of propagation or enlargement used by commonwealths is that of Switzerland and Holland, equal leagues; this, though it be not otherwise mischievous, is useless to the world, and dangerous to themselves: useless to the world, for as the former governments were storks, these are blocks, have no sense of honor, or concern in the sufferings of others. But as the AEtolians, a state of the like fabric, were reproached by Philip of Macedon to prostitute themselves; by letting out their arms to the lusts of others, while they leave their own liberty barren and without legitimate issue; so I do not defame these people; the Switzer for valor has no superior, the Hollander for industry no equal; but themselves in the meantime shall so much the less excuse their governments, seeing that to the Switz it is well enough known that the ensigns of his commonwealth have no other motto than in te converte manus; and that of the Hollander, though he sweats more gold than the Spaniard

digs, lets him languish in debt; for she herself lives upon charity. These are dangerous to themselves, precarious governments, such as do not command, but beg their bread from province to province, in coats that being patched up of all colors are in effect of none. That their cantons and provinces are so many arrows, is good; but they are so many bows too, which is naught.

“Like to these was the commonwealth of the ancient Tuscans, hung together like bobbins, without a hand to weave with them; therefore easily overcome by the Romans, though at that time, for number, a far less considerable people. If your liberty be not a root that grows, it will be a branch that withers, which consideration brings me to the paragon, the Commonwealth of Rome.

“The ways and means whereby the Romans acquired the patronage, and in that the empire, of the world were different, according to the different condition of their commonwealth in her rise and in her growth: in her rise she proceeded rather by colonies, in her growth by unequal leagues. Colonies without the bounds of Italy she planted none (such dispersion of the Roman citizen as to plant him in foreign parts, till the contrary interest of the emperors brought in that practice, was unlawful), nor did she ever demolish any city within that compass, or divest it of liberty; but whereas the most of them were commonwealths, stirred ‘up by emulation of her great felicity to war against her, if she overcame any, she confiscated some part of their lands that were the greatest incendiaries, or causes of the trouble, upon which she planted colonies of her own people, preserving the rest of their lands and liberties for the natives or inhabitants. By this way of proceeding, that I may be as brief as possible, she did many and great things. For in confirming of liberty, she propagated her empire; in holding the inhabitants from rebellion, she put a curb upon the incursion of enemies; in exonerating herself of the poorer sort, she multiplied her citizens; in rewarding her veterans, she rendered the rest less seditious; and in acquiring to herself the reverence of a common parent, she from time to time became the mother of new-born cities.

“In her further growth the way of her propagation went more upon leagues, which for the first division were of two kinds, social and provincial.

“Again, social leagues, or leagues of society, were of two kinds:

“The first called Latinity or Latin, the second Italian right.” The league between the Romans and the Latins, or Latin right, approached nearest to jus quiritium, or the right of a native Roman. The man or the city that was honored with this right, was civitate donatus cum suffragio, adopted a citizen of Rome, with the right of giving suffrage with the people in some cases, as those of conformation of law, or determination in judicature, if both the Consuls were agreed, not otherwise; wherefore that coming to little, the greatest and most peculiar part of this privilege was, that who had borne magistracy (at least that of oedile or quoestor) in any Latin city, was by consequence of the same a citizen of Rome at all points.

“Italian right was also a donation of the city, but without suffrage: they who were in either of these leagues, were governed by their own laws and magistrates, having all the rights, as to liberty, of citizens of Rome, yielding and praying to the

commonwealth as head of the league, and having in the conduct of all affairs appertaining to the common cause, such aid of men and money as was particularly agreed to upon the merit of the cause, and specified in their respective leagues, whence such leagues came to be called equal or unequal accordingly.

“Provincial leagues were of different extension, according to the merit and capacity of a conquered people; but they were all of one kind, for every province was governed by Roman magistrates, as a praetor or a proconsul, according to the dignity of the province, for the civil administration and conduct of the provincial army, and a quaestor for the gathering of the public revenue, from which magistrates a province might appeal to Rome.

“For the better understanding of these particulars, I shall exemplify in as many of them as is needful, and first in Macedon:

“The Macedonians were thrice conquered by the Romans, first under the conduct of Titus Quintus Flaminius; secondly, under that of Lucius AEmilius Paulus; and, thirdly under that of Quintus Caecilius Metellus, thence called Macedonicus.

“For the first time Philip of Macedon, who (possessed of Acrocorinthus) boasted no less than was true, that he had Greece in fetters, being overcome by Flaminius, had his kingdom restored to him, upon condition that he should immediately set all the cities which he held in Greece and in Asia at liberty, and that he should not make war out of Macedon but by leave of the Senate of Rome; which Philip (having no other way to save anything) agreed should be done accordingly.

“The Grecians being at this time assembled at the isthmian games, where the concourse was mighty great, a crier, appointed to the office by Flaminius, was heard among them proclaiming all Greece to be free; to which the people being amazed at so hopeless a thing, gave little credit, till they received such testimony of the truth as put it past all doubt, whereupon they fell immediately on running to the proconsul with flowers and garlands, and such violent expressions of their admiration and joy, as, if Flaminius, a young man, about thirty-three, had not also been very strong, he must have died of no other death than their kindness, while everyone striving to touch his hand, they bore him up and down the field with an unruly throng, full of such ejaculations as these: How is there a people in the world, that at their own charge, at their own peril, will fight for the liberty of another? Did they live at the next door to the fire? Or what kind of men are these, whose business it is to pass the seas, that the world may be governed with righteousness? The cities of Greece and of Asia shake off their iron fetters at the voice of a crier was it madness to imagine such a thing, and is it done? O virtue! O felicity! O fame!

“In this example your lordships have a donation of liberty or of Italian right to a people, by restitution to what they had formerly enjoyed; and some particular men, families or cities, according to their merit of the Romans, if not upon this, yet upon the like occasions, were gratified with Latinity.” But Philip’s share by this means did not please him, wherefore the league was broken by his son Perseus; and the Macedonians thereupon for the second time conquered by AEmilius Paulus, their King taken, and they some time after the victory summoned to the tribunal of the

general; where, remembering how little hope they ought to have of pardon, they expected some dreadful sentence: when AEmilius, in the first place, declared the Macedonians to be free, in the full possession of their lands, goods, and laws, with right to elect annual magistrates, yielding and paying to the people of Rome one-half of the tribute which they were accustomed to pay to their own kings. This done he went on, making so skilful a division of the country in order to the methodizing of the people, and casting them into the form of popular government, that the Macedonians, being first surprised with the virtue of the Romans, began now to alter the scene of their admiration, that a stranger should do such things for them in their own country, and with such facility as they had never so much as once imagined to be possible. Nor was this all; for AEmilius, as if not dictating to conquered enemies, but to some well-deserving friends, gave them in the last place laws so suitable, and contrived with such care and prudence, that long use and experience (the only correctness of works of this nature) could never find a fault in them.

“In this example you have a donation of liberty, or of Italian right, to a people that had not tasted of it before, but were now taught how to use it.

“My lords, the royalists should compare what we are doing, and we what hitherto we have done for them, with this example. It is a shame that while we are boasting up ourselves above all others, we should yet be so far from imitating such examples as these, that we do not so much as understand that if government be the parent of manners, where there are no heroic virtues, there is no heroic government.

“But the Macedonians rebelling, at the name of a false Philip, the third time against the Romans, were by them judged incapable of liberty, and reduced by Metellus to a province.

“Now whereas it remains that I explain the nature of a province, I shall rather choose that of Sicily, because, having been the first which the Romans made, the descriptions of the rest relate to it.

“‘We have so received the Sicilian cities into amity,’ says Cicero, ‘that they enjoy their ancient laws; and upon no other condition than of the same obedience to the people of Rome, which they formerly yielded to their own princes or superiors.’ So the Sicilians, whereas they had been parcelled out to divers princes, and into divers states (the cause of perpetual wars, whereby, hewing one another down, they became sacrifices to the ambition of their neighbors, or of some invader), were now received at the old rate into a new protection which could hold them, and in which no enemy durst touch them; nor was it possible, as the case then stood, for the Sicilians to receive, or for the Romans to give more.

“A Roman province is defined by Sigonius as a region having provincial right. Provincial right in general was to be governed by a Roman praetor, or consul, in matters at least of state, and of the militia; and by a quaeStor, whose office it was to receive the public revenue. Provincial right in particular was different, according to the different leagues or agreements between the commonwealth, and the people reduced into a province. ‘Siculi hoc jure sunt, ut quod civis cum cive agat, domi certet suis legibus; quod siculus cum siculo non ejusdem civitatis, ut de eo proetor judices,

ex P. Rupilii decreto, sortiatur. Quod privatus a populo petit, aut populus a privato, senatus ex aliqua civitate, qui judicet, datur, cui alternoe civitates rejectoe sunt. Quod vivis Romanus a siculo petit, siculus judex datur quod siculus a cive Romano, civis Romanus datur. Coeterarum rerum selecti judices ex civium Romanorum conventu proponi solent. Inter aratores et decumanos lege frumentaria, quam Hieronicam appellant, judicia fiunt.' Because the rest would oblige me to a discourse too large for this place, it shall suffice that I have showed you how it was in Sicily.

"My lords, upon the fabric of your provincial orb I shall not hold you; because it is sufficiently described in the order, and I cannot believe that you think it inferior to the way of a praetor and a quaestor. But whereas the provincial way of the Roman Commonwealth was that whereby it held the empire of the world, and your orbs are intended to be capable at least of the like use, there may arise many controversies, as whether such a course be lawful, whether it be feasible; and, seeing that the Romans were ruined upon that point, whether it would not be to the destruction of the commonwealth.

"For the first: if the empire of a commonwealth be an occasion to ask whether it be lawful for a commonwealth to aspire to the empire of the world, it is to ask whether it be lawful for it to do its duty, or to put the world into a better condition than it was before.

"And to ask whether this be feasible, is to ask why the Oceaner, being under the like administration of government, may not do as much with 200 men as the Roman did with 100; for comparing their commonwealths in their rise, the difference is yet greater: now that Rome (seris avaritia luxuriaque), through the natural thirst of her constitution, came at length with the fulness of her provinces to burst herself, this is no otherwise to be understood than as when a man that from his own evil constitution had contracted the dropsy, dies with drinking, it being apparent that in case her agrarian had held, she could never have been thus ruined, and I have already demonstrated that your agrarian being once poised, can never break or swerve.

"Wherefore to draw toward some conclusion of this discourse, let me inculcate the use, by selecting a few considerations out of many. The regard had in this place to the empire of the world appertains to a well-ordered commonwealth, more especially for two reasons:

"1. The facility of this great enterprise, by a government of the model proposed;

"2. The danger that you would run in the omission of such a government.

"The facility of this enterprise, upon the grounds already laid, must needs be great, forasmuch as the empire of the world has been, both in reason and experience, the necessary consequence of a commonwealth of this nature only; for though it has been given to all kinds to drive at it, since that of Athens or Lacedaemon, if the one had not hung in the other's light, might have gained it, yet could neither of them have held it; not Athens, through the manner of her propagation, which, being by downright tyranny, could not preserve what she had, nor Lacedaemon, because she was overthrown by the weight of a less conquest. The facility then of this great enterprise being peculiar to popular government, I shall consider it, first, in gaining, and

secondly, in holding.

“For the former, volenti non fit injuria. It is said of the people under Eumenes, that they would not have changed them no their subjection for liberty; wherefore the Romans gave disturbance. If a people be contented with their government, it is a certain sign that it is good, and much good do them with it. The sword of your magistracy is for a terror to them that do evil. Eumenes had the fear of God, or of the Romans, before his eyes; concerning such he has given you no commission.

“But till we can say, here are the Romans, where is Eumenes? do not think that the late appearances of God to you have been altogether for yourselves; ‘He has surely seen the affliction of your brethren, and heard their cry by reason of their task masters.’ For to believe otherwise is not only to be mindless of his ways, but altogether deaf. If you have ears to hear, this is the way in which you will certainly be called upon; for if, while there is no stock of liberty no sanctuary of the afflicted, it be a common object to behold a people casting themselves out of the pan of one prince into the fire of another, what can you think, but if the world should see the Roman ‘eagle again, she would renew her age and her flight? Nor did ever she spread her wings with better omen than will be read in your ensigns; which if, called in by an oppressed people they interpose between them and their yoke, the people themselves must either do nothing in the meantime or have no more pains to take for their wished fruit than to gather it, if that be not likewise done for them. Wherefore this must needs be easy, and yet you have a greater facility than is in the arm of flesh; for if the cause of mankind be the cause of God, the Lord of Hosts will be your captain, and you shall be a praise to the whole earth.

“The facility of holding is in the way of your propagation; if you take that of Athens and Lacedemon, you shall rain snares, but either catch or hold nothing. Lying lips are an abomination to the Lord: if setting up for liberty you impose yokes, he will infallibly destroy you. On the other side, to go about a work of this nature by a league without a head, is to abdicate that magistracy wherewith he has not only endued you, but whereof he will require an account of you; for, ‘cursed is he that does the work of the Lord negligently.’ Wherefore you are to take the course of Rome: if you have subdued a nation that is capable of liberty, you shall make them a present of it, as did Flaminius to Greece, and AEmilius to Macedon, reserving to yourselves some part of that revenue which was legally paid to the former government, together with the right of being head of the league, which includes such levies of men and money as shall be necessary for the carrying on of the public work.

“For if a people have by your means attained to freedom, they owe both to the cause and you such aid as may propagate the like fruit to the rest of the world. But whereas every nation is not capable of her liberty to this degree, lest you be put to doing and undoing of things, as the Romans were in Macedon, you shall diligently observe what nation is fit for her liberty to this degree, and what not; which is to be done by two marks, the first if she be willing to ‘help the Lord against the mighty;’ for if she has no care of the liberty of mankind she deserves not her own. But because in this you may be deceived by pretences, which, continuing for a while specious, may afterward vanish; the other is more certain, and that is if she be capable of an equal

agrarian; which that it was not observed by excellent AEmilius in his donation of liberty, and introduction of a popular state among the Macedonians, I am more than moved to believe for two reasons; the first, because at the same time the agrarian was odious to the Roman patricians; the second, that the pseudo-Philip could afterward so easily recover Macedon, which could not have happened but by the nobility, and their impatience, having great estates, to be equalled with the people; for that the people should otherwise, at the mere sound of a name, have thrown away their liberty, is incredible. Wherefore be assured that the nation where you cannot establish an equal agrarian, is incapable of its liberty as to this kind of donation. For example, except the aristocracy in Marpesia be dissolved, neither can that people have their liberty there, nor you govern at home; for they continuing still liable to be sold by their lords to foreign princes, there will never (especially in a country of which there is no other profit to be made) be want of such merchants and drovers, while you must be the market where they are to receive their second payment.

“Nor can the aristocracy there be dissolved but by your means, in relation whereto you are provided with your provincial orb; which, being proportioned to the measure of the nation that you have vindicated or conquered, will easily hold it: for there is not a people in the world more difficult to be held than the Marpesians, which, though by themselves it be ascribed to their own nature, is truly to be attributed to that of their country. Nevertheless, you having 9,000 men upon the continual guard of it, that, threatened by any sudden insurrection, have places of retreat, and an army of 40,000 men upon a day’s warning ready to march to their rescue, it is not to be rationally shown which way they can possibly slip out of your hands. And if a man should think that upon a province more remote and divided by the sea, you have not the like hold, he has not so well considered your wings as your talons, your shipping being of such a nature as makes the descent of your armies almost of equal facility in any country, so that what you take you hold, both because your militia, being already populous, will be of great growth in itself, and also through your confederates, by whom in taking and holding you are still more enabled to do both.

“Nor shall you easier hold than the people under your empire or patronage may be held. My lords, I would not go to the door to see whether it be close shut; this is no underhand dealing, nor a game at which he shall have any advantage against you who sees your cards, but, on the contrary the advantage shall be your own: for with 18,000 men (which number I put, because it circulates your orb by the annual change of 6,000) having established your matters in the order shown, you will, be able to hold the greatest province; and 18,000 men, allowing them greater pay than any prince ever gave, will not stand the province in £1,000,000 revenue; in consideration whereof, they shall have their own estates free to themselves, and be governed by their own laws and magistrates; which, if the revenue of the province be in dry-rent (as there may be some that are four times as big as Oceana) £40,000,000, will bring it with that of industry, to speak with the least, to twice the value: so that the people there, who at this day are so oppressed that they have nothing at all whereon to live, shall for £1,000,000 paid to you, receive at least £79,000,000 to their proper use: in which place I appeal to any man, whether the empire described can be other than the patronage of the world.

“Now if you add to the propagation of civil liberty (so natural to this commonwealth that it cannot be omitted) the propagation of the liberty of conscience, this empire, this patronage of the world, is the kingdom of Christ: for as the kingdom of God the Father was a commonwealth, so shall the kingdom of God the Son; ‘the people shall be willing in the day of his power.’

“Having showed you in this and other places some of those inestimable benefits of this kind of government, together with the natural and facile emanation of them from their fountain, I come (lest God who has appeared to you, for he is the God of nature, in the glorious constellation of these subordinate causes, whereof we have hitherto been taking the true elevation, should shake off the dust of his feet against you) to warn you of the dangers which you, not taking the opportunity, will incur by omission.

“Machiavel, speaking of the defect of Venice, through her want of proper arms, cries out, ‘This cut her wings, and spoiled her mount to heaven.’ If you lay your commonwealth upon any other foundation than the people, you frustrate yourself of proper arms, and so lose the empire of the world; nor is this all, but some other nation will have it.

“Columbus offered gold to one of your kings, through whose happy incredulity another prince has drunk the poison, even to the consumption of his people; but I do not offer you a nerve of war that is made of purse-strings, such a one as has drawn the face of the earth into convulsions, but such as is natural to her health and beauty. Look you to it, where there is tumbling and tossing upon the bed of sickness, it must end in death or recovery. Though the people of the world, in the dregs of the Gothic empire, be yet tumbling and tossing upon the bed of sickness, they cannot die; nor is there any means of recovery for them but by ancient prudence, whence of necessity it must come to pass that this drug be better known, if France, Italy, and Spain were not all sick, all corrupted together, there would be none of them so; for the sick would not be able to withstand the sound, nor the sound to preserve their health, without curing of the sick. The first of these nations (which if you stay her leisure, will in my mind be France) that recovers the health of ancient prudence, shall certainly govern the world; for what did Italy when she had it? and as you were in that, so shall you in the like case be reduced to a province; I do not speak at random. Italy, in the consulship of Lucius AEmilius Papus and Caius Attilius Regulus, armed, upon the Gallic tumult that then happened of herself, and without the aid of foreign auxiliaries, 70,000 horse and 700,000 foot; but as Italy is the least of those three countries in extent, so is France now the most populous.

“‘I, decus, I, nostrum, melioribus utere fatis.’

“My dear lords, Oceana is as the rose of Sharon, and the lily of the valley. As the lily among thorns, such is my love among the daughters. She is comely as the tents of Kedar, and terrible as an army with banners. Her neck is as the tower of David, builded for an armory, whereon there hang 1,000 bucklers and shields of mighty men. Let me hear thy voice in the morning, whom my soul loves. The south has dropped, and the west is breathing upon thy garden of spices. Arise, queen of the earth, arise,

holy spouse of Jesus; for lo, the winter is past, the rain is over and gone; the flowers appear on the earth, the time for the singing of birds is come, and the voice of the turtle is heard in our land. Arise, I say, come forth, and do not tarry: ah! wherefore should my eyes behold thee by the rivers of Babylon, hanging thy harps upon the willows, thou fairest among women?

“Excellent patriots, if the people be sovereign, here is that which establishes their prerogative; if we be sincere, here is that which disburdens our souls, and makes good all our engagements; if we be charitable, here is that which embraces all parties; if we would be settled, here is that which will stand, and last forever.

“If our religion be anything else but a vain boast, scratching and defacing human nature or reason, which, being the image of God, makes it a kind of murder, here is that empire whence ‘justice shall run down like a river, and judgment like a mighty stream.’ Who is it then that calls us? or, what is in our way? A lion! Is it not the dragon, that old serpent? For what wretched shifts are these? Here is a great deal; might we not have some of this at one time, and some at another?

“My lords, permit me to give you the sum, or brief:

EPITOME OF THE WHOLE COMMONWEALTH

“The centre or fundamental laws are, first, the agrarian, proportioned at £2,000 a year in land, lying and being within the proper territory of Oceana, and stating property in land at such a balance, that the power can never swerve out of the hands of the many.

“Secondly, the ballot conveying this equal sap from the root, by an equal election or rotation, into the branches of magistracy or sovereign power.

“The orbs of this commonwealth being civil, military, or provincial, are, as it were, cast upon this mould or centre by the divisions of the people; first, into citizens and servants; secondly, into youth and elders; thirdly, into such as have £100 a year in lands, goods, or moneys, who are of the horse; and such as have under, who are of the foot; fourthly, they are divided by their usual residence into parishes, hundreds, and tribes.

“The civil orbs consist of the elders, and are thus created: every Monday next ensuing the last of December, the elders in every parish elect the fifth man to be a deputy, which is but half a day’s work; every Monday next ensuing the last of January, the deputies meet at their respective hundred, and elect out of their number one justice of the peace, one juryman, one coroner, and one high constable of the foot, one day’s work.

“Every Monday next ensuing the last of February, the hundreds meet at their respective tribe, and there elect the lords high sheriff, lieutenant, custos rotulorum, the conductor, the two censors out of the horse, the magistrates of the tribe and of the hundreds, with the jurymen constituting the phylarch, and who assist in their respective offices at the assizes, hold the quarter-sessions, etc. The day following the tribe elects the annual galaxy, consisting of two knights and three deputies out of the

horse, with four deputies out of the foot, thereby endued with power, as magistrates of the whole nation, for the term of three years. An officer chosen at the hundred may not be elected a magistrate of the tribe; but a magistrate or officer either of the hundred or of the tribe, being elected into the galaxy, may substitute any one of his office in the hundred or in own order to his magistracy or office in the hundred or in the tribe. This of the muster is two days' work. So the body of the people is annually, at the charge of three days' work and a half, in their own tribes, for the perpetuation of their power, receiving over and above the magistracies so divided among them.

"Every Monday next ensuing the last of March, the knights, being 100 in all the tribes, take their places in the Senate. The knights, having taken their places in the Senate, make the third region of the same, and the house proceeds to the senatorian elections. Senatorian elections are annual, biennial, or emergent.

"The annual are performed by the tropic.

"The tropic is a schedule consisting of two parts; the first by which the senatorian magistrates are elected; and the second, by which the senatorian councils are perpetuated.

"The first part is of this tenor:

The lord strategus, The lord orator, The first censor, The second censor,

"Annual magistrates and therefore such as may be elected out of any region; the term of every region having at the tropic one year at the least unexpired.

The third commissioner of the seal, The third commissioner of the Treasury.

"Triennial magistrates, and therefore such as can be chosen out of the third region only, as that alone which has the term of three years unexpired.

"The strategus and the orator sitting, are consuls, or presidents of the Senate.

"The strategus marching is general of the army, in which case a new strategus is to be elected in his room.

"The strategus sitting with six commissioners, being councillors of the nation, are the signory of the commonwealth."

The censors are magistrates of the ballot, presidents of the Council for Religion, and chancellors of the universities.

"The second part of the tropic perpetuates the Council of State, by the election of five knights out of the first region of the Senate, to be the first region of that council consisting of fifteen knights, five in every region.

"The like is done by the election of four into the Council of Religion, and four into the Council of Trade, out of the same region in the Senate; each of these councils consisting of twelve knights, four in every region.

"But the Council of War, consisting of nine knights, three in every region, is elected by and out of the Council of State, as the other councils are elected by and out of the Senate. And if the Senate add a juncta of nine knights more, elected out of

their own number, for the term of three months, the Council of War, by virtue of that addition, is Dictator of Oceana for the said term.

“The signory jointly or severally has right of session and suffrage in every senatorial council, and to propose either to the Senate, or any of them. And every region in a council electing one weekly provost, any two of those provosts have power also to propose to their respective council, as the proper and peculiar proposers of the same, for which cause they hold an academy, where any man, either by word of mouth or writing, may propose to the proposers.

“Next to the elections of the tropic is the biennial election of one ambassador-in-ordinary, by the ballot of the house, to the residence of France; at which time the resident of France removes to Spain, he of Spain to Venice, he of Venice to Constantinople, and he of Constantinople returns. So the orb of the residents is wheeled about in eight years, by the biennial election of one ambassador-in-ordinary.

“The last kind of election is emergent. Emergent elections are made by the scrutiny. Election by scrutiny is when a competitor, being made by a council, and brought into the Senate, the Senate chooses four more competitors to him, and putting all five to the ballot, he who has most above half the suffrages is the magistrate. The polemarchs or field officers are chosen by the scrutiny of the Council of War; an ambassador-extraordinary by the scrutiny of the Council of State; the judges and sergeants-at-law by the scrutiny of the seal; and the barons and prime officers of the Exchequer, by the scrutiny of the Treasury..

“The opinion or opinions that are legitimately proposed to any council must be debated by the same, and so many as are resolved upon the debate are introduced into the Senate, where they are debated and resolved, or rejected by the whole house; that which is resolved by the Senate is a decree which is good in matters of state, but no law, except it be proposed to and resolved by the prerogative.

“The deputies of the galaxy being three horse and four foot in a tribe, amount in all the tribes to 150 horse and 200 foot; which, having entered the prerogative, and chosen their captains, cornet, and ensign (triennial officers), make the third class, consisting of one troop and one company; and so, joining with the whole prerogative, elect four annual magistrates, called tribunes, whereof two are of the horse and two of the foot. These have the command of the prerogative sessions, and suffrage in the Council of War, and sessions without suffrage in the Senate.

“The Senate having passed a decree which they would propose to the people, cause it to be printed and published, or promulgated for the space of six weeks, which, being ordered, they choose their proposers. The proposers must be magistrates, that is, the commissioners of the seal, those of the Treasury, or the censors. These being chosen, desire the muster of the tribunes, and appoint the day. The people being assembled at the day appointed, and the decree proposed, that which is proposed by authority of the Senate, and commanded by the people, is the law of Oceana, or an act of Parliament.

“So the Parliament of Oceana consists of the Senate proposing, and the people resolving.

“The people or prerogative are also the supreme judicatory of this nation, having power of hearing and determining all causes of appeal from all magistrates, or courts provincial or domestic, as also to question any magistrate, the term of his magistracy being expired, if the case be introduced by the tribunes, or any one of them.

“The military orbs consist of the youth, that is, such as are from eighteen to thirty years of age; and are created in the following manner:

“Every Wednesday next ensuing the last of December, the youth of every parish, assembling, elect the fifth of their number to be their deputies; the deputies of the youth are called stratiots, and this is the first essay.

“Every Wednesday next ensuing the last of January, the stratiots, assembling at the hundred, elect their captain and their ensign, and fall to their games and sports.

“Every Wednesday next ensuing the last of February the stratiots are received by the lord lieutenant, their commander-in-chief, with the conductors and the censors; and, having been disciplined and entertained with other games, are called to the urns, where they elect the second essay, consisting of 200 horse and 600 foot in a tribe; that is, of 10,000 horse and 30,000 foot in all the tribes, which is the standing army of this nation, to march at any warning. They also elect at the same time a part of the third essay, by the mixture of balls marked with the letter M and the letter P, for Marpesia and Panopea; they of either mark being ten horse and fifty foot in a tribe, that is, 500 horse and 2,500 foot in all the tribes, which are forthwith to march to their respective provinces.

“But the third essay of this nation more properly so called, is when the strategus with the polemarchs (the Senate and the people or the Dictator having decreed a war) receive in return of his warrants the second essay from the hands of the conductors at the rendezvous of Oceana; which army, marching with all accommodations provided by the Council of War, the Senate elects a new strategus, and the lords-lieutenant a new second essay.

“A youth, except he be an only son, refusing any one of his three essays, without sufficient cause shown to the phylarch or the censors, is incapable of magistracy, and is fined a fifth part of his yearly rent, or of his estate, for protection. In case of invasion the elders are obliged to like duty with the youth, and upon their own charge.

“The provincial orb consisting in part of the elders, and in part of the youth, is thus created:

“Four knights out of the first region falling, are elected in the Senate to be the first region of the provincial orb of Marpesia; these, being triennial magistrates, take their places in the provincial council, consisting of twelve knights, four in every region, each region choosing their weekly provosts of the council thus constituted. One knight more, chosen out of the same region in the Senate, being an annual magistrate, is president, with power to propose; and the opinions proposed by the

president, or any two of the provosts, are debated by the council, and, if there be occasion of further power or instruction than they yet have, transmitted to the Council of State, with which the provincial is to hold intelligence.

“The president of this council is also strategus or general of the provincial army; wherefore the conductors, upon notice of his election, and appointment of his rendezvous, deliver to him the stratiots of his letter, which he takes with him into his province; and the provincial army having received the new strategus with the third class, the council dismisses the old strategus with the first class. The like is done for Panopea, or any other province.

“But whereas the term of every other magistracy or election in this commonwealth, whether annual or triennial, requires an equal vacation, the term of a provincial councillor or magistrate requires no vacation at all. The quorum of a provincial, as also that of every other council and assembly, requires two-thirds in a time of health, and one-third in a time of sickness.

“I think I have omitted nothing but the props and scaffolds, which are not of use but in building. And how much is here? Show me another commonwealth in this compass? how many things? Show me another entire government consisting but of thirty orders. If you now go to law with anybody, there lie to some of our courts 200 original writs: if you stir your hand, there go more nerves and bones to that motion; if you play, you have more cards in the pack; nay, you could not sit with your ease in that chair, if it consisted not of more parts. Will you not then allow to your legislator, what you can afford your upholsterer, or to the throne, what is necessary to a chair?

“My lords, if you will have fewer orders in a commonwealth, you will have more; for where she is not perfect at first, every day, every hour will produce a new order, the end whereof is to have no order at all, but to grind with the clack of some demagogue. Is he providing already for his golden thumb? Lift up your heads; away with ambition, that fulsome complexion of a statesman, tempered, like Sylla’s, with blood and muck. ‘And the Lord give to his senators wisdom; and make our faces to shine, that we may be a light to them that sit in darkness and the shadow of death, to guide their feet in the way of peace.’--In the name of God, what’s the matter?”

Philadelphus, the secretary of the council, having performed his task in reading the several orders as you have seen, upon the receipt of a packet from his correspondent Boccalini, secretary of Parnassus, in reading one of the letters, burst forth into such a violent passion of weeping and downright howling, that the legislators, being startled with the apprehension of some horrid news, one of them had no sooner snatched the letter out of his hand, than the rest crying, “Read, read,” he obeyed in this manner:

“The 3d instant his Phoebean majesty having taken the nature of free states into his royal consideration, and being steadily persuaded that the laws in such governments are incomparably better and more surely directed to the good of mankind than in any other; that the courage of such a people is the aptest tinder to noble fire; that the genius of such a soil is that wherein the roots of good literature are least worm-eaten with pedantism, and where their fruits have ever come to the greatest maturity and highest relish, conceived such a loathing of their ambition and

tyranny, who, usurping the liberty of their native countries, become slaves to themselves, inasmuch as (be it never so contrary to their own nature or consciences) they have taken the earnest of sin, and are engaged to persecute all men that are good with the same or greater rigor than is ordained by laws for the wicked, for none ever administered that power by good which he purchased by ill arts--Phoebus, I say, having considered this, assembled all the senators residing in the learned court at the theatre of Melpomene, where he caused Caesar the Dictator to come upon the stage, and his sister Actia, his nephew Augustus, Julia his daughter, with the children which she had by Marcus Agrippa, Lucius and Caius Caesars, Agrippa Posthumus, Julia, and Agrippina, with the numerous progeny which she bore to her renowned husband Germanicus, to enter. A miserable scene in any, but most deplorable in the eyes of Caesar, thus beholding what havoc his prodigious ambition, not satisfied with his own bloody ghost, had made upon his more innocent remains, even to the total extinction of his family. For it is (seeing where there is any humanity, there must be some compassion) not to be spoken without tears, that of the full branches deriving from Octavia the eldest sister, and Julia the daughter of Augustus, there should not be one fruit or blossom that was not cut off or blasted by the sword, famine, or poison.

“Now might the great soul of Caesar have been full; and yet that which poured in as much or more was to behold that execrable race of the Claudii, having hunted and sucked his blood, with the thirst of tigers, to be rewarded with the Roman Empire, and remain in full possession of that famous patrimony: a spectacle to pollute the light of heaven! Nevertheless, as if Caesar had not yet enough, his Phoeban majesty caused to be introduced on the other side of the theatre, the most illustrious and happy prince Andrea Doria, with his dear posterity, embraced by the soft and constant arms of the city of Genoa, into whose bosom, ever fruitful in her gratitude, he had dropped her fair liberty like the dew of heaven, which, when the Roman tyrant beheld, and how much more fresh that laurel was worn with a firm root in the hearts of the people than that which he had torn off, he fell into such a horrid distortion of limbs and countenance, that the senators, who had thought themselves steel and flint at such an object, having hitherto stood in their reverend snow-like thawing Alps, now covered their faces with their large sleeves.”

“My lords,” said the Archon, rising, “witty Philadelphus has given us grave admonition in dreadful tragedy. Discite justitiam moniti, et non temnere divos. Great and glorious Caesar the highest character of flesh, yet could not rule but by that part of man which is the beast; but a commonwealth is a monarchy; to her God is king, inasmuch as reason, his dictate, is her sovereign power.” Which said, he adjourned the Council. And the model was soon after promulgated. Quod bonum, foelix, faustumque sit huic reipublicoe. Agite quirites, censuere patres, jubeat populus. (The sea roared, and the floods clapped their hands.)

LIBERTAS

The Proclamation of his Highness the Lord Archon of Oceana upon Promulgation of the Model,

“Whereas his Highness and the Council, in the framing of the model promulgated, have not had any private interest or ambition but the fear of God and the good of this people before their eyes; and it remains their desire that this great work may be carried on accordingly. This present greeting is to inform the good people of this land, that as the Council of Prytans sat during the framing of the model, to receive from time to time such propositions as should be offered by any wise-hearted or public-spirited man, toward the institution of a well-ordered commonwealth, so the said Council is to sit as formerly in the great hall of the Pantheon during promulgation (which is to continue for the space of three months) to receive, weigh, and, as there shall be occasion, transmit to the Council of Legislators, all such objections as shall be made against the said model, whether in the whole or in any part. Wherefore that nothing be done rashly or without the consent of the people, such, of what party soever, with whom there may remain any doubts or difficulties, are desired with all convenient speed to address themselves to the said prytans; where, if such objections, doubts, or difficulties receive solution to the satisfaction of the auditory, they shall have public thanks, but if the said objections, doubts, or difficulties receive no solution to the satisfaction of the auditory, then the model promulgated shall be reviewed, and the party that was the occasion of the review, shall receive public thanks, together with the best horse in his Highness’s stable, and be one of the Council of Legislators. And so God have you in his keeping.”

I should now write the same Council of the Prytans, but for two reasons: the one, that having had but a small time for that which is already done, I am over-labored; the other, that there may be new objections. Wherefore, if my reader has any such as to the model, I entreat him to address himself by way of oration, as it were, to the prytans, that when this rough draught comes to be a work, his speech being faithfully inserted in this place, may give or receive correction to amendment; for what is written will be weighed. But conversation, in these days, is a game at which they are best provided that have light gold; it is like the sport of women that make flowers of straws, which must be stuck up but may not be touched. Nor, which is worse, is this the fault of conversation only: but to the examiner I say if to invent method and teach an art be all one, let him show that this method is not truly invented, or this art is faithfully taught.

I cannot conclude a circle (and such is this commonwealth) without turning the end into the beginning. The time of promulgation being expired, the surveyors were sent down, who having in due season made report that their work was perfect, the orators followed, under the administration of which officers and magistrates the commonwealth was ratified and established by the whole body of the people, in their parochial, hundred, and county assemblies. And the orators being, by virtue of their scrolls or lots, members of their respective tribes, were elected each the first knight of the third list, or galaxy; wherefore, having at their return assisted the Archon in putting the Senate and the people or prerogative into motion, they abdicated the magistracy both of orators and legislators.

PART IV. THE COROLLARY

FOR the rest (says Plutarch, closing up the story of Lycurgus) when he saw that his government had taken root, and was in the very plantation strong enough to stand by itself, he conceived such a delight within him, as God is described by Plato to have done when he had finished the creation of the world, and saw his own orbs move below him: for in the art of man (being the imitation of nature, which is the art of God) there is nothing so like the first call of beautiful order out of chaos and confusion, as the architecture of a well-ordered commonwealth. Wherefore Lycurgus, seeing in effect that his orders were good, fell into deep contemplation how he might render them, so far as could be effected by human providence, unalterable and immortal. To which end he assembled the people, and remonstrated to them: That for aught he could perceive, their policy was already such, and so well established, as was sufficient to entail upon them and theirs all that virtue and felicity whereof human life is capable: nevertheless that there being another thing of greater concern than all the rest, whereof he was not yet provided to give them a perfect account, nor could till he had consulted the oracle of Apollo, he desired that they would observe his laws without any change or alteration whatsoever till his return from Delphos; to which all the people cheerfully and unanimously engaged themselves by promise, desiring him that he would make as much haste as he could. But Lycurgus, before he went, began with the kings and the senators, and thence taking the whole people in order, made them all swear to that which they had promised, and then took his journey. Being arrived at Delphos, he sacrificed to Apollo, and afterward inquired if the policy which he had established was good and sufficient for a virtuous and happy life?

By the way, it has been a maxim with legislators not to give checks to the present superstition, but to make the best use of it, as that which is always the most powerful with the people; otherwise, though Plutarch, being a priest, was interested in the cause, there is nothing plainer than Cicero, in his book “De Divinatione” has made it, that there was never any such thing as an oracle, except in the cunning of the priests. But to be civil to the author, the god answered to Lycurgus that his policy was exquisite, and that his city, holding to the strict observation of his form of government, should attain to the height of fame and glory. Which oracle Lycurgus causing to be written, failed not of transmitting to his Lacedaemon. This done, that his citizens might be forever inviolably bound by their oath, that they would alter nothing till his return, he took so firm a resolution to die in the place, that from thenceforward, receiving no manner of food, he soon after performed it accordingly. Nor was he deceived in the consequence; for his city became the first in glory and excellency of government in the whole world. And so much for Lycurgus, according to Plutarch.

My Lord Archon, when he beheld not only the rapture of motion, but of joy and harmony, into which his spheres (without any manner of obstruction or interfering, but as if it had been naturally) were cast, conceived not less of exultation in his spirit; but saw no more necessity or reason why he should administer an oath to the Senate and the people that they would observe his institutions, than to a man in perfect health and felicity of constitution that he would not kill himself. Nevertheless whereas Christianity, though it forbids violent hands, consists no less in self-denial

than any other religion, he resolved that all unreasonable desires should die upon the spot; to which end that no manner of food might be left to ambition, he entered into the Senate with a unanimous applause, and having spoken of his government as Lycurgus did when he assembled the people, he abdicated the magistracy of Archon. The Senate, as struck with astonishment, continued silent, men upon so sudden an accident being altogether unprovided of what to say; till the Archon withdrawing, and being almost at the door, divers of the knights flew from their places, offering as it were to lay violent hands on him, while he escaping, left the Senate with the tears in their eyes, of children that had lost their father and to rid himself of all further importunity, retired to a country house of his, being remote, and very private, insomuch that no man could tell for some time what was become of him.

Thus the law-maker happened to be the first object and reflection of the law made; for as liberty of all things is the most welcome to a people, so is there nothing more abhorrent from their nature than ingratitude. We, accusing the Roman people of this crime against some of their greatest benefactors, as Camillus, heap mistake upon mistake; for being not so competent judges of what belongs to liberty as they were, we take upon us to be more competent judges of virtue. And whereas virtue, for being a vulgar thing among them, was of no less rate than jewels are with such as wear the most, we are selling this precious stone, which we have ignorantly raked out of the Roman ruins, at such a rate as the Switzers did that which they took in the baggage of Charles of Burgundy. For that Camillus had stood more firm against the ruin of Rome than her capitol, was acknowledged; but on the other side, that he stood as firm for the patricians against the liberty of the people, was as plain; wherefore he never wanted those of the people that would die at his foot in the field, nor that would withstand him to his beard in the city. An example in which they that think Camillus had wrong, neither do themselves right, nor the people of Rome; who in this signify no less than that they had a scorn of slavery beyond the fear of ruin, which is the height of magnanimity.

The like might be shown by other examples objected against this and other popular governments, as in the banishment of Aristides the Just from Athens, by the ostracism, which, first, was no punishment, nor ever understood for so much as a disparagement; but tended only to the security of the commonwealth, through the removal of a citizen (whose riches or power with a party was suspected) out of harm’s way for the space of ten years, neither to the diminution of his estate or honor. And next, though the virtue of Aristides might in itself be unquestioned, yet for him under the name of the Just to become universal umpire of the people in all cases, even to the neglect of the legal ways and orders of the commonwealth, approached so much to the prince, that the Athenians, doing Aristides no wrong, did their government no more than right in removing him; which therefore is not so probable to have come to pass, as Plutarch presumes, through the envy of Themistocles, seeing Aristides was far more popular than Themistocles, who soon after took the same walk upon a worse occasion. Wherefore as Machiavel, for anything since alleged, has irrefragably proved that popular governments are of all others the least ungrateful, so the obscurity, I say, into which my Lord Archon had now withdrawn himself caused a universal sadness and clouds in the minds of men upon the glory of his rising commonwealth.

Much had been ventilated in private discourse, and the people (for the nation was yet divided into parties that had not lost their animosities), being troubled, bent their eyes upon the Senate, when after some time spent in devotion, and the solemn action of thanksgiving, his Excellency Navarchus de Paralo in the tribe of Dorean, lord strategus of Oceana (though in a new commonwealth a very prudent magistrate) proposed his part or opinion in such a manner to the Council of State, that, passing the ballot of the same with great unanimity and applause, it was introduced into the Senate, where it passed with greater. Wherefore the decree being forthwith printed and published, copies were returned by the secretaries to the phylarchs (which is the manner of promulgation) and the commissioners of the seal, that is to say, the Right Honorable Phosphorus de Auge in the tribe of Eudia, Dolabella d'Enyo in the tribe of Turmae, and Linceus de Stella in the tribe of Nubia, being elected proposers pro tempore, bespoke of the tribunes a muster of the people to be held that day six weeks, which was the time allowed for promulgation at the halo.

The satisfaction which the people throughout the tribes received upon promulgation of the decree, loaded the carriers with weekly letters between friend and friend, whether magistrates or private persons. But the day for proposition being come, and the prerogative upon the place appointed in discipline, Sanguine de Ringwood in the tribe of Saltum, captain of the Phoenix, marched by order of the tribunes with his troop to the piazza of the Pantheon, where his trumpets, entering into the great hall, by their blazon gave notice of his arrival; at which the sergeant of the house came down, and returning, in formed the proposers, who descending, were received at the foot of the stairs by the captain, and attended to the coaches of state, with which Calcar de Gilvo in the tribe of Phalera, master of the horse, and the ballotins upon their great horses, stood waiting at the gate.

The proposers being in their coaches, the train for the pomp, the same that is used at the reception of ambassadors, proceeded in this order. In the front marched the troop with the cornet in the van and the captain in the rear; next the troop came the twenty messengers or trumpets, the ballotins upon the curvet with their usher in the van, and the master of the horse in the rear; next the ballotins, Bronchus de Rauco, in the tribe of Bestia, king of the heralds, with his fraternity in their coats-of-arms, and next to Sir Bronchus, Boristhenes de Holiwater in the tribe of Ave, master of the ceremonies; the mace and the seal of the chancery went immediately before the coaches, and on either side, the doorkeepers or guard of the Senate, with their pole-axes, accompanied with some 300 or 400 footmen belonging to the knights or senators, the trumpeters, ballotins, guards, postilions, coachmen and footmen, being very gallant in the liveries of the commonwealth, but all, except the ballotins, without hats, in lieu whereof they wore black velvet calots, being pointed with a little peak at the forehead. After the proposers came a long file of coaches full of such gentlemen as use to grace the commonwealth upon the like occasions. In this posture they moved slowly through the streets (affording, in the gravity of the pomp and the welcomeness of the end, a most reverend and acceptable prospect to the people all the way from the Pantheon, being about half a mile) and arrived at the halo, where they found the prerogative in a close body environed with scaffolds that were covered with spectators. The tribunes received the proposers, and conducted them into a seat

placed in the front of the tribe, like a pulpit, but that it was of some length, and well adorned by the heralds with all manner of birds and beasts, except that they were ill-painted, and never a one of his natural color. The tribunes were placed at a table that stood below the long seat, those of the horse in the middle, and those of the foot at either end, with each of them a bowl or basin before him, that on the right hand being white, and the other green: in the middle of the table stood a third, which was red. And the housekeepers of the pavilion, who had already delivered a proportion of linen balls or pellets to every one of the tribe, now presented boxes to the ballotins. But the proposers as they entered the gallery, or long seat, having put off their hats by way of salutation, were answered by the people with a shout; whereupon the younger commissioners seated themselves at either end; and the first, standing in the middle, spoke after this manner:

“MY LORDS, THE PEOPLE OF OCEANA:

“While I find in myself what a felicity it is to salute you by this name, and in every face, anointed as it were with the oil of gladness, a full and sufficient testimony of the like sense, to go about to feast you with words, who are already filled with that food of the mind which, being of pleasing and wholesome digestion, takes in the definition of true joy, were a needless enterprise. I shall rather put you in mind of that thankfulness which is due, than puff you up with anything that might seem vain. Is it from the arms of flesh that we derive these blessings? Behold the Commonwealth of Rome falling upon her own victorious sword. Or is it from our own wisdom, whose counsels had brought it even to that pass, that we began to repent ourselves of victory? Far be it from us, my lords, to sacrifice to our own nets, which we ourselves have so narrowly escaped! Let us rather lay our mouths in the dust, and look up (as was taught the other day when we were better instructed in this lesson) to the hills with our gratitude. Nevertheless, seeing we read how God upon the neglect of his prophets has been provoked to wrath, it must needs follow that he expects honor should be given to them by whom he has chosen to work as his instruments. For which cause, nothing doubting of my warrant, I shall proceed to that which more particularly concerns the present occasion, the discovery of my Lord Archon’s virtues and merit, to be ever placed by this nation in their true meridian.

“My lords, I am not upon a subject which persuades me to balk, but necessitates me to seek out the greatest examples. To begin with Alexander, erecting trophies common to his sword and the pestilence: to what good of mankind did he infect the air with his heap of carcasses? The sword of war, if it be any otherwise used than as the sword of magistracy, for the fear and punishment of those that do evil, is as guilty in the sight of God as the sword of a murderer; nay more, for if the blood of Abel, of one innocent man, cried in the ears of the Lord for vengeance, what shall the blood of an innocent nation? Of this kind of empire, the throne of ambition, and the quarry of a mighty hunter, it has been truly said that it is but a great robbery. But if Alexander had restored the liberty of Greece, and propagated it to mankind, he had done like my Lord Archon, and might have been truly called the Great. Alexander cared not to steal a victory that would be given; but my Lord Archon has torn away a victory which had

been stolen, while we went tamely yielding up obedience to a nation reaping in our fields, whose fields he has subjected to our empire, and nailed them with his victorious sword to their native Caucasus.

“Machiavel gives a handsome caution: ‘Let no man,’ says he, ‘be circumvented with the glory of Caesar, from the false reflection of their pens, who through the longer continuance of his empire in the name than in the family, changed their freedom for flattery. But if a man would know truly what the Romans thought of Caesar, let them observe what they said of Catiline.’” And yet by how much he who has perpetrated some heinous crime is more execrable than he who did but attempt it, by so much is Caesar more execrable than Catiline. On the contrary, let him that would know what ancient and heroic times, what the Greeks and Romans would both have thought and said of my Lord Archon, observe what they thought and said of Solon, Lycurgus, Brutus, and Publicola. And yet by how much his virtue, that is crowned with the perfection of his work, is beyond theirs, who were either inferior in their aim, or in their performance; by so much is my Lord Archon to be preferred before Solon, Lycurgus, Brutus, and Publicola.

“Nor will we shun the most illustrious example of Scipio: this hero, though never so little less, yet was he not the founder of a commonwealth; and for the rest, allowing his virtue to have been of the most untainted ray in what did it outshine this of my Lord Archon? But if dazzling the eyes of the magistrates it overawed liberty, Rome might be allowed some excuse that she did not like it, and I, if I admit not of this comparison: for where is my Lord Archon? Is there a genius, how free soever, which in his presence would not find itself to be under power? He is shrunk into clouds, he seeks obscurity in a nation that sees by his light. He is impatient of his own glory, lest it should stand between you and your liberty.”

Liberty! What is even that, if we may not be grateful? And if we may, we have none: for who has anything that he does not owe? My lords, there be some hard conditions of virtue: if this debt were exacted, it were not due; whereas being cancelled, we are all entered into bonds. On the other side, if we make such a payment as will not stand with a free people, we do not enrich my Lord Archon, but rob him of his whole estate immense glory.

“These particulars had in due deliberation and mature debate, according to the order of this commonwealth, it is proposed by authority of the Senate, to you my lords the people of Oceana:

“I. That the dignity and office of Archon, or protector of the commonwealth of Oceana, be and are hereby conferred, by the Senate and the people of Oceana, upon the most illustrious Prince and sole legislator of this commonwealth, Olphaus Megaletor, pater patrioe, whom God preserve, for the term of his natural life, yet remaining of the ancient.

“II. That £350,000 per annum revenue, be estated upon the said illustrious Prince, or Lord Archon, for the said term, and to the proper and peculiar use of his Highness.

“III. That the Lord Archon have the reception of all foreign ambassadors, by and with the Council of State, according to the orders of this commonwealth.

“IV. That the Lord Archon have a standing army of 12,000 defrayed upon a monthly tax, during the term of three years, for the protection of this commonwealth against dissenting parties, to be governed, directed, and commanded by and with the advice of the Council of War, according to the orders of this commonwealth.

“V. That this commonwealth make no distinction of persons or parties, but every man being elected and sworn, according to the orders of the same, be equally capable of magistracy, or not elected, be equally capable of liberty, and the enjoyment of his estate free from all other than common taxes.

“VI. That a man putting a distinction upon himself, refusing oath upon election, or declaring himself of a party not conformable to the civil government, may within any time of his the three years’ standing of the army transport himself and his estate, without molestation or impediment, into any other nation.

“VII. That in case there remains any distinction of parties not conforming to the civil government of this commonwealth, after the three years of the standing army being expired, and the commonwealth be thereby forced to prolong the term of the said army, the pay from henceforth of the said army be levied upon the estates of such parties so remaining unconformable to the civil government.”

The proposer having ended his oration, the trumpets sounded; and the tribunes of the horse being mounted to view the ballot, caused the tribe (which thronging up to the speech, came almost round the gallery) to retreat about twenty paces, when Linceus de Stella, receiving the propositions, repaired with Bronchus de Rauco the herald, to a little scaffold erected in the middle of the tribe, where he seated himself, the herald standing bare upon his right hand. The ballotins, having their boxes ready, stood before the gallery, and at the command of the tribunes marched, one to every troop on horseback, and one to every company on foot, each of them being followed by other children that bore red boxes: now this is putting the question whether the question should be put. And the suffrage being very suddenly returned to the tribunes at the table, and numbered in the view of the proposers, the votes were all in the affirmative, whereupon the red or doubtful boxes were laid aside, it appearing that the tribe, whether for the negative or affirmative, Was clear in the matter. Wherefore the herald began from the scaffold in the middle of the tribe, to pronounce the first proposition, and the ballotins marching with the negative or affirmative only, Bronchus, with his voice like thunder, continued to repeat the proposition over and over again, so long as it was in balloting. The like was done for every clause, till the ballot was finished, and the tribunes assembling, had signed the points, that is to say, the number of every suffrage, as it was taken by the secretary upon the tale of the tribunes, and in the sight of the proposers; for this may not be omitted: it is the pulse of the people. Now whereas it appertains to the tribunes to report the suffrage of the people to the Senate, they cast the lot for this office with three silver balls and one gold one; and it fell upon the Right Worshipful Argus de Crookhorn, in the tribe of Pascua, first tribune of the foot. Argus, being a good sufficient man in his own country, was yet of the mind that he should make but a bad spokesman, and therefore became something blank at his luck, till his colleagues persuaded him that it was no such great matter, if he could but read, having his paper before him. The proposers,

taking coach, received a volley upon the field, and returned in the same order, save that, being accompanied with the tribunes, they were also attended by the whole prerogative to the piazza of the Pantheon, where, with another volley, they took their leaves. Argus, who had not thought upon his wife and children all the way, went very gravely up: and everyone being seated, the Senate by their silence seemed to call for the report, which Argus, standing up, delivered in this wise:

“RIGHT HONORABLE LORDS AND FATHERS ASSEMBLED IN PARLIAMENT:

“So it is, that it has fallen to my lot to report to your excellencies in the votes of the people, taken upon the 3d instant, in the first year of this commonwealth, at the halo; the Right Honorable Phosphorus de Auge in the tribe of Eudia, Dolabella d’Enyo in the tribe of Turmae, and Linceus de Stella in the tribe of Nubia, lords commissioners of the great seal of Oceana, and proposers pro temporibus, together with my brethren the tribunes, and myself being present. Wherefore these are to certify to your fatherhoods, that the said votes of the people were as follows, that is to say:

To the first proposition, nemine contradicente;

To the second, nemine contradicente;

To the third, the like;

To the fourth, 211, above half;

To the fifth, 201, above half;

To the sixth, 150, above half, in the affirmative;

To the seventh, nemine contradicente again, and so forth.

“My Lords, it is a language that is out of my prayers, and if I be out at it, no harm--

“But as concerning my Lord Archon (as I was saying) these are to signify to you the true-heartedness and goodwill which are in the people, seeing by joining with you, as one man, they confess that all they have to give is too little for his highness. For truly fathers, if he who is able to do harm, and does none, may well be called honest; what shall we say to my Lord Archon’s highness, who having had it in his power to have done us the greatest mischief that ever befell a poor nation, so willing to trust such as they thought well of, has done us so much good, as we should never have known how to do ourselves? Which was so sweetly delivered by my Lord Chancellor Phosphorus to the people, that I dare say there was never a one of them could forbear to do as I do-and, it please your fatherhoods, they be tears of joy. Aye, my Lord Archon shall walk the streets (if it be for his ease I mean) with a switch, while the people run after him and pray for him; he shall not wet his foot; they will strew flowers in his way; he shall sit higher in their hearts, and in the judgment of all good men, than the kings that go upstairs to their seats; and one of these had as good pull two or three of his fellows out of their great chairs as wrong him or meddle with him; he has two or three hundred thousand men, that when you say the word, shall sell themselves to

their shirts for him, and die at his foot. His pillow is of down, and his grave shall be as soft, over which they that are alive shall wring their hands. And to come to your fatherhoods, most truly so called, as being the loving parents of the people, truly you do not know what a feeling they have of your kindness, seeing you are so bound up, that if there comes any harm, they may thank themselves. And, alas! poor souls, they see that they are given to be of so many minds, that though they always mean well, yet if there comes any good, they may thank them that teach them better. Wherefore there was never such a thing as this invented, they do verily believe that it is no other than the same which they always had in their very heads, if they could have but told how to bring it out. As now for a sample: my lords the proposers had no sooner said your minds, than they found it to be that which heart could wish. And your fatherhoods may comfort yourselves, that there is not a people in the world more willing to learn what is for their own good, nor more apt to see it, when you have showed it them. Wherefore they do love you as they do their own selves; honor you as fathers; resolve to give you as it were obedience forever, and so thanking you for your most good and excellent laws, they do pray for you as the very worthies of the land, right honorable lords and fathers assembled in Parliament."

Argus came off beyond his own expectation; for thinking right, and speaking as he thought, it was apparent by the house and the thanks they gave him, that they esteemed him to be absolutely of the best sort of orators; upon which having a mind that till then misgave him, he became very crounse, and much delighted with that which might go down the next week in print to his wife and neighbors. Livy makes the Roman tribunes to speak in the same style with the consuls, which could not be, and therefore for aught in him to the contrary, Volero and Canuleius might have spoken in no better style than Argus. However, they were not created the first year of the commonwealth; and the tribunes of Oceana are since become better orators than were needful. But the laws being enacted, had the preamble annexed, and were delivered to Bronchus, who loved nothing in the earth so much as to go staring and bellowing up and down the town, like a stag in a forest, as he now did, with his fraternity in their coats-of-arms, and I know not how many trumpets, proclaiming the act of parliament; when, meeting my Lord Archon, whom from a retreat that was without affectation, as being for devotion only and to implore a blessing by prayer and fasting upon his labors, now newly arrived in town, the herald of the tribe of Bestia set up his throat, and having chanted out his lesson, passed as haughtily by him as if his own had been the better office, which in this place was very well taken, though Bronchus for his high mind happened afterward upon some disasters, too long to tell, that spoiled much of his embroidery.

My Lord Archon's arrival being known, the signory, accompanied by the tribunes, repaired to him, with the news he had already heard by the herald, to which my lord strategus added that his highness could not doubt upon the demonstrations given, but the minds of men were firm in the opinion that he could be no seeker of himself in the way of earthly pomp and glory, and that the gratitude of the Senate and the people could not therefore be understood to have any such reflection upon him. But so it was, that in regard of dangers abroad, and parties at home, they durst not trust themselves without a standing army, nor a standing army in any man's hands but

those of his highness.

The Archon made answer, that he ever expected this would be the sense of the Senate and the people; and this being their sense, he should have been sorry they had made choice of any other than himself for a standing general; first, because it could not have been more to their own safety, and secondly because so long as they should have need of a standing army, ‘his work was, not done, that he would not dispute against the judgment of the Senate and the people, nor ought that to be. Nevertheless, he made little doubt but experience would show every party their own interest in this government, and that better improved than they could expect from any other; that men’s animosities should overbalance their interest for any time was impossible, that humor could never be lasting, nor through the constitution of the government of any effect at the first charge. For supposing the worst, and that the people had chosen no other into the Senate and the prerogative than royalists, a matter of 1,400 men must have taken their oaths at their election, with an intention to go quite contrary not only to their oaths so taken, but to their own interest; for being estated in the sovereign power, they must have decreed it from themselves (such an example for which there was never any experience, nor can there be any reason), or holding it, it must have done in their hands as well every wit as in any other. Furthermore, they must have removed the government from a foundation that apparently would hold, to set it upon another which apparently would not hold; which things if they could not come to pass, the Senate and the people consisting wholly of royalists, much less by a parcel of them elected. But if the fear of the Senate and of the people derived from a party without, such a one as would not be elected, nor engage themselves to the commonwealth by an oath; this again must be so large, as would go quite contrary to their own interest, they being as free and as fully estated in their liberty as any other, or so narrow that they could do no hurt, while the people being in arms, and at the beck of the strategus, every tribe would at any time make a better army than such a party; and there being no parties at home, fears from abroad would vanish. But seeing it was otherwise determined by the Senate and the people, the best course was to take that which they held the safest, in which, with his humble thanks for their great bounty, he was resolved to serve them with all duty and obedience.

A very short time after the royalists, now equal citizens, made good the Archon’s judgment, there being no other that found anything near so great a sweet in the government. For he who has not been acquainted with affliction, says Seneca, knows but half the things of this world.

Moreover they saw plainly, that to restore the ancient government they must cast up their estates into the hands of 300 men; wherefore in case the Senate and the prerogative, consisting of 1,300 men, had been all royalists, there must of necessity have been, and be forever, 1,000 against this or any such vote. But the Senate, being informed by the signory that the Archon had accepted of his dignity and office, caused a third chair to be set for his Highness, between those of the strategus and the orator in the house, the like at every council; to which he repaired, not of necessity, but at his pleasure, being the best, and as Argus not vainly said, the

greatest prince in the world; for in the pomp of his court he was not inferior to any, and in the field he was followed with a force that was formidable to all. Nor was there a cause in the nature of this constitution to put him to the charge of guards, to spoil his stomach or his sleep: insomuch, as being handsomely disputed by the wits of the academy, whether my Lord Archon, if he had been ambitious, could have made himself so great, it was carried clear in the negative; not only for the reasons drawn from the present balance, which was popular, but putting the case the balance had been monarchical. For there be some nations, whereof this is one, that will bear a prince in a commonwealth far higher than it is possible for them to bear a monarch. Spain looked upon the Prince of Orange as her most formidable enemy; but if ever there be a monarch in Holland, he will be the Spaniard's best friend. For whereas a prince in a commonwealth derives his greatness from the root of the people, a monarch derives his from one of those balances which nip them in the root; by which means the Low Countries under a monarch were poor and inconsiderable, but in bearing a prince could grow to a miraculous height, and give the glory of his actions by far the upper hand of the greatest king in Christendom. There are kings in Europe, to whom a king of Oceana would be put a petit companion. But the Prince of this commonwealth is the terror and judge of them all.

That which my Lord Archon now minded most was the agrarian, upon which debate he incessantly thrust the Senate and the Council of State, to the end it might be planted upon some firm root, as the main point and basis of perpetuity to the commonwealth.

And these are some of the most remarkable passages that happened in the first year of this government. About the latter end of the second, the army was disbanded, but the taxes continued at £30,000 a month, for three years and a half. By which means a piece of artillery was planted, and a portion of land to the value of £50 a year purchased for the maintenance of the games, and of the prize arms forever, in each hundred.

With the eleventh year of the commonwealth, the term of the excise, allotted for the maintenance of the Senate and the people and for the raising of a public revenue, expired. By which time the Exchequer, over and above the annual salaries, amounting to £300,000 accumulating every year out of £1,000,000 income, £700,000 in banco, brought it with a product of the sum, rising to about £8,000,000 in the whole: whereby at several times they had purchased to the Senate and the people £400,000 per annum solid revenue; which, besides the lands held in Panopea, together with the perquisites of either province, was held sufficient for a public revenue. Nevertheless, taxes being now wholly taken off, the excise, of no great burden (and many specious advantages not vainly proposed in the heightening of the public revenue), was very cheerfully established by the Senate and the people, for the term of ten years longer, and the same course being taken, the public revenue was found in the one-and-twentieth year of the commonwealth to be worth £1,000,000 in good land. Whereupon the excise was so abolished for the present, as withal resolved to be the best, the most fruitful and easy way of raising taxes, according to future exigencies.

But the revenue being now such as was able to be a yearly purchaser, gave a jealousy that by this means the balance of the commonwealth, consisting in private fortunes, might be eaten out, whence this year is famous for that law whereby the Senate and the people, forbidding any further purchase of lands to the public within the dominions of Oceana and the adjacent provinces, put the agrarian upon the commonwealth herself. These increases are things which men addicted to monarchy deride as impossible, whereby they unwarily urge a strong argument against that which they would defend. For having their eyes fixed upon the pomp and expense, by which not only every child of a king, being a prince, exhausts his father's coffers, but favorites and servile spirits, devoted to the flattery of those princes, grow insolent and profuse, returning a fit gratitude to their masters, whom, while they hold it honorable to deceive, they suck and keep eternally poor: it follows that they do not see how it should be possible for a commonwealth to clothe herself in purple, and thrive so strangely upon that which would make a prince's hair grow through his hood, and not afford him bread. As if it were a miracle that a careless and prodigal man should bring £10,000 a year to nothing, or that an industrious and frugal man brings a little to £10,000 a year. But the fruit of one man's industry and frugality can never be like that of a commonwealth; first, because the greatness of the increase follows the greatness of the stock or principal; and, secondly, because a frugal father is for the most part succeeded by a lavish son; whereas a commonwealth is her own heir.

This year a part was proposed by the Right Honorable Aureus de Woolsack in the tribe of Pecus, first commissioner of the Treasury, to the Council of State, which soon after passed the ballot of the Senate and the people, by which the lands of the public revenue, amounting to £1,000,000, were equally divided into £5,000 lots, entered by their names and parcels into a lot-book preserved in the Exchequer. And if any orphan, being a maid, should cast her estate into the Exchequer for £1,400, the Treasury was bound by the law to pay her quarterly £200 a year, free from taxes, for her life, and to assign her a lot for her security; if she married, her husband was neither to take out the principal without her consent (acknowledged by herself to one of the commissioners of the Treasury, who, according as he found it to be free, or forced, was to allow or disallow of it), nor any other way engage it than to her proper use. But if the principal were taken out, the Treasury was not bound to repay any more of it than £1,000, nor might that be repaid at any time, save within the first year of her marriage: the like was to be done by a half or quarter lot respectively.

This was found to be a great charity to the weaker sex, and as some say, who are more skilful in the like affairs than myself, of good profit to the commonwealth.

Now began the native spleen of Oceana to be much purged, and men not to affect sullenness and pedantism. The elders could remember that they had been youths. Wit and gallantry were so far from being thought crimes in themselves, that care was taken to preserve their innocence. For which cause it was proposed to the Council for Religion by the Right Honorable Cadiscus de Clero, in the tribe of Stamnum, first censor, that such women as, living in gallantry and view about the town, were of evil fame, and could not show that they were maintained by their own estates or industry,

or such as, having estates of their own, were yet wasteful in ‘their way of life, and of ill-example to others, should be obnoxious to the animadversion of the Council of Religion, or of the censors: in which the proceeding should be after this manner. Notice should be first given of the scandal to the party offending, in private: if there were no amendment within the space of six months, she should be summoned and rebuked before the said Council or censors; and, if after other six months it were found that neither this availed, she should be censored not to appear at any public meetings, games, or recreations, upon penalty of being taken up by the doorkeepers or guards of the Senate, and by them to be detained, till for every such offence £5 were duly paid for her enlargement.

Furthermore, if any common strumpet should be found or any scurrility or profaneness represented at either of the theatres, the prelates for every such offence should be fined £20 by the said Council, and the poet, for every such offence on his part, should be whipped. This law relates to another, which was also enacted the same year upon this occasion.

The youth and wits of the Academy having put the business so home in the defence of comedies that the provosts had nothing but the consequences provided against by the foregoing law to object, prevailed so far that two of the provosts of the Council of State joined in a proposition, which after much ado came to a law, whereby £100,000 was allotted for the building of two theatres on each side of the piazza of the halo: and two annual magistrates called prelates, chosen out of the knights, were added to the tropic, the one called the prelate of the buskin, for inspection of the tragic scene called Melpomene; and the other the prelate of the sock, for the comic called Thalia, which magistrates had each £500 a year allowed out of the profits of the theatres; the rest, except £800 a year to four poets, payable into the Exchequer. A poet laureate created in one of these theatres by the strategus, receives a wreath of £500 in gold, paid out of the said profits. But no man is capable of this creation that had not two parts in three of the suffrages at the Academy, assembled after six weeks’ warning and upon that occasion.

These things among us are sure enough to be censured, but not know the nature of a commonwealth; that they are free, and yet to curb the genius in a lawful recreation to which they are naturally is to tell a tale of a tub. I have heard the Protestant ministers in France, by men that were wise and of their own profession, much blamed in that they forbade dancing, a recreation to which the genius of that air is so inclining that they lost many who would not lose that: nor do they less than blame the former determination of rashness, who now gently connive at that which they had so roughly forbidden. These sports in Oceana are so governed, that they are pleasing for private diversion, and profitable to the public: for the theatres soon defrayed their own charge, and now bring in a good revenue. All this is so far from the detriment of virtue, that it is to the improvement of it, seeing women that heretofore made havoc of their honor that they might have their pleasures are now incapable of their pleasures if they lose their honor.

About the one-and-fortieth year of the commonwealth, the censors, according to their annual custom, reported the pillar of Nilus, by which it was found that the

people were increased very near one-third. Whereupon the Council of War was appointed by the Senate to bring in a state of war, and the treasurers the state of the Treasury. The state of war, or the pay and charge of an army, was soon after exhibited by the Council in this account:

THE FIELD PAY OF A PARLIAMENTARY ARMY

The lord strategus, marching £10,000 Polemarches--

General of the horse... 2,000

Lieutenant-general... 2,000

General of the artillery.... 1,000

Commissary-general... 1,000

Major-general.... 1,000

Quartermaster-general... 1,000 Two adjutants to the major-general... 1,000 Forty colonels..... 40,000 100 captains of horse, at £500 a man... 50,000 300 captains of foot, at £300 a man... 90,000 100 cornets, at £100 a man.... 10,000 300 ensigns, at £50 a man.... 15,000 800 Quartermasters, Sergeants, Trumpeters,

Drummers, 20,000 10,000 horse, at 2s 6d per day each... 470,000 30,000 foot, at 1s per day each.... 500,000 Chirurgeons... 400 40,000 auxiliaries, amounting to within a

little as much... 1,100,000 The charge of mounting 20,000 horse.. 300,000 The train of artillery, holding a 3d to

the whole 900,000

Sum total £3,514,400

Arms and ammunition are not reckoned, as those which are furnished out of the store or arsenal of Emporium: nor wastage, as that which goes upon the account of the fleet, maintained by the customs; which customs, through the care of the Council for Trade and growth of traffic, were long since improved to about £1,000,000 revenue. The house being thus informed of a state of war, the commissioners brought in--

THE STATE OF THE TREASURY THIS PRESENT YEAR, BEING THE ONE-AND-FORTIETH OF THE COMMONWEALTH

Received from the one-and-twentieth of the commonwealth:

By £700,000 a year in bank, with the product of the sum

rising..... £16,000,000

Expended from the one-and-twentieth of this commonwealth:

Imprimis, for the addition of arms for 100,000 men to

the arsenal, or tower of Emporium..... £1,000,000 For the storing of the same with artillery... 300,000 For the storing of the same with ammunition... 200,000 For beautifying the cities, parks, gardens, public walks,

and places for recreation of Emporium and Hiera, with

public buildings, aqueducts, statues,

and fountains, etc..... 1,500,000 Extraordinary embassies... 150,000

Sum..... £3,150,000

Remaining in the Treasury, the salaries of the

Exchequer being defalked..... £12,000,000

By comparison of which accounts if a war with an army of 80,000 men were to be made by the penny, yet was the commonwealth able to maintain such a one above three years without levying a tax. But it is against all experience, sense, and reason that such an army should not be soon broken, or make a great progress; in either of which cases, the charge ceases; or rather if a right course be taken in the latter, profit comes in: for the Romans had no other considerable way but victory whereby to fill their treasury, which nevertheless was seldom empty. Alexander did not consult his purse upon his design for Persia: it is observed by Machiavel, that Livy, arguing what the event in reason must have been had that King invaded Rome, and diligently measuring what on each side was necessary to such a war, never speaks a word of money. No man imagines that the Gauls, Goths, Vandals, Huns, Lombards, Saxons, Normans, made their inroads or conquests by the strength of the purse; and if it be thought enough, according to the dialect of our age, to say in answer to these things that those times are past and gone: what money did the late Gustavus, the most victorious of modern princes, bring out of Sweden with him into Germany? An army that goes upon a golden leg will be as lame as if it were a wooden one; but proper forces have nerves and muscles in them, such for which, having £4,000,000 or £5,000,000, a sum easy enough, with a revenue like this of Oceana, to be had at any time in readiness, you need never, or very rarely, charge the people with taxes. What influence the commonwealth by such arms has had upon the world, I leave to historians, whose custom it has been of old to be as diligent observers of foreign actions as careless of those domestic revolutions which (less pleasant it may be, as not partaking so much of the romance) are to statesmen of far greater profit; and this fault, if it be not mine, is so much more frequent with modern writers, as has caused me to undertake this work; on which to give my own judgment, it is performed as much above the time I have been about it, as below the dignity of the matter.

But I cannot depart out of this country till I have taken leave of my Lord Archon, a prince of immense felicity who having built as high with his counsels as he digged deep with his sword, had now seen fifty years measured with his own unerring orbs.

Timoleon (such a hater of tyrants that, not able to persuade his brother Timophanes to relinquish the tyranny of Corinth, he slew him) was afterward elected by the people (the Sicilians groaning to them from under the like burden) to be sent to their relief: whereupon Teleclides, the man at that time of most authority in the

Commonwealth of Corinth, stood up, and giving an exhortation to Timoleon, how he should behave himself in this expedition, told him that if he restored the Sicilians to liberty, it would be acknowledged that he destroyed a tyrant; if otherwise, he must expect to hear he had murdered a king. Timoleon, taking his leave with a very small provision for so great a design, pursued it with a courage not inferior to, and a felicity beyond, any that had been known to that day in mortal flesh, having in the space of eight years utterly rooted out of all Sicily those weeds of tyranny, through the detestation whereof men fled in such abundance from their native country that whole cities were left desolate, and brought it to such a pass that others, through the fame of his virtues and the excellency of the soil, flocked as fast from all quarters to it as to the garden of the world: while he, being presented by the people of Syracuse with his town-house and his country retreat, the sweetest places in either, lived with his wife and children a most quiet, happy, and holy life; for he attributed no part of his success to himself, but all to the blessing and providence of the gods. As he passed his time in this manner, admired and honored by mankind, Laphistius, an envious demagogue, going to summon him upon some pretence or other to answer for himself before the assembly, the people fell into such a mutiny as could not be appeased but by Timoleon, who, understanding the matter, reproved them, by repeating the pains and travel which he had gone through, to no other end than that every man might have the free use of the laws. Wherefore when Daemenetus, another demagogue, had brought the same design about again, and blamed him impertinently to the people for things which he did when he was general, Timoleon answered nothing, but raising up his hands, gave the gods thanks for their return to his frequent prayers, that he might but live to see the Syracusans so free, that they could question whom they pleased.

Not long after, being old, through some natural imperfection, he fell blind; but the Syracusans by their perpetual visits held him, though he could not see, their greatest object: if there arrived strangers, they brought him to see this sight. Whatever came in debate at the assembly, if it were of small consequence, they determined it themselves; but if of importance, they always sent for Timoleon, who, being brought by his servants in a chair, and set in the middle of the theatre, there ever followed a great shout, after which some time was allowed for the benedictions of the people; and then the matter proposed, when Timoleon had spoken to it, was put to the suffrage; which given, his servants bore him back in his chair, accompanied by the people clapping their hands, and making all expressions of joy and applause, till, leaving him at his house, they returned to the despatch of their business. And this was the life of Timoleon, till he died of age, and dropped like a mature fruit, while the eyes of the people were as the showers of autumn.

The life and death of my Lord Archon (but that he had his senses to the last, and that his character, as not the restorer, but the founder of a commonwealth, was greater) are so exactly the same, that (seeing by men wholly ignorant of antiquity I am accused of writing romance) I shall repeat nothing: but tell you that this year the whole nation of Oceana, even to the women and children, were in mourning, where so great or sad a funeral pomp had never been seen or known. Some time after the performance of the obsequies a Colossus, mounted on a brazen horse of excellent fabric, was erected in the piazza of the Pantheon, engraved with this inscription on

the eastern side of the pedestal:

HIS NAME

IS AS

PRECIOUS OINTMENT

And on the wester with the following:

GRATA PATRIA

Piae et Perpetuae Memorie

D.D.

OLPHAUS MEGALETOR

LORD ARCHON, AND SOLE LEGISLATOR

OF

OCEANA

PATER PATRIAE

Invincible in the Field The Greatest of Captains Inviolable in his Faith The Best of Princes Unfeigned in his Zeal The Happiest of Legislators Immortal in his Fame The Most Sincere of Christians

Who setting the Kingdoms of Earth at Liberty, Took the Kingdom of the Heavens by Violence.

Anno AEtat. suoe 116

Hujus Reipub. 50

DESCRIPTION OF OCEANA

OCEANA is saluted by the panegyrist after this manner: “O the most blessed and fortunate of all countries, Oceana! how deservedly has nature with the bounties of heaven and earth endued thee! Thy ever fruitful womb not closed with ice nor dissolved by the raging star; where Ceres and Bacchus are perpetual twins: thy woods are not the harbor of devouring beasts, nor thy continual verdure the ambush of serpents, but the food of innumerable herds and flocks presenting thee, their shepherdess, with distended dugs or golden fleeces. The wings of thy night involve

thee not in the horror of darkness, but have still some white feather; and thy day is (that for which we esteem life) the longest." But this ecstasy of Pliny, as is observed by Bertius, seems to allude as well to Marpesia and Panopea, now provinces of this commonwealth, as to Oceana itself.

To speak of the people in each of these countries. This of Oceana, for so soft a one, is the most martial in the whole world. "Let States that aim at greatness," says Verulamius, "take heed how their nobility and gentlemen multiply too fast, for that makes the common subject grow to be a peasant and base swain driven out of heart, and in effect but a gentleman's laborer; just as you may see in coppice woods, if you leave the staddels too thick, you shall never have clean underwood, but shrubs and bushes; so in countries, if the gentlemen be too many, the commons will be base; and you will bring it to that at last, that not the hundreth poll will be fit for a helmet, specially as to the infantry, which is the nerve of an army, and so there will be great population and little strength. This of which I speak has been nowhere better seen than by comparing of Oceana and France, whereof Oceana, though far less in territory and population, has been nevertheless an overmatch, in regard the middle people of Oceana make good solders, which the peasants in France do not." In which words Verulamius, as Machiavel has done before him, harps much upon a string which he has not perfectly tuned, and that is, the balance of dominion or property, as it follows more plainly, in his praise "of the profound and admirable device of Panurgus, King of Oceana, in making farms and houses of husbandry of a standard; that is, maintained with such a proportion of land to them as may breed a subject to live in convenient plenty, and no servile condition, and to keep the plough in the hands of the owners, and not mere hirelings. And thus, indeed," says he, "you shall attain to Virgil's character which he gives of ancient Italy." But the tillage, bringing up a good soldiery, brings up a good commonwealth; which the author in the praise of Panurgus did not mind, nor Panurgus in deserving that praise; for where the owner of the plough comes to have the sword, too, he will use it in defence of his own; whence it has happened that the people of Oceana, in proportion to their property, have been always free. And the genius of this nation has ever had some resemblance with that of ancient Italy, which was wholly addicted to commonwealths, and where Rome came to make the greatest account of her rustic tribes, and to call her consuls from the plough; for in the way of parliaments, which was the government of this realm, men of country lives have been still intrusted with the greatest affairs, and the people have constantly had an aversion to the ways of the court. Ambition, loving to be gay and to fawn, has been a gallantry looked upon as having something in it of the livery; and husbandry, or the country way of life, though of a grosser spinning, as the best stuff of a commonwealth, according to Aristotle, such a one being the most obstinate assertress of her liberty and the least subject to innovation or turbulency. Wherefore till the foundations, as will be hereafter shown, were removed, this people was observed to be the least subject to shakings and turbulency of any; whereas commonwealths, upon which the city life has had the stronger influence, as Athens, have seldom or never been quiet, but at the best are found to have injured their own business by overdoing it. Whence the urban tribes of Rome, consisting of the Turba forensis, and libertines that had received their freedom by manumission, were of no

reputation in comparison of the rustics. It is true that with Venice it may seem to be otherwise, in regard the gentlemen (for so are all such called as have a right to that government) are wholly addicted to the city life; but then the Turba forensis, the secretaries, Cittadini, with the rest of the populace, are wholly excluded. Otherwise a commonwealth consisting but of one city would doubtless be stormy, in regard that ambition would be every man's trade; but where it consists of a country, the plough in the hands of the owner finds him a better calling, and produces the most innocent and steady genius of a commonwealth, such as is that of Oceana.

Marpesia, being the northern part of the same island, is the dry-nurse of a populous and hardy nation, but where the staddels have been formerly too thick, whence their courage answered not their hardiness, except in the nobility, who govern much after the manner of Poland, but that the King was not elective till the people received their liberty; the yoke of the nobility being broken by the commonwealth of Oceana, which in grateful return is thereby provided with an inexhaustible magazine of auxiliaries.

Panopea, the soft mother of a slothful and pusillanimous people, is a neighbor island, anciently subjected by the arms of Oceana; since almost depopulated for shaking the yoke, and at length replanted with a new race. But, through what virtues of the soil or vice of the air soever it be, they come still to degenerate. Wherefore seeing it is neither likely to yield men fit for arms, nor necessary it should, it had been the interest of Oceana so to have disposed of this province, being both rich in the nature of the soil, and full of commodious ports for trade, that it might have been ordered for the best in relation to her purse, which in my opinion, if it had been thought upon in time, might have been best done by planting it with Jews, allowing them their own rites and laws; for that would have brought them suddenly from all parts of the world, and in sufficient numbers. And though the Jews be now altogether for merchandise, yet in the land of Canaan (except since their exile from whence they have not been landlords) they were altogether for agriculture; and there is no cause why a man should doubt, but having a fruitful country and excellent ports, too, they would be good at both. Panopea, well peopled, would be worth a matter of £4,000,000 dry-rents; that is, besides the advantage of the agriculture and trade, which, with a nation of that industry, come at least to as much more. Wherefore Panopea, being farmed out to the Jews and their heirs forever, for the pay of a provincial army to protect them during the term of seven years, and for £2,000,000 annual revenue from that time forward, besides the customs, which would pay the provincial army, would have been a bargain of such advantage, both to them and this commonwealth, as is not to be found otherwise by either. To receive the Jews after any other manner into a commonwealth were to maim it; for they of all nations never incorporate, but taking up the room of a limb, are of no use office to the body, while they suck the nourishment which would sustain a natural and useful member.

If Panopea had been so disposed of, that knapsack, with the Marpesian auxiliary, had been an inestimable treasure; the situation of these countries being islands (as appears by Venice how advantageous such a one is to the like government) seems to have been designed by God for a commonwealth. And yet that, through the straitness

of the place and defect of proper arms, can be no more than a commonwealth for preservation; whereas this, reduced to the like government, is a commonwealth for increase, and upon the mightiest foundation that any has been laid from the beginning of the world to this day.

“Illam arcta capiens Neptunus compede stringit: Hanc autem glaucis captus complectitur ulnis.”

The sea gives law to the growth of Venice, but the growth of Oceana gives law to the sea.

These countries, having been anciently distinct and hostile kingdoms, came by Morpheus the Marpesian, who succeeded by hereditary right to the crown of Oceana, not only to be joined under one head, but to be cast, as it were by a charm, into that profound sleep, which, broken at length by the trumpet of civil war, has produced those effects that have given occasion to the preceding discourse, divided into four parts.

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